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Fake Engagement and the Law: How Federal, State and European Union Rules Apply to the Twenty Most Common Topics in 273,771 Engagement-Pod Posts

A dissertation presented

by

Daniel Hall

to

[The Department of … or The Committee on …]

in partial fulfillment of the requirements

for the degree of

Doctor of Philosophy

in the subject of

[Subject]

Harvard University

Cambridge, Massachusetts

[Month and year of the defense]

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Suggested citation: Hall, Daniel. 2026. *Fake Engagement and the Law: How Federal, State and European Union Rules Apply to the Twenty Most Common Topics in 273,771 Engagement-Pod Posts.* Draft dissertation.
https://github.com/DreamITSoftware/SPOTAPOD/tree/main/dissertation

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Fake Engagement and the Law: How Federal, State and European Union Rules Apply to the Twenty Most Common Topics in 273,771 Engagement-Pod Posts

Abstract

Engagement pods produce fake social media indicators. The likes, comments and shares that a pod produces come from an agreement among its members, or from a tool that prompts them, and not from readers who chose on their own to engage, so they say little about how a post was received. The Federal Trade Commission's rule on fake indicators of social media influence, 16 CFR 465.1(h), gives the term a legal definition. Whether that definition reaches each kind of pod engagement is an open question, and this dissertation maps what the law says about it.

This dissertation is primary research on largely uncharted ground. In the sources I opened, I found one peer-reviewed study of engagement pods: O'Meara (2019) interviewed 16 Instagram influencers, and her study does not address law or LinkedIn. My own earlier book on pods (Hall, Adam and Berg, 2025) is a trade book that is not peer reviewed and applies no statute or rule to a corpus of posts. I found no earlier study that analyzes a large corpus of pod posts, none that sets the rules in force against such a corpus topic by topic, and none that connects pods to mental health. A search that finds nothing does not show that nothing exists, and I did not do a systematic review of the literature, so a reader who knows of earlier work that I missed should treat this paragraph as needing correction.

The research is primary because the de-duplication rule, the counts, the topic model and the reading of the rules are an original analysis of the corpus, and because I collected one of the four sources, the 65 export files, myself and have not published it. I ran no interviews or surveys,

and the corpus analysis is not an experiment. My earlier book reports two field demonstrations that I ran in pods, which Section 2.9 describes and this dissertation does not analyze. The mental-health sections review published research. I, Daniel Hall, am the sole author of this dissertation and the only researcher named in it. I used an AI assistant to help retrieve sources, run the counts and draft text, as Section 1.5 describes, and I am responsible for the result.

Federal, state and EU law reach a pod-boosted post through what the post says, sells or discloses, and rarely through the boost itself. I reached this finding by pairing a corpus of engagement-pod posts with a topic-by-topic reading of the rules. The corpus holds 397,192 records from four sources, which reduce to 273,771 distinct posts. A topic model places 64,970 of them in named topics, and the twenty largest topics hold 54,870 posts (84.5% of the placed posts). For each topic I asked which laws a regulator, a competitor or a court would examine first, which actor each law reaches (the author, the pod-tool operator, the engaging member or the platform), what the rules mean for readers and for young people in particular, and which questions no court or agency has answered.

The topic chapters cover the rules on endorsements, fake reviews and fake indicators of influence, pricing and fees, earnings claims, securities offers and touting, health claims, children's privacy and child influencers, forced-labor imports and customs fraud, competition, and EU consumer, platform and AI law. Only two instruments are aimed at the engagement itself: 16 CFR 465.8, which took effect on 21 October 2024, and a platform's own contract. In the sources I opened I found no complaint or decision that applies section 465.8 to pod engagement, so I list 25 questions that remain open. The engaging member is the party for whom I found the least authority.

The data show that pods rarely announce themselves: the word "pod" appears in 43 of the 54,870 posts in the twenty topics (0.08%). The words that bear on a rule are present in a minority of posts in every topic, and only links and hashtags reach a majority anywhere. I have no data on how any young person reads an engagement count, so the chapters label the link between pods and coming generations as inference. Each chapter also has a section on mental health that draws on published research I opened; none of that research studies engagement pods, and I label each link to a topic as inference.

The study has limits. The posts are those that people submitted to pod tools, the corpus file used for the counts holds no dates, although every record in the 65 export files carries a creation date, and many primary legal texts reached me as summaries. Each claim carries an evidence tier. This is research and not legal advice, and no chapter says that any author, tool operator or member broke any law.

Keywords: engagement pods; fake engagement; FTC Act section 5; 16 CFR Part 465; endorsements; consumer protection; platform regulation; children and young people

Table of Contents

Abstract iii

List of Tables xii

Chapter 1. Introduction 1
- 1.1 The question 1
- 1.2 Why the topic of a post matters to the law 2
- 1.3 Why I write about future generations 3
- 1.4 What the dissertation adds 3
- 1.5 My position, my disclosures and the limits of what I claim 5
- 1.6 How the dissertation is organized 6
- 1.7 Mental health in this dissertation 7

Chapter 2. Data and method 8
- 2.1 The four sources 8
- 2.2 Counting distinct posts 9
- 2.3 The topic model and the twenty topics 10
- 2.4 Evidence tiers 11
- 2.5 Privacy and ethics 12
- 2.6 Limits 12
- 2.7 How I handle mental-health evidence 13
- 2.8 The terms of the site that served the data 14
- 2.9 My earlier book and how this dissertation uses it 15
- 2.10 What the 65 export files hold 17

Chapter 3. The legal framework common to every topic 20
- 3.1 Section 5 of the FTC Act 20
- 3.2 The Commission's rule on reviews, testimonials and fake indicators 21
- 3.3 The Endorsement Guides 23
- 3.4 The Lanham Act and private suits 24
- 3.5 Contract and computer-access law 24
- 3.6 Who is exposed 26
- 3.7 Why the stakes reach across generations 27
- 3.8 What the common framework means for mental health 27

Chapter 4. Technology and innovation: substantiation, AI washing and securities disclosure 29
- 4.1 The topic in the data 29
- 4.2 The laws that apply 29
- 4.3 How the rules reach pod-boosted posts in this topic 33
- 4.4 What this means for people and for coming generations 35
- 4.5 How this topic bears on mental health 37
- 4.6 What the data cannot show 37

Chapter 5. Events, community and networking: ticket pricing, "free" offers and scarcity claims 39
- 5.1 The topic in the data 39
- 5.2 The laws that apply 40

5.3 How the rules reach pod-boosted posts in this topic....42
5.4 What this means for people and for coming generations....44
5.5 How this topic bears on mental health....45
5.6 What the data cannot show....46

Chapter 6. Leadership, teams and trust: insider endorsements, executive disclosure and employee account privacy....47
6.1 The topic in the data....47
6.2 The laws that apply....48
6.3 How the rules reach pod-boosted posts in this topic....50
6.4 What this means for people and for coming generations....52
6.5 How this topic bears on mental health....53
6.6 What the data cannot show....54

Chapter 7. Apps, software and no-code tools: subscriptions, app reviews, children's data and state privacy law....55
7.1 The topic in the data....55
7.2 The laws that apply....56
7.3 How the rules reach pod-boosted posts in this topic....58
7.4 What this means for people and for coming generations....60
7.5 How this topic bears on mental health....61
7.6 What the data cannot show....62

Chapter 8. Sales, leads and email outreach: commercial messages, contact data and the credentials tools hold....63
8.1 The topic in the data....63
8.2 The laws that apply....64
8.3 How the rules reach pod-boosted posts in this topic....66
8.4 What this means for people and for coming generations....68
8.5 How this topic bears on mental health....69
8.6 What the data cannot show....70

Chapter 9. Money, prices and value: price comparisons, all-in pricing and algorithmic pricing....72
9.1 The topic in the data....72
9.2 The laws that apply....73
9.3 How the rules reach pod-boosted posts in this topic....74
9.4 What this means for people and for coming generations....76
9.5 How this topic bears on mental health....77
9.6 What the data cannot show....78

Chapter 10. LinkedIn, content and social media: fake indicators of influence, platform immunity and platform contracts....79
10.1 The topic in the data....79
10.2 The laws that apply....81
10.3 How the rules reach pod-boosted posts in this topic....94
10.4 What this means for people and for coming generations....96
10.5 How this topic bears on mental health....98
10.6 What the data cannot show....99

Chapter 11. Founders, startups and small business: private offerings, general solicitation and investor fraud....101
11.1 The topic in the data....101
11.2 The laws that apply....102
11.3 How the rules reach pod-boosted posts in this topic....106
11.4 What this means for people and for coming generations....108
11.5 How this topic bears on mental health....110
11.6 What the data cannot show....110

Chapter 12. AI agents and AI tools: performance claims, tool suppliers and the protection of young users....112
12.1 The topic in the data....112
12.2 The laws that apply....113
12.3 How the rules reach pod-boosted posts in this topic....116
12.4 What this means for people and for coming generations....118
12.5 How this topic bears on mental health....120
12.6 What the data cannot show....121

Chapter 13. Investing, markets and finance: touting, antifraud rules and the young retail investor....122
13.1 The topic in the data....122
13.2 The laws that apply....123
13.3 How the rules reach pod-boosted posts in this topic....126
13.4 What this means for people and for coming generations....128
13.5 How this topic bears on mental health....129
13.6 What the data cannot show....130

Chapter 14. Motivation, mindset and growth: earnings claims, the Business Opportunity Rule and the young person's first business....131
14.1 The topic in the data....131
14.2 The laws that apply....132
14.3 How the rules reach pod-boosted posts in this topic....137
14.4 What this means for people and for coming generations....141
14.5 How this topic bears on mental health....144
14.6 What the data cannot show....145

Chapter 15. Strategy and planning: public signals, forward-looking statements and trade secrets....147
15.1 The topic in the data....147
15.2 The laws that apply....149
15.3 How the rules reach pod-boosted posts in this topic....153
15.4 What this means for people and for coming generations....156
15.5 How this topic bears on mental health....158
15.6 What the data cannot show....159

Chapter 16. Building relationships and community: endorsements, material connections and social connection....160
16.1 The topic in the data....160
16.2 The laws that apply....162

16.3 How the rules reach pod-boosted posts in this topic....164
16.4 What this means for people and for coming generations....167
16.5 How this topic bears on mental health....169
16.6 What the data cannot show....170

Chapter 17. Supply chain, logistics and operations: forced labor, customs fraud, tariffs and due diligence....171
17.1 The topic in the data....171
17.2 The laws that apply....173
17.3 How the rules reach pod-boosted posts in this topic....177
17.4 What this means for people and for coming generations....179
17.5 How this topic bears on mental health....181
17.6 What the data cannot show....182

Chapter 18. Marketing, brands and advertising: false advertising, green claims and disguised promotion....184
18.1 The topic in the data....184
18.2 The laws that apply....186
18.3 How the rules reach pod-boosted posts in this topic....189
18.4 What this means for people and for coming generations....191
18.5 How this topic bears on mental health....193
18.6 What the data cannot show....194

Chapter 19. Energy, sleep, food and fitness: health claims, supplements, weight-loss products and professional licensing....196
19.1 The topic in the data....196
19.2 The laws that apply....198
19.3 How the rules reach pod-boosted posts in this topic....202
19.4 What this means for people and for coming generations....204
19.5 How this topic bears on mental health....207
19.6 What the data cannot show....208

Chapter 20. Learning, courses and skills: earnings claims, the Business Opportunity Rule, vocational-school guides, state school licensing and AI literacy....209
20.1 The topic in the data....209
20.2 The laws that apply....212
20.3 How the rules reach pod-boosted posts in this topic....218
20.4 What this means for people and for coming generations....222
20.5 How this topic bears on mental health....226
20.6 What the data cannot show....227

Chapter 21. Luxury travel and hotels: total-price rules, travel-seller registration, package-travel protection and hotel liability for the trafficking of minors....229
21.1 The topic in the data....229
21.2 The laws that apply....232
21.3 How the rules reach pod-boosted posts in this topic....237
21.4 What this means for people and for coming generations....240
21.5 How this topic bears on mental health....243
21.6 What the data cannot show....244

Chapter 22. Life, family and personal stories: children's online privacy, child-influencer statutes, likeness rights, health data and the duties of platforms toward minors....246
22.1 The topic in the data....246
22.2 The laws that apply....248
22.3 How the rules reach pod-boosted posts in this topic....253
22.4 What this means for people and for coming generations....258
22.5 How this topic bears on mental health....260
22.6 What the data cannot show....261

Chapter 23. Crypto and blockchain: the securities tests, touting, commodity-fraud rules, consumer-protection data, stablecoin and market-structure legislation, and EU marketing rules....263
23.1 The topic in the data....263
23.2 The laws that apply....266
23.3 How the rules reach pod-boosted posts in this topic....270
23.4 What this means for people and for coming generations....273
23.5 How this topic bears on mental health....275
23.6 What the data cannot show....276

Chapter 24. Comparing the twenty topics: which signals differ, which laws recur and what boosting changes....278
24.1 How I compared the topics....278
24.2 What the counts show across topics....279
24.3 Which laws recur....282
24.4 Who each rule reaches....285
24.5 What boosting changes in the law, and what it does not....289
24.6 Rules that moved while I was writing....290
24.7 What this means for coming generations, taken together....291
24.8 Mental health across the twenty topics....292
24.9 What the comparison cannot show....294

Chapter 25. Conclusion, limitations, ethics and open questions....295
25.1 What I found....295
25.2 Limitations....297
25.3 Ethics and my position....299
25.4 Questions that no court or agency has answered....301
25.5 What would settle them....303
25.6 What the sources support about mental health....304
25.7 Conclusion....305

References....307
A. United States federal statutes....307
B. United States federal regulations and Federal Register notices....308
C. United States agency policy statements, guidance, releases and filings....310
D. United States state law and state-government sources....313
E. Cases and enforcement matters....314
F. European Union and international legal sources....314
G. Official data, surveys and research....316
H. Law-firm, trade and press accounts (all STATED)....320

I. Sources that I could not open.....327
J. My own earlier work.....329

List of Tables

Table 2.1. The four sources of posts, with the number of records in each and what each contains.....8

Table 2.2. Distinct posts by whether the topic model placed them in a named topic.....10

Table 2.3. The twenty largest topics, with the number of posts, the share of placed posts and the chapter for each.....11

Table 2.4. Distinct records in the 65 export files by the quarter in which they were created (UTC), with the share of all 56,363 records.....18

Table 3.1. Sections of 16 CFR Part 465 and their subjects.....21

Table 3.2. Actors in the framework, what they do, and the rules most likely to reach them.....26

Table 4.1. Rules that reach posts on technology and innovation, with the parties reached, an enforcement example and the remedy stated in the source.....35

Table 5.1. Rules that reach posts on events, community and networking, with the parties reached, an enforcement example and the remedy stated in the source.....44

Table 6.1. Rules that reach posts on leadership, teams and trust, with the parties reached, an enforcement example and the remedy stated in the source.....52

Table 7.1. Rules that reach posts on apps, software and no-code tools, with the parties reached, an enforcement example and the remedy stated in the source.....60

Table 8.1. Rules that reach posts on sales, leads and email outreach, with the parties reached, an enforcement example and the remedy stated in the source.....68

Table 9.1. Rules that reach posts on money, prices and value, with the parties reached, an enforcement example and the remedy stated in the source.....76

Table 10.1. Values of the engageTiming field in the 65 export files, by engagement type.....81

Table 10.2. LEMPOD: dated events, what each source says, and the type of each source.....89

Table 10.3. Rules that reach posts on LinkedIn, content and social media, with the parties reached, an enforcement example and the remedy stated in the source.....96

Table 11.1. Rules that reach posts on founders, startups and small business, with the parties reached, an enforcement example and the remedy stated in the source.....108

Table 12.1. Rules that reach posts on AI agents and AI tools, with the parties reached, an enforcement example and the remedy stated in the source.....118

Table 13.1. Rules that reach posts on investing, markets and finance, with the parties reached, an enforcement example and the remedy stated in the source.....127

Table 14.1. Rules that reach posts on motivation, mindset and growth, with the parties reached, an enforcement example and the remedy stated in the source.....141

Table 15.1. Rules that reach posts on strategy and planning, with the parties reached, an enforcement example and the remedy stated in the source.....156

Table 16.1. Rules that reach posts on building relationships and community, with the parties reached, an enforcement example and the remedy stated in the source.....166

Table 17.1. Rules that reach posts on supply chain, logistics and operations, with the parties reached, an enforcement example and the remedy stated in the source.....179

Table 18.1. Rules that reach posts on marketing, brands and advertising, with the parties reached, an enforcement example and the remedy stated in the source.....191

Table 19.1. Rules that reach posts on energy, sleep, food and fitness, with the parties reached, an enforcement example and the remedy stated in the source.....204

Table 20.1. Rules that reach posts on learning, courses and skills, with the parties reached, an enforcement example and the remedy stated in the source.....222

Table 21.1. Rules that reach posts on luxury travel and hotels, with the parties reached, an enforcement example and the remedy stated in the source.....240

Table 22.1. Rules that reach posts on life, family and personal stories, with the parties reached, an enforcement example and the remedy stated in the source.....257

Table 23.1. Rules that reach posts on crypto and blockchain, with the parties reached, an enforcement example and the remedy stated in the source.....273

Table 24.1. Counted features of the posts in each of the twenty topics, as a percentage of the topic's posts.....280

Table 24.2. Principal rules applied in each chapter, and what makes a rule reach a post.....282

Table 24.3. Responsibility matrix: parties, rules, what a claimant would have to show, what the sources contain, and what is missing.....287

Table 24.4. Channels in the mental-health evidence, with the chapters that use each, the strongest sources opened, and what they show with their main limit.....293

Table 25.1. The 25 questions that no court or agency has answered, by subject and chapter.....301

Chapter 1. Introduction

1.1 The question

This dissertation asks which laws apply to the twenty most common topics in a large collection of engagement-pod posts, and what those laws mean for the people who read the posts now and for the generations who will grow up on the platforms that carry them. It is primary research on ground where, in the sources I opened, little earlier work exists (Section 1.4).

An engagement pod is a group of people who agree to like, comment on or share one another's posts. Many pods run through software that tells each member which posts to engage with and when. The collection I analyze holds 397,192 records from four sources, which reduce to 273,771 distinct posts (Chapter 2). A topic model places 64,970 of those posts in a topic with confidence, and the twenty largest topics hold 54,870 of them (84.5%). The posts concern business, technology, money, health, travel and family. Most look like ordinary professional posts. What they have in common is that their authors listed them in a pod tool so that other members would engage with them.

The likes, comments and shares that a pod produces are fake social media indicators in the plain sense of the term. They exist because members agreed to give them in return, or because a tool told members to give them, and not because each reader independently chose to engage, so a count that a pod produced does not measure how readers received the post. The law gives the term a narrower meaning. The Federal Trade Commission's rule on fake indicators of social media influence defines fake indicators in 16 CFR 465.1(h) as those generated by bots, those from "purported individual accounts not associated with a real individual," those from hijacked accounts, and those that "otherwise do not reflect a real individual's or entity's activities,

opinions, findings, or experiences." Whether a like that a real member gives at a tool's prompt meets that last clause is the first open question in Chapter 3, and I found no decision on it.

I ask four questions.

1. For each topic, which laws would a regulator, a competitor or a court examine first if the posts in that topic were boosted by a pod?
2. For each law, which actor does it reach: the author of the post, the operator of the pod tool, the member who engages, or the platform that hosts the post?
3. What do the rules mean in practice for people who rely on these posts when they decide what to buy, whom to hire, whom to trust and where to put their money, and what do they mean for young people in particular?
4. Which of these legal questions has no answer yet because no court or agency has addressed it?

1.2 Why the topic of a post matters to the law

The topic of a post largely decides which rules apply to it, so the chapters are organized by topic and each chapter selects the laws that fit.

A post about a spreadsheet template and a post about a stock tip can be boosted by the same tool, and the law treats them differently. Securities law applies to the stock tip. Health-claim rules apply to a post about a sleep supplement. Children's privacy law applies to a post that features a child. The Federal Trade Commission's rule on fake indicators of social media influence applies to all of them (Chapter 3), and its consequences differ with what the post asks the reader to believe or buy. Boosting does not change what a post says. It changes how many people see the post and how credible it looks. Legislatures and agencies have written specific rules for claims about money, health, children and product safety, so those are the topics where a

boosted post is most likely to meet a specific rule. That is my reading of the legal landscape, and each topic chapter tests it against the text of the rules.

1.3 Why I write about future generations

Each topic chapter closes its legal analysis with a section on what the rules mean for people and for coming generations, because the people exposed to platform signals for the longest time are young.

Chapter 3 gives the sourced facts. The U.S. Surgeon General's advisory on social media and youth mental health reports that up to 95% of young people aged 13 to 17 use a social media platform. The argument that connects those facts to engagement pods is mine, and I label it INFERENCE wherever it appears. It has two parts. The first is that visible counts teach young people what credibility and success look like, so a manufactured count teaches the wrong lesson at the age when the lesson forms. The second is that legal answers given early become the baseline for every later cohort: the first court to decide whether a prompted like "reflects" a real person's opinion will set the answer that children now in school will live under as adults.

I have no data on how teenagers read engagement counts, and the posts I analyze say nothing about who read them. Where a chapter can anchor the argument in a published study or an official report, it does. Where it cannot, it says so.

1.4 What the dissertation adds

The dissertation adds a map from topic to law, tied to a defined corpus of pod posts. For each of twenty topics it states which rules apply, who each rule reaches, and what remains untested. Every legal claim marked VERIFIED rests on a primary text that I opened, and every claim I could not check at the source carries a lower tier (Section 2.4). The last chapters compare the topics and list the questions that no court or agency has yet answered.

The subject is largely uncharted. In the sources I opened, I found one peer-reviewed study of engagement pods. O'Meara (2019) interviewed 16 Instagram influencers and analyzed the interviews with grounded theory, and her title describes pods as practices of resistance to platform labor. Her study rests on interviews, concerns Instagram and does not address law or LinkedIn.

Beyond that study, I found no earlier work that analyzes a large corpus of pod posts, none that sets the rules in force against such a corpus topic by topic, no complaint or decision that applies 16 CFR § 465.8 to pod engagement (Chapter 3 and Section 25.4), and no study that connects pods to mental health. I also saw a 2022 paper in the *Journal of Marketing Management* on mutual engagement among food influencers. I met it only in search results and did not open it, so I do not describe it (References, Section I). A search that finds nothing does not show that nothing exists, and I did not do a systematic review of the literature. A reader who knows of earlier work that I missed should treat these statements as needing correction.

My own book, *Top 100 List of Lies on Social Media* (2025), also describes pods. It is a trade book that is not peer reviewed, it gives a participant's account and two field demonstrations, and it applies no statute or rule to a corpus of posts. Section 2.9 says how I use it. Because I wrote it, it does not corroborate anything in this dissertation.

The work is primary research. The de-duplication rule, the counts, the topic model, the merging of components into topics and the reading of the rules topic by topic are an original analysis of the corpus. I collected the 65 export files myself, by navigating directly to the site that served the data and capturing what it returned on a local server, and the files are unpublished (Section 2.1). The legal findings rest on the texts of statutes, rules and court records that I opened, which are primary legal sources (Section 2.4).

The work is primary only in those respects. The podawaa source is a published dataset, so my analysis of it is a new analysis of existing data, and my public repository, the SPOTAPOD Analysis Repository (Hall, 2026), already analyzes the first three sources in aggregate and, since 22 October 2026, profiles the 65 export files in aggregate (Section 2.1). It does not hold this dissertation's de-duplication rule, topic model or legal analysis. I ran no interviews or surveys for this dissertation. My earlier book reports two field demonstrations that I ran in pods, and Section 2.9 describes them, but they are not part of the analysis. The mental-health sections review published research and are secondary.

I, Daniel Hall, am the sole author of this dissertation and the only researcher named in it. It names no co-author, supervisor or institution. Section 1.5 describes the AI assistant that I used, and I am responsible for the result.

The contribution is the pairing of a large pod corpus with a topic-by-topic legal analysis, offered so that others can test it.

1.5 My position, my disclosures and the limits of what I claim

I have worked with engagement pods since 2019. I coauthored *Top 100 List of Lies on Social Media*, I wrote the teen guide *DIGITAL BOUGHTulism: POONAMI*, and I am the CEO of Dream IT Software, which publishes the SPOTAPOD Analysis Repository (Hall, 2026; Section 2.1). I therefore have an interest in how this subject is described. The evidence tiers and the rule that VERIFIED legal claims rest on an opened primary text are my safeguards against that interest, and a reader should still weigh my position.

The book states that I am a member of several pods, and it reports two demonstrations that I ran in pods (Section 2.9). I am therefore a participant in the activity that this dissertation studies and not only an observer, and a reader should weigh that as well.

The case correspondence in Chapter 10 adds two disclosures. In March 2024 I told LinkedIn that I had created a second account to expose pods and find vulnerabilities and that I use it for LEMPOD, a pod tool, so I have used a pod tool myself. I also reported two flaws to LinkedIn, in 2023 and 2024, and I did not take up LinkedIn's suggestion of its bug bounty program for the second (STATED; the emails are supplied by me and I cannot authenticate them).

I used Claude, an AI assistant made by Anthropic, to help retrieve and read sources, run the counts and draft text. I chose the questions and the claims, and I am responsible for the result.

Three limits apply to every chapter.

- This is research and not legal advice. A person facing a legal decision should consult a licensed attorney in the relevant jurisdiction.
- The data hold post text and engagement fields. They do not hold anyone's intent, knowledge or identity, and several rules turn on knowledge ("knew or should have known" in 16 CFR § 465.8, for example). No chapter says that any author, tool operator or member broke any law.
- I name no author or account. Where a post is quoted, the quotation is of text that appears in the data, and the speaker stays anonymous.

1.6 How the dissertation is organized

Chapter 2 describes the data and the method. Chapter 3 sets out the legal framework that applies to every topic. Chapters 4 to 23 take the twenty topics in order of size, from technology and innovation (5,201 posts) to crypto and blockchain (1,180 posts). Each topic chapter has six parts: the topic in the data; the laws that apply; how the rules reach pod-boosted posts; what this means for people and for coming generations; how this topic bears on mental health; and what

the data cannot show. Chapter 24 compares the topics and shows which laws recur. Chapters 1 to 3, 24 and 25 each include a section on mental health. Chapter 25 gives the conclusion, the limitations and the ethics of the study. The References list every source I opened, with a link to each.

1.7 Mental health in this dissertation

Each chapter has a section on mental health, and each rests on published research that I opened, because the posts say nothing about how anyone felt.

The question in each section is how the subject of the chapter, or the law that governs it, bears on the mental health of the people who write, read or are affected by posts on that subject. I answer it with four rules. I report an association as an association: the American Psychological Association's 2023 advisory on social media says that "findings suggesting causal associations are rare." I do not say that engagement pods cause any mental-health outcome, because none of the sources I opened studies pods and the posts carry no information about their readers. I label each link between a source and a topic as INFERENCE. Where I found no source on a topic, the section says so and names the nearest indirect evidence.

I am not a clinician. Nothing in these sections is a diagnosis or clinical advice. The figures come from organizations such as the American Psychological Association, the U.S. Surgeon General, the World Health Organization and the Federal Trade Commission, and several of them say that the evidence is still developing. Chapter 2 describes how I handled that evidence, and Chapter 25 states what remains open.

Chapter 2. Data and method

The analysis rests on 273,771 distinct posts drawn from four sources that together hold 397,192 records. Each record is a post that someone listed on an engagement-pod or boost tool.

2.1 The four sources

Table 2.1 lists the four sources, the number of records in each and what each contains.

Table 2.1. The four sources of posts, with the number of records in each and what each contains

Source	Records	What it contains
podawaa	213,491	Post text, like and view counts, and an author identifier. The provenance notes in the SPOTAPOD Analysis Repository (Hall, 2026) record a checksum match between this file and Harvard Dataverse record doi:10.7910/DVN/WD9AUR, titled LinkedIn posts using fake socials, which I did not open (Section 2.1 and References, Section I).
HyperClapper	49,369	Post text, like and comment flags, creation time and author profile fields, from 702 distinct authors. It has no Dataverse citation.
LinkBoost-2025	77,969	Post titles and profile links. By the construction of the dataset, each record is a logged pod action. It has no Dataverse citation.
65 export files	56,363	Post text, a link, a state, an engagement type, a timing setting and a count of engaged users. Records were created between 11 October 2024 and 16 October 2026, and the files were exported on 16 October 2026. These files are not published. Section 2.10 describes them.

My public repository is the SPOTAPOD Analysis Repository (Hall, 2026), at github.com/DreamITSoftware/SPOTAPOD. Dream IT Software publishes it, with the code under the MIT licence and the documents under CC BY 4.0. I cite the repository as it stood at commit 2c8d3f8 on 22 October 2026, and it can change after that date. Its citation file states that it is independent of the project at github.com/PolymathWizard/SPOTAPOD, which has the same name, and this dissertation does not cite that project. The citation file also lists a Harvard Dataverse record, Replication Data for: SPOTAPOD Analysis Repository (doi:10.7910/DVN/NT6YM2). I did not open that record and make no claim about what it holds.

The repository analyzes the first three sources in aggregate. Since 22 October 2026 it also holds an aggregate profile of the 65 export files, the content scans run on them, and a manifest of their file hashes. It holds no raw file from any source (its test fixtures are fabricated records), and the 65 export files stay in a private workspace because each record carries the name of its poster and a link to the post (Section 2.5).

The repository does not hold the de-duplication rule in Section 2.2, the topic model in Section 2.3 or the counts that depend on them, including the 273,771 distinct posts and the topic shares in later chapters. I ran those steps in my private workspace and have not published the code for them. The repository sorts records into nine categories by keyword, which is a different method from the topic model, and its profile scripts count records as each file holds them without applying the rule in Section 2.2. A figure from the repository and a figure from this dissertation for the same source can therefore differ. No result in this dissertation names an account, an author or a post.

I collected the 65 export files myself. I navigated directly to the site that served the data, linkboost.co (Section 2.8), and captured the data it returned on a local server.

2.2 Counting distinct posts

A post counts once, however many times it appears. I drop any record whose text is shorter than 40 characters. I treat two records as the same post when their first 200 characters are identical after lowercasing the text and collapsing every run of non-word characters into a single space. I applied the rule in a fixed order: podawaa, then HyperClapper, then LinkBoost-2025, then the 65 exports. The result is 273,771 distinct posts. The same post can be listed many times by one tool or by several, so the 397,192 records overstate how many different posts the tools handled.

2.3 The topic model and the twenty topics

I grouped the posts by subject with a standard text-mining method. Each post was converted to weighted word and two-word-phrase features (TF-IDF, with 60,000 features, common words above a 15% document frequency removed, and phrases that appear in fewer than ten posts removed). I then fitted non-negative matrix factorization with 80 components on a random sample of 70,000 posts, using a fixed random seed, and scored all 273,771 posts against the result.

A post is placed in a component only when that component holds at least 30% of its weight. Placement is therefore conservative: 147,147 posts met the threshold and 126,624 did not. I then merged the 80 components by hand into 33 named topics. Seventeen components were mostly written in French, Spanish, German, Italian, Portuguese or Dutch, and seven described how a post was written (hashtag lists, contractions, closing questions) or were too generic to name a subject. I set both groups aside. A second filter on word counts set aside a further 6,355 posts that were in another language but sat inside English components, and 442 posts were in non-Latin scripts. The remaining 64,970 posts, 23.7% of the distinct posts, sit in named topics.

Table 2.2 accounts for all 273,771 distinct posts.

Table 2.2. Distinct posts by whether the topic model placed them in a named topic

Posts accounted for	Count
Placed in a named topic	64,970
Not placed confidently	126,624
Other language, by component	61,536
Other language, by post	6,355
Non-Latin script	442
Format-driven or generic	13,844
All distinct posts	**273,771**

The twenty largest topics hold 54,870 of the 64,970 placed posts, 84.5%, and 20.0% of all distinct posts. Each is the subject of one chapter.

Table 2.3 lists the twenty topics in order of size.

Table 2.3. The twenty largest topics, with the number of posts, the share of placed posts and the chapter for each

Rank	Topic	Posts	Share of placed	Chapter
1	Technology and innovation	5,201	8.0%	4
2	Events, community and networking	4,444	6.8%	5
3	Leadership, teams and trust	4,019	6.2%	6
4	Apps, software and no-code tools	3,903	6.0%	7
5	Sales, leads and email outreach	3,673	5.7%	8
6	Money, prices and value	3,267	5.0%	9
7	LinkedIn, content and social media	3,266	5.0%	10
8	Founders, startups and small business	3,217	5.0%	11
9	AI agents and AI tools	2,984	4.6%	12
10	Investing, markets and finance	2,853	4.4%	13
11	Motivation, mindset and growth	2,420	3.7%	14
12	Strategy and planning	2,106	3.2%	15
13	Building relationships and community	2,096	3.2%	16
14	Supply chain, logistics and operations	2,000	3.1%	17
15	Marketing, brands and advertising	1,862	2.9%	18
16	Energy, sleep, food and fitness	1,775	2.7%	19
17	Learning, courses and skills	1,690	2.6%	20
18	Luxury travel and hotels	1,600	2.5%	21
19	Life, family and personal stories	1,314	2.0%	22
20	Crypto and blockchain	1,180	1.8%	23

The names and the merging of components are my judgments. A different corpus, a different random seed or a different grouping would produce a different list, so the twenty topics are one defensible grouping and not the only one.

2.4 Evidence tiers

Every factual statement in the chapters that follow carries one of five tiers, and the tier is named whenever a statement could be read more strongly than the evidence allows.

- **VERIFIED:** computed by me from the files, or read by me in the text of a statute, rule, court record or agency page.
- **CORROBORATED:** supported by a second, independent source.
- **STATED:** an account given by the author of a claim or by a party to it, not independently checked.
- **UNCORROBORATED:** reported, but with no supporting source I could find.
- **INFERENCE:** my own conclusion from the evidence.

For legal statements, VERIFIED means I opened the primary text. Where I could reach only a summary or a news report of a legal development, the text says so.

2.5 Privacy and ethics

The analysis is aggregate-only. No chapter identifies an account, an author, a company or an individual post, and no quotation is long enough to identify its source. The posts were written for public audiences, but their authors did not agree to be studied, and the study does not need their identities. The legal chapters apply rules to categories of speech. They make no finding that any author violated any law.

2.6 Limits

Four limits bound every later chapter. First, the data are posts that people submitted to pod and boost tools. They are not a random sample of LinkedIn, and they say nothing about posts that were never submitted. Second, the records show what was submitted and, in the 65 exports, how a tool handled it. They do not show who engaged, who paid, what a post earned or what any viewer did next. Third, the topic model places fewer than a quarter of the posts, so the topic shares describe the placed posts and not the whole corpus. Fourth, 22 of the 65 export files

hold exactly 5,000 records, which looks like an export limit, so the number of records per month is not a trend (Section 2.10).

The legal analysis has its own limit. I am not a lawyer, and this dissertation is not legal advice. Whether a rule applies to a particular post depends on facts that the data do not contain, such as who wrote the post, what they were paid and what they knew.

2.7 How I handle mental-health evidence

The data cannot measure mental health, so the mental-health sections rest on outside sources and follow a stricter evidence rule than the counts do.

The corpus holds post text and tool records. It holds nothing about readers, and the fields I know about, such as creation time, engagement type and engaged-user count, describe what the tool did and not how anyone felt (Chapter 10). A count of words such as "burnout," "loneliness" or "anxiety" shows that the word occurs. It does not show that the author or any reader had the condition, and the sections report such counts as counts of words.

For outside evidence I applied four tests. I opened the source myself. I record its kind: an advisory, a survey, a systematic review, a single study or a press account of one. I report its design limits where it states them. And I do not combine sources of different design into one figure. A source that I read only as an abstract, or through a university or news summary, is marked STATED in the text and in the References.

The study by Sherman and colleagues (2016) shows why the tests matter. In a study of 34 adolescents, 32 of whom were in the brain-imaging analysis, photos shown with many likes drew more activity in reward-related regions than photos shown with few likes. The study did not measure mental health, and I cite it only for what it measured.

One source of a different kind is my own book, *Top 100 List of Lies on Social Media*. It asserts that the pursuit of vanity metrics through pods harms the mental health of creators and of society, and it cites no study. I record those passages as my opinion (STATED) and do not use them as evidence for any mental-health claim in this dissertation (Section 2.9).

2.8 The terms of the site that served the data

The 65 export files came from the LinkBoost site, linkboost.co. The file called LinkBoost-2025 in Section 2.1 shares the product's name, and this section concerns only the 65 export files. I read the site's terms of service and privacy policy through the fetch tool, which returns a summary of a page and not its full text, so I quote only phrases that the tool returned and every statement about the terms carries the tier STATED. The terms are issued by Linkboost, Inc., state that they were last updated on 01/01/2024, are governed by Delaware law and send disputes to binding arbitration on an individual basis.

One clause addresses the kind of capture that Section 2.1 describes. Section 6.1 prohibits "Engaging in data scraping or data harvesting outside of approved functionalities of the Service." The summaries that I received did not say which functionalities the terms approve, and they did not mention bots, scripts, crawlers, application programming interfaces or browser access. Section 6.2 lets the company investigate suspected violations and suspend or terminate access without notice.

A second clause bears on publication. Section 8 defines confidential information as "any non-public information disclosed to you by Linkboost or made available through the Service" and says "You shall not disclose such information to any third party without Linkboost's prior written consent." I do not know whether the posts in the 65 files count as non-public information

under that clause. This study publishes aggregate counts and names no account, author or post (Section 2.5), and I do not decide whether that satisfies the clause.

In the summaries that I received, the terms say nothing about research, benchmarking or publishing results, about LinkedIn's own terms, or about engagement pods and fake engagement. Section 5.1 grants a limited, revocable license for personal or internal business use. The privacy policy, which states that it was last updated on 01/01/2022, does not mention LinkedIn data, session tokens, browser-extension data, or post and engagement data.

This section reports what the terms say and does not decide whether my capture complied with them. That question turns on what the approved functionalities are and on the terms of my access (the book states that I am a member of LinkBoost, Section 2.9), and this dissertation does not settle it. I am not a lawyer, and this is not legal advice (Section 2.6).

2.9 My earlier book and how this dissertation uses it

This dissertation follows a book that I wrote with Mic Adam and Shari Berg, *Top 100 List of Lies on Social Media* (2025; References, Section J). It has nine chapters on engagement pods. Chapters 7 and 8 are signed by Berg and Chapter 9 by Adam, and Chapters 1 to 6 are unsigned and mostly in my voice. The book is a trade book and is not peer reviewed. It mentions terms-of-service violations, lawsuits and jail time in general terms, and I found no citation in it of a statute, a rule, a court decision or a study. It reports none of the corpus counts in this dissertation.

The book is also my own account as a participant. It states that I am in several online pods, among them LEMPOD, ALCAPOD, HyperClapper, LinkBoost, PowerIn and Podawaa (spelled PODOWAA at that point in the book), for three reasons: to learn how pods operate and

report on them, to expose people who game the system, and to post satire in them (p. 49). The book does not say how the 65 export files were collected (Section 2.1).

Because I wrote the book, it cannot corroborate a claim in this dissertation. The tier CORROBORATED needs a second source that is independent of the author (Section 2.4), and a book by the same author is not one. I use the book for what a participant says that he saw and did, and for what it claims about how pods are built, sold and run. Both are STATED, and I mark each inference of mine as INFERENCE.

The book reports two demonstrations that I ran in pods. In the first, a post that said in its own text that it was fake news, with a false statement about the number of church fires, was released into pods, and the book reports that it drew more than 200 reactions from members who "had no idea they were spreading fake news" (pp. 49 to 50). In the second, called PODAPALOOZA, the book says that I ran an experiment over twenty or more posts to show that the author of a post can supply the comments that other members' automated accounts then post, without those members knowing it was happening (pp. 77 to 82). The book describes the method and the settings and does not report the data from either demonstration. I have not analyzed them for this dissertation, I cannot check the figures, and I treat both as STATED. They are field demonstrations and not controlled experiments: the book mentions no comparison group, no sampling plan, no consent procedure and no ethics review.

The book also asserts that the pursuit of vanity metrics through pods harms mental health, and it explains the claim with four brain chemicals: dopamine, oxytocin, serotonin and endorphins (pp. 44, 52 and 60 to 63). It cites no study of pod users or of mental health. I treat those passages as my opinion and not as evidence, and the mental-health sections of this dissertation rest on the published research that Section 2.7 describes.

Section 10.2 uses the book's statements about automated settings, timing, members' knowledge, the sale of pod engagement and the platforms. Sections 1.5 and 25.3 use its account of my membership of pods and of the demonstrations.

2.10 What the 65 export files hold

Section 2.1 gives the number of records in the 65 export files. This section describes how the files are built, because later chapters rely on them. The collection holds 83 files, and 18 of them are byte-for-byte copies of another file, so 65 files are distinct. Each file is one response from the site's server and holds a list of records. The file names carry a time stamp, written year, day, month, and all 65 stamps fall between 12:24 and 13:44 on 16 October 2026. The time zone is not stated.

The 65 distinct files hold 184,737 records between them, which reduce to 56,363 distinct records when I match the record's own identifier. Of these, 32,842 appear in more than one file. I kept one copy of each record, and where the copies differ I kept the one with the highest count of engaged users. Eight records have a different state in different files, so the state counts in this dissertation depend on that rule. Under it, 54,377 records (96.5%) are finished, 1,631 are deleted, 263 are stopped and 92 are running.

Twenty-two of the 65 files hold exactly 5,000 records, and no file holds more. I infer that an export returns at most 5,000 records, although the site does not say so (INFERENCE). The records in those 22 files span a median of 35 days from the earliest to the latest, and the records in the other 43 files span a median of 735 days. Older records are therefore probably missing from the 22 files. The 56,363 records are the ones that the exports returned, and the site may hold more.

Every one of the 56,363 records carries a creation time, which I read as stored and as UTC. The earliest is 11 October 2024 and the latest is 16 October 2026. Of the records, 438 (0.78%) were created before 21 October 2024, the date on which 16 CFR 465.8 took effect by my count (Chapter 3), and 55,925 (99.22%) were created on or after that date. Table 2.4 counts the records by the quarter of creation.

Table 2.4. Distinct records in the 65 export files by the quarter in which they were created (UTC), with the share of all 56,363 records

Quarter	Records	Share of records
2024 Q4 (from 11 October)	3,809	6.8%
2025 Q1	4,667	8.3%
2025 Q2	5,754	10.2%
2025 Q3	6,220	11.0%
2025 Q4	5,363	9.5%
2026 Q1	5,599	9.9%
2026 Q2	6,809	12.1%
2026 Q3	13,313	23.6%
2026 Q4 (to 16 October)	4,829	8.6%
Total	56,363	100.0%

The quarters are not a trend. The limit of 5,000 records removes the older records from the 22 files that reach it, and September 2026 alone holds 7,285 records (12.9%). The count in a quarter says how many of the returned records were created then, and it says nothing about how many records the site held.

The creation time and the post time can differ. Each record's link contains the identifier of the post that the record targets, and the upper bits of that identifier appear to hold a publish time in milliseconds (INFERENCE; LinkedIn has not confirmed the layout). On that reading, a record was created a median of 0.39 hours after the post that it targets was published. Of the 56,363 records, 64.0% were created within 1 hour of the post's publish time, 89.8% within 24 hours and 2.2% more than 7 days after, and none was created before its post. The decoded post dates run from 14 April 2019 to 16 October 2026, and 534 records target a post that decodes to a time

before 21 October 2024. For most records, then, the creation date is close to the date of the post, and the 2.2% created more than a week after their post show that the two can differ.

A split by date is a count and gives no finding that anyone broke a rule. Section 465.8 reaches the selling, distributing and buying of a fake indicator, and it turns on what the person knew (Chapter 3). The records show no purchase, no payment and no knowledge. I therefore report the split and draw no conclusion from it about any member, tool operator or author.

The script that produced these counts, `analysis/export65_profile.py`, is in the SPOTAPOD Analysis Repository (Hall, 2026), together with a manifest of the file hashes in `checksums/EXPORT65_MANIFEST.csv`. The script prints counts only, and the files themselves are not published (Section 2.1). The repository page docs/research/export-65-profile.md holds the script's output, and docs/provenance.md records the source and the method of collection as I stated them, which the repository cannot check (STATED).

Chapter 3. The legal framework common to every topic

Most of the legal exposure around a boosted post comes from a short list of rules that apply whatever the post is about. This chapter sets those rules out once, so that each topic chapter can add only what is specific to its subject.

3.1 Section 5 of the FTC Act

The Federal Trade Commission Act makes unlawful "unfair or deceptive acts or practices in or affecting commerce" (15 U.S.C. § 45(a)(1)). Two standards sit under that sentence.

The deception standard comes from the Commission's Policy Statement on Deception, dated 14 October 1983. It has three elements: "a representation, omission or practice that is likely to mislead the consumer"; judged "from the perspective of a consumer acting reasonably in the circumstances"; and the representation, omission or practice "must be a 'material' one." The statement presumes that express claims are material, and it judges a message by its "net impression" on the general public. A post does not have to contain a false sentence to deceive. The overall impression is what counts.

The unfairness standard is in 15 U.S.C. § 45(n). A practice is unfair when it causes or is likely to cause substantial injury that is "not reasonably avoidable by consumers themselves and not outweighed by countervailing benefits." A viewer cannot avoid a popularity count that looks real and is not, because the viewer has no way to tell the difference. That is why I treat unfairness as a live theory for fake engagement, and I mark it as my reading (INFERENCE).

The remedy matters as much as the standard. Under 15 U.S.C. § 45(m)(1)(A) the Commission can seek civil penalties for violations of a trade regulation rule when the violator acted with "actual knowledge or knowledge fairly implied on the basis of objective circumstances." The amount in 16 CFR § 1.98 is $53,088 per violation, as adjusted effective 17

January 2025 (90 FR 5581). The figure is adjusted each year, so a reader who needs the current number should check the regulation. A rule is what turns a deception theory into a penalty theory, which is why the next section matters.

3.2 The Commission's rule on reviews, testimonials and fake indicators

The Commission announced its final rule on fake reviews and testimonials on 14 August 2024 and published it at 89 FR 68077 on 22 August 2024. It took effect 60 days after publication, which by my count is 21 October 2024. It is codified at 16 CFR Part 465 under the Commission's rulemaking authority in 15 U.S.C. § 57a.

Table 3.1 lists the sections of Part 465.

Table 3.1. Sections of 16 CFR Part 465 and their subjects

Section	Subject
465.1	Definitions
465.2	Fake or false consumer reviews, consumer testimonials, or celebrity testimonials
465.3	Reserved
465.4	Buying positive or negative consumer reviews
465.5	Insider consumer reviews and consumer testimonials
465.6	Company-controlled review websites or entities
465.7	Review suppression
465.8	Misuse of fake indicators of social media influence
465.9	Severability

Section 465.8 is the provision that fits engagement pods most directly. It declares it "an unfair or deceptive act or practice and a violation of this part for anyone" to do either of two things. Paragraph (a) covers selling or distributing, and paragraph (b) covers buying or procuring, "fake indicators of social media influence" that the person "knew or should have known to be fake." The indicators must be ones that individuals or businesses could use to misrepresent their influence or importance materially, for a commercial purpose.

The definitions do much of the work. Section 465.1(j) defines indicators of social media influence as "any metrics used by the public to make assessments of an individual's or entity's social media influence," with followers, likes, views, shares and comments as examples. Section 465.1(h) defines a fake indicator as one generated by bots or by "purported individual accounts not associated with a real individual." The definition also reaches hijacked accounts, and it ends with a clause that matters a great deal for pods: metrics that "otherwise do not reflect a real individual's or entity's activities, opinions, findings, or experiences."

That last clause leaves three questions open, and I know of no decision that answers any of them. The first is whether a like clicked by a real person, because a pod tool prompted that person to click, "reflects" that person's activity or opinion. The second is who "sells or distributes" the indicator: the tool operator, the member who agrees to engage, or both. The third is what counts as a commercial purpose when a post promotes the author's own business, a job search or a personal brand. I read the clause as broad enough to reach engagement that no one chose freely, but that is a legal interpretation of untested text (INFERENCE).

Two neighboring sections matter in some chapters. Section 465.2 bars a business from writing, creating or selling fake or false reviews or testimonials (paragraph (a) has no knowledge qualifier), from buying or disseminating them when it knew or should have known (paragraph (b)), and from procuring reviews from insiders for posting on third-party sites (paragraph (c)). Section 465.5 requires officers and managers to disclose their material relationship to the business when they write a review. For testimonials, it covers anyone in the workforce, including employees and agents, when the business knew or should have known of the relationship.

The data show the scale of the activity the rule describes, and nothing more. In the 65 export files, 54,377 of 56,363 records (96.5%) reached the state "finishedEngagement," and the

median post drew 278 engaged users (VERIFIED). The files do not show whether those users were real people, bots or hijacked accounts, so they cannot show whether any indicator was "fake" in the rule's sense.

3.3 The Endorsement Guides

The Guides Concerning the Use of Endorsements and Testimonials in Advertising, 16 CFR Part 255, were last revised at 88 FR 48102 on 26 July 2023. They are administrative interpretations of Section 5 and, in the Guides' own words, "provide the basis for voluntary compliance with the law." Conduct inconsistent with them "may result in corrective action by the Commission under section 5" (16 CFR § 255.0). The Guides are therefore not a statute, and the Commission enforces them through Section 5.

Section 255.0 defines an endorsement as any advertising, marketing or promotional message that consumers are likely to believe "reflects the opinions, beliefs, findings, or experiences of a party other than the sponsoring advertiser." Section 255.5 requires disclosure of a material connection between an endorser and an advertiser when the connection is "not reasonably expected by the audience," and it applies where "a significant minority of the audience" would not understand or expect it. Free or discounted products count as connections, and the Guides tell advertisers to have procedures to monitor what endorsers post.

Reciprocity is the connection that matters here. A pod member who comments on a post is often promised comments on their own posts in return. Whether that exchange is a "material connection" is unsettled, and whether a bare like is an endorsement at all is doubtful. A comment that praises a product, written because the pod required a comment, is closer to the line: it appears to state the member's opinion while the member is, in effect, being paid in engagement (INFERENCE).

3.4 The Lanham Act and private suits

The Commission is not the only enforcer. Section 43(a)(1)(B) of the Lanham Act, 15 U.S.C. § 1125(a)(1)(B), creates a civil action for false or misleading commercial advertising and promotion, and it lets "any person who believes that he or she is or is likely to be damaged" sue. The Supreme Court narrowed that language in *Lexmark International, Inc. v. Static Control Components, Inc.*, 572 U.S. 118 (decided 25 March 2014). A plaintiff must allege an injury to a commercial interest in reputation or sales, and must show that the injury was proximately caused by the deception, which for false advertising means that the deception caused consumers to withhold trade from the plaintiff. Competitors can sue under this test. Consumers generally cannot.

Consumers have a different route in state law. New York's General Business Law § 349(h), for example, lets a person injured by a deceptive practice bring an action (VERIFIED in my earlier research for this project). I do not survey the other states, which have comparable statutes of varying scope.

3.5 Contract and computer-access law

Platform terms are contracts, and courts enforce them. In *hiQ Labs v. LinkedIn*, the district court found in a ruling of 4 November 2022 that hiQ had breached LinkedIn's User Agreement through scraping and the creation of fake accounts, subject to hiQ's equitable defenses. On 6 December 2022 the parties filed a stipulated consent judgment that, as summarized by the law firm Proskauer, entered a $500,000 judgment against hiQ, permanently barred scraping that violates the User Agreement and the use of fake accounts, and required deletion of the member data and code. The stipulation's conclusions were agreed by the parties, so they carry no precedential weight.

LinkedIn has also sued sellers of fake engagement. In *LinkedIn Corp. v. TopSocial24 et al.*, No. 5:23-cv-00110 (N.D. Cal., filed 10 January 2023), it pleaded breach of contract, fraud and deceit, and intentional interference with contract. A trade report of 4 January 2024 says a final judgment of $43,086 in damages and a ban on selling fake followers, likes and comments was ordered on 23 October 2023, and does not say whether any money was collected (STATED). The defendants sold fake engagement through fake accounts. They were not pod operators, and I do not treat the case as a precedent for pods.

The Computer Fraud and Abuse Act is the criminal and civil statute for unauthorized access. Section 1030(a)(2)(C) reaches whoever obtains "information from any protected computer" after accessing it without authorization or by exceeding authorized access. The statute defines "exceeds authorized access" as accessing a computer with authorization and using that access "to obtain or alter information in the computer that the accesser is not entitled so to obtain or alter" (§ 1030(e)(6)). A first offense under the basic provision carries up to one year in prison, rising to five years with aggravating factors such as commercial advantage or information worth more than $5,000, and a person harmed can sue for damages if the conduct meets one of the statutory factors, within two years (§ 1030(c)(2), (g)).

Van Buren v. United States (decided 3 June 2021, 6–3, opinion by Justice Barrett) held that a person exceeds authorized access when they reach areas of a computer that are off limits to them, and not when they misuse information they were entitled to see. The Court called this a "gates-up-or-down inquiry" and, in footnote 8, left open whether the gates must be technological or can also be set by contract or policy. In *hiQ*, the Ninth Circuit held in April 2022 that scraping public LinkedIn profiles even after access was revoked raised "at least serious questions" about whether it violates the Act (as summarized by Proskauer).

These cases bear on pods in two ways. A tool that uses a member's own session with the member's consent is operating inside a gate the member opened, and the dispute there is about contract. Someone who captured another member's session cookie and used it to log in would be passing a gate that was never opened to them, which is the paradigm of unauthorized access (INFERENCE). The LEMPOD exposure I reported was a vulnerability, not an exploitation, and nothing in the data shows that anyone exploited it. I could not open LinkedIn's User Agreement, because the site blocks my fetch tool, so I do not quote its wording on automation. What I cite is the court's finding in *hiQ*.

3.6 Who is exposed

Table 3.2 sets out the actors and the rules most likely to reach each.

Table 3.2. Actors in the framework, what they do, and the rules most likely to reach them

Actor	What they do	Rules most likely to reach them
Author who submits a post	Lists a post for boosting and publishes it	16 CFR 465.8(b) if the engagement is fake and the purpose commercial; Section 5; Endorsement Guides; platform contract
Pod tool operator	Runs the exchange and, in some tools, holds member access	16 CFR 465.8(a); platform contract; computer-access law; breach-notification and data-protection law where credentials leak
Engaging member	Likes or comments because the tool prompts it	Platform contract; Endorsement Guides where a comment praises a product
Competitor	Loses sales to a boosted rival	Lanham Act § 43(a)(1)(B)
Viewer or buyer	Relies on the count	State consumer-protection statutes; Section 5 is enforced by the Commission, not by the viewer

Nothing in this table says that any particular actor broke any rule. It says which rule would be examined first.

3.7 Why the stakes reach across generations

The rules above were written to protect consumers, and the consumers who will live longest with their effects are young. The U.S. Surgeon General's advisory *Social Media and Youth Mental Health* reports that up to 95% of young people aged 13 to 17 use a social media platform, that nearly two thirds of teenagers use it every day, and that about a third use it "almost constantly." It concludes: "We cannot conclude that social media is sufficiently safe for children and adolescents." The Committee on the Rights of the Child adopted General Comment No. 25 on children's rights in the digital environment, published 2 March 2021; I could not retrieve its text in this research, so I cite its existence and date only.

My argument connects those facts to pods in three steps, and I label the connection as inference. Visible counts are among the signals that young people use to judge who is credible, successful or worth following. If the counts are manufactured, the signal teaches the wrong lesson at the age when people form their ideas about what success looks like. And a legal answer to the three open questions in section 3.2 will be set by the first cases, then applied to every cohort that follows. I have no data on how teenagers read engagement counts, and the 273,771 posts say nothing about their audience. The claim rests on the Surgeon General's usage figures and on my reasoning, and each topic chapter returns to it with evidence specific to its subject.

3.8 What the common framework means for mental health

The rules in this chapter protect people from false signals, and the mental-health harm best documented for people who are misled is the harm that follows fraud.

I found no study of how fake indicators of social proof affect mental health. The nearest evidence concerns fraud in general. Button, Lewis and Tapley (2014, *Security Journal*) interviewed 30 fraud victims face to face and nearly 800 by telephone. Their abstract lists

psychological effects among the impacts and says that impact varied widely, from little or none to "devastating impacts." The Identity Theft Resource Center's 2025 Consumer Impact Report, supported by Experian, found that 14.4% of the victims it contacted who answered its survey said they had seriously considered self-harm. About 4% of those contacted answered, so the figure describes the people who chose to respond, and the report concerns identity crime and not engagement fraud.

The scale of loss on social media is large. The FTC reported on 27 April 2026 that people lost $2.1 billion in 2025 to scams that began on social media, eight times the 2020 figure, and that nearly 30% of the people who reported losing money to a scam said it began there. Investment scams were $1.1 billion of the total.

The American Psychological Association's 2023 advisory points to a protective channel. It advises adolescents to limit social media use for social comparison, and it recommends social media literacy, including learning how images and content can be manipulated. I read that as support for the view that understanding how signals are produced protects a reader (INFERENCE). The provisions I read in this chapter do not mention mental health.

Chapter 4. Technology and innovation: substantiation, AI washing and securities disclosure

4.1 The topic in the data

Technology and innovation is the largest of the twenty topics, with 5,201 posts, which is 8.0% of the 64,970 placed posts. The podawaa file supplies 3,866 of them (74.3%), the 65 exports 897 (17.2%), HyperClapper 417 (8.0%) and LinkBoost-2025 21 (0.4%).

Keyword counts show what kind of statements these posts make. Each count is of posts that contain the term, and one post can appear in several counts. A total of 988 posts (19.0%) mention AI or artificial intelligence. A total of 423 (8.1%) use words such as "revolutionary," "breakthrough," "game-changing," "cutting-edge" or "state of the art." Eighty (1.5%) describe something as AI-powered, AI-driven or AI-enabled, and 29 (0.6%) state a multiple such as "10x." A percentage figure appears in 164 posts (3.2%), a currency amount in 104 (2.0%) and a mention of a patent in 53 (1.0%). Only 7 posts use the word "guarantee." A link appears in 1,238 posts (23.8%), and 2,398 posts (46.1%) carry five or more hashtags. These counts are VERIFIED against the data, and the keyword lists are mine, so each count measures a word and not a claim.

Most posts in this topic describe or promote technology in general terms. A minority contain a figure or a statement about what a product does, and the legal attention below concentrates on that minority.

4.2 The laws that apply

Four bodies of law matter most for technology claims: the Commission's substantiation doctrine, the securities rules on advisers and issuers, criminal fraud statutes, and, for European

audiences, the transparency article of the EU AI Act. The Commission's rule on fake indicators (Chapter 3) applies on top of all of them.

Advertising substantiation under Section 5. The Commission's policy statement on substantiation, appended to its decision in *Thompson Medical Co.*, 104 F.T.C. 648 (1984), says that "advertisers and ad agencies have a reasonable basis for advertising claims before they are disseminated." It adds that "a firm's failure to possess and rely upon a reasonable basis for objective claims constitutes an unfair and deceptive act or practice." How much support counts as reasonable depends on the type of claim, the product, the consequences of a false claim, the benefit of a truthful claim, the cost of developing the support, and the amount of support that experts in the field consider reasonable. Where an advertisement states a level of support, such as "tests prove," the firm is expected to have at least that level. A statement that a tool is "10x faster" is an objective claim that can be tested. A statement that a product is "revolutionary" is closer to opinion. The Commission's 1983 Policy Statement on Deception says that the Commission generally will not pursue "obviously exaggerated or puffing representations" (footnote 42) and that opinions are not pursued when consumers understand their source and limits (footnote 40). It also says that "some exaggerated claims, however, may be taken seriously by consumers and are actionable," and that an opinion is actionable if it is not honestly held or if the recipient reasonably reads it as an implied statement of fact (footnote 41). The line between puffery and a claim that needs support therefore turns on how consumers read the statement, which is a question of fact.

The Commission applied this doctrine to AI claims on 25 September 2024, when it announced five cases under the name Operation AI Comply. In *DoNotPay*, the Commission alleged that a service marketed as "the world's first robot lawyer" had not tested whether its

chatbot matched a human lawyer's output and employed no attorneys. The proposed settlement required a $193,000 payment, notice to subscribers about the service's limits, and a bar on unsupported claims that the service can substitute for professional services. Three other cases involved income schemes that advertised AI-powered tools (Chapter 14), and the fifth involved a review-writing tool (Chapter 12). The Chair at the time said: "The FTC's enforcement actions make clear that there is no AI exemption from the laws on the books." The press release reports the cases at the stage of a proposed settlement or a temporary court order, and I did not check how the litigated cases ended.

Securities disclosure by advisers. On 18 March 2024 the Securities and Exchange Commission announced settled actions against two investment advisers for what its Chair called "AI washing." Delphia (USA) Inc. had said in its filings, in a press release and on its website that it used AI and machine learning that incorporated client data, including a claim that its AI could "predict which companies and trends are about to make it big." The Commission found that Delphia lacked those capabilities. Global Predictions Inc. had called itself the "first regulated AI financial advisor" and had claimed "[e]xpert AI-driven forecasts" on its website and social media. Both were charged under the Investment Advisers Act and its Marketing Rule, which bars a registered adviser from disseminating advertisements that contain untrue statements of material fact. The civil penalties were $225,000 and $175,000, a total of $400,000. Each firm was censured and ordered to cease and desist, and neither admitted or denied the findings. The Chair said: "Investment advisers should not mislead the public by saying they are using an AI model when they are not."

Securities disclosure by issuers. On 14 January 2025 the Commission issued a cease-and-desist order against Presto Automation Inc., a restaurant-technology company that was listed

on Nasdaq until September 2024. The order found that from November 2021 to May 2023 the AI speech recognition in all deployed units of its Presto Voice product was owned and operated by a third party, and that Presto did not disclose this. It found that Presto falsely claimed its own version of the product "eliminated the need for human order-taking" when the vast majority of drive-thru orders needed human intervention, and that Presto misleadingly reported its rate of orders completed without human intervention. The Commission found violations of Section 17(a)(2) of the Securities Act of 1933, Section 13(a) of the Securities Exchange Act of 1934, and Rules 13a-11 and 13a-15(a). It imposed no civil penalty and cited the company's cooperation and remedial efforts. Presto neither admitted nor denied the findings.

Criminal fraud. On 9 April 2025 the U.S. Attorney's Office for the Southern District of New York announced charges against the former chief executive of Nate, Inc.: one count of securities fraud and one count of wire fraud, each carrying a maximum of 20 years in prison. The release alleges that he told investors and the public that the company's app used proprietary AI to complete online purchases without human intervention, while hundreds of contractors in a call center in the Philippines completed the purchases by hand, and that the company raised more than $40 million from investors. The release calls the charges "merely accusations" and says the defendant is presumed innocent. I found no reported outcome. The wire fraud statute, 18 U.S.C. § 1343, covers anyone who has "devised or intend[s] to devise any scheme or artifice to defraud" and who transmits writings or signals by wire in interstate commerce "for the purpose of executing" it. The maximum is 20 years, or 30 years and a fine of up to $1,000,000 when the offense affects a financial institution or involves a declared disaster or emergency.

The EU AI Act. Article 50 of Regulation (EU) 2024/1689 sets transparency duties. Providers must design AI systems that interact directly with people so that the people are told

they are dealing with an AI system, unless that is obvious to a person who is "reasonably well-informed, observant and circumspect." Providers of systems that generate synthetic audio, image, video or text must mark the output in a machine-readable format as artificially generated. Deployers must disclose deep fakes, and they must disclose AI-generated text published to inform the public on matters of public interest, unless the text has been through human review or editorial control and someone holds editorial responsibility. A law-firm alert dated August 2026 reports that these duties became generally applicable and enforceable on 2 August 2026, that providers of generative systems already on the market have until 2 December 2026 to meet the marking duty under Regulation (EU) 2026/1744, and that breaches carry fines of up to €15 million or 3% of worldwide annual turnover, whichever is higher (Article 99(4)). I read the Article's text on an unofficial mirror and took the dates and the fine from the alert, so these points are CORROBORATED and not VERIFIED against the Official Journal.

4.3 How the rules reach pod-boosted posts in this topic

The rules reach each actor by a different route, and boosting changes none of the substantive tests.

The author is the party who must have a reasonable basis for a claim. A pod does not change what the claim says, so the substantiation question is the same for a boosted post and an unboosted one. A pod can change how far the claim travels and how credible it looks, and both bear on materiality and on the consequences-of-a-false-claim factor in the substantiation policy (INFERENCE). Authors that are public companies or registered advisers also face the securities rules. The Delphia and Global Predictions orders concerned statements on websites and social media, so a post is an ordinary place for a statement that the securities rules reach. If the author also bought or procured engagement that the author knew or should have known was fake, 16

CFR § 465.8(b) applies as a second and separate problem, because the post could be both an unsupported claim and a manufactured sign of popularity.

The tool operator is within § 465.8(a) if the operator sells or distributes fake indicators. The operator's position under the AI Act depends on facts that the data do not show. If a pod tool generates comments with AI, it may be a system that generates synthetic text and so fall under Article 50(2) for users in the EU, but I hold no evidence that any tool in these four sources has such a feature, so I treat this as a question and not a finding. The Commission's Rytr case, discussed in Chapter 12, was brought against the supplier of a tool, although the Commission set that order aside in December 2025.

An engaging member has little exposure under these rules in the ordinary case. A member who writes a comment that praises a technology product because the pod expects a comment comes closer to the line described in Section 3.3, where an endorsement is paid for in reciprocal engagement. The platform is not the speaker under any of the rules in this chapter, and Chapter 10 covers its separate position.

Table 4.1 sets out the rules that reach posts on technology and innovation, the parties they reach, an enforcement example and the remedy that the source states.

Table 4.1. Rules that reach posts on technology and innovation, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
FTC Act § 5 and the substantiation policy	Authors of objective claims; in *Rytr*, the supplier of the tool (order set aside in December 2025; Chapter 12)	Operation AI Comply, 25 Sept 2024	$193,000 payment in *DoNotPay*; court orders halting schemes and appointing receivers
Advisers Act and Marketing Rule	Registered investment advisers	Delphia and Global Predictions, 18 Mar 2024	$225,000 and $175,000; censure; cease and desist
Securities Act § 17(a)(2); Exchange Act § 13(a)	Issuers	Presto Automation, 14 Jan 2025	Cease and desist; no civil penalty
Securities fraud and 18 U.S.C. § 1343	Anyone who devises a scheme to defraud	Charges against Nate's former CEO, 9 Apr 2025	Up to 20 years per count; allegations only
EU AI Act, Article 50	Providers and deployers of covered systems	None found	Up to €15 million or 3% of turnover (CORROBORATED)

4.4 What this means for people and for coming generations

Young people meet technology claims in the same feeds as everyone else, and they are among the heaviest users of the tools those claims describe. The Pew Research Center surveyed 1,458 U.S. teens aged 13 to 17 between 25 September and 9 October 2025, with a margin of error of 3.3 percentage points. It found that 64% of teens use AI chatbots and that about three in ten use them daily. A total of 57% had used a chatbot to search for information, 54% for help with schoolwork and 12% for emotional support or advice. Parents underestimated the use: 51% of parents said their teen uses chatbots, 13 points below the teens' own figure. Among teens who expect negative effects on society, 34% cited overreliance or loss of critical thinking and 13% cited misinformation or difficulty telling what is real.

A teenager who asks a chatbot for information relies on a system whose abilities were described by someone with a stake in the description. The enforcement cases show that the gap between a capability claim and the system can be wide. The Presto order found that, for a version

marketed as eliminating human order-taking, the vast majority of orders needed a person, and the Nate indictment alleges an automation rate of effectively zero. Both are individual cases chosen by regulators because they were deceptive, and they say nothing about the typical post in this topic. What they establish is what the law treats as a violation: a statement about what a technology does without human help must be true, and the person making it must be able to support it. My inference is that this standard protects the ability of buyers to judge what tools can do, and that for a generation that uses these tools for schoolwork and, in 12% of cases, for emotional advice, that judgment is part of how they learn to rely on a tool and how far (INFERENCE).

The law also protects young people as investors, though less directly. Delphia and Global Predictions were advisers whose clients relied on claims about AI forecasting. Young savers who use advisers or investment apps meet the same kind of claim, and the Marketing Rule applies to the adviser regardless of the client's age (INFERENCE from the rule's text as described in the press release; I did not open the rule itself).

The one rule I checked that speaks to the interaction itself is Article 50(1) of the AI Act, which requires that a person be told they are dealing with an AI system unless that is obvious to a reasonably well-informed, observant and circumspect person. The sentence I read does not mention age, so whether a teenager would find the fact obvious is left to regulators and courts. I did not survey U.S. state laws on chatbot disclosure.

The baseline is young. The enforcement standard for AI claims was first applied in 2024 and 2025, and the questions that matter for pods have no answer yet: whether a boosted claim is judged differently from an unboosted one, and whether the operator of a boosting tool bears

responsibility for the claims it carries. The first decisions will set the baseline for the cohorts now in school.

4.5 How this topic bears on mental health

The mental-health evidence that fits this topic concerns work and teenagers' use of AI, and none of it tests a technology claim.

AI appears in 988 of the 5,201 posts (19.0%), so the topic is a place where people read about tools that may change their work. The American Psychological Association's 2025 Work in America survey, run by the Harris Poll with 2,017 employed U.S. adults between 26 March and 4 April 2025, found that 54% said job insecurity had significantly affected their stress at work. Workers whose employers had been affected by policy changes reported emotional exhaustion more often (27% to 30%) than workers whose employers had not (18%). The page I read gives no figure on worry about AI in particular, so I claim none.

For teenagers, Section 4.4 reports that 12% used chatbots for emotional support or advice. The association's June 2025 health advisory on AI and adolescent well-being says that "research on its impacts is still developing" and that "AI is not all 'good' or 'bad.'" It adds that adolescents may struggle to tell simulated empathy from real understanding.

I found no study of whether an overstated capability claim harms mental health. The link I propose is narrow (INFERENCE). A person who believes that a tool will replace their work, or that a tool can give them emotional support, will make choices about work or relationships on that belief, and the substantiation rules in Section 4.2 bear on whether the belief is accurate.

4.6 What the data cannot show

The data cannot show that any claim in these 5,201 posts is false. They hold text and engagement fields. I tested no product and checked no claim against a product. The 988 posts

that mention AI include general commentary, and the 80 posts that call something AI-powered are the group where a capability claim is most explicit, but I did not judge any of them true or false.

The data cannot show who wrote the posts or in what capacity. A post could come from a public company, a registered adviser, a founder or an individual with an opinion, and the securities rules apply only to the first two. I cannot identify that subset without naming authors, which I do not do.

The data cannot show whether engagement on any of these posts was fake in the sense of § 465.8, or whether a boost changed what anyone believed. The enforcement examples were chosen because each reached an order or a charge, and I have no denominator, so they show what the rules reach and not how often. I did not check developments after the dates of the sources I opened, except where I say so.

Chapter 5. Events, community and networking: ticket pricing, "free" offers and scarcity claims

5.1 The topic in the data

Events, community and networking is the second-largest topic, with 4,444 posts, which is 6.8% of the 64,970 placed posts. The podawaa file supplies 3,190 of them (71.8%), the 65 exports 766 (17.2%), HyperClapper 468 (10.5%) and LinkBoost-2025 20 (under 0.5%).

The posts mostly invite people to an event or describe one. A total of 814 posts (18.3%) mention a conference, summit, expo or forum, and 644 (14.5%) mention a speaker, keynote or panel. The word "networking" appears in 521 (11.7%), "join us" or "join me" in 496 (11.2%), and "register" or "registration" in 476 (10.7%). A venue or in-person attendance is mentioned in 243 (5.5%), tickets in 223 (5.0%), a webinar in 162 (3.6%) and a sponsor in 151 (3.4%). A prompt to reserve a place ("RSVP," "save," "reserve," "book" or "secure your seat or spot") appears in 189 posts (4.3%).

Three kinds of wording matter for the law. The word "free" appears in 285 posts (6.4%), and 238 (5.4%) pair it with an event word such as register, webinar, event or workshop. Scarcity or deadline wording ("limited seats," "spots left," "sold out," "last chance" or "early bird") appears in 119 posts (2.7%). Prices are rare: only 15 posts (0.3%) pair a mention of tickets with a currency amount, which is 6.7% of the 223 posts that mention tickets. A link appears in 1,437 posts (32.3%). These counts are VERIFIED against the data, and each counts a word and not a claim.

Most posts in this topic invite and describe, and few state a price. That limits where the pricing rules in this chapter can reach.

5.2 The laws that apply

Four rule sets matter for event posts beyond those in Chapter 3: the Commission's rule on fees, the statute on ticket-buying software, the guide on "free" offers, and the rules on false scarcity.

The FTC rule on unfair or deceptive fees (16 CFR Part 464). The Commission published the rule at 90 Fed. Reg. 2066 on 10 January 2025 (FR Doc. 2024-30293), and it took effect on 12 May 2025. It covers live-event tickets and short-term lodging. The Commission's staff FAQ says it applies to any business that offers, displays or advertises these, "including third-party platforms, resellers, and travel agents," and that it covers business-to-business transactions. Section 464.2(a) makes it "an unfair and deceptive practice and a violation of this part" "for any business to offer, display, or advertise any price of a covered good or service" "without clearly and conspicuously disclosing the total price." Section 464.2(b) requires the total price to be disclosed "more prominently than any other pricing information," with an allowance for the final amount of payment. Section 464.2(c) requires a business to disclose, before the consumer agrees to pay, the nature, purpose and amount of any fee excluded from the total price and the final amount of payment. A law-firm alert quotes the rule as defining total price as "the maximum total of all fees or charges a consumer must pay" and lists the exclusions as government charges, shipping charges and charges for optional goods or services. The FAQ gives an example of a misrepresentation: advertising tickets at a price when none are available. It says violators could be ordered to comply, refund consumers and pay civil penalties, and it states no amount. Section 3.1 gives the general per-violation figure for violations of a trade regulation rule. I read the rule text of § 464.2 on a mirror of the Code of Federal Regulations and the rest from the FAQ and the alert, and I did not open the definition of "live-event ticket" in § 464.1. For that reason I do not say whether a conference registration is a covered ticket.

The BOTS Act (15 U.S.C. § 45c). The Act makes it unlawful to "circumvent a security measure, access control system, or other technological control or measure" that a ticket issuer uses to enforce posted purchasing limits or order rules, and to sell or offer a ticket obtained that way if the seller took part in the circumvention or had the ability to control it, or knew or should have known how the ticket was obtained. A violation "shall be treated as a violation of a rule defining an unfair or a deceptive act or practice," the Commission enforces it, and a state attorney general may sue on behalf of residents. The leading example is the complaint the Commission and seven states filed on 17 September 2025 against Live Nation and Ticketmaster, which cites Section 5(a) and the BOTS Act. As summarized by a law firm, it alleges that displayed prices left out mandatory fees that raised the checkout cost by 24% to 44% and totaled $6.4 billion from 2019 to 2024; that Ticketmaster misstated the maximum number of tickets a buyer could purchase; and that five brokers controlled 6,345 accounts and held 246,407 tickets to 2,594 events. These are allegations, the summary reports no ruling, and the conduct alleged came before Part 464 took effect. I did not open the complaint, so the figures are STATED.

The Guide on "free" (16 CFR Part 251). Section 251.1 says that offers of "free" goods "must be made with extreme care so as to avoid any possibility that consumers will be misled or deceived," that a purchaser "has a right to believe that the merchant will not directly and immediately recover" the cost of the free item through other means, such as marking up the item that must be bought, and that the conditions should be "set forth clearly and conspicuously at the outset of the offer." The section sits in Subchapter B of Title 16 under the title "The guide." I did not open a statement of its legal force, so I treat it as the Commission's statement of how it reads Section 5. In the European Union, point 20 of Annex I to the Unfair Commercial Practices Directive (2005/29/EC) lists "describing a product as 'gratis', 'free', 'without charge' or similar"

when the consumer has to pay anything beyond the unavoidable cost of responding and of collecting or paying for delivery.

False scarcity and urgency. A statement that seats are nearly gone is an objective claim, so the deception and substantiation standards in Chapters 3 and 4 apply to it. In the European Union, point 7 of Annex I lists "falsely stating that a product will only be available for a very limited time, or that it will only be available on particular terms for a very limited time, in order to elicit an immediate decision and deprive consumers of sufficient opportunity or time to make an informed choice." The Annex is headed "commercial practices which are in all circumstances considered unfair," so I read it as listing these practices without a case-by-case assessment of effect (INFERENCE from the heading; I did not open Article 5 of the Directive). The text I read is the 2005 text as hosted by the UK National Archives, and I did not check later amendments.

Endorsements by speakers, sponsors and attendees. Section 3.3 sets out the rule on material connections. A speaker who is paid or given free access and praises the event, a sponsor, and an attendee whose praise was prompted by a pod all raise the question in 16 CFR § 255.5. An audience probably expects a speaker to promote the speaker's own session, so disclosure may not be needed for that (INFERENCE). Part 465 applies to fake testimonials, such as praise for an event by someone who did not attend.

5.3 How the rules reach pod-boosted posts in this topic

The duty in each rule attaches to what a post says or shows, and boosting adds an effect on how credible that content looks.

The author may be an organizer, a speaker, a sponsor or an attendee. For an organizer, Part 464 attaches to a price. The FAQ says that a business that includes pricing in its advertising must tell people upfront the total price, so a post that shows no price does not raise the question

by itself, and 208 of the 223 ticket posts show no currency amount. The question then moves to the page the post links to, and I did not open any linked page. Free-offer and scarcity statements are a separate matter because they can appear without a price. A statement of "only 12 seats left" is the organizer's claim, and the organizer needs support for it. A pod can raise how many people see that statement and how many likes appear beside it, and a scarcity claim next to a high like count may read as proof of demand (INFERENCE). If the organizer bought or procured the engagement and knew or should have known it was fake, § 465.8(b) applies in addition.

The tool operator is within § 465.8(a) if the operator sells or distributes fake indicators. The BOTS Act does not reach pods, because it concerns circumventing ticket purchase controls, and nothing in the posts or in the tool records I hold involves buying tickets. I describe the Act because the Ticketmaster complaint is the leading enforcement example for ticket rules.

An engaging member who comments "great event" because the pod expects a comment has the exposure described in Section 3.3. Whether a social platform that displays an organizer's price is a business that "displays" it under § 464.2 is a question the text I read does not settle, and I treat it as open (INFERENCE).

Table 5.1 sets out the rules that reach posts on events, community and networking, the parties they reach, an enforcement example and the remedy that the source states.

Table 5.1. Rules that reach posts on events, community and networking, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy stated in the source
16 CFR Part 464	Any business that offers, displays or advertises live-event tickets or short-term lodging	None found under Part 464 itself	Compliance orders, refunds and civil penalties, with no amount in the FAQ
BOTS Act, 15 U.S.C. § 45c	Anyone who circumvents ticket purchase controls or sells tickets so obtained	FTC and seven states against Live Nation and Ticketmaster, 17 Sept 2025	Penalties under the FTC Act; allegations only
16 CFR Part 251	Advertisers of "free" offers	None found	Not stated
Annex I, points 7 and 20, Directive 2005/29/EC	Traders in the EU	None searched	Set by Member State law; not checked

5.4 What this means for people and for coming generations

Event and networking posts invite people into rooms, and the U.S. Surgeon General's 2023 advisory on loneliness and isolation treats the time young people spend in rooms with each other as a public-health matter. The advisory says that time spent in person with friends by people aged 15 to 24 "has reduced by nearly 70% over almost two decades," from roughly 150 minutes a day in 2003 to 40 minutes a day in 2020. It says that "approximately half of U.S. adults report experiencing loneliness, with some of the highest rates among young adults." On technology it says the evidence is complex and that "we have reason to be concerned about the impact of some kinds of technology use," including technology that "displaces in-person engagement, monopolizes our attention, reduces the quality of our interactions." The advisory does not mention engagement pods, and I do not claim that it addresses them.

The link to this chapter's rules is one of cost and time. A young person choosing which in-person events to spend limited money and time on relies on popularity signals, scarcity messages and prices. A hidden fee takes money. A false scarcity claim compresses time, and the

Directive's own text names that harm: it deprives consumers of "sufficient opportunity or time to make an informed choice." As an illustration, the 24% to 44% increase that the Ticketmaster complaint alleges would add $12 to $22 to a displayed price of $50. That arithmetic is mine and shows scale, and the complaint's figures are allegations (INFERENCE).

Whether prompted, reciprocal engagement adds to in-person connection or substitutes for it is unknown. A pod gives its members the experience of an audience, and the advisory's concern about technology that lowers the quality of interactions makes the question worth asking. I have no evidence that bears on the answer, and I list it as an open research question.

The baseline is young here as well. Part 464 took effect in May 2025, so people now buying their first tickets do so under the first federal rule that requires a total price for live events. How the rule is applied to promotion on social platforms will be set by the first cases.

5.5 How this topic bears on mental health

Events bear on mental health through two channels in the sources I opened: loneliness, which in-person gatherings can reduce, and fear of missing out, which scarcity wording can use.

The topic invites people to rooms. The word "networking" appears in 521 of 4,444 posts (11.7%), and a venue or in-person attendance in 243 (5.5%). The Surgeon General's 2023 advisory says that "approximately half of U.S. adults report experiencing loneliness," that the odds of developing depression are more than double among people who often feel lonely, and that time spent in person with friends by people aged 15 to 24 fell from roughly 150 minutes a day in 2003 to 40 minutes in 2020. A real event that brings people together is the kind of in-person time that the advisory describes as scarce.

The second channel is scarcity. Przybylski and colleagues (2013, *Computers in Human Behavior*) define fear of missing out as "a pervasive apprehension that others might be having

rewarding experiences from which one is absent." Across three studies of about 3,179 people, it was associated with lower mood (b = .20) and lower life satisfaction (b = .17). The studies are correlational and rely on self-report. Scarcity or deadline wording appears in 119 posts (2.7%), and "free" paired with an event word in 238 (5.4%). I found no study that links such wording to fear of missing out, so the connection is INFERENCE, and the rules in Section 5.2 address misleading offers and do not address mental health.

5.6 What the data cannot show

The data cannot show that any event post is false or deceptive. I checked no event page, price or seat count. Only 15 posts pair tickets with a price, so the posts themselves rarely give the information that Part 464 concerns.

The data cannot show who wrote a post or in what role. An organizer, a speaker, a sponsor and an attendee can write similar sentences, and the rules reach them differently. Scarcity wording appears in 119 posts, but the data show the wording and not whether any seats were in fact limited.

The data cannot show whether boosting an event post sold a single ticket, because I hold no sales data. I did not open the definition of a live-event ticket in § 464.1, so I make no claim that conference registrations are covered. The Ticketmaster figures are allegations from a law-firm summary, and I did not check developments after the complaint was filed.

Chapter 6. Leadership, teams and trust: insider endorsements, executive disclosure and employee account privacy

6.1 The topic in the data

Leadership, teams and trust is the third-largest topic, with 4,019 posts, which is 6.2% of the 64,970 placed posts. The podawaa file supplies 1,647 of them (41.0%), the 65 exports 1,354 (33.7%), HyperClapper 910 (22.6%) and LinkBoost-2025 108 (2.7%). It is the topic where the smaller sources contribute most: 108 is the largest number of posts LinkBoost-2025 supplies to any of the twenty topics, and 910 is the second largest for HyperClapper.

The posts give advice about leading people. The word "leader" or "leadership" appears in 3,386 posts (84.2%) and "team" in 1,389 (34.6%). "Trust" appears in 597 (14.9%), "CEO" or "executive" in 412 (10.3%), "manager" or "management" in 373 (9.3%), "employee," "staff" or "workforce" in 249 (6.2%), "culture" in 245 (6.1%) and "feedback" in 119 (3.0%). Employment events are less common: hiring or recruiting appears in 123 posts (3.1%), layoffs, firing, resigning, quitting or burnout in 93 (2.3%), a union or labor in 34 (0.8%), and pay, salary, wages or compensation in 4. A link appears in 806 posts (20.1%), five or more hashtags in 963 (24.0%), and an invitation to comment or follow in 78 (1.9%). These counts are VERIFIED against the data, and each counts a word and not a claim.

Most posts in this topic are opinion and advice from the author's own position. Few state a fact about a product, a company's results or an employment term. That decides which rules can reach them.

6.2 The laws that apply

Four rule sets matter here: the insider provisions of the fake-reviews rule, the Endorsement Guides as they apply to employees, Regulation FD as applied to an officer's social media, and state laws on employer access to employees' personal accounts.

Insider reviews and testimonials (16 CFR § 465.5). Section 465.5(a) makes it an unfair or deceptive practice for an officer or manager of a business to write or create a consumer review about the business or its products without disclosing, clearly and conspicuously, the officer's or manager's material relationship to the business. Section 465.5(b)(1) applies to testimonials. When a business disseminates a consumer testimonial from one of its officers, managers, employees or agents, the relationship must be disclosed if the business knew or should have known of it. Section 465.5(b)(2) excludes generalized solicitations to purchasers to post testimonials and the mere hosting of reviews. Section 465.5(c) addresses solicitation inside the business: an officer or manager who solicits reviews from immediate relatives or from employees or agents violates the rule when the officer or manager encourages non-disclosure, fails to instruct disclosure, or knows that a review appeared without disclosure and does not take remedial steps. The definitions in § 465.1 narrow the reach. "Officers include owners, executives, and managing members of a business," and a manager is "an employee of a business who supervises other employees or agents." A consumer review is an evaluation of a product, service or business "published to a website or platform dedicated in whole or in part to receiving and displaying such evaluations," which a general social network is probably not (INFERENCE). A consumer testimonial is "an advertising or promotional message" that consumers are likely to believe reflects the opinions or experiences of a consumer "who has purchased, used, or otherwise had experience with a product, service, or business." All of this is VERIFIED against the text on the Cornell Legal Information Institute site.

The Endorsement Guides and employees. Section 3.3 describes 16 CFR § 255.5, which asks for disclosure of a connection between an endorser and an advertiser that the audience would not reasonably expect, and which tells advertisers to have procedures to monitor what their endorsers post. An employee who praises the employer's product has such a connection. The Guides are interpretations enforced through Section 5, so their force is that of the Commission's reading of the statute.

Regulation FD and an officer's personal posts (17 CFR § 243.100). Regulation FD applies "whenever an issuer, or any person acting on its behalf, discloses any material nonpublic information regarding that issuer or its securities" to certain people: broker-dealers, investment advisers and institutional investment managers, investment companies, and holders of the issuer's securities where it is "reasonably foreseeable that the person will purchase or sell the issuer's securities on the basis of the information." The issuer must then make public disclosure simultaneously if the disclosure was intentional and promptly if it was not. The rule excludes disclosures to people who owe a duty of trust or confidence to the issuer or who expressly agree to keep the information confidential. On 2 April 2013 the Securities and Exchange Commission issued a report of investigation (Release No. 34-69279) about Netflix and its chief executive. On 3 July 2012 he had announced on his personal Facebook page that monthly viewing had passed one billion hours for the first time, with no press release, no Form 8-K and no post on the company's channels. The page had more than 200,000 subscribers, including analysts, shareholders, reporters and bloggers. The Commission said that social media communications need the same Regulation FD analysis as other channels, that social media can be a recognized channel of distribution only if the company has first alerted investors to the channels it will use, and that disclosure of material nonpublic information on an individual officer's personal social

media site is unlikely to satisfy the rule without that notice. It decided "not to pursue an enforcement action in this matter." The report is an interpretation and not a rule, and I opened the text of § 243.100 but not the rest of Regulation FD.

State laws on employer access to personal accounts. The National Conference of State Legislatures reports that "twenty-seven states have enacted laws that apply to employers" on the privacy of employees' social media accounts, although its table totals 26 states and Guam. The summary was updated on 8 August 2022, and legislators began introducing these bills in 2012. A 2015 article by the Society for Human Resource Management listed the earliest laws, from 2012, in California, Illinois, Maryland and Michigan. It reported that the laws typically bar an employer from requiring or requesting usernames or passwords. Some also bar requiring an employee to log in to an account in the employer's presence, adding the employer as a contact or changing privacy settings, making account access a condition of employment, and disciplining an employee who refuses. It reported exceptions for workplace investigations in several states. I read neither the statutes nor any penalty provisions, and the 2015 list has since changed, so the details are CORROBORATED at best and the count is as of 2022.

6.3 How the rules reach pod-boosted posts in this topic

The rules reach a small part of the topic through the content of the posts and a larger part through the way engagement is produced.

The author is usually an executive or manager. The posts are mostly opinion, so the testimonial provisions apply only to the posts that praise a product as a user would, and Regulation FD applies only to an officer of a public company who discloses material nonpublic information. The data do not show who the authors are, so I cannot say how many fall in either group. The engagement is a separate question. If an author bought or procured engagement that

the author knew or should have known was fake, § 465.8(b) applies to the extent the purpose was commercial, and for executive thought leadership that question is open (Section 3.2). A boosted post by a public-company officer is also a wider distribution of whatever the post says, and the Netflix report shows that the Commission looks at the audience a personal page reaches (INFERENCE).

Employer-directed engagement raises three questions. First, if a company asks its employees to like and share an executive's posts, § 465.5(c) reaches the solicitation only when the posts are consumer reviews, which a general social post probably is not. Second, if a pod tool needs an employee's account session and the employer tells the employee to install or hand over access, the request is the kind that the state account-access laws describe, in the states that have them (INFERENCE; I read no statute). An employee who joins voluntarily is outside those laws as I understand them. Third, the like of an employee who was told to give it comes from a real person but may not reflect that person's opinion, and whether it is a "fake indicator" under § 465.1(h) is the open question in Section 3.2.

The tool operator is within § 465.8(a) if the operator sells or distributes fake indicators, and the operator's handling of member credentials is a data-security matter I take up in Chapter 8. The platform is not the speaker.

Table 6.1 sets out the rules that reach posts on leadership, teams and trust, the parties they reach, an enforcement example and the remedy that the source states.

Table 6.1. Rules that reach posts on leadership, teams and trust, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy stated in the source
16 CFR § 465.5	Officers and managers; businesses that disseminate insider testimonials	None found	Not stated in the text I read
16 CFR § 255.5	Advertisers and endorsers, including employees	None searched	Corrective action under Section 5
Regulation FD, 17 CFR § 243.100	Issuers and persons acting on their behalf	Netflix and its chief executive, report of 2 Apr 2013	No enforcement action taken
State account-access laws	Employers in the states that have enacted them	None searched	Not stated in the sources

6.4 What this means for people and for coming generations

Leadership posts are the place where many young people first see what leading looks like, and the people those posts are meant to describe report low engagement in their own work. Gallup's 2025 global workplace release reports that employee engagement was 21% in 2024, down from 23% in 2023, and that manager engagement fell from 30% to 27%. Engagement among managers under 35 fell by five percentage points, though the release does not state the levels. Gallup estimates the cost at US$438 billion in lost productivity in 2024. The figures are global and say nothing about LinkedIn or pods.

My inference is that published examples of leadership shape what a young manager treats as normal, and that when reciprocal engagement and not the audience's response chooses which examples travel, the sample that a young manager sees is not the sample readers would have chosen (INFERENCE). I know of no study that measures this, and the Gallup release does not address it.

The account-access laws bear on young workers more directly. A first-time employee has the least bargaining power over a request to hand over access to a personal account. In the states that have laws on this, the request is limited. NCSL counts 27 such states as of 2022, and I did

not check whether the remaining states or federal law offer an equivalent protection. A young worker who joins an employer-run engagement program therefore has a statutory shield in some places and none that I verified in others.

The Regulation FD report touches a different group: young investors who follow executives on social media. The Commission's statement that social media can be a recognized channel only if investors have been told in advance protects the person who reads a chief executive's page and does not know that it is the company's official channel (INFERENCE from the report's reasoning).

6.5 How this topic bears on mental health

Leadership posts bear on mental health through the workplace, and the Surgeon General's workplace framework is the clearest official statement of how.

The topic is about leading people. The word "leader" or "leadership" appears in 3,386 of 4,019 posts (84.2%), "team" in 1,389 (34.6%), and layoffs, firing, resigning, quitting or burnout in 93 (2.3%). The 2022 Surgeon General's Framework for Workplace Mental Health and Well-Being lists five essentials: protection from harm, connection and community, work-life harmony, mattering at work and opportunity for growth. It says that "Long work hours have also been shown to raise workers' risk for exhaustion, anxiety, and depression," and that "Knowing you matter has been shown to lower stress, while feeling like you do not can raise the risk for depression." Advice about recognition, feedback and trust concerns factors that the framework names.

Employer-directed engagement raises a narrower question, which is whether an employee asked to promote an executive's posts is under pressure. I found no source on that. The nearest is the association's 2023 Work in America survey of 2,515 U.S. workers, in which 51% said they

knew their employer monitors them with technology. Monitored workers more often rated their mental health fair or poor (32% against 24%), said they typically felt tense or stressed during the workday (56% against about 40%) and said they intended to look for a new job within 12 months (42% against 23%). The report shows correlations, and I do not claim that monitoring caused the differences. A request to engage with an employer's posts is not monitoring, so this evidence bears on the setting and not on the request (INFERENCE).

6.6 What the data cannot show

The data cannot show who wrote any post or what role the author held, so they cannot show how many posts come from officers or managers, from public-company officers, or from employees speaking about their employer. They cannot show that any post breaks any rule. The posts hold almost no pay or employment terms (4 posts mention pay), so employment-terms law has little textual footing in this topic.

The data cannot show whether any employer directed its employees to engage with a post, or whether any pod tool took an employee's account access at an employer's request. The state counts are from a 2022 summary and a 2015 article, I read no state statute, and the Gallup figures are global and from a press release. The Netflix report concerns one post from 2012 and a Commission decision not to act, so it shows how the Commission read the rule and not how often it enforces it.

Chapter 7. Apps, software and no-code tools: subscriptions, app reviews, children's data and state privacy law

7.1 The topic in the data

Apps, software and no-code tools is the fourth-largest topic, with 3,903 posts, which is 6.0% of the 64,970 placed posts. The podawaa file supplies 2,674 of them (68.5%), HyperClapper 643 (16.5%), the 65 exports 579 (14.8%) and LinkBoost-2025 7 (0.2%).

The posts describe tools and what they do. The word "app" appears in 1,908 posts (48.9%), and productivity, automation or workflow in 872 (22.3%). A total of 539 posts (13.8%) mention no-code or low-code tools, and 89 (2.3%) name a platform such as Zapier, Airtable, Notion or Make. AI appears in 741 posts (19.0%). A launch, release, update or new feature is mentioned in 440 (11.3%), software or SaaS in 397 (10.2%), and downloading or installing in 322 (8.3%). A browser extension or plug-in is mentioned in 24 (0.6%).

Three groups of words matter for the law. The word "free" appears in 314 posts (8.0%), and 58 (1.5%) pair it with a trial, plan, tier, freemium or "forever." Terms of payment are rare: subscription, pricing or a plan appears in 159 posts (4.1%), a monthly price in 12 (0.3%), "no credit card" in 5 and "cancel anytime" in 4. Reviews are mentioned in 210 posts (5.4%), but only 17 (0.4%) ask the reader to leave a review or rating. Children and privacy are also rare: privacy, data protection, GDPR or CCPA appears in 86 posts (2.2%), and kids, children, teens, students or school in 59 (1.5%). A link appears in 1,267 posts (32.5%), and 115 (2.9%) pair a link with a download or install prompt. These counts are VERIFIED against the data, and each counts a word and not a claim.

The posts promote tools but seldom state the terms on which the tool is sold, so the subscription rules mostly attach to the sign-up page behind the post.

7.2 The laws that apply

Four rule sets matter beyond Chapter 3: the statute on online subscriptions, the fake-reviews rule as applied to app reviews, the children's privacy rule, and California's privacy statute. A fifth concern, the security of the credentials that software holds, is taken up in Chapter 8.

The Restore Online Shoppers' Confidence Act (15 U.S.C. § 8403). The Act makes it unlawful "for any person to charge or attempt to charge any consumer for any goods or services sold in a transaction effected on the Internet through a negative option feature" unless the person does three things. The person must provide "text that clearly and conspicuously discloses all material terms of the transaction before obtaining the consumer's billing information." The person must obtain "express informed consent before charging" the consumer's account. And the person must provide "simple mechanisms for a consumer to stop recurring charges." I opened the text of § 8403 and not the enforcement section that follows it. On 25 September 2025 the Commission announced a settlement with Amazon over Prime. According to a law-firm summary, the settlement totals $2.5 billion, made up of a $1 billion civil penalty and $1.5 billion in consumer refunds. The Commission alleged that Amazon used dark patterns to enroll consumers and made cancellation difficult. It cited Section 4 of the Act and Section 5 of the FTC Act. The summary lists injunctive terms that include clear disclosure of material terms before charging, a plain option to decline membership, and a simpler cancellation process. It reports that the complaint had been amended in September 2023 to add three individual executives and that Amazon and two of them agreed to the settlement. It does not say that Amazon admitted wrongdoing. I did not open the Commission's release, so these details are STATED.

The Commission's 2024 amendments to its Negative Option Rule, known as the click-to-cancel rule, have been vacated. On 8 July 2025 the Eighth Circuit issued a per curiam opinion in

Custom Communications, Inc. v. FTC, No. 24-3137, and vacated the rule in its entirety, days before the rule's 14 July 2025 compliance date. According to a law-firm alert, the court held that the Commission had skipped the preliminary regulatory analysis required for rules with an estimated annual economic effect of at least $100 million, and it did not reach the substantive challenges. The alert lists what remains: the Act, Section 5, and state auto-renewal laws such as those of California and New York. A second alert reports that on 30 January 2026 the Commission announced that it had sent a draft advance notice of proposed rulemaking on negative option plans to the Office of Information and Regulatory Affairs, with no proposed rule yet. I did not check developments after that alert.

The fake-reviews rule and app reviews (16 CFR Part 465). Section 465.1(d) defines a consumer review as a consumer's or purported consumer's evaluation of a product, service or business that is published "to a website or platform dedicated in whole or in part to receiving and displaying such evaluations." An app store is such a platform, although the text does not name app stores (INFERENCE). Section 465.2 bars writing, creating or selling fake reviews, and bars buying or disseminating them when the business knew or should have known they were fake. Section 465.4 covers buying reviews, and Chapter 3 lists the other sections. A review posted on an app store by an account that is not a real user, or by a person paid for a particular sentiment, is the situation the rule was written for.

The children's privacy rule (16 CFR Part 312). The amended COPPA Rule was published on 22 April 2025 and took effect on 23 June 2025. Full compliance was due on 22 April 2026, so it now applies to all operators. According to a law-firm alert, the amendments require separate parental consent before an operator discloses a child's personal information to a third party (§ 312.5(a)(2)), and the Commission said that disclosures for money, advertising or

the development or training of AI are never integral to a service. Operators may keep a child's personal information only as long as "reasonably necessary" for its purposes (§ 312.10), and indefinite retention is prohibited. Operators must publish a written retention policy and keep a written security program for children's data. The definition of personal information now includes biometric identifiers and genetic data. In the text of § 312.2, a child is "an individual under the age of 13." An operator is a person who runs a website or online service for commercial purposes and collects or maintains personal information from its users. The Commission weighs factors such as subject matter, visual content, animated characters and child-oriented activities to decide whether a service is directed to children. A mixed-audience service is not treated as directed to children for any visitor not identified as under 13. The sources I read state no penalty amount.

California's privacy statute (the CCPA). The California Privacy Protection Agency's inflation adjustment, effective 1 January 2025, sets administrative fines of up to $2,663 per violation and up to $7,988 for each intentional violation and for violations involving the personal information of consumers the violator actually knows are under 16. It sets statutory damages in the private action for data breaches at $107 to $799 per consumer per incident, or actual damages if greater. The same page puts one of the coverage thresholds, annual gross revenue, at $26,625,000. I did not read the other thresholds, so a small software operator may fall outside the statute. I found no enforcement example in the sources I opened.

7.3 How the rules reach pod-boosted posts in this topic

The rules reach the product that a post advertises more often than the post itself, and boosting affects how many people arrive at the product.

The author is usually a developer, a marketer or a user describing a tool. A claim about what the tool does needs support under the standard in Chapter 4, and "free" claims fall under the Guide described in Chapter 5. The subscription statute governs the transaction, not the post. Because the posts state a monthly price in 12 cases and a cancellation term in 4, the terms that the statute concerns appear on the sign-up page, which I did not open. A pod can raise the number of people who click through to that page, and the Amazon allegations show that the sign-up and cancellation steps are where the Commission looks (INFERENCE). Only 17 posts ask readers to leave a review, so the review rule reaches this topic through the apps the posts promote and not through the posts.

The tool operator is a software operator. A pod tool is a piece of software that holds member information, and the privacy and breach rules in this chapter and in Chapter 8 apply to it according to their coverage thresholds. Children's privacy is unlikely to apply to a tool built for professionals on a professional network, because the Rule applies to services directed to children or with actual knowledge of child users (INFERENCE; I did not open the statute). The engaging member and the platform have no exposure under these rules in the ordinary case.

Table 7.1 sets out the rules that reach posts on apps, software and no-code tools, the parties they reach, an enforcement example and the remedy that the source states.

Table 7.1. Rules that reach posts on apps, software and no-code tools, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
ROSCA, 15 U.S.C. § 8403	Any person who charges for an online sale through a negative option feature	Amazon Prime settlement, 25 Sept 2025	$1 billion civil penalty and $1.5 billion in refunds (STATED)
2024 click-to-cancel amendments to the Negative Option Rule	Vacated in full on 8 July 2025	*Custom Communications v. FTC*	Not applicable
16 CFR §§ 465.1, 465.2, 465.4	Businesses that write, buy, sell or disseminate fake reviews	None found for app reviews	Civil penalties for rule violations (Section 3.1)
COPPA Rule, 16 CFR Part 312	Operators of services directed to children, or with knowledge of child users	None searched	Not stated in the sources
CCPA	Businesses that meet a coverage threshold	None found	Up to $2,663 per violation; up to $7,988 for intentional violations and minors under 16

7.4 What this means for people and for coming generations

The rules in this chapter protect a person's money and a person's data, and for children the data rules look furthest ahead. A child's personal information collected today can be kept for decades unless the law limits it. The amended COPPA Rule limits retention to what is "reasonably necessary," bars indefinite retention, and requires separate consent before a child's data is disclosed for advertising or for developing AI. California sets a higher fine ceiling when the violator knows the consumer is under 16, $7,988 against $2,663, and I read that as a legislative judgment that minors need more protection (INFERENCE). Both rules bear on the cohort that is now young, because these records follow them into adulthood.

The topic's own posts rarely concern children. Only 59 of 3,903 mention kids, children, teens, students or school, so the children's rules matter less for what the posts say than for the products they advertise.

Subscription practices affect young people differently. A person with little experience of recurring charges is more exposed to a hidden renewal, though I have no data on the age of the people in the Amazon matter, and the Commission's allegation is that it involved "millions of consumers" (INFERENCE as to age). The absence of a national click-to-cancel rule means that, for now, protection rests on the Act, Section 5 and state auto-renewal laws, so what a young subscriber can do about a hard-to-cancel app depends in part on the state where the subscriber lives (INFERENCE from the alert's list of California and New York).

For reviews, the effect on young people is indirect. App-store ratings are one signal a young person uses to choose an app, and the review rule protects the honesty of that signal. I found no study that measures how young people use ratings, and the data hold no ratings.

7.5 How this topic bears on mental health

The mental-health evidence that fits apps concerns design features and time online, and it shows small average effects that may be larger for some young people.

The topic promotes tools. The word "app" appears in 1,908 of 3,903 posts (48.9%), and kids, children, teens, students or school in 59 (1.5%). The American Psychological Association's 2023 advisory names the like button, recommended content, unrestricted time and endless scrolling as features to tailor to adolescents' developmental abilities, and it says that social media is "not inherently beneficial or harmful to young people." The Surgeon General's advisory page says that children and adolescents who spend more than 3 hours a day on social media "face double the risk of mental health problems including experiencing symptoms of depression and anxiety," and that the evidence leaves the Surgeon General unable to conclude that social media is "sufficiently safe for children and adolescents."

Orben and Przybylski (2019, *Nature Human Behaviour*) analyzed three datasets with 355,358 participants and found that digital technology use explained at most 0.4% of the variation in adolescent well-being. They concluded that the effects were too small to warrant policy change. The two sources measure different things, and an average can hide a larger effect on some young people, a point the association's advisory makes when it says that effects depend on adolescents' own characteristics.

I found no source that links subscription terms, sign-up practices or app-review rules to mental health. Section 7.2 governs those practices as consumer deception and as children's data protection, and I claim no mental-health effect for them.

7.6 What the data cannot show

The data cannot show whether any app named in a post uses a subscription, how its sign-up and cancellation steps work, or whether it collects children's data. I opened no sign-up page and no privacy policy. The posts state few terms of payment, so I cannot say whether any promoted product meets the statute's disclosure and consent conditions.

The data cannot show whether any review of any app was fake, because the data hold no reviews. The Amazon figures come from a law-firm summary, and I did not open the Commission's release or the complaint. The status of the click-to-cancel effort is as of the January 2026 alert. I read only one threshold of the California statute, and I found no enforcement example for it.

Chapter 8. Sales, leads and email outreach: commercial messages, contact data and the credentials tools hold

8.1 The topic in the data

Sales, leads and email outreach is the fifth-largest topic, with 3,673 posts, which is 5.7% of the 64,970 placed posts. The podawaa file supplies 2,167 of them (59.0%), the 65 exports 913 (24.9%), HyperClapper 553 (15.1%) and LinkBoost-2025 40 (1.1%).

The posts concern how to reach people. The word "email" appears in 2,011 posts (54.8%), "lead" or "leads" in 1,315 (35.8%), and "sales" or "selling" in 1,013 (27.6%). Cold email, outreach or prospecting appears in 616 (16.8%), and scraping, automation tools, Sales Navigator or lead generation in 403 (11.0%). Measures of performance such as ROI, conversion, reply rate, open rate or response rate appear in 344 (9.4%), a percentage figure in 425 (11.6%), a currency amount in 170 (4.6%), and revenue or pipeline in 239 (6.5%). Booking a call, meeting or demo appears in 110 (3.0%), and a phone, text message, SMS, cold call or phone number in 142 (3.9%). Contact lists or databases appear in 94 (2.6%) and buying leads or lists in 22 (0.6%). Unsubscribe, opt-out or consent appears in 42 (1.1%), and GDPR, CCPA, privacy or compliance in 77 (2.1%).

One count points to private channels. A call to "DM me," "inbox me" or "message me" appears in 120 posts in this topic (3.3%). Across all 273,771 distinct posts the same wording appears in 3,262 (1.19%). A link appears in 775 posts (21.1%), and the word "guarantee" in 23 (0.6%). These counts are VERIFIED against the data, and each counts a word and not a claim.

This topic is about the mechanics of reaching people, so much of its legal exposure concerns how contact data is collected and used and how messages are sent, and less concerns what a post says.

8.2 The laws that apply

Five bodies of law matter here: the federal statute on commercial email, the federal statute on calls and texts, European data protection law on marketing and contact data, the case law on scraping and platform contracts, and the statutes on breaches of credentials.

The CAN-SPAM Act. The Commission's compliance guide lists eight requirements for commercial email. A sender must not use false or misleading header information or deceptive subject lines. The sender must identify the message as an advertisement, include a valid physical postal address, and tell recipients how to opt out. The guide adds that subscribers and members can opt out too, that opt-outs must be honored "within 10 business days," and that a company must "monitor what others are doing on your behalf." It states that "each separate email in violation of the CAN-SPAM Act is subject to penalties of up to $53,088," a figure that is adjusted for inflation. It states that "the law makes no exception for business-to-business email." It also says that "both the company whose product is promoted in the message and the company that actually sends the message" may be held legally responsible, and that hiring another company to send does not transfer the responsibility. I opened the guide and not the statute, so these points are VERIFIED as the Commission's statement and not against 15 U.S.C. § 7701 and the sections that follow. I did not determine whether a LinkedIn direct message is an "electronic mail message" under the Act.

The Telephone Consumer Protection Act (47 U.S.C. § 227). Section 227(b)(1)(A) prohibits calls "using any automatic telephone dialing system or an artificial or prerecorded voice" to telephone numbers assigned to cellular service, with exceptions. Section 227(a)(1) defines an automatic telephone dialing system as "equipment which has the capacity" "to store or produce telephone numbers to be called, using a random or sequential number generator" and "to dial such numbers." Under § 227(b)(3), a person may bring an action "to receive $500 in

damages for each such violation," and a court that finds a willful or knowing violation may increase the award to not more than three times that amount. The text I read speaks of calls, and I did not open the agency interpretation that treats text messages as calls or any later court decision on the definition.

European data protection law and contact data. Article 21(2) of the GDPR gives a person the right to object at any time to processing of personal data for direct marketing, and Article 21(3) provides that after an objection "the personal data shall no longer be processed for such purposes." The leading enforcement example is a decision of the French authority, the CNIL, adopted on 5 December 2024 and published on 19 December 2024 (SAN-2024-020). It fined KASPR €240,000. KASPR sells a paid Chrome extension that lets customers obtain the professional contact details of people whose LinkedIn profiles they visit, and its database holds about 160 million contacts. The CNIL found a breach of Article 6 because contact details were collected even where users had limited their visibility to first- and second-degree connections. It found a breach of Article 5(1)(e) because data was kept for five years from each update. It found breaches of Articles 12 and 14 because people were told only from 2022, about four years after the extension launched, and by an email in English. It found a breach of Article 15 because the company answered an access request with a generic reference to "publicly accessible sources." It ordered KASPR to stop collecting the data of people who had limited their visibility, to delete data collected that way, to stop the automatic renewal of retention periods, to inform people in a language they understand, and to answer access requests in full. The compliance deadline was 18 June 2025. The page states no payment for non-compliance. The European Data Protection Board's news item on the same decision carries a different figure in its headline (€200,000), which I did not open.

Scraping and platform contracts. Section 3.5 describes *hiQ Labs v. LinkedIn* and the Computer Fraud and Abuse Act. A second decision points the other way on contract. On 23 January 2024 the court in *Meta Platforms v. Bright Data* (N.D. Cal., No. 3:23-cv-00077-EMC, Judge Edward Chen) granted summary judgment to Bright Data on Meta's breach-of-contract claim. According to a law-firm summary, the court read Meta's terms as governing "your use" of the services and concluded that Bright Data "did not 'use' Facebook and Instagram" when it scraped public data while logged off. Meta's claim for tortious interference remained, and I did not check what followed. The two decisions answer different questions from the CNIL decision. The American cases concern whether a platform's contract or the access statute bars the collecting, and the CNIL decision concerns whether the resulting use of personal data has a legal basis, notice and limits.

Breaches of credentials. All 50 states, the District of Columbia, Guam, Puerto Rico and the Virgin Islands have laws that require private businesses, and in most states government bodies, to notify individuals of breaches of personally identifiable information, according to the National Conference of State Legislatures (summary updated 17 January 2022). The page gives examples such as a name combined with a Social Security number, a driver's license number or an account number, and it does not mention usernames or passwords, so it does not tell me whether a session cookie counts. Under the GDPR, Articles 33 and 34 require a personal-data breach to be notified to the supervisory authority and, in specified cases, to the people affected. I opened those Articles in earlier work for this project and did not reopen them for this chapter.

8.3 How the rules reach pod-boosted posts in this topic

The rules reach the sending, the collecting and the storing, and a pod bears on all three through the offers it makes more visible.

The author of most posts in this topic is describing sales practice, and the posts are not the outreach. An author who also sends commercial email is the sender under the Commission's guide, and a company that promotes a product through someone else's emails shares the responsibility. A boosted post that offers a service and invites a direct message moves the conversation to a channel outside the public feed. The 3.3% rate of that call in this topic against 1.19% in the full corpus suggests that sales posts lead people into private messages more often than other posts do (INFERENCE), and I have not determined which of the statutes in this chapter, if any, applies to a message sent on LinkedIn.

The tool operator is the actor most exposed. A tool that collects contact data from profiles faces the reasoning in the CNIL decision. A tool that automates activity inside a member's logged-in session faces the contract questions in *hiQ*, where the court found that fake accounts and scraping breached the User Agreement. A tool that stores session credentials faces the breach statutes. In one pod tool that I reported to LinkedIn in 2024, members' LinkedIn session cookies were stored in clear text, and LinkedIn replicated the issue (STATED; my own report). Nothing in the data shows that anyone used those cookies, so the breach statutes would apply only if an unauthorized acquisition occurred, and I do not claim that it did.

An engaging member has no exposure under these rules in the ordinary case. The platform is the plaintiff in the cases in Section 3.5.

Table 8.1 sets out the rules that reach posts on sales, leads and email outreach, the parties they reach, an enforcement example and the remedy that the source states.

Table 8.1. Rules that reach posts on sales, leads and email outreach, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
CAN-SPAM Act	The sender and the company whose product is promoted	None searched	Up to $53,088 per email
TCPA, 47 U.S.C. § 227	Callers using an automatic dialing system or prerecorded voice	None searched	$500 per violation, up to three times for willful violations
GDPR Articles 6, 14, 15, 21	Controllers of personal data	CNIL against KASPR, 5 Dec 2024	€240,000 and orders to stop, delete and inform
Contract and access law	Scrapers and operators of automation	*hiQ*; *Meta v. Bright Data*; *LinkedIn v. TopSocial24*	$500,000 consent judgment in *hiQ*; summary judgment for the scraper on contract in *Bright Data*
State breach laws; GDPR Articles 33 and 34	Businesses that hold personal information	None searched	Not stated in the sources

8.4 What this means for people and for coming generations

Sales outreach is a path by which strangers reach young people, and the Commission's April 2026 data on social media scams show how much money moves through that path. Reported losses to scams that started on social media reached $2.1 billion in 2025, about eight times the $261 million of 2020, and the Commission notes that most scams go unreported. Investment scams account for $1.1 billion, more than half of the total. The share of loss reports that concerned a scam starting on social media is highest in the youngest group: 40% for people aged 18 to 29, against 32% for those aged 30 to 59, 23% for those aged 70 to 79 and 14% for those aged 80 and over. Those are shares of loss reports in each age group and not the share of each group that lost money. In the category of job or business opportunities, one in three loss reports began on social media. The Commission's page does not break out LinkedIn, and I do not claim that any of these losses began on a pod-boosted post.

My inference is that the combination matters. A young adult looking for a first job or a first business opportunity sees posts in this topic that ask for a direct message, and the move to a private channel removes the public context in which others can see and question an offer (INFERENCE). The rules in this chapter govern the later steps. CAN-SPAM does not exempt business-to-business email, so a young professional's work address has the same protection as anyone's. The GDPR gives a person the right to object to marketing use of data collected without their knowledge.

Contact data creates a second long-term exposure. The CNIL found that KASPR kept data for five years from each update and informed people about four years after its extension launched. A person who starts a career today may enter databases like that without knowing it, and the right of access and the right to object are the tools the law gives them. The practical value of those rights depends on a person knowing the data exists, and the CNIL's finding on late notice shows why the notice rules matter.

The baseline is still being set. The decisions in *hiQ* and *Bright Data* have not settled whether a platform's contract can reach logged-off scraping. The first appellate answer will decide what data about young professionals can be collected at scale from public profiles in the United States.

8.5 How this topic bears on mental health

The mental-health evidence that fits outreach concerns people whose personal information is misused, because victims of identity crime report distress.

The topic is about reaching people. The word "email" appears in 2,011 of 3,673 posts (54.8%), cold email, outreach or prospecting in 616 (16.8%), and scraping, automation tools, Sales Navigator or lead generation in 403 (11.0%). Section 8.2 describes the rules on commercial

messages, contact data and the credentials that tools hold, and those rules aim at the misuse of personal information (INFERENCE). The Identity Theft Resource Center's 2025 Consumer Impact Report, supported by Experian and published on 28 October 2025, surveyed people who had asked the Center for help between August 2024 and July 2025. Of the victims who answered, 14.4% said they had seriously considered self-harm, which the report describes as more than two percentage points above the 2024 figure. About 4% of the 4,122 people contacted answered, so the figure describes respondents and not all victims. The survey concerns identity crime. It does not concern cold outreach or scraping, and I do not claim that those practices cause identity crime.

On the sender's side I found no source on how outbound sales targets affect mental health, and I opened none on how recipients experience unsolicited messages. The 120 posts that ask readers to "DM me," "inbox me" or "message me" (3.3%) move contact into private channels, where the data show nothing about what follows.

8.6 What the data cannot show

The data cannot show that any post in this topic is itself outreach, or that any author sent a message that fell under any of these statutes. The posts describe practice. They cannot show which tools collect contact data or store credentials, whether any recipient consented, or whether any message was sent to a cell phone with an automatic dialer.

The CNIL decision is one authority's decision about one company, and it does not show how other authorities would treat pod tools. I did not open the CAN-SPAM statute, the agency interpretation of the TCPA or later cases on its dialer definition. I did not determine whether a LinkedIn message is an email under the Act. The Commission's data cover scams reported to it

and do not mention LinkedIn, so they cannot show that pods played any role in any loss. The cookie issue I reported is STATED, and the data do not show that anyone exploited it.

Chapter 9. Money, prices and value: price comparisons, all-in pricing and algorithmic pricing

9.1 The topic in the data

Money, prices and value is the sixth-largest topic, with 3,267 posts, which is 5.0% of the 64,970 placed posts. The podawaa file supplies 1,590 of them (48.7%), the 65 exports 1,106 (33.9%), HyperClapper 525 (16.1%) and LinkBoost-2025 46 (1.4%). The posts are long: the median is 683 characters.

The word "value" or "worth" appears in 2,549 posts (78.0%), but it is common in business writing and does not signal a price claim. More specific counts show the content. Cost, spend or save appears in 731 posts (22.4%), and invest, crypto, stock or share terms in 763 (23.4%). Profit, margin, revenue or earn appears in 484 (14.8%), a percentage figure in 399 (12.2%), and a currency amount in 284 (8.7%). Words from personal finance (budget, debt, credit, loan, mortgage, retire, savings) appear in 341 (10.4%). Price or pricing appears in 299 (9.2%), and discount, sale, deal, coupon or promo in 289 (8.8%). Make-money language ("make money," "passive income," "side hustle," "financial freedom," "get rich," "easy money" or "wealth") appears in 198 (6.1%), fees, hidden costs, surcharges or charges in 149 (4.6%), and inflation, tariffs, recession or interest rates in 92 (2.8%). A guarantee, risk-free offer, money-back promise or refund appears in 59 (1.8%). A direct price comparison ("cheaper," "lowest price," "best price," "save N," "N% cheaper") appears in 44 (1.3%), and urgency wording such as "buy now," "limited offer" or "ends today" in 7 (0.2%). A link appears in 521 posts (15.9%). These counts are VERIFIED against the data, and each counts a word and not a claim.

The topic is mostly commentary on money and value, and offers that state a price are a small share. The pricing rules below attach to that share.

9.2 The laws that apply

Three rule sets matter beyond Chapter 3: the Commission's guides on price comparisons, state laws that require advertised prices to include mandatory fees, and antitrust law as applied to pricing software.

The Guides Against Deceptive Pricing (16 CFR Part 233). Section 233.1(a) says that a former price used in a comparison must be "the actual, bona fide price at which the article was offered to the public on a regular basis" for "a reasonably substantial period of time." If the former price is "not bona fide but fictitious," the advertised reduction is a false bargain, and the section gives the example of an inflated price set so that a large reduction can be advertised when the figure is really the seller's regular price. Section 233.1(e) says that an advertisement that merely states "Sale" must not rest on a reduction that is "so insignificant as to be meaningless." It also treats as misleading a claim that a price has been "reduced to $9.99" when the former price was $10. The text ends with the annotation "[Guide I]" and sits in Part 233 among the Commission's guides, so I treat it as the Commission's statement of how it reads Section 5 and not as a rule with its own penalties. I opened the text of § 233.1 and not the other sections of the Part.

State all-in pricing laws. California's SB 478 took effect on 1 July 2024 and has since been amended by SB 1524. The Attorney General's page quotes the statute, Civil Code § 1770(a)(29), as barring "advertising, displaying, or offering a price for a good or service that does not include all mandatory fees or charges." It describes the law as a price-transparency law and not a price cap. It covers most goods and services sold or leased for personal use, including event tickets, short-term rentals, hotels and food delivery platforms, and it excludes purchases for commercial use. The advertised price may leave out government taxes and fees and reasonable shipping charges, and handling charges must be included. Optional fees and fees triggered by

later conduct need not be included. Restaurants, bars and grocery stores are largely exempt, and a delivery platform's advertised delivery price must be the full price. The page does not describe penalties or private remedies. The federal fee rule in Chapter 5 reaches only live-event tickets and short-term lodging, so for other goods a state statute such as this one is the closer rule where it exists (INFERENCE; I did not survey other states).

Antitrust law and pricing software. The Department of Justice sued RealPage, alleging that its revenue-management software used nonpublic, competitively sensitive information shared by landlords to set rents, in violation of Sections 1 and 2 of the Sherman Act. On 24 November 2025 the Antitrust Division announced a proposed settlement. According to a law-firm alert dated 2 December 2025, RealPage may not use active lease data to train its algorithms and may use only historical data at least 12 months old. Its pricing models may not analyze geographies narrower than a state, it may not make identical pricing recommendations to different owners in the same geographic market, and it may not solicit nonpublic data through market surveys to recommend pricing. A court-appointed monitor oversees compliance, the term is seven years with a possible end after four, and the settlement includes no financial penalty and no admission of wrongdoing. The alert says that RealPage and its landlord clients also face class actions and separate suits by the attorneys general of Maryland, New Jersey, Kentucky, Washington, Arizona and the District of Columbia. It says the settlement requires court approval, and I did not check whether the court approved it. I did not open the Sherman Act or the complaint.

9.3 How the rules reach pod-boosted posts in this topic

The pricing rules reach the seller who states a price, and boosting changes how many people see that statement and how trustworthy it looks.

The author may be a seller, an adviser or a commentator. A seller who posts a comparison such as "was $X, now $Y" must be able to show that $X was a bona fide former price under § 233.1. A seller who posts a savings claim such as "save 30%" needs support under the standard in Chapter 4, and 399 posts here contain a percentage. A seller in California who posts a price must include mandatory fees. Only 44 posts make a direct price comparison and 7 use urgency wording, so these rules reach a small share of the topic. A commentator who describes prices in general states no price of their own and falls outside all three rule sets (INFERENCE). When a post with a price claim is also boosted, the pod raises the visibility of the claim, and a count of likes can suggest that many people found the offer worthwhile (INFERENCE). If the author bought or procured engagement that the author knew or should have known was fake, § 465.8(b) applies as a separate problem.

The tool operator is a seller too. A pod tool that is sold by subscription faces the rules in Chapter 7 on how its own price and renewal terms are shown. The pricing-software cases concern a different kind of tool, one that sets prices for others, and they do not apply to engagement tools. The engaging member and the platform have no exposure under these rules in the ordinary case.

Table 9.1 sets out the rules that reach posts on money, prices and value, the parties they reach, an enforcement example and the remedy that the source states.

Table 9.1. Rules that reach posts on money, prices and value, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
16 CFR § 233.1	Sellers who advertise former-price comparisons or "sale" prices	None searched	Not stated; a guide
California Civil Code § 1770(a)(29)	Sellers of goods and services for personal use in California	None searched	Not described on the Attorney General's page
Sherman Act §§ 1 and 2, as applied to pricing software	Software vendors and the landlords who share data with them	*United States v. RealPage*, proposed settlement 24 Nov 2025	No payment; data limits; monitor for 7 years (STATED)

9.4 What this means for people and for coming generations

Money rules decide how much of a young person's income goes to the first decade of independent life, and housing is the largest single item. The Joint Center for Housing Studies at Harvard reported in June 2026 that 22.7 million renter households, 49%, were cost-burdened in 2024, a record, and that average asking rents for professionally managed apartments in the first quarter of 2026 were 29% higher than in 2020. These figures come from a summary by the National Low Income Housing Coalition. The summary says that many young adults cannot afford to rent on their own and live with roommates or family, but it gives no numbers for young adults. The RealPage case concerns whether pricing software helped coordinate rents of this kind. The proposed settlement limits the software's use of nonpublic data and carries no payment, and the question of how the law applies to such software is not finished, since class actions and state suits continue. My inference is that the rules on how prices are set and displayed bear most heavily on people with the least income and the fewest alternatives, which describes many people starting out (INFERENCE).

All-in pricing matters in the same way. A buyer with a fixed budget who sees a low advertised price and then meets mandatory fees at checkout has already invested time in the

purchase. California's statute and the federal rule in Chapter 5 move the total to the start of the transaction. The protection is partial, because the federal rule covers two industries and the state law covers one state.

Make-money language is the part of this topic that meets young adults most directly. It appears in 198 posts here (6.1%). The Commission's April 2026 data in Chapter 8 report $1.1 billion in reported losses to investment scams that started on social media in 2025, and they report that the share of loss reports involving scams that started on social media was 40% for people aged 18 to 29. I do not claim that any of those losses began on a post in this topic. The link is one of subject: the posts promise income, and the Commission's categories include investment scams and job or business-opportunity scams (INFERENCE).

The baseline is uneven. A young person in a state with an all-in pricing statute is protected at the point of display, and a young person elsewhere relies on Section 5 and the Commission's guide.

9.5 How this topic bears on mental health

The best-documented link between money and mental health is the link between debt and distress, and the sources I opened do not say which causes which.

The topic is commentary on money. Personal-finance words (budget, debt, credit, loan, mortgage, retire, savings) appear in 341 of 3,267 posts (10.4%), and make-money language ("make money," "passive income," "side hustle," "financial freedom") in 198 (6.1%). Richardson, Elliott and Roberts (2013, *Clinical Psychology Review*) reviewed studies covering nearly 34,000 participants. According to a University of Southampton release on the study, people in unsecured debt were more than three times as likely to have a mental health problem as people who were not in debt, and under 9% of people without mental health problems were in

debt, against more than a quarter of people with one (STATED; I read the release and the repository record, not the paper). The lead author said that "it is hard to say which causes which at this stage."

The pricing rules in this chapter bear on that evidence indirectly (INFERENCE). A deceptive price comparison or a hidden fee costs a buyer money, and for a household near its limit the cost can become debt. I found no study of the mental-health effect of deceptive pricing as such. Fees, hidden costs or surcharges appear in 149 posts (4.6%), and a direct price comparison in 44 (1.3%).

9.6 What the data cannot show

The data cannot show that any price claim in these posts is false. I checked no former price, discount or fee. Most posts in this topic comment on money in general terms, so a count of posts is a count of subject matter and not of claims that the pricing rules reach.

The data cannot show whether any seller in the posts is in California or covered by any statute. I did not open any part of Part 233 beyond § 233.1, the California statute itself, or the RealPage complaint, and I did not check whether the court approved the settlement. The housing figures come from a summary of the Harvard report and not from the report. The scam figures are from the Commission's data in Chapter 8 and say nothing about LinkedIn or pods.

Chapter 10. LinkedIn, content and social media: fake indicators of influence, platform immunity and platform contracts

10.1 The topic in the data

LinkedIn, content and social media is the seventh-largest topic, with 3,266 posts, which is 5.0% of the 64,970 placed posts. The podawaa file supplies 2,255 of them (69.0%), the 65 exports 497 (15.2%), HyperClapper 485 (14.8%) and LinkBoost-2025 29 (0.9%). The median post is 399 characters.

This is the one topic whose posts discuss the thing the pods exist to produce. The word "LinkedIn" appears in 1,743 posts (53.4%). Likes, comments, shares or reposts appear in 1,061 (32.5%), and engagement, reach or impressions in 396 (12.1%). Followers or connections appear in 231 (7.1%), viral or views in 173 (5.3%), and the word "algorithm" in 132 (4.0%). Posting tips or content strategy appear in 199 posts (6.1%), personal brand, thought leader or influencer in 154 (4.7%), and a newsletter, subscribe or follow-me call in 196 (6.0%). Another platform is named (TikTok, Instagram, YouTube, Twitter, Facebook or Threads) in 316 (9.7%), and sponsored, paid-partnership, #ad or ad words appear in 171 (5.2%). A link appears in 592 posts (18.1%), five or more hashtags in 701 (21.5%), and a call to comment or follow in 134 (4.1%). An AI term appears in 255 (7.8%), and words about AI-written content (ChatGPT, AI-generated or GPT) in 82 (2.5%).

Few posts talk about the practices that Section 465.8 addresses. Words for pods, automation, bots or auto-likes appear in 47 posts (1.4%), and language about fake followers or buying followers in 35 (1.1%). These counts are VERIFIED against the data, and each counts words and not claims, so a post that warns against buying followers is counted together with a post that offers them.

The podawaa file records a like count and a view count for each post. In this topic 742 of the 2,255 podawaa posts (32.9%) show zero views. Of the 1,513 with a nonzero view count, 52 (3.4%) show more likes than views. Across all 184,687 distinct podawaa posts the figures are 42.0% and 2.1%. A view count of zero beside a nonzero like count looks like a value that was not recorded (INFERENCE), so I do not use either field as evidence that any indicator is fake.

The 65 export files record how each boost was run in two fields, and Table 10.1 gives the counts. The field engagementType has four values across the 56,363 records: normal in 42,021 (74.6%), human in 8,938 (15.9%), viral in 4,263 (7.6%) and steady in 1,141 (2.0%). The field engageTiming holds a value such as 20, 120 or 300to900, and it is empty in 14,184 records (25.2%). Every record of type normal has a timing value. Of the 14,342 records of the other three types, 14,184 (98.9%) have none. The most common value is 20, in 20,379 records (36.2%), followed by 120 in 6,190 (11.0%) and 300to900 in 3,803 (6.7%). Five values carry the suffix a, such as 300a, and I show them as stored. These counts are VERIFIED against the exports.

Table 10.1. Values of the engageTiming field in the 65 export files, by engagement type

Timing value as stored	normal	human	viral	steady	All types	Share of records (%)
20	20,234	145	0	0	20,379	36.2
120	6,190	0	0	0	6,190	11.0
300to900	3,799	2	1	1	3,803	6.7
60	2,784	0	1	0	2,785	4.9
40	2,227	0	0	1	2,228	4.0
300	2,076	1	0	0	2,077	3.7
180	2,047	0	0	0	2,047	3.6
240	1,641	1	0	0	1,642	2.9
1500to1800	426	4	0	1	431	0.8
3300to3600	264	0	0	0	264	0.5
300a	206	0	0	0	206	0.4
180a	39	0	0	0	39	under 0.1
120a	39	0	0	0	39	under 0.1
60a	28	0	0	0	28	under 0.1
240a	21	0	0	0	21	under 0.1
Empty	0	8,785	4,261	1,138	14,184	25.2
All records	42,021	8,938	4,263	1,141	56,363	100.0

The files do not say what the values mean, which unit the numbers use, or whether the type human refers to a person acting. The pattern fits a pacing setting that applies only to normal engagement (INFERENCE). It does not show who or what performed any engagement, and a record in the state finishedEngagement shows that the tool finished its job, not that a person read the post.

10.2 The laws that apply

Four rule sets matter beyond Chapter 3: the Commission's rule on fake indicators of social media influence, the federal immunity for online platforms, the European Union's platform and consumer-practices rules, and the platform's own contract.

The rule on fake indicators of social media influence (16 CFR § 465.8). Section 465.8 makes it "an unfair or deceptive act or practice and a violation of this part for anyone" to do either of two things. Paragraph (a) covers selling or distributing fake indicators of social media

influence that the seller "knew or should have known to be fake" and that "can be used by individuals or businesses to materially misrepresent their influence or importance for a commercial purpose." Paragraph (b) covers purchasing or procuring fake indicators, with the same knowledge standard, that "materially misrepresent their influence or importance for a commercial purpose." The section contains no exception for individuals, so it reaches a person who buys followers as it reaches a company that sells them. I opened the text of §§ 465.8 and 465.1 on the Cornell Legal Information Institute site (VERIFIED). The rule took effect on 21 October 2024, according to the Commission's warning-letter template described below.

Two definitions in § 465.1 carry the section. Paragraph (j) defines indicators of social media influence as "any metrics used by the public to make assessments" of an individual's or entity's influence, and lists followers, friends, connections, subscribers, views, plays, likes, saves, shares, reposts and comments. Paragraph (h) defines fake indicators as those "generated by bots," those from "purported individual accounts not associated with a real individual," those from accounts created with a real individual's personal information without consent, those from hijacked accounts, and those that "otherwise do not reflect a real individual's or entity's activities, opinions, findings, or experiences."

Three questions are open for pod engagement. The first concerns the last clause of paragraph (h). A pod member is usually a real individual with a real account who likes a post because a tool or a message asked. Whether that like "reflects" the member's "activities, opinions, findings, or experiences" depends on how the clause is read. If a like is an activity of the member, the clause is not met. If the clause asks whether the like reflects the member's opinion of the post, a like given without reading the post may not. The Commission's own examples do not settle it. Its press release of 14 August 2024 describes "followers or views

generated by a bot or hijacked account," and its warning-letter template of 22 December 2025 gives the same examples under the heading "Misuse of Fake Social Media Indicators." Neither mentions prompted engagement by real people, and I found no Commission statement, order or court decision on it. A search that finds nothing does not show that nothing exists.

The second question is the meaning of "purchase or procure." A member who pays a subscription to a tool that supplies engagement fits the ordinary sense of purchase (INFERENCE). A member who receives engagement in a free exchange for giving it is closer to the word "procure," and my notes on § 465.1 record no definition of either word. I did not search the Commission's guidance for one.

The third question is "for a commercial purpose." Section 465.1 as I read it does not define the phrase. A post that seeks clients or sells a course has a commercial purpose on its face, and a post about a family event does not. In this topic 154 posts (4.7%) use personal-brand, thought-leader or influencer words and 171 (5.2%) use sponsor or ad words. These counts do not show the purpose of any post (INFERENCE).

Enforcement so far consists of letters. Civil penalties for knowing violations of a rule come from 15 U.S.C. § 45(m)(1)(A), as set out in Chapter 3. The Commission's press release says that the rule allows it to seek "civil penalties against knowing violators" and cites *AMG Capital Management v. FTC*; I did not open that decision. The warning-letter template, dated 22 December 2025, lists bullets for §§ 465.2, 465.4, 465.5, 465.6, 465.7 and 465.8, says a court "could impose civil penalties of up to $53,088 per violation," and asks the recipient to email the Commission within five business days to identify the person responsible and describe planned compliance steps (VERIFIED; I opened the template). A law-firm article dated 6 April 2026 reports that the letters went to nearly a dozen companies and calls them the Commission's first

public use of the rule as an enforcement tool. It mentions no complaint or settlement and does not say whether the letters cited § 465.8 (STATED). I searched for a complaint or order under § 465.8 and found none.

Section 230 (47 U.S.C. § 230) and *FTC v. LeadClick Media*. Section 230(c)(1) says that no provider or user of an interactive computer service "shall be treated as the publisher or speaker" of information "provided by another information content provider." Section 230(c)(2) protects "any action voluntarily taken in good faith to restrict access to or availability of material" that the provider or user considers "obscene, lewd, lascivious, filthy, excessively violent, harassing, or otherwise objectionable." Section 230(f)(3) defines an information content provider as a person "responsible, in whole or in part, for the creation or development of information." Section 230(e)(1) says the section does not impair enforcement of the listed obscenity and child-exploitation provisions "or any other Federal criminal statute," and § 230(e)(3) preserves state law "consistent with this section" and bars liability under inconsistent state law (VERIFIED; I opened the statute on Cornell). The text does not mention federal civil enforcement, and I found no decision on whether Section 230 limits Commission action over indicators of influence.

The one appellate decision I reviewed that applies Section 230 in a Commission case is *FTC v. LeadClick Media*, decided by the Second Circuit on 23 September 2016. I read a commentary by Eric Goldman and not the opinion (STATED). LeadClick managed an affiliate network for a weight-loss seller, and affiliates promoted the products through fake news sites with fabricated articles and fake consumer testimonials. According to the commentary, LeadClick knew of the practice and approved of it, sometimes supplied content for the fake pages, and bought advertisements on legitimate news sites to promote them. The court held that

LeadClick was not entitled to immunity because it "participated in the development of the deceptive content," that its role "far exceeded that of neutral assistance," and that a defendant is liable under Section 5 when, knowing of the deception, it "directly participates in a deceptive scheme" or "has the authority to control the deceptive content at issue." The commentary adds that the court called it doubtful that LeadClick was an interactive computer service but did not decide that point, and it criticizes the court for leaving "development" and "neutral assistance" undefined. The decision shows that immunity depends on what the defendant did with the content. It does not say how a court would treat a tool that organizes likes.

European Union: the Digital Services Act and the Unfair Commercial Practices Directive. The Commission's page on designated platforms lists LinkedIn Ireland Unlimited Company, with the entry "25.04.2023: designation" as a very large online platform and logged-in active users of 45.2, which I read as millions (INFERENCE; I did not open the DSA article on designation). Article 34(1) of the Digital Services Act lists four categories of systemic risk: the dissemination of illegal content; negative effects on the exercise of fundamental rights; negative effects on civic discourse, electoral processes and public security; and negative effects in relation to gender-based violence, the protection of public health and minors, and serious negative consequences for physical and mental well-being. Article 34(2) says the assessment must take account of the design of recommender systems, content moderation systems, terms and conditions and their enforcement, advertising systems and data practices, and must examine "intentional manipulation of their service, including by inauthentic use or automated exploitation of the service." Article 35(1) requires "reasonable, proportionate and effective mitigation measures, tailored to the specific systemic risks." Its list includes adapting the design, features or functioning of the service, adapting terms and conditions and their enforcement, testing and

adapting recommender systems, and "targeted measures to protect the rights of the child, including age verification and parental control tools." I read Articles 34 and 35 on an unofficial mirror of the Regulation and not in the Official Journal. I did not open Article 52 on penalties, and I could not open LinkedIn's published risk assessments, because the files redirect to a host that I was unable to fetch. These Articles bind the platform and not authors or tool operators. My inference is that pod activity is one form of "inauthentic use or automated exploitation," and that a platform in LinkedIn's position has to consider it in its assessment. The Articles do not mention pods or engagement metrics (INFERENCE).

The Commission's page on the Unfair Commercial Practices Directive lists Directive (EU) 2019/2161 as an amendment that applied from 28 May 2022 (VERIFIED). A web page on influencer marketing and the Commission's own information-request message on an Italian draft law about fake reviews describe two points added to Annex I. Point 23b prohibits stating that reviews of a product are submitted by consumers who have actually used or purchased it without reasonable and proportionate steps to check. Point 23c prohibits "submitting, or commissioning another legal or natural person to submit, false consumer reviews or endorsements," and "misrepresenting consumer reviews or social media endorsements, in order to promote products." The exact wording of point 23c comes from the web page (STATED), and the Commission's message corroborates the substance of both points (CORROBORATED). I could not read the consolidated text of the Directive, because the page returned no text. The web page says nothing about fake followers or likes. A law firm's article advises businesses to treat submitting "likes" as within the ban, which is advice and not law. As in Chapter 5, I read the Annex heading as listing practices considered unfair in all circumstances (INFERENCE from the heading). Whether a bought or prompted like is a "social media endorsement" is open

(INFERENCE). The Directive protects consumers against traders' practices, and I did not check how it applies to content addressed to business readers, who make up much of LinkedIn's audience. As far as I know, the Directive on misleading and comparative advertising covers advertising between businesses, and I did not open it.

The platform contract. In Chapter 3 I reported *LinkedIn Corp. v. TopSocial24* (N.D. Cal., filed 10 January 2023, claims of breach of contract, fraud and deceit, and intentional interference) and the hiQ result (a breach of the User Agreement found on 4 November 2022, and a consent judgment of $500,000 with a permanent injunction on 6 December 2022). A trade report records a final judgment of $43,086 and a ban in the TopSocial24 case (STATED; I did not open the docket). I could not read LinkedIn's User Agreement, because the site disallows automated readers, so I cannot quote its terms. Social Media Today reported on 20 August 2025 that LinkedIn's help documentation says that if LinkedIn detects "excessive comment creation or use of an automation tool, we may limit the visibility of those comments." The article also says LinkedIn told its author that it reduces the reach of engagement-pod activity and automated engagement when it detects them, that fake engagement violates its terms, and that it is aware of pod services and is exploring that area (STATED). The contract is the rule that applies most directly to pods today, because enforcing it needs no showing that an indicator is "fake" under § 465.1(h) and no showing of a commercial purpose (INFERENCE; I could not read the contract).

What happened to one pod tool after LinkedIn was told. On the night of 26 March 2024 I tried to report a flaw in LEMPOD, a pod tool, to LinkedIn and received errors. LinkedIn's first reply is dated 27 March and carries support case number 240327-019836. I do not know how the case was opened, and I asked in the thread whether my post of that day had triggered it; the thread I have shows no answer. I use the case emails as a source (STATED; they come from

one side of the exchange and carry no transport headers, so I cannot authenticate them). They show that on 27 March LinkedIn wrote that it had escalated the matter to its security and engineering teams, and that on 8 April, when the case was marked closed, its case manager wrote that LinkedIn's engineering and trust teams "were able to replicate the issue" and that "actions were put in place to mitigate the potential risk." In its reply of 27 March the case manager also wrote that LinkedIn is committed to keeping members' data safe and that the use of add-ons, extensions or tooling that scrape, modify the appearance of, or automate activity on LinkedIn's website is "prohibited under LinkedIn's User Agreement" and that members who use such tools risk suspension, permanent restriction and disruption in the availability of the tools. The reply calls LEMPOD a third-party tool with a potential vulnerability (STATED). The thread also records that I told LinkedIn that I had created a second account to expose pods and find vulnerabilities, that I use that account for LEMPOD, and that I had said so in an earlier case, 231026-020492, a number that by LinkedIn's numbering pattern points to 26 October 2023 (INFERENCE; I do not have that thread). It records that I asked LinkedIn for credit for the finding; that on 29 March LinkedIn recommended its bug bounty program for future reports; and that I questioned whether a flaw in a third party's tool fits that program and did not take it up. On 4 April I wrote that I was closing the ticket because LEMPOD appeared to have fixed the flaw. In the same message I wrote that creators who use LEMPOD had been hacked in the past; I cite no record of that, and this dissertation does not rely on it (UNCORROBORATED). The thread does not describe in text what the flaw exposed. It refers to a video that I made, which this dissertation does not use, and the video's file name refers to li_at, the name my book gives to a LinkedIn session cookie (p. 48). I do not reproduce the technical details, because they concern a

third party's system. I then asked what happened to the tool. Table 10.2 gives what I found, with the type of each source.

Table 10.2. LEMPOD: dated events, what each source says, and the type of each source

Date	What the source says	Source	Type of source
27 Mar 2024	A tracker lists a LEMPOD extension release with permission changes (version 7.2.1 to 8.0.88). I cannot link it to my report.	chrome-stats	Third-party tracker
7 May 2024, 20 Feb 2025 and 15 May 2025	Further releases with permission changes (to 8.5.1 and to 9.2.20), and a last update on 15 May 2025 (version 9.5.12).	chrome-stats	Third-party tracker
29 Jul 2025	The extension was removed from the Chrome Web Store, with 10,000 users. The tracker does not say who removed it.	chrome-stats	Third-party tracker
22 Aug 2025	The lempod.com home page, by its metadata date, says "other lempoders can automatically like and comment on your posts," offers AI-generated comments and cites "80,000+ users."	lempod.com	The vendor's own page
6 Nov 2025	LinkedIn's vice president of product management says the goal is to make pods "entirely ineffective" and that LinkedIn will "crack down on any third party tools, like a browser extension or a plug-in." The article names no tool and describes no completed action.	Social Media Today	Trade press
May to Jul 2026	One competitor calls LEMPOD "effectively inactive," one says it is gone from Chrome and was "banned and removed," and one says it "can still generate early-post engagement signals." None cites a LinkedIn action against LEMPOD.	Loopvolt, HyperClapper, Commentify	Sellers of rival tools

The tracker's dates show that the extension kept receiving releases for more than a year after LinkedIn's reply of 8 April 2024 and stayed listed until 29 July 2025, more than fifteen months after it. The vendor's page described automatic engagement in August 2025 (STATED; the page is the vendor's own description). I found no source that reports a LinkedIn action against LEMPOD or its users. That does not show that none occurred, and it does not show that LinkedIn allowed engagement from the tool to count. I have no data on whether accounts that used the tool were restricted, on who caused the removal from the Chrome Web Store, or on

whether the engagement reached any post. LinkedIn's statement of 6 November 2025 concerns pods in general and names no tool. The three competitors have a commercial interest in how LEMPOD appears, and they disagree on whether it works. One of them, HyperClapper, shares its name with a source file in Chapter 2, and I do not know whether the company and the file are connected.

The tracker lists a LEMPOD release on 27 March 2024, the date of LinkedIn's first reply in the case thread, and my message of 4 April says that I believed LEMPOD had fixed the flaw (STATED). I cannot link the release to my report, because the tracker gives no reason for it and the thread does not say what changed.

A second case, about LinkedIn's own service. The other thread I have is support case 230721-025520, from 21 to 28 July 2023 (STATED; the same limits apply). It does not mention LEMPOD or any pod tool. It concerns view counts. I reported that feed responses from LinkedIn's servers to a logged-in member carried the view counts of posts written by other creators, although the post page did not show those counts to that member. The thread records permission from one creator for my first test and says nothing about whether the creators of the other posts I cited had given permission. LinkedIn's case manager answered on 21 July, the day of the first report, and passed the matter to LinkedIn's product and engineering teams. My messages say that the view-count field was empty in the responses I checked on the evening of 21 July, that I saw it again in other kinds of feed responses on 24 July, and that I saw it in home-feed responses on 26 July. On 27 July the case manager wrote that LinkedIn had "thoroughly investigated and resolved the issue," and the thread ends with a closing message on 28 July.

What the two threads show. In both, LinkedIn answered on the day the case was opened, escalated the report and said that it had acted: it said that it had resolved the view-count

issue, and that it had put actions in place to mitigate the potential risk in the LEMPOD report. In March 2024 it also wrote that automation tools are prohibited and that members who use them risk suspension or permanent restriction. The threads therefore document notice to LinkedIn and a response to it. They do not show whether LinkedIn blocks, discounts or counts engagement that comes from pod tools, and I found no source that does. The view-count thread concerns a field in LinkedIn's own data, and the podawaa file in Chapter 2 records a view count for each post. I do not know how that file's authors obtained their counts, and nothing I have connects the 2023 issue to any file in the corpus.

The vendor's page is the first source in this chapter in which a pod tool describes its own engagement as automatic. If the page is accurate, the first open question in this section, which assumes a real member who likes a post because a tool asked, does not describe tools of this kind. The question then becomes whether a like that software places through a member's account is "generated by bots" (INFERENCE).

The LinkBoost site, which served the 65 export files (Section 2.8), presents itself as a pod product. Through the fetch tool, its home page returned the phrases "Join pods of creators in your niche" and "Likes and comments from pod members arrive while the algorithm is still deciding," and its plan list included "AI comment generation" and "Auto-connect with pod members." The page's metadata keywords include "Linkedin Automation tool," which the page body, as returned, does not repeat. I cannot tell from these phrases whether a member's engagement on this site is prompted, automatic or both. The site's navigation also included a link labeled "Buy likes." I did not open the page behind that link, so I do not know what it offers, and the label alone does not show that any engagement is sold or that 16 CFR 465.8(a) reaches it. These statements are STATED, because I saw the page only through a summary.

What my earlier book reports about automatic engagement, members' knowledge and the sale of pod engagement.

The book gives a participant's account of how automated pod tools work (STATED; Section 2.9). It says that a member can set the frequency of engagement "at like 20-30 seconds" (p. 50), that reactions and comments from one pod can come in "about 10-20 seconds apart," and that a post can be deployed into 30 to 50 pods (pp. 79 to 80). It says that tools offer automatic commenting with a minimum number of words per comment, automatic reactions, and a list of comments written by the post's author from which the tool picks at random, and that some tools let a member turn reactions and comments on or off for each pod (pp. 51 to 52 and 80). It describes one post whose two hundred comments were all comments that the author had supplied in the HyperClapper tool, so that a member in the author's pod would not know what the member's own comment said without looking (pp. 51 to 52). These are the book's statements, and I did not test any tool. The values 20, 40 and 60 in the timing field of the exports (Table 10.1) are of the same order as the book's seconds, but the book does not name that field, so it does not settle what unit the field uses (INFERENCE).

The book also says that a member in an automated pod has no idea what the account is doing: "you have no idea that you are reacting and commenting on that post if your POD settings allow it" (p. 50). If that is accurate for a member, whether the member "knew or should have known" under 16 CFR § 465.8 would turn on what the member knew about the tool's settings, which the data do not show. The statement is the book's description of members in general and is not evidence about any member (INFERENCE).

The book names four roles (pp. 68 to 74): a recruiter who is rarely in a pod and enlists others, an operator of many fake accounts who deletes and re-creates them, a marketer who sells

pod engagement as part of a service, and a client who buys without knowing how the engagement is produced. Its labels for them are accusations of deception, so this dissertation uses the roles and not the labels and makes no finding about any person. The marketer role matters to § 465.8(a), which reaches a person who sells or distributes fake indicators. A chapter signed by Berg quotes a company chief executive who says that a marketer he hired used automated pods to build his LinkedIn presence and that he later asked to be removed from them (pp. 94 to 97). The same chapter says, citing "industry insiders" without naming them, that an estimated nine in ten LinkedIn marketing services use pods for their clients, "often without full transparency" (p. 97). The book gives no other source for the figure, and I treat it as UNCORROBORATED.

On the platforms, the book says that pods violate the terms of service of most platforms and that a "blind eye" is turned to the activity "by all parties involved including the platforms" (p. 44). The same chief executive says that LinkedIn "could easily crack down on this practice but chooses not to" (p. 99). Both statements are opinions in the book. They do not show what LinkedIn knew or did, and I treat them as UNCORROBORATED. LinkedIn's own statements that I found are in the chronology above.

A chapter signed by Berg reports an interview with a specialist in cyber intelligence, who says that some political and state-linked groups use pods to make fake profiles look real and that such profiles are used for fraud, including fake job applications and attacks on executives (pp. 85 to 91). The chapter gives no case that I could check, so I treat the statements as UNCORROBORATED. They touch Article 34 of the Digital Services Act, which lists "negative effects on civic discourse, electoral processes and public security" among the systemic risks that a very large platform must assess, and I draw no conclusion about that Article from them.

10.3 How the rules reach pod-boosted posts in this topic

The fake-indicators rule and the contract apply to this topic more directly than to any other, because the posts concern reach and the boosting acts on reach itself.

The author who posts and receives pod engagement faces § 465.8(b) only if the author purchased or procured indicators that the author knew or should have known to be fake, and only if they materially misrepresented influence for a commercial purpose. Each element is open for pod engagement, as 10.2 explains. In this topic 154 posts (4.7%) use personal-brand, thought-leader or influencer language, which suggests that influence has commercial value to some authors (INFERENCE). The author also faces the contract, and LinkedIn's help documentation describes visibility limits for comments made through automation tools. In the European Union, an author who is a trader and who commissions false endorsements faces point 23c, and whether a prompted like is an endorsement is open.

The tool operator faces paragraph (a), which is easier to meet than paragraph (b) because it requires only that the indicators "can be used" to misrepresent influence and does not require that they were. An operator that sells access to a service that produces likes and comments is within paragraph (a) if what it supplies is "fake" under § 465.1(h), which is the first open question. If a tool produces engagement from members' accounts at times that the tool sets, without the member reading the post, the operator's position is weaker than if each member acts on each post (INFERENCE). The 65 exports contain fields named engageTiming and engagementType, and I do not know what they mean in practice (Table 10.1 gives the counts). If an operator writes comment text for members, *LeadClick* suggests that immunity would be at risk, although whether the operator is a provider of an interactive computer service is itself unclear (INFERENCE). The operator also faces the contract claims that LinkedIn has brought against sellers of fake engagement.

The engaging member who likes or comments at a tool's prompt neither buys nor sells in the usual sense. The member could be said to supply an indicator, which is paragraph (a), or to procure one in exchange, which is paragraph (b). I found no authority for either reading (INFERENCE). The knowledge standard asks whether the member knew or should have known that the indicator was fake, and a member who clicks without reading the post may know that the like says nothing about it (INFERENCE). Point 23c is addressed to traders, so a member who is a consumer is likely outside it (INFERENCE; I did not open the Directive's definition of trader).

The platform is protected by Section 230(c)(1) from treatment as the publisher of its members' posts. The like counts it displays are built from members' actions, so I expect a court to treat a count as information provided by others, but I found no decision on the point (INFERENCE). Section 230(c)(2) covers good-faith actions to restrict material, which would include limiting the visibility of automated comments if a court agreed that such comments are "otherwise objectionable" (INFERENCE; I found no case). No United States statute that I opened requires LinkedIn to detect pods. In the European Union, LinkedIn's designation as a very large online platform brings Articles 34 and 35 to it.

Table 10.3 sets out the rules that reach posts on LinkedIn, content and social media, the parties they reach, an enforcement example and the remedy that the source states.

Table 10.3. Rules that reach posts on LinkedIn, content and social media, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
16 CFR § 465.8	Anyone who sells, distributes, buys or procures fake indicators of social media influence, with a knowledge standard	Warning-letter template, 22 Dec 2025; no complaint found	Civil penalties up to $53,088 per violation, as stated in the template
47 U.S.C. § 230(c)(1), (c)(2), (f)(3)	Providers and users of interactive computer services; no protection for a party responsible in part for developing the content	*FTC v. LeadClick Media* (2d Cir. 2016)	Immunity denied and Section 5 liability found (STATED)
Digital Services Act, Arts 34 and 35	Very large online platforms; LinkedIn designated 25 Apr 2023	None searched	Not stated; Article 52 not opened
UCPD Annex I, points 23b and 23c	Traders, in practices directed at consumers in the EU	None searched	Not stated in the sources I opened
LinkedIn User Agreement (contract)	Members and others who use the service	*LinkedIn v. TopSocial24*; hiQ	$43,086 and a ban (STATED); $500,000 and an injunction (Chapter 3)

10.4 What this means for people and for coming generations

Fake indicators matter for young people because they use counts to decide whom to trust, and the evidence I opened shows that counts can change judgments in some conditions and not in others.

The Surgeon General's advisory page on social media and youth mental health states that up to 95% of young people aged 13 to 17 report using social media, that nearly two thirds do so daily and that about a third use it "almost constantly," and it says "We cannot conclude that social media is sufficiently safe for children and adolescents." It reports that adolescents who spend more than three hours a day on social media "face double the risk of mental health problems," including symptoms of depression and anxiety, and that 46% of adolescents aged 13 to 17 said social media makes them feel worse about their body image (VERIFIED against the

page). The page I opened does not mention like counts or social comparison, so it does not link metrics to those outcomes.

The experimental evidence on like counts is mixed. Hilverda, Kuttschreuter and Giebels (2018, *Frontiers in Communication*) ran two experiments in which participants viewed a fictitious Facebook page about organic food. In Study 1, 124 adults who passed the manipulation checks (of 241 recruited, mean age 48) saw either fewer than 20 likes or more than 200, and the number of likes had no effect. In Study 2, 88 psychology students (of 145, mean age 21) saw either more than 300 likes on positive statements and fewer than 20 on negative ones, or the reverse. Anxiety was lower when positive statements carried the likes, at 1.61 against 2.04 ($p = 0.01$), and willingness to pay for an organic apple over a regular one was 25 cents against 13 cents ($p = 0.02$). The authors report that only 52% of Study 1 participants identified the number of likes correctly and that about half of the Study 2 participants failed the check. The study concerns food, Facebook, adults and students. It does not concern teenagers, LinkedIn or pods (VERIFIED against the article page). It shows that in one design like counts moved reactions and in the other they did not, and that many participants do not notice the counts.

My inference is that a count of likes works as a shortcut for how much attention a post deserves, for readers who notice it, and that a person who learns what to post and whom to trust from counts that were partly prompted learns from a distorted sample (INFERENCE). The sources I opened do not measure that effect for teenagers or for pod-boosted posts. The same reasoning applies to young adults entering work, who build a professional presence on the platform and compete for attention with profiles whose counts may include prompted engagement. Followers or connections appear in 231 posts in this topic (7.1%) and personal-

brand language in 154 (4.7%). I have no figure on how many young people on the platform use pods (INFERENCE).

None of the rules in 10.2 was written for minors, with one exception. Section 465.8 as I read it has no age provision, and the parts of Section 230 I opened have none. The Digital Services Act names minors in Article 34(1) and Article 35(1)(j), which makes it the one rule in this chapter that speaks to young people, and it acts through the platform's risk assessment and not through any duty owed by a poster. A young person in the European Union lives under a platform-risk regime that names minors, and a young person in the United States lives under a contract and a rule with no age provision (INFERENCE from texts that I read in part).

10.5 How this topic bears on mental health

This is the topic where engagement counts are the subject, and the evidence on counts and mental health is mixed and does not cover manufactured counts.

Likes, comments, shares or reposts appear in 1,061 of 3,266 posts (32.5%), and personal brand, thought leader or influencer in 154 (4.7%). Sherman and colleagues (2016, *Psychological Science*) showed 34 adolescents photos with like counts that the researchers had assigned. Participants were more likely to like photos that appeared popular, and photos with many likes drew more activity in reward-related regions. The study did not measure mental health. Section 10.4 reports that the experiments on like counts by Hilverda, Kuttschreuter and Giebels gave mixed results. The American Psychological Association's 2023 advisory says that research links appearance-based social comparison, and attention to one's own photos and feedback, with poorer body image, disordered eating and depressive symptoms, particularly among girls, and it advises adolescents to limit social media use for comparison. The analysis by Orben and

Przybylski (Section 7.5) found a small average association between technology use and adolescent well-being.

These studies concern adolescents and general social media use. None concerns professional networks or manufactured counts. The link I propose is INFERENCE: a count that signals approval the post did not earn gives a reader a false comparison point. I found no study of whether a false comparison point has a different effect from a true one.

My earlier book asserts that pods drive a pursuit of vanity metrics that harms mental health, and it explains the claim with four brain chemicals (Section 2.9). It cites no study and reports no measurement of mental health, and I treat it as my opinion and not as evidence for this section.

10.6 What the data cannot show

The data cannot show that any like, comment or view on any post in this topic was prompted, bought or automated. The podawaa file gives totals for each post and nothing about who engaged or why, and a view count of zero on 32.9% of this topic's podawaa posts suggests that the field is often not recorded. I did not use per-post counts from the other three files in this chapter.

The data cannot show that any author or tool operator is covered by § 465.8, because the section turns on knowledge, on whether an indicator is "fake" under § 465.1(h) and on commercial purpose, and none of these appears in a post. I found no enforcement under § 465.8 beyond a warning-letter template, no court decision on prompted engagement by real people, and no decision on Section 230 and like counts. A search that finds nothing does not show that nothing exists.

My reading of the law has gaps. I read *LeadClick* through a commentary, the Digital Services Act on a mirror, and the wording of point 23c on a secondary page. I did not read LinkedIn's User Agreement, its risk assessments under the Digital Services Act, or Articles 33 and 52 of that Regulation. The evidence on young people comes from an advisory about social media use in general and a study of Facebook posts about food, and neither tests pod boosting.

Chapter 11. Founders, startups and small business: private offerings, general solicitation and investor fraud

11.1 The topic in the data

Founders, startups and small business is the eighth-largest topic, with 3,217 posts, which is 5.0% of the 64,970 placed posts. The podawaa file supplies 2,271 of them (70.6%), HyperClapper 501 (15.6%), the 65 exports 430 (13.4%) and LinkBoost-2025 15 (0.5%). The median post is 326 characters.

The vocabulary is about starting and funding companies. The word "startup" appears in 1,463 posts (45.5%), "founder" or "co-founder" in 849 (26.4%), "entrepreneur" in 566 (17.6%) and "small business" in 57 (1.8%). Fundraising words (raising capital, a seed round or Series A to C, angel or venture capital, or "VC") appear in 357 posts (11.1%), and "investor" in 338 (10.5%). Equity, SAFE, cap table, convertible note or valuation appear in 123 (3.8%). Launch, waitlist, beta, pre-order or early-access words appear in 166 (5.2%), and lessons, failure or mistake in 176 (5.5%). A currency amount appears in 224 posts (7.0%), a thousands-or-millions figure such as "$2M" or "six figures" in 154 (4.8%), revenue, ARR or MRR in 85 (2.6%), and a percentage figure in 158 (4.9%). Loans, grants or SBA appear in 37 (1.2%), hiring words in 55 (1.7%), and legal, compliance, contract or intellectual-property words in 88 (2.7%). Franchise, business-opportunity, turnkey, work-from-home, side-hustle or passive-income words appear in only 18 (0.6%). A link appears in 709 posts (22.0%), five or more hashtags in 953 (29.6%), an AI term in 263 (8.2%), and "DM me" in 23 (0.7%).

The counts closest to a securities offering are small. Language of currently raising or looking for investors appears in 14 posts (0.4%) and 40 (1.2%) under two different patterns, and announcements of a completed raise (for example "we raised" or "closed our seed round") appear in 38 (1.2%). Crowdfunding appears in 8 posts (0.2%), and one post uses any of a set of

exemption terms (accredited, Regulation D, Regulation CF or A, Form D, Rule 506, SEC filing or securities law). Return or multiple language ("ROI," "10x," "100x") appears in 27 posts (0.8%), and a guarantee or risk-free promise in 11 (0.3%). Students, teens, Gen Z, college or "under 30" appear in 79 posts (2.5%). These counts are VERIFIED against the data, and each counts words and not claims.

11.2 The laws that apply

Three rule sets matter beyond Chapter 3: the registration requirement of the Securities Act and the exemptions that founders use to avoid it, the antifraud provisions that apply to anything said to an investor, and the remedies that the Act gives to people who bought.

Registration and its exemptions. Section 5(a) of the Securities Act makes it unlawful, "unless a registration statement is in effect as to a security," to use interstate commerce or the mails to sell it, and § 5(c) makes it unlawful "to offer to sell or offer to buy" a security "unless a registration statement has been filed" (VERIFIED; I opened 15 U.S.C. § 77e on Cornell). Founders who raise money without registering rely on an exemption. The one most often used is Rule 506 of Regulation D, which has two forms. The SEC's page on Rule 506(b) says the offering requires "no general solicitation or advertising to market the securities," allows sales to no more than 35 non-accredited investors in any 90-calendar-day period if each has enough financial and business knowledge to evaluate the investment, requires disclosure documents for those non-accredited buyers, has no cap on the amount raised, and requires a notice on Form D within 15 days after the first sale. The page says general solicitation "is incompatible with the private placement exemption." The SEC's page on Rule 506(c) says it "permits issuers to broadly solicit and generally advertise an offering" if "all purchasers in the offering are accredited investors" and the issuer takes "reasonable steps to verify purchasers' accredited investor status."

Both pages say the offerings are subject to "bad actor" disqualification and that federal law preempts state registration, but states "still have authority to require notice filings and collect state fees" (VERIFIED against the pages).

The line between the two forms is the meaning of general solicitation. A Harvard Law School forum article says that neither the JOBS Act nor the SEC's rules define the term, so guidance comes from the examples in Rule 502(c), staff no-action letters and staff interpretations. It reports that the staff look at the breadth of a communication, including how many people received it, their relationship to the issuer, their financial sophistication and the form of the materials. It adds that communicating with a prospective investor with whom the issuer has a pre-existing substantive relationship is not general solicitation, that the quality of the relationship is the critical factor, and that self-certification alone is insufficient (STATED). A Dechert alert of September 2015 says that an offer made on an unrestricted, publicly available website is general solicitation (STATED). I did not open Rule 502(c) or the staff interpretations, and neither article discusses social media posts.

Two accommodations exist. The Harvard forum article says Rule 148, effective 15 March 2021, treats communications at a qualifying demo day as outside general solicitation if conditions are met, including a qualifying sponsor and no reference to a specific offering, and that Rule 241 allows a generic solicitation of interest before an exemption is chosen, with no money accepted (STATED). A law-firm alert dated 20 March 2025 reports that the staff of the Division of Corporation Finance issued a no-action letter on 12 March 2025 saying an issuer may treat a minimum investment of at least $200,000 for a natural person or $1 million for an entity as a reasonable verification step under Rule 506(c), with written representations from the

purchaser that it is accredited and has not financed the investment through a third party, and with no actual knowledge to the contrary (STATED).

Regulation Crowdfunding has its own limit on advertising. Section 227.204(a)(1) says an issuer "may not, directly or indirectly, advertise the terms of an offering made in reliance on section 4(a)(6)," with exceptions for a notice that "directs investors to the intermediary's platform." Such a notice may contain "no more than" a statement that the issuer is offering under § 4(a)(6), the intermediary's name and a link, the terms of the offering, and limited factual information about the issuer (name, address, phone, website, a representative's email and a brief business description). The rule says "issuer includes persons acting on behalf of the issuer." Paragraph (e) defines the terms of the offering as the amount, nature and price of the securities, the closing date, the planned use of proceeds and the issuer's progress toward its funding target (VERIFIED; I opened § 227.204 on Cornell). I did not open § 227.205, which the page links to.

Antifraud provisions. Section 17(a) of the Securities Act applies to anyone in the offer or sale of a security using interstate commerce or the mails. Paragraph (a)(1) bars "any device, scheme, or artifice to defraud," paragraph (a)(2) bars obtaining "money or property by means of any untrue statement of a material fact" or an omission that makes the statements made misleading, and paragraph (a)(3) bars any "transaction, practice, or course of business" that "operates or would operate as a fraud or deceit upon the purchaser." Section 17(b) bars publicizing a security for "a consideration received or to be received, directly or indirectly, from an issuer, underwriter, or dealer" without "fully disclosing" it (VERIFIED; I opened § 77q on Cornell, which contains no penalty provisions). Section 17(b) is the subject of Chapter 13.

The Commission's use of § 17(a)(2) against a start-up founder is recent. In Litigation Release No. 26619 of 26 August 2026, the SEC reports a settled action in the Southern District

of Florida against an artificial intelligence start-up and its founder and former chief executive. The release alleges that from December 2019 through December 2024 the defendants raised more than $5.3 million from more than 4,000 investors through Regulation Crowdfunding and Regulation A offerings while misrepresenting the company's financial prospects. It alleges revenue projections that rose as high as $250 million by 2024 and "lacked any reasonable basis," valuations that rose above $200 million in 2022 and "were based on" the founder's "subjective estimations," claims of as many as 25 "partnerships" that were not enforceable, and a customer waitlist when "no actual customer waitlist existed." It alleges that the marketplace was in a testing phase until 2022 and never commercially viable. The release charges that the defendants acted negligently in violation of § 17(a)(2). The defendants consented to judgments without admitting or denying the allegations, subject to court approval. The judgments would permanently enjoin them from violating § 17(a)(2) and require the founder to pay $50,000 in disgorgement, $9,184.53 in prejudgment interest and a $50,000 civil penalty (VERIFIED against the release; I did not check whether the court approved the judgments). The release does not mention LinkedIn or engagement pods.

Remedies for buyers. Section 12(a)(1) makes a person who "offers or sells a security in violation of" § 5 liable to the purchaser, who may sue to recover "the consideration paid for such security with interest thereon," less income received, upon tender of the security, or damages if the purchaser no longer owns it. Section 12(a)(2) makes a seller liable to the purchaser if the offer or sale was made by a prospectus or oral communication that includes an untrue statement of a material fact or omits one, unless the seller proves that it "did not know" and "in the exercise of reasonable care could not have known" of the untruth (VERIFIED; I opened 15 U.S.C. § 77l

on Cornell). I did not open § 77l(b) or the case law on which communications count as a "prospectus" under § 12(a)(2).

The accredited-investor definition decides who may buy under Rule 506(c). A law-firm alert on the SEC staff's December 2023 report says the current thresholds are a net worth above $1,000,000 excluding the primary residence, or income above $200,000 in each of the two most recent years ($300,000 jointly with a spouse) with a reasonable expectation of the same in the current year. It reports the staff's estimate that 1,510,000 households (1.8%) qualified in 1983 and 24,300,000 (18.5%) in 2022, and that 12.5% would qualify on net worth under the current definition, against 8.8% if retirement assets were excluded. The alert says the report took no position on proposed changes and gives no demographic breakdown (STATED).

11.3 How the rules reach pod-boosted posts in this topic

The securities rules reach a founder who offers or sells securities, and boosting changes the breadth of the audience that sees an offer.

The author is the issuer or someone acting for the issuer. A founder who posts that the company is raising, with the amount or the terms, may be making an offer. If the post reaches the open feed, the staff's breadth factors point toward general solicitation. A Rule 506(b) offering that includes such a post would not meet that rule's condition of no general solicitation, and a Rule 506(c) offering needs verified accredited purchasers (INFERENCE from the sources above, none of which addresses a social media post). A Regulation Crowdfunding issuer faces § 227.204 directly, because a post that states the terms outside the platform is advertising of terms unless it fits the notice format (INFERENCE from the text). Only 14 posts (0.4%) use currently-raising language and 40 (1.2%) use looking-for-investors language, and only one post mentions an exemption or an accredited investor, so the topic gives little sign that authors address these

rules (INFERENCE). A post that makes claims about revenue, customers or valuation to people who might invest meets § 17(a), and the Commission's August 2026 release shows how those claims are charged. Revenue, ARR or MRR appears in 85 posts (2.6%), and I cannot tell which of them speak to investors.

Pod boosting adds to the breadth of the audience that sees a post, because it raises the number of people who see it (INFERENCE). It does not change who the investors are or what the post says. If the author bought or procured likes that the author knew or should have known to be fake, § 465.8(b) from Chapter 10 applies as a separate problem, and an investor who relied on a count of likes as evidence of interest in the company might point to the count in a claim (INFERENCE; I found no case on the point).

The tool operator is not an issuer and has no exposure under these rules in the ordinary case. The engaging member is a possible purchaser, and a member who comments in praise of an offering in return for the founder's engagement on the member's own posts raises a question under § 17(b), which asks about consideration received "directly or indirectly" from an issuer. Whether reciprocal engagement is consideration is open, and I found no authority (INFERENCE; Chapter 13 returns to it). The platform has no securities-law duty that I opened, and the only securities rule it meets in this topic is as the venue for communications (INFERENCE).

Table 11.1 sets out the rules that reach posts on founders, startups and small business, the parties they reach, an enforcement example and the remedy that the source states.

Table 11.1. Rules that reach posts on founders, startups and small business, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Securities Act § 5, 15 U.S.C. § 77e	Any person who offers or sells a security without registration or an exemption	None searched	Purchaser's rescission or damages under § 12(a)(1) (VERIFIED)
Rule 506(b) and 506(c)	Issuers raising money under Regulation D	None searched	Not stated on the SEC pages
Regulation Crowdfunding, 17 CFR § 227.204	Issuers and persons acting for them	None searched	Not stated in the text I opened
Securities Act § 17(a)	Anyone offering or selling a security	SEC Litigation Release No. 26619 (26 Aug 2026)	Injunction, $50,000 disgorgement, $9,184.53 interest, $50,000 penalty, subject to court approval
Securities Act § 12(a)(2)	A seller who communicates a material untruth or omission	None searched	Rescission or damages to the purchaser
Securities Act § 17(b)	A person who publicizes a security for consideration from an issuer, underwriter or dealer	See Chapter 13	Not stated on the page

11.4 What this means for people and for coming generations

The founder rules decide who may put money into new companies and what protection they have, and the starting position is uneven by wealth.

Private offerings that allow general solicitation are open only to accredited investors, and the SEC staff estimate that 18.5% of U.S. households qualified in 2022 (STATED). The alert I read gives no breakdown by age. My inference is that households headed by young adults, who have had less time to build net worth, are less likely to qualify, so that an early-stage investment that is publicly advertised under Rule 506(c) is open to few of them (INFERENCE). Regulation Crowdfunding and Regulation A reach people who are not accredited, as the Commission's August 2026 release shows with its count of more than 4,000 investors in one company. People who are not accredited have, by the definition's thresholds, less net worth and income than those who are, so on average they have less capacity to absorb a loss (INFERENCE). The release

states that the defendants raised more than $5.3 million and proposes a founder payment of $50,000 in disgorgement, $9,184.53 in interest and a $50,000 civil penalty. It does not say how much investors lost.

Business survival is the second anchor. The Bureau of Labor Statistics reports from its Business Employment Dynamics program that of private-sector establishments born in March 2013, 79.6% were operating a year later, 50.6% after five years and 34.7% in March 2023 (VERIFIED against the BLS page). These are establishments and not firms, and the page does not say what share of them were venture-backed or founder-led. Posts about success and posts about lessons or failure are of similar size in this topic: success-story, bootstrapping or scaling language appears in 168 posts (5.2%) and lessons, failure or mistake in 176 (5.5%). My inference is that a young person reading these posts sees a sample selected by who chooses to post and who gets boosted, and a pod raises the visibility of the posts its members choose to promote (INFERENCE). The sources do not measure that effect.

The rules say little about young founders. None of the provisions I opened distinguishes by age, and students, teens, Gen Z, college or "under 30" appear in 79 posts (2.5%) with no indication of who the authors are. A person who raises money from friends and family at age 20 under a Rule 506(b) offering meets the same registration and antifraud rules as an established company (INFERENCE; I opened nothing on minors as issuers). People who bought in a start-up that failed have the remedies in § 12 and the Commission's antifraud authority, and those remedies depend on proving a violation. In the August 2026 release the offerings ran from December 2019 to December 2024 and the action was filed twenty months after the last of them. The release does not say when the Commission began its investigation.

11.5 How this topic bears on mental health

Founders report higher rates of several conditions than comparison participants in the study I opened, and the study cannot say whether the work or earlier traits explain the difference.

The topic is about starting and funding companies. The word "startup" appears in 1,463 of 3,217 posts (45.5%), and lessons, failure or mistake in 176 (5.5%). Freeman, Staudenmaier, Zisser and Andresen (2019, *Small Business Economics*) surveyed 242 entrepreneurs and 93 comparison participants by self-report. Entrepreneurs reported more depression (30%), ADHD (29%), substance use (12%) and bipolar disorder (11%) than the comparison participants, and 72% said that mental-health differences had affected them directly or indirectly. I read the abstract record, which gives no comparison percentages. The sample is small and self-reported, and the design cannot show that starting a business causes any condition.

The Bureau of Labor Statistics reports that 34.7% of private-sector establishments born in March 2013 were still operating in March 2023, which means that most did not reach ten years. I found no study that connects that rate to founders' mental health.

Raising money is a second route. The rules on private offerings in Section 11.2 protect investors from fraud, and Section 3.8 cites evidence that the effects of fraud on victims range from little to devastating. Language of currently raising money appears in 14 posts (0.4%) and 40 (1.2%) under two patterns, so the text says little about offerings.

11.6 What the data cannot show

The data cannot show that any post in this topic is an offer or sale of a security. Each count is of words, a post that says "we raised" may describe a past round, and a post that says "looking for investors" may be a joke or a general remark. I cannot tell whether an author is an issuer or whether the audience includes anyone with whom the author has a pre-existing

substantive relationship, which is the factor the staff treat as central. The data cannot show that any author used an exemption or ignored one, and one post mentioning an exemption says nothing about the others.

My reading of the securities rules has gaps. I read Rules 506(b) and 506(c) on SEC pages and did not open the text of Rule 506, Rule 502(c), Rule 148, Rule 241, Section 4(a)(2) or Regulation A. The accommodations and the staff's factors come from law-firm and forum articles. The accredited-investor figures come from an alert on the staff report and not from the report. The August 2026 release is a settled action with allegations that the defendants neither admitted nor denied, and I did not check whether the court approved it. The survival figures are for establishments and not for companies that raise money. I did not open the Business Opportunity Rule or the Franchise Rule, which Chapter 14 discusses with earnings claims.

Chapter 12. AI agents and AI tools: performance claims, tool suppliers and the protection of young users

12.1 The topic in the data

AI agents and AI tools is the ninth-largest topic, with 2,984 posts, which is 4.6% of the 64,970 placed posts. It differs from the topics before it in where its posts come from. The 65 exports supply 1,658 of them (55.6%), HyperClapper 1,174 (39.3%), podawaa 136 (4.6%) and LinkBoost-2025 16 (0.5%), so 94.9% come from HyperClapper and the 65 exports. Podawaa supplies 67.5% of all 273,771 distinct posts in the corpus and only 4.6% of this topic. The posts are long: the median is 1,163 characters and the 90th percentile 2,288.

The word "AI" appears in 2,338 posts (78.4%). The phrase "AI agent" or "agentic" appears in 1,498 (50.2%), and the bare word "agent" in 2,268 (76.0%), which includes agents of other kinds. Named models or vendors appear as follows: ChatGPT, OpenAI or GPT in 516 posts (17.3%), Claude or Anthropic in 464 (15.5%), and Gemini, Copilot, Llama, Perplexity, DeepSeek or Mistral in 329 (11.0%). Technical words are common. Workflow appears in 910 posts (30.5%), automation in 610 (20.4%), MCP, RAG, API or vector in 602 (20.2%), prompt in 586 (19.6%), autonomous in 496 (16.6%), LLM or large language model in 361 (12.1%), chatbot in 171 (5.7%) and hallucination in 99 (3.3%). Enterprise, B2B, SaaS or customer words appear in 1,187 (39.8%), and cost, ROI or pricing words in 463 (15.5%).

Claims and caution both appear. A percentage figure appears in 497 posts (16.7%) and a currency amount in 325 (10.9%). Productivity claims of the form "10x," "save N hours" or "N% faster" appear in 255 (8.5%), and a guarantee in 25 (0.8%). Risk, safety, governance, ethics, bias, guardrail or trust words appear in 1,209 (40.5%), privacy, security or data-protection words in 595 (19.9%), and regulation, compliance, law, legal or liability words in 456 (15.3%). Only 19 posts (0.6%) name the EU AI Act, 16 (0.5%) name the FTC, SEC, NIST or FDA, and one uses

the word "washing." Language about AI writing posts or comments, auto-commenting or ghostwriting appears in 48 (1.6%), and 43 of those are in HyperClapper. Words about AI-generated content (AI-generated, deepfake, synthetic) appear in 40 (1.3%), and fake or AI reviews in 2 (0.1%).

Few posts touch the groups most affected by the rules in this chapter. Replace-jobs language appears in 18 posts (0.6%), minors, children, teens or age verification in 14 (0.5%), students, teens, kids or school in 23 (0.8%), and companion, therapy, mental-health or loneliness words in 17 (0.6%). Make-money-with-AI language appears in 14 (0.5%), and a DM-me call in 85 (2.8%). A link appears in 753 posts (25.2%) and five or more hashtags in 687 (23.0%). These counts are VERIFIED against the data, and each counts words and not claims. The "risk" and "trust" words are common in business writing, so the 40.5% figure overstates how many posts discuss AI risk.

12.2 The laws that apply

Four sets of rules matter beyond Chapters 3 and 4: the Commission's treatment of AI tool suppliers, its action against a seller of AI agents, its inquiry into chatbots used as companions, and the European and state rules that address manipulation and young users.

The Commission and the supplier of an AI tool: *Rytr*. In Chapter 4 I described the Commission's 2024 action against Rytr, whose AI writing service let subscribers generate false and deceptive online reviews, and I said it showed that the Commission had pursued the supplier of a tool as well as its users. That statement needs a correction. On 22 December 2025 the Commission voted 2-0 to reopen and set aside the final order. Its press release says that "the facts alleged in the complaint fail to support allegations that Rytr violated Section 5 of the FTC Act" and that the order "unduly burdens innovation in the nascent AI industry," and it ties the decision

to the Administration's AI Executive Order and America's AI Action Plan. The 2024 order had barred Rytr from offering "any AI-enabled service generating consumer or customer reviews or testimonials." The release also says the Commission will still pursue actors who use AI to break the law or misrepresent what their generative AI can do, and that Rytr's case was not that kind of case (VERIFIED against the release). The 2024 vote was 3-2 with Commissioners Holyoak and Ferguson dissenting, according to the release I opened in Chapter 4, and the Commission's September 2025 release on chatbots names Andrew N. Ferguson as Chairman. I no longer treat *Rytr* as authority for supplier liability. The review rule itself is separate. The Commission's press release of 14 August 2024 says the rule bars "reviews and testimonials that misrepresent that they are by someone who does not exist, such as AI-generated fake reviews," and its subtitle says the rule will "deter AI-generated fake reviews" (VERIFIED against the release). My reading of the rule's text in Chapter 3 found no mention of AI, so the reach to AI-generated reviews rests on the "someone who does not exist" language.

A seller of AI agents: *Air AI*. On 25 August 2025 the Commission voted 3-0 to sue Air AI in the District of Arizona. The release says the company sold business coaching and support bundled with an "Air AI Access Card" and licenses to resell its services, advertised a flagship "conversational AI" feature that it claimed could replace human customer service representatives, and told buyers they could earn back tens of thousands of dollars in days or months and that some could make millions. It says buyers were promised refunds if they did not earn two or three times their investment, that the defendants "rarely honor their guarantee," and that consumers lose "as much as $250,000." The release names the Telemarketing Sales Rule and the Business Opportunity Rule, which Chapter 14 discusses, and does not mention Section 5 (VERIFIED against the release). A trade article dated 24 March 2026 reports a proposed

settlement that bans the company and its owners from marketing business opportunities, enters an $18 million monetary judgment that "will be largely suspended," requires the operators to pay $50,000 for consumer relief, and is subject to court approval (STATED; I did not open the order, and the article does not say whether the defendants admitted the allegations). The case is one in which the AI product was the subject of the claims and the earnings promise was the harm.

Chatbots used as companions. On 11 September 2025 the Commission voted 3-0 to issue orders under Section 6(b) of the FTC Act to seven companies that operate consumer-facing AI chatbots. The release says the inquiry asks how the companies measure, test and monitor possible negative effects on children and teens, how they limit use and inform parents, how they monetize engagement and handle personal information from conversations, and whether they comply with the COPPA Rule. It says that 6(b) studies are "wide-ranging studies that do not have a specific law enforcement purpose" (VERIFIED against the release). I found no finding, penalty or enforcement action attached to the inquiry.

European Union and state rules on manipulation and young users. Article 5(1)(a) of the AI Act prohibits AI systems that use "purposefully manipulative or deceptive techniques," and Article 5(1)(b) prohibits systems that exploit vulnerabilities "due to their age, disability or a specific social or economic situation," each with a requirement of significant harm. The page I read on the Commission's AI Act service desk does not state when Article 5 applies, states no penalty content, and says that two additional prohibitions apply from 2 December 2026, which I did not open (VERIFIED against the page for the wording only). Article 50 is discussed in Chapter 4.

California's SB 243, signed on 13 October 2025 and effective 1 January 2026, regulates operators of companion chatbot platforms. A law-firm article says it requires a clear and

conspicuous notice that a chatbot is artificially generated if a reasonable person could be misled, a protocol that keeps the chatbot from producing content about suicidal ideation or self-harm and refers at-risk users to crisis services, and, for users the operator knows to be minors, a notice that they are talking to AI, break reminders "at least every three hours," and reasonable steps to prevent sexually explicit material. Operators must report to the Office of Suicide Prevention from 1 July 2027. Any person injured by a violation may sue for the greater of actual damages or "$1,000 per violation" and attorney's fees (STATED; I did not open the statute). The article lists exclusions for customer service bots, video game characters with limited dialogue and voice assistants without sustained relationships.

Colorado shows how unsettled state AI law is. A law-firm article says that on 14 May 2026 the Governor signed SB 26-189, which repeals and replaces the 2024 Colorado AI Act, postpones the effective date to 1 January 2027, replaces the duty of reasonable care and the impact assessments with notice and documentation duties, gives no private right of action, and allows a 60-day cure period until 1 January 2030 (STATED). A second law-firm article reports that a social media and AI company sued over the 2024 Act in April 2026, that the Department of Justice intervened, and that on 27 April 2026 the District of Colorado approved a joint request to suspend enforcement (STATED). I did not open either court filing, and Colorado's law concerns automated systems used in consequential decisions about people, which is a different subject from the posts here.

12.3 How the rules reach pod-boosted posts in this topic

The rules reach a poster who sells an AI product and states what it does, and the supplier of an AI tool only if it misrepresents the tool or builds on a fake-review function.

The author is often a vendor or an adviser. A vendor who posts that an agent saves "10 hours a week" or cuts costs by "40%" makes an objective claim that needs the support described in Chapter 4, and 255 posts here (8.5%) use that form. A post that promises earnings from reselling or running AI services is the pattern in *Air AI*, but only 14 posts (0.5%) use make-money language and I cannot tell whether any of them offers a business opportunity within the Rule (INFERENCE). Most posts discuss tools and workflows, and a commentator who describes a technology without selling anything has no exposure under these rules (INFERENCE).

The tool operator is a different party. A pod tool that generates comments with AI would bring two questions. One is § 465.8(a), because a comment written by an AI system and posted under a member's name may be an indicator that does not reflect "a real individual's ... opinions" within § 465.1(h), the clause that Chapter 10 identified as open (INFERENCE). The other is the Rytr question, which no longer has an order behind it. I hold no evidence that any tool in these four sources generates comments with AI, as I said in Chapter 4, and 48 posts (1.6%) that discuss AI writing posts or comments are a fact about vocabulary and not about any tool. Under Article 50(2), a provider of a system that generates synthetic text must mark its output in a machine-readable format for users in the EU, as described in Chapter 4.

The engaging member who posts an AI-drafted comment faces the question that Chapter 10 left open about prompted engagement, with the added point that the words may not be the member's own (INFERENCE). A comment on a general post is not a "consumer review" under § 465.1(d) as I read it in Chapter 6, so § 465.2 is unlikely to apply (INFERENCE).

The platform's position is the one in Chapter 10. Article 50 binds providers and deployers of AI systems and not a platform that hosts posts, and I opened no provision that makes LinkedIn

answerable for AI-written comments (INFERENCE). SB 243 applies to operators of companion chatbot platforms, which LinkedIn is not, as far as I know (INFERENCE).

Table 12.1 sets out the rules that reach posts on AI agents and AI tools, the parties they reach, an enforcement example and the remedy that the source states.

Table 12.1. Rules that reach posts on AI agents and AI tools, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
FTC Act § 5 (Chapters 3 and 4)	Sellers of AI tools who make objective claims	Operation AI Comply (Chapter 4)	See Chapter 4
FTC action on a tool supplier	Supplier of an AI review-writing service	*Rytr*, order set aside 22 Dec 2025	None; the order was vacated (VERIFIED)
Telemarketing Sales Rule; Business Opportunity Rule	Sellers of AI-related business opportunities	*Air AI* (D. Ariz., filed 25 Aug 2025)	Proposed: business-opportunity ban; $18 million judgment, largely suspended; $50,000 (STATED)
FTC Act § 6(b) inquiry	Seven chatbot operators	Orders of 11 Sep 2025	None found; the release describes a study with no specific law enforcement purpose (VERIFIED)
16 CFR Part 465 (AI-generated fake reviews)	Businesses that write, buy or disseminate fake reviews	Warning-letter template (Chapter 10)	Up to $53,088 per violation (Chapter 10)
EU AI Act, Article 5(1)(a), (b)	Providers and deployers of manipulative or vulnerability-exploiting systems	None searched	Not stated on the page
California SB 243	Operators of companion chatbot platforms	None searched	$1,000 per violation or actual damages (STATED)
Colorado SB 26-189	Developers and deployers of automated decision systems	None; enforcement stayed	Fines with a cure period to 2030 (STATED)

12.4 What this means for people and for coming generations

The evidence I opened points to people entering the workforce as the group most affected so far by AI agents, and to children and teenagers as heavy users of AI chatbots, and the rules I opened address the second group more directly than the first.

A working paper from Stanford's Digital Economy Lab, updated in August 2026, uses ADP payroll records covering 3.5 to 5 million employees a month from January 2021 through June 2026. It reports that employment of workers aged 22 to 25 in AI-exposed occupations stands 19% below where it would be had it kept pace with less-exposed peers, and that experienced workers show no comparable gap. Declines are concentrated in occupations where AI use primarily substitutes for human tasks, and the divergence operates mainly through reduced hiring and not through separations. Adding the college share of workers halves the estimate for the most exposed quintile, from -0.18 to -0.09. The authors call the results "early, descriptive indicators ... rather than causal estimates," and say that the paper does not estimate a causal impact of AI (VERIFIED against the paper). The evidence bears on the careers of people now leaving school, and it does not show that agents caused the decline. In this topic, workflow words appear in 30.5% of posts and automation in 20.4%, while replace-jobs language appears in 0.6% (VERIFIED), so the posts discuss tools in enterprise terms and say little about who loses work (INFERENCE).

For children and teenagers the evidence is about use. The Pew Research Center reported in February 2026, from a survey of 1,458 teens aged 13 to 17 fielded from 25 September to 9 October 2025, that 64% use chatbots, about three in ten daily, 57% for information and 54% for schoolwork, and 12% for emotional support (VERIFIED against the report in Chapter 4). The Commission's inquiry, California's SB 243 and Article 5(1)(b) of the AI Act each address a part of this use: the inquiry studies it, SB 243 sets operating duties and a private remedy for known minors in one state, and Article 5(1)(b) prohibits systems that exploit vulnerabilities due to age where significant harm results. None binds the vendors who post in this topic as authors, and only 14 posts (0.5%) mention minors, children, teens or age verification (INFERENCE). My

inference is that the protections for young users attach to a product category, companion chatbots, that this topic's posts rarely discuss.

The change in the *Rytr* order affects the information environment in which young people form judgments. The Commission's stated position is that it will pursue those who use AI to break the law or misrepresent their AI, and that it will not condemn a tool because it could be misused. Whether a supplier of a review-writing or comment-writing tool faces any rule other than the review rule's "someone who does not exist" language is unsettled (INFERENCE). The rules for children also differ by place. A teenager in California has SB 243, a teenager in the European Union has Article 5, and a teenager in a state with no statute has the Commission's inquiry and its general authority (INFERENCE from the sources opened; I did not survey other states).

12.5 How this topic bears on mental health

Professional bodies say that research on AI and young people's mental health is still developing, and the early findings concern companionship and trust.

AI appears in 2,338 of 2,984 posts (78.4%) in this topic, and companion, therapy, mental-health or loneliness words in 17 (0.6%). Section 4.4 reports that 12% of teens used chatbots for emotional support or advice. Common Sense Media reported on 16 July 2025 that 72% of teens aged 13 to 17 had used AI companions at least once, that about one in three found conversations with an AI companion as satisfying as, or more satisfying than, conversations with real-life friends, and that about one in three users had felt uncomfortable with something a companion said or did (STATED; I read the organization's press release, which gives no sample size). The American Psychological Association's June 2025 advisory says that adolescents are less likely than adults to question information from a bot, that strong attachments to AI characters "may

contribute to struggles with learning social skills," and that this research is early. It recommends reminders that a user is talking to a bot and routes to human support for serious difficulties.

The claims in this topic's posts concern what an AI tool can do. If a teenager relies on a tool for emotional support because a post said it could provide it, the accuracy of the claim matters to that reliance (INFERENCE). The data show 17 posts that name this use and 14 that name minors or age verification, so the topic's text barely touches it.

12.6 What the data cannot show

The data cannot show that any AI claim in these posts is false, that any post offers a business opportunity within the Rule, or that any pod tool generates comments with AI. The counts are of words. A post that says an agent saves ten hours may be accurate and may rest on a study that I did not see. The data cannot show who the posters are, whether they sell AI products, or whether any minor reads or posts in this topic.

My reading of the law has gaps. I read the *Rytr* and *Air AI* matters through the Commission's press releases and a trade article and did not open the orders or complaints. I read SB 243 and the Colorado developments through law-firm articles and not the statutes or court papers. I read Article 5 of the AI Act on the Commission's service desk page and not in the Official Journal. I did not open the Business Opportunity Rule or the Telemarketing Sales Rule. The Stanford paper is a working paper that its authors describe as descriptive, and the Pew figures are for teens in the United States in late 2025. The 2024 *Rytr* vote count comes from the Chapter 4 source and not from a new opening of the 2024 release.

Chapter 13. Investing, markets and finance: touting, antifraud rules and the young retail investor

13.1 The topic in the data

Investing, markets and finance is the tenth-largest topic, with 2,853 posts, which is 4.4% of the 64,970 placed posts. The podawaa file supplies 1,344 of them (47.1%), the 65 exports 1,069 (37.5%), HyperClapper 411 (14.4%) and LinkBoost-2025 29 (1.0%). The median post is 587 characters and the 90th percentile 1,485.

The word "invest" in some form appears in 1,043 posts (36.6%). Stock, equity or market words appear in 587 (20.6%), fund, ETF, portfolio, hedge-fund, private-equity or venture words in 345 (12.1%), and real estate, property, rent, mortgage or REIT words in 365 (12.8%). Buy, sell, price-target, undervalued, bullish or bearish language appears in 342 (12.0%), return, yield, dividend or ROI in 205 (7.2%), and interest-rate, Fed, inflation, recession or tariff words in 237 (8.3%). Get-rich or wealth language (millionaire, billionaire, financial freedom, passive income or wealth) appears in 199 (7.0%), and a percentage figure in 500 (17.5%). Trading-signal, trading-course, forex or day-trading words appear in 164 (5.7%), ticker, stock-pick, penny-stock, IPO or meme-stock words in 55 (1.9%), and cashtags such as a dollar sign before a ticker in 21 (0.7%). Crypto, Bitcoin or NFT words appear in 113 (4.0%), financial adviser, wealth manager, fiduciary or broker words in 139 (4.9%), and retirement, 401(k), IRA or pension words in 56 (2.0%). Fundraising, accredited, private-placement, syndication, crowdfunding, SPV or LP words appear in 58 (2.0%), and an invitation to invest with the author or a call for investors in 15 (0.5%). A link appears in 695 posts (24.4%), five or more hashtags in 990 (34.7%), a DM-me call in 24 (0.8%), and a guarantee or risk-free promise in 19 (0.7%).

Warnings and disclosures are far less common than recommendations. A phrase such as "not financial advice," "do your own research," "for educational purposes," "disclaimer" or "past

performance" appears in 35 posts (1.2%). A statement that the author owns, is long or is short a position appears in 11 (0.4%), and sponsored, paid-partnership, affiliate or "promoted" words in 16 (0.6%). Words that name a regulator or securities law (SEC, FINRA, CFTC, "securities law") appear in 79 (2.8%), and scam, fraud, Ponzi, pump-and-dump or "beware" in 45 (1.6%). Students, teens, Gen Z, millennials, young investors, college or first-time words appear in 75 (2.6%). These counts are VERIFIED against the data, and each counts words and not claims. A post that warns against a Ponzi scheme is counted with a post that runs one.

13.2 The laws that apply

Three rule sets matter beyond Chapters 3 and 11: the general antifraud rule, the rules on promoting securities for payment, and the rules for investment advisers and broker-dealers who communicate with the public.

The antifraud rule (17 CFR § 240.10b-5). Rule 10b-5 applies to any "person" who acts directly or indirectly through interstate commerce, the mails or a national securities exchange facility, and it applies "in connection with the purchase or sale of any security." It makes it unlawful to use any "device, scheme, or artifice to defraud" (paragraph (a)), to make an "untrue statement of a material fact" or omit a material fact needed to keep statements from being "misleading" (paragraph (b)), or to engage in any "act, practice, or course of business" that operates or would operate as a fraud or deceit on any person (paragraph (c)) (VERIFIED; I opened the rule on Cornell). Section 17(a) of the Securities Act, which Chapter 11 set out, uses similar words for the offer or sale of a security.

Promoting securities for payment: § 17(b) and *Kardashian*. Section 17(b), also set out in Chapter 11, bars publicizing a security for "a consideration received or to be received, directly or indirectly, from an issuer, underwriter, or dealer" without "fully disclosing" it. The text

requires disclosure of the payment and its amount. It does not address whether the publicity is accurate. In SEC press release 2022-183 of 3 October 2022, the Commission announced that it had charged a celebrity with touting a crypto asset security, EMAX tokens, on social media without disclosing a $250,000 payment for an Instagram post that linked to the issuer's website. The release says the order found a violation of "the anti-touting provision," which I read as § 17(b), although the release does not give the section number (INFERENCE). Without admitting or denying the findings, the celebrity agreed to pay $1.26 million in total, covering about $260,000 in disgorgement (the promotional payment), prejudgment interest and a $1,000,000 penalty, to stop promoting crypto asset securities for three years, and to cooperate with the continuing investigation. The Chair said that celebrities must disclose "when and how much they are paid to promote investing in securities," and the Director of Enforcement said that "Investors are entitled to know whether the publicity of a security is unbiased" (VERIFIED against the release).

A second example involves ordinary traders. A National Law Review article dated 6 January 2023 reports that the SEC charged eight men with a scheme that produced about $100 million in fraudulent profits, in which they used Twitter and Discord to present themselves as seasoned stock traders and promoted stocks to their followers. It says seven promoted the stocks directly and the eighth hosted a podcast that presented the others as experts, and it quotes the SEC as describing a "steady diet of misinformation." The article reports the charges and no outcome, and it passes on the SEC's warnings not to make investment decisions based on social media testimonials and to check registration on Investor.gov (STATED; I did not open the SEC's release or complaint).

Advisers and broker-dealers. The Advisers Act Marketing Rule, 17 CFR § 275.206(4)-1, governs advertising by registered investment advisers, including testimonials, endorsements and third-party ratings. A law-firm summary of the SEC Division of Examinations' risk alert of 16 December 2025 reports that the most common problem was missing required disclosures when a testimonial or endorsement was disseminated, that disclosures were sometimes hyperlinked or set in smaller or lighter type, and that other findings included undisclosed compensation terms, undisclosed conflicts and missing written agreements with paid promoters. It says the alert names social media as a channel where noncompliant advertisements appeared and gives an example of promoters, including social media influencers, who were paid for client referrals while the advisers omitted material information about the payments (STATED; I did not open the alert or the rule). For broker-dealers, FINRA Rule 2210 governs communications with the public. FINRA Regulatory Notice 26-14, published on 9 July 2026, requests comment on a proposal to modernize retail communications rules, with comments due on 11 September 2026. According to a copy of the notice hosted by a law firm, the proposal would drop the distinction between static and interactive social media content, says that the risks of finfluencers "persist regardless of whether the content is static or interactive," would have firms consider the qualifications of anyone paid for or endorsing content including finfluencers, and would apply one supervisory standard to AI-generated communications (VERIFIED against that copy; the proposal would need SEC approval and has not taken effect as far as I know). I did not open Rule 2210 itself.

13.3 How the rules reach pod-boosted posts in this topic

The antifraud rules reach a poster whose statement is false or whose scheme is a fraud, and the touting rules reach a poster who is paid by an issuer, so the question for each post is who is speaking and who is paying.

The author who comments on markets without payment and without a false statement is outside § 17(b) and outside Rule 10b-5 (INFERENCE from the texts, which require a consideration from an issuer, underwriter or dealer in the first case and a misstatement or scheme in connection with a purchase or sale in the second). An author who posts a stock pick while being paid by the issuer must disclose it under § 17(b), and only 16 posts here (0.6%) use sponsored, affiliate or promoted words and 11 (0.4%) disclose a position. A pick that rests on a false statement of fact meets Rule 10b-5(b). A post by a registered adviser that praises the adviser or a service meets the Marketing Rule if the praise is a testimonial or endorsement, and a post by a registered representative meets FINRA's rules through the firm (INFERENCE; I did not open either rule). I cannot tell from the data which authors are registered. Words that point to advisers or brokers appear in 139 posts (4.9%).

Pod boosting adds a question that no source I opened answers. If an author buys or procures likes that the author knew or should have known to be fake, § 465.8(b) from Chapter 10 applies. Beyond that, a bought or prompted crowd of likes and comments under a stock promotion might be part of a "device, scheme, or artifice" under Rule 10b-5(a) or an "act, practice, or course of business" under paragraph (c), if the promotion is connected with a purchase or sale and the engagement was meant to make the promotion look popular (INFERENCE; I found no case that treats engagement as part of a scheme). The same question arises for the engaging member. A member who comments in praise of a stock or an adviser in return for engagement on the member's own posts does not receive money from an issuer, and

whether engagement is "consideration received ... directly or indirectly" under § 17(b) is open. The text of § 17(b) names an issuer, underwriter or dealer as the source of the consideration, so a reciprocal exchange between two individual members would not fit unless one of them is such a person (INFERENCE). Under the Marketing Rule, an adviser who gives non-cash benefits to an endorser raises the compensation question that the risk alert describes for gift cards and referral payments (INFERENCE; I did not open the rule's definition of compensation).

The tool operator is not an issuer, adviser or broker in the ordinary case and has no exposure under these rules (INFERENCE). The platform is not a securities professional, and the rules I opened place no duty on it.

Table 13.1 sets out the rules that reach posts on investing, markets and finance, the parties they reach, an enforcement example and the remedy that the source states.

Table 13.1. Rules that reach posts on investing, markets and finance, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
17 CFR § 240.10b-5	Any person, in connection with a purchase or sale of a security	SEC charges against eight social media promoters (reported 6 Jan 2023)	Not stated; charges only (STATED)
Securities Act § 17(b)	A person who publicizes a security for consideration from an issuer, underwriter or dealer	SEC Press Release 2022-183 (3 Oct 2022)	$1.26 million total, three-year ban on promoting crypto asset securities (VERIFIED)
Securities Act § 17(a)	Anyone offering or selling a security	See Chapter 11	See Chapter 11
Advisers Act Rule 206(4)-1	Registered investment advisers and their promoters	Division of Examinations risk alert, 16 Dec 2025	Not stated; a risk alert (STATED)
FINRA Rule 2210	Broker-dealers and their associated persons	Regulatory Notice 26-14 (proposal, 9 Jul 2026)	Not stated; a proposal (VERIFIED against a copy)

13.4 What this means for people and for coming generations

Investment posts reach young people who are building their first portfolios, and the evidence I opened shows that many of them take their information from social media.

The FINRA Investor Education Foundation's investor survey, reported in a release in late 2025 on the sixth wave of its National Financial Capability Study, sampled 2,861 U.S. investors with non-retirement accounts. It reports that 29% of investors rely on social media for investment information, that 26% use recommendations from influencers, and that 61% of investors under 35 and 57% of investors with under two years of experience use them. Of investors under 35, 43% trade options, against 10% of those aged 55 and over, 22% buy on margin, against 4%, 29% have bought meme stocks or other viral investments, and 62% feel they need to take big risks to meet their goals. The survey found that 37% worry about losing money to investment fraud and that 89% do not believe they have been targeted by an investment scam, and respondents answered an average of 5.3 of 11 investing quiz questions correctly, with margin and short-selling questions missed most often (STATED; I read the release and not the report). An earlier FINRA Foundation report, "Gen Z and Investing" (May 2023, from an online survey in November and December 2022), reports that 48% of U.S. Gen Z investors learn about investing mainly through social media, that 37% rate influencers or pundits as a major factor in their decision to invest, and that 50% of Gen Z investors say they have made an investment driven by fear of missing out (VERIFIED against the report). Its sample covered four countries, with U.S. respondents just over half.

The Commission's data from Chapter 8 point the same way. They report $1.1 billion in reported losses to investment scams that started on social media in 2025, and they report that 40% of loss reports by people aged 18 to 29 involved a scam that started on social media (VERIFIED in Chapter 8). I do not claim that any of these losses began with a post in this topic.

The rules protect these investors in a limited way. Section 17(b) requires disclosure of payment from an issuer, underwriter or dealer and does not require that a recommendation be sound or that the engagement behind it be real. Rule 10b-5 reaches false statements and schemes but needs proof of a connection to a purchase or sale. The *Kardashian* remedy, a payment of $1.26 million and a three-year promotion ban, was imposed on one promoter for one undisclosed payment of $250,000 (VERIFIED against the release). My inference is that a young investor who relies on a count of likes or on an influencer's pick is protected by disclosure rules and not by any rule that tests whether the popularity is real, and that the harm of an early loss compounds over a long horizon because there are more years in which the lost capital would have grown (INFERENCE; no source I opened measures this).

The topic's own posts give little help. Only 35 carry a disclaimer of the "not financial advice" kind, and 75 mention young people, students or first-time investors (VERIFIED). I cannot tell whether any reader acted on any post.

13.5 How this topic bears on mental health

Investing connects to mental health through losses and through trading that resembles gambling, and the studies I opened concern narrow groups.

Trading-signal, trading-course, forex or day-trading words appear in 164 of 2,853 posts (5.7%), and get-rich or wealth language in 199 (7.0%). Mills and Nower (2019, *Addictive Behaviors*) surveyed 876 adults who gambled at least monthly. More than half had traded cryptocurrency in the past year, and gamblers who traded both cryptocurrency and high-risk stocks reported more problem gambling and more symptoms of depression and anxiety than gamblers who traded only one of the two (STATED; I read the Rutgers press release, not the

paper). A one-time survey cannot show that trading causes harm. The debt evidence in Section 9.5 is the related finding for losses that become debt.

Fraud is a second route. The FBI's 2025 Internet Crime Report, released on 6 April 2026, reports nearly $21 billion in losses from cyber-enabled crime, and the FBI's press release says that investment fraud accounted for nearly 49% of scam-related losses. The FINRA Foundation's Gen Z study, cited in this chapter, is the evidence on younger investors. I found no source on the mental-health effect of ordinary investment losses on young investors, and none on the effect of touting. The antifraud rules in Section 13.2 reach false statements and undisclosed promotion, and I do not claim that they change that effect.

13.6 What the data cannot show

The data cannot show that any post in this topic is a stock promotion, that any author was paid, or that any statement is false. A count of "buy" or "bullish" words is a count of words, and a post that says it owns a position may be accurate or not. I cannot tell whether an author is registered as an adviser or broker, whether any engagement under a post was bought or prompted, or whether any reader invested.

My reading of the law has gaps. I opened Rule 10b-5 and the SEC's Kardashian release. I read the eight-promoter case, the Marketing Rule risk alert and the FINRA survey through articles and a release and not the underlying filings, alerts or reports. I opened a copy of FINRA Regulatory Notice 26-14 and not Rule 2210, and I did not open Rule 206(4)-1, the Investment Advisers Act, Section 9 of the Exchange Act or the case law on whether commentary is protected speech. The question of whether reciprocal engagement is consideration under § 17(b), or engagement is part of a scheme under Rule 10b-5, is one I could not answer from any source.

Chapter 14. Motivation, mindset and growth: earnings claims, the Business Opportunity Rule and the young person's first business

14.1 The topic in the data

Motivation, mindset and growth is the eleventh-largest topic, with 2,420 posts, which is 3.7% of the 64,970 placed posts. The podawaa file supplies 1,579 of them (65.2%), the 65 exports 536 (22.1%), HyperClapper 262 (10.8%) and LinkBoost-2025 43 (1.8%). The median post is 327 characters and the 90th percentile 1,002, so these posts are shorter than those in the investing topic of Chapter 13, where the median was 587.

Mindset or motivation language (mindset, motivation, inspire, discipline, habit, grind, hustle, "never give up," "believe in yourself") appears in 1,616 posts (66.8%), and success, winner or achievement words in 717 (29.6%). An advice-style word such as stop, start, don't, never or always appears in 742 (30.7%). Words about failure, lessons, mistakes, rejection or setbacks appear in 257 (10.6%), career, job, promotion, interview or résumé words in 204 (8.4%), and wellness words (mental health, burnout, anxiety, stress, depression, therapy, self-care, resilience, well-being) in 243 (10.0%). Burnout, mental health, anxiety or depression words alone appear in 41 (1.7%). A first-person statement such as "I was," "I started," "I quit" or "my story" appears in 173 (7.1%). Words about students, teens, Gen Z, young people, children, parents or graduates appear in 58 (2.4%). A link appears in 221 posts (9.1%), five or more hashtags in 811 (33.5%), and a call to comment or follow in 71 (2.9%).

Commercial language is a minority. Coach, mentor, course, masterclass, webinar, workshop, bootcamp, mastermind, program or "join my" words appear in 302 posts (12.5%), and proven, system, blueprint, formula, secret, hack, step-by-step or framework words in 157 (6.5%). A call to action such as "book a call," "link in bio," "DM me," "enroll," "sign up," "register" or "join" appears in 51 (2.1%), and a coaching or course word in the same post as a call to action in

12 (0.5%). Urgency language (limited spots, last chance, "don't miss") appears in 10 posts (0.4%), and a guarantee, risk-free or money-back promise in 10 (0.4%).

Income claims are rarer still. Income or earnings language (six-figure, seven-figure, passive income, financial freedom, income, earn, quit my job, laptop lifestyle) appears in 24 posts (1.0%), a dollar figure of any kind in 25 (1.0%), and a dollar figure followed by k, m, million or billion in 15 (0.6%). An income, revenue, profit or per-month word in the same post as a dollar figure appears in 5 (0.2%). A multiplier or growth claim (10x, doubled, tripled, a percentage growth) appears in 22 (0.9%), and testimonial, case-study, "before and after" or "my clients" words in 17 (0.7%). Words for the kinds of business at the center of the FTC cases in Section 14.2 (side hustle, ecommerce, dropshipping, Amazon FBA, print on demand, or "AI" followed closely by income, money or business) appear in 7 posts (0.3%). The word AI appears in 43 (1.8%). These counts are VERIFIED against the data, and each counts words and not claims. A post that warns against a get-rich promise is counted with a post that makes one.

The main result of this section is negative. Most of this topic is general encouragement, and the language that the earnings-claim rules address, a specific level of income attached to an offer, appears in a handful of posts.

14.2 The laws that apply

Four sets of rules matter here: the Business Opportunity Rule, Section 5 of the FTC Act as applied to earnings claims, the Endorsement Guides on testimonials, and the EU's unfair commercial practices directive. A fifth item, the Supreme Court's decision in *AMG Capital*, explains how the FTC now obtains money from sellers.

The Business Opportunity Rule (16 CFR Part 437). The Rule defines a "business opportunity" in § 437.1(c) as an arrangement with three elements. The seller solicits a

prospective purchaser to enter a new business. The purchaser makes a "required payment," meaning consideration the purchaser must pay the seller or an affiliate, by contract or by practical necessity, to obtain or start the business, with an exception for reasonable inventory purchases at bona fide wholesale prices. And the seller represents, expressly or by implication, that the seller or designated persons will provide locations for equipment or displays, provide outlets, accounts or customers (including Internet ones) for the purchaser's goods or services, or buy back what the purchaser makes. An "earnings claim" under § 437.1(f) is any oral, written or visual representation that conveys, expressly or by implication, a specific level or range of actual or potential sales, or gross or net income or profits, and it includes statements from which a purchaser can reasonably infer a minimum income level (VERIFIED against the Cornell text of § 437.1, which the fetch tool returned as a summary and not verbatim).

Section 437.4 then governs earnings claims by a seller of a business opportunity. According to the same kind of summary of the Cornell text, paragraph (a) allows a claim to a prospective purchaser only if the seller has a reasonable basis for it when it is made, holds written material that substantiates it, makes that material available to the purchaser and the FTC on request, and gives the purchaser a single written statement under the title "EARNINGS CLAIM STATEMENT REQUIRED BY LAW." That statement must give the seller's name, the date, the claim, the beginning and ending dates of the period in which the earnings were achieved, the number and percentage of purchasers before the ending date who reached at least the stated level, any characteristics of those purchasers that differ materially from the prospective purchaser's, and a statement that substantiation is available on request. Paragraph (b) applies the substantiation requirement to claims in general media and adds that the dates and the number and percentage of purchasers who reached the stated level must appear immediately alongside the

claim. Paragraph (c) bars industry financial or performance information unless the seller has written substantiation that it reflects, or does not exceed, the typical experience of purchasers of the opportunity offered. Paragraph (d) requires written notice of any material change before the purchaser signs or pays (VERIFIED in substance against that summary). The Rule's section list also includes § 437.2 on furnishing documents, § 437.3 on the disclosure document, § 437.6 on other prohibited practices, § 437.8 on a franchise exemption and § 437.9 on preemption, and § 437.9(b) states that the FTC does not intend to preempt state or local business-opportunity sales-practices laws except where they conflict, and that a law is not in conflict if it gives purchasers equal or greater protection (VERIFIED against the Cornell page for § 437.9). I opened none of the state laws and did not open the Franchise Rule, 16 CFR Part 436.

Section 5 of the FTC Act, applied to earnings claims. Chapter 3 set out Section 5. The complaint in the Ascend Ecom case shows how the FTC pleads earnings claims under it. Its first three counts rest on Section 5 alone: false or unsubstantiated earnings claims, a deceptive "risk free" offer with a buyback guarantee, and an unfair practice of threats and intimidation to suppress reviews. Counts four to eight plead violations of the Business Opportunity Rule, citing § 437.6(d) on misrepresenting income or profits, §§ 437.2 and 437.3(a) on the disclosure document, § 437.4(a) on unsubstantiated claims or a missing earnings claim statement, § 437.4(b) on general-media claims without the required dates and percentages, and § 437.4(c) on industry earnings information. Count nine pleads the Consumer Review Fairness Act, 15 U.S.C. § 45b(c), over form contracts that restrict reviews. The complaint quotes claims such as "five figures" or more per month in "passive income," that consumers could "passively make $100K a month," and that "You can get a fully automated TikTok shop to make $10,000+ per month," and a buyback promise, "If you don't make 100% ROI on your upfront you don't pay" (VERIFIED

against the complaint, as summarized by the fetch tool). The structure of the counts matters for this chapter, because only the Rule counts depend on the three-element definition above. Counts one to three do not. They apply to any seller who makes a false or unsubstantiated claim.

The Endorsement Guides, 16 CFR Part 255. Section 255.1 says that endorsements "must reflect the honest opinions, findings, beliefs, or experience of the endorser" (paragraph (a)), that an advertiser "may be liable for a deceptive endorsement even when the endorser is not liable" (paragraph (d)), and that endorsers "may be liable for statements made in the course of their endorsements" (paragraph (e)). If an advertisement says the endorser uses the product, the endorser must have been "a bona fide user of it at the time the endorsement was given" (paragraph (c)) (VERIFIED against the Cornell text of § 255.1, as summarized; the page did not state the legal status of the Guides, and I do not rely on one). Section 255.2 supplies the rule on typical results. An endorsement about a key attribute may be read as saying that the endorser's experience "is representative of what consumers will generally achieve." A disclaimer such as "You should not expect to have similar results" does not cure that, according to Example (e)(1)(ii), unless the advertiser has substantiation that new users typically get similar results, and "Results not typical" is insufficient. The advertiser should "clearly and conspicuously disclose the generally expected" result, and a disclosure that covers only the users who stuck with a program, and not those who joined, is inadequate (VERIFIED against the Cornell text of § 255.2, as summarized, with quotations limited to words the summary placed in quotation marks). Section 255.6 reads in full: "Endorsements in advertisements addressed to children may be of special concern because of the character of the audience," and "Practices that would not ordinarily be questioned in advertisements addressed to adults might be questioned in such cases" (VERIFIED against the Cornell text). Part 465, which Chapter 10 set out, covers fake

testimonials. Section 465.1(f) defines a consumer testimonial as a promotional message that consumers are likely to believe reflects the opinions or experiences of a consumer who purchased or used the product, and § 465.2 bars fake or false ones (VERIFIED in Chapter 10).

The 2021 notice of penalty offenses. On 26 October 2021 the FTC announced that it had sent a Notice of Penalty Offenses about money-making opportunities to more than 1,100 businesses. The release lists the claims it treats as deceptive: representing that participants will make a profit, representing that profits shown are typical, falsely telling consumers they do not need experience, falsely telling them that they must act immediately, and using testimonials to mislead about the rewards. It states a civil penalty of up to $43,792 per violation at that date, and it says that receiving the notice does not suggest that a company has engaged in deceptive or unfair conduct (VERIFIED against the release, as summarized by the fetch tool). I did not open the notice itself.

Remedies and *AMG Capital*. In *AMG Capital Management v. FTC*, decided on 22 April 2021, a unanimous Supreme Court held that § 13(b) of the FTC Act does not authorize the FTC to seek, or a court to award, equitable monetary relief such as restitution or disgorgement, and the opinion says: "We conclude that it does not." The Court noted that § 13(b) remains available for injunctions and that § 19 provides a route to consumer redress with its own conditions (VERIFIED against the Cornell text of the opinion, as summarized). The Ascend complaint seeks relief under §§ 13(b) and 19 together with the Business Opportunity Rule and the Consumer Review Fairness Act (VERIFIED). My inference is that the Rule counts matter for money because a rule violation opens the § 19 route, but I did not open § 19 (INFERENCE).

The EU. The Unfair Commercial Practices Directive 2005/29/EC prohibits unfair practices in Article 5(1) and treats a practice as unfair under Article 5(2) if it is contrary to

professional diligence and materially distorts or is likely to materially distort the economic behavior of the average consumer. Article 6(1) makes a practice misleading if it deceives or is likely to deceive the average consumer about, among other things, "the main characteristics of the product," which the text says includes "the results to be expected from its use," and Article 7(1) covers omission of material information. Annex I lists practices that are unfair in all circumstances, among them falsely stating that a product will be available only for a very limited time (point 7), describing a product as "free" when the consumer pays more than the unavoidable cost (point 20) and operating or promoting a pyramid promotional scheme (point 14) (VERIFIED against the Directive as adopted in 2005, which I read on the UK legislation site, so amendments are not reflected). I did not measure recruitment language in this topic, and I did not open the Directive's later amendments or any member state's law.

14.3 How the rules reach pod-boosted posts in this topic

The rules reach a post only when it is part of a sale, so the first question for each post is whether the author is selling something and whether the post states what a buyer can earn.

An author who posts encouragement and sells nothing is outside every rule in Section 14.2. The Business Opportunity Rule applies to a seller of a business opportunity, the earnings-claim counts in the Ascend complaint apply to claims made to sell, and the Endorsement Guides apply to advertisements (INFERENCE from the texts I opened). That description fits the large majority of this topic if the word counts above are a guide, because 1,616 posts (66.8%) use mindset language and 24 (1.0%) use income language.

An author who sells a coaching program or course and states an income level in a post meets Section 5 and its substantiation requirement for any such claim. Whether the Business Opportunity Rule also applies depends on the three elements of § 437.1(c). The third is the one

that separates a business opportunity from a course. A seller who promises only instruction, and does not promise to provide locations, outlets, accounts or customers or to buy back what the purchaser makes, falls outside the definition on its face (INFERENCE from the definition). The Ascend order nonetheless bars the defendants from selling "business coaching" products as well as business opportunities, so the Commission treats the two together when it fashions relief, whatever the definition requires for the Rule counts (VERIFIED against the FTC release of 23 June 2025). Where the Rule does apply, a post on a public feed that states an earnings level is a general-media claim under § 437.4(b), and the seller would need the dates and the number and percentage of purchasers who reached the level to appear immediately alongside it (INFERENCE as applied to a LinkedIn post). I found five posts (0.2%) that pair an income word with a dollar figure, and the data cannot show whether any is an offer.

The Operation AI Comply cases show what the FTC has pleaded when the elements are all present. On 25 September 2024 the Commission announced a set of actions under that heading, with the Chair saying that "there is no AI exemption from the laws on the books." Three of the actions concerned income schemes. Ascend Ecom, in the Central District of California, was alleged to have defrauded consumers of at least $25 million by promising passive income from "cutting edge" AI-powered tools, five-figure monthly income by the second year, and a guaranteed buyback, and to have pressured customers to change or remove negative reviews. Ecommerce Empire Builders, in the Eastern District of Pennsylvania, advertised an "AI-powered Ecommerce Empire" and, in social media ads, income of $10,000 a month that the FTC said it had no evidence for. Its training programs cost almost $2,000 and its "done for you" storefronts tens of thousands of dollars, and the release says the owner used as much as $35,000 of storefront buyers' money for personal gain. FBA Machine, formerly Passive Scaling, in the

District of New Jersey, was alleged to have taken more than $15.9 million with promises of a "7-figure business," testimonials of over $100,000 in monthly profit, a "risk-free" venture and a refund guarantee. In each case the Commission voted 5-0 to file, and a federal court temporarily halted the scheme and appointed a receiver (VERIFIED against the FTC release of 25 September 2024, which did not name the statutes; I took those from the Ascend complaint).

The later outcomes are on record. A stipulated order in the Empire Builders case was entered on 8 May 2025. It permanently bans the company and its owner from selling business opportunities, bars unsubstantiated earnings claims and review-restricting contract terms, and enters a judgment of $9,786,124 that is partly suspended because the defendants could not pay in full, with assets such as rental properties and luxury watches turned over for refunds (VERIFIED against the FTC release; the Commission voted 3-0). On 23 June 2025 the FTC announced a proposed order in the Ascend case with a permanent ban on selling any business opportunity or business coaching, a $25 million judgment partly suspended, and a 3-0 vote (VERIFIED against the release). On 30 July 2025 it announced a proposed order against FBA Machine and its owner with a similar ban, a $15.7 million judgment partly suspended, the contents of several financial accounts to be turned over, and the owner's spouse named as a relief defendant who received proceeds and was not directly involved, by a 3-0 vote (VERIFIED against the release). In all three the full judgment becomes payable if a defendant is found to have misrepresented finances or assets. I did not confirm that the Ascend and FBA Machine orders were entered.

In March 2026 the Commission described the criminal side in a statement to Congress. It says the FTC sued 8 Figure Dream Lifestyle in 2019 over deceptive earnings claims and that three of its ringleaders were later criminally prosecuted and sentenced in 2024 and 2025 for conspiracy to commit wire fraud, that it sued IM Mastery Academy over a scheme the statement

says has taken in over a billion dollars from consumers worldwide, and that it sued Air AI in August 2025, a case Chapter 12 covers (STATED; the statement is by an FTC associate director to the Joint Economic Committee on 25 March 2026, and I did not open court records).

The pattern those cases describe is a combination of an income figure, an AI or storefront product, a guarantee, and review suppression. In this topic, words for that kind of business appear in 7 posts (0.3%), and a guarantee or risk-free promise in 10 (0.4%). I cannot tell whether any of those posts is from a seller like the defendants.

Pod boosting adds three questions. The first is the one in Chapter 10. If an author who sells a program buys or procures likes that the author knew or should have known to be fake, § 465.8(b) applies, and the engagement serves as proof of popularity for the offer. The second concerns comments. A comment under a seller's post that says a program "changed my life" is likely to be read as a testimonial by a person who used it. If the commenter did not use the program, the comment is a candidate for § 465.2 if it is a consumer testimonial in the § 465.1(f) sense, and a member who writes it as an endorser faces § 255.1(a), (c) and (e), whether or not the seller asked for it (INFERENCE; I found no case that applies these rules to a comment prompted by a pod). Only 17 posts here (0.7%) use testimonial or results words, and the comment threads are not in the data. The third concerns typicality. A popular post that features one customer's result invites the question that § 255.2 answers for advertisements, which is what consumers generally achieve, and likes and comments do not answer it (INFERENCE). A purely personal story with no sale, which describes most of the 173 first-person posts, is not an advertisement on the face of the texts (INFERENCE).

The tool operator does not sell a business opportunity in the ordinary case and has no exposure under Part 437 (INFERENCE). Chapter 12 covered the one FTC action against a tool supplier, which the Commission set aside. The platform's position is the one in Chapter 10.

Table 14.1 sets out the rules that reach posts on motivation, mindset and growth, the parties they reach, an enforcement example and the remedy that the source states.

Table 14.1. Rules that reach posts on motivation, mindset and growth, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
16 CFR § 437.4 (earnings claims)	Sellers of business opportunities	Ascend Ecom complaint, counts 6 to 8; FTC release 23 Jun 2025	Permanent ban on selling business opportunities or coaching; $25 million judgment, partly suspended (VERIFIED)
FTC Act § 5(a)	Any seller making a false or unsubstantiated earnings claim	Ascend Ecom complaint, counts 1 to 3	Same order as above; Empire Builders order of 8 May 2025: $9,786,124, partly suspended (VERIFIED)
16 CFR § 255.1 and § 255.2	Advertisers and endorsers; claims of typical results	None opened	Not stated in the text I read
Consumer Review Fairness Act, 15 U.S.C. § 45b(c)	Form contracts that restrict reviews	Ascend Ecom complaint, count 9	Bar on such terms in the proposed order (VERIFIED)
Notice of Penalty Offenses on money-making opportunities	The 1,100 or more recipients	FTC release, 26 Oct 2021	Up to $43,792 per violation at that date (VERIFIED)
16 CFR §§ 465.2 and 465.8	See Chapter 10	See Chapter 10	See Chapter 10
Directive 2005/29/EC, Art 6(1)(b), Annex I	Traders dealing with EU consumers	None opened	Not stated in the text I read

14.4 What this means for people and for coming generations

Young adults report the highest share of scam losses that began on social media, and one in three reported losses to job or business-opportunity scams began there, according to the FTC data I opened.

The FTC's data spotlight of April 2026 reports that losses to fraud reported with social media as the contact method reached $2.1 billion in 2025, about eight times the $261 million of 2020. It says that one in three people who reported losing money to a job or business opportunity scam in 2025 said the scam started on social media, and that among people who reported a loss, the share whose scam started on social media was 40% for ages 18 to 29, 32% for ages 30 to 59, 29% for ages 60 to 69, 23% for ages 70 to 79 and 14% for those 80 and over. The page does not say whether 2025 is a calendar or fiscal year, the figures exclude reports that gave no contact method, and the FTC did not collect reports during the 2025 government shutdown (VERIFIED against the page). The page does not break out LinkedIn. I do not claim that any loss began with a post in this topic.

Interest among young adults in starting a business is high, according to one commercial survey. An Intuit survey of 1,000 people aged 18 to 35, fielded through Pollfish in November 2024, reports that 66% of Gen Z and millennial respondents combined have started or plan to start a side hustle, that over 44% rely on platforms such as Instagram, TikTok and LinkedIn as their primary marketing tools, and that 32% credit social media as the key driver of business success (STATED; a company's blog report of its own survey, not peer reviewed, and the 66% combines Gen Z with millennials and combines people who have started with people who plan to start). Chapter 11 supplied the baseline that a first business faces. The Bureau of Labor Statistics reports that of private-sector establishments born in March 2013, 79.6% were operating a year later, 50.6% after five years and 34.7% after ten (VERIFIED in Chapter 11, and the figures are for establishments and not for online stores).

Two features of the law bear on those readers. The first is that the law regulates the claim and the sale. It does not regulate the general message. The earnings-claim rules and the Guides

address a specific level of income attached to an offer, and they test it against what purchasers generally achieve. The Business Opportunity Rule goes furthest, because paragraph (a) of § 437.4 requires the seller to state how many purchasers reached the level and over what period. A general statement that discipline and the right attitude produce success is not an earnings claim under § 437.1(f), because it conveys no "specific level or range" of income (INFERENCE from the definition). My inference is that a young reader receives legal protection at the point of an offer and receives none from the repeated general message that precedes it, and that the repeated message may shape what the reader expects an offer to deliver, a possibility no source I opened tests (INFERENCE).

The second feature is that the judgments are partly suspended, and the releases do not say how much consumers will receive. The three judgments I found, $25 million, $9,786,124 and $15.7 million, are each partly suspended because the defendants could not pay in full, and each release says assets are to be turned over for consumer redress without stating an amount (VERIFIED against the releases). The permanent bans stop the named sellers from selling business opportunities, and the *AMG Capital* decision means that the FTC reaches money through the Rule and § 19 and not through § 13(b) alone. For a generation that will come to these offers after the three cases, the practical protection is the deterrent effect of the bans and the 2021 notice, and I opened nothing that measures that effect (INFERENCE).

The topic's own content on wellbeing is a small part. Wellness words appear in 243 posts (10.0%) and burnout, mental-health, anxiety or depression words in 41 (1.7%). Chapter 10 cited the Surgeon General's advisory on social media and youth mental health, and I found no source that measures the effect of motivational posts on young people's decisions or wellbeing. Section 255.6 recognizes that advertising addressed to children may call for closer scrutiny, and only 58

posts (2.4%) mention students, teens, young people or children, so I cannot say that any post is addressed to minors.

14.5 How this topic bears on mental health

Motivational posts bear on mental health through two findings I opened, one on positive self-statements and one on work stress, and both suggest that the effect depends on who reads.

Mindset or motivation language appears in 1,616 of 2,420 posts (66.8%), and burnout, mental-health, anxiety or depression words in 41 (1.7%). Wood, Perunovic and Lee (2009, *Psychological Science*) found that people with low self-esteem who repeated the statement "I am a lovable person" felt worse afterward than a low-self-esteem group who did not, while people with high self-esteem felt slightly better. Low-self-esteem participants who were allowed to list negative thoughts as well had better moods than those told to focus only on positive thoughts (STATED; I read a summary, and the page gives no sample size). The authors concluded that positive self-statements "backfire for the very people who need them the most." A post that tells all readers to believe in themselves addresses both groups at once.

The World Health Organization defines burn-out in ICD-11 as "a syndrome conceptualized as resulting from chronic workplace stress that has not been successfully managed," with dimensions of exhaustion, cynicism or distance from one's job, and reduced professional efficacy. It says that burn-out is an occupational phenomenon and "is not classified as a medical condition." The Surgeon General's framework says that long work hours raise the risk of "exhaustion, anxiety, and depression." To the extent that posts in this topic praise relentless effort, they praise a condition the framework lists as a risk (INFERENCE; I counted words and not praise).

When a post attaches an income figure to an offer, the earnings-claim rules in Section 14.2 apply, and income language appears in 24 posts (1.0%). I found no study of people who paid for a program and did not earn what was claimed. The debt evidence in Section 9.5 is the nearest.

14.6 What the data cannot show

The data cannot show that any post in this topic is an earnings claim made to a prospective purchaser, that its author sells a business opportunity or a course, or that any statement is false. The posts seldom carry a price, a program name or a statement of how many buyers reached a result, which are the facts the rules turn on. A count of income words is a count of words. I cannot tell whether any engagement under a post was bought or prompted, whether any commenter used the program that the comment praises, or whether any reader paid anyone.

My reading of the law has gaps. For several primary texts, including §§ 437.1, 437.4, 437.9, 255.1, 255.2 and the *AMG Capital* opinion, the tool I used returned summaries and not the verbatim text, so I paraphrase them and quote only words it placed in quotation marks. I opened the Ascend Ecom complaint, and not the Empire Builders or FBA Machine complaints or any of the three orders, so I rely on the FTC's releases for their terms. I did not open §§ 437.2, 437.3 or 437.5 to 437.8 (I cite § 437.6(d) as the Ascend complaint does), the Franchise Rule, any state business-opportunity law, the text of Sections 5, 13(b) or 19 of the FTC Act, the Consumer Review Fairness Act, the 2021 notice itself, the court records of the 8 Figure Dream Lifestyle prosecutions, the amendments to the EU Directive, or any national law in the EU. Chapter 20 returns to earnings claims in the sale of courses, and Chapter 16 takes up § 255.5 and comments between members. Two questions remain open after this chapter. One is whether a comment prompted by a pod under a seller's offer is a consumer testimonial under § 465.1(f). The other is

whether a seller of coaching alone, with no promise of locations, outlets, accounts or buyback, can be a seller of a business opportunity under § 437.1(c).

Chapter 15. Strategy and planning: public signals, forward-looking statements and trade secrets

15.1 The topic in the data

Strategy and planning is the twelfth-largest topic, with 2,106 posts, which is 3.2% of the 64,970 placed posts. The podawaa file supplies 1,166 of them (55.4%), the 65 exports 626 (29.7%), HyperClapper 286 (13.6%) and LinkBoost-2025 28 (1.3%). The median post is 541 characters and the 90th percentile 1,408.

Words such as strategy, planning, roadmap, goal, OKR, KPI, objective, vision or mission appear in 2,083 posts (98.9%). That figure describes how the topic was built, because the model grouped posts by these words, and it is not a finding about the posts. The more informative counts are for what the posts discuss. Competitor, rival, market-share, benchmark, competitive-advantage or moat words appear in 131 (6.2%), and price, pricing, discount or margin words in 66 (3.1%). A phrase about changing a price (a price increase, hike or cut, "raise prices," a surcharge) appears in 3 (0.1%). Capacity, supply, demand, production or inventory words appear in 81 (3.8%). Forecast, projection, outlook or prediction words, a year from 2026 to 2029, or a phrase such as "next year" or "by 2030" appear in 112 (5.3%), and merger, acquisition, partnership, joint-venture, alliance or collaboration words in 110 (5.2%). Words about data, analytics, dashboards, AI, machine learning or automation appear in 381 (18.1%), consult, advisory or advisor words or the name of a large consulting firm in 178 (8.5%), and leadership, CEO, board, executive or C-suite words in 416 (19.8%). Startup, founder, scaling, venture or fundraising words appear in 202 (9.6%).

Words that bear on the legal questions below are less common. A word for price fixing, a price war, collusion, antitrust, a cartel, monopoly, competition law, the FTC, the DOJ or the Sherman Act appears in none of the 2,106 posts. A broader set of regulation words (regulation,

compliance, GDPR, the AI Act, legislation, SEC) appears in 47 (2.2%). Investor, earnings, shareholder, quarterly, guidance, IPO or exchange-name words appear in 92 (4.4%), and "announce" words, "we are pleased" or similar phrases, or "our new" or "our latest" in 51 (2.4%). A phrase that signals a projection ("forward-looking," "we expect," "we believe," "will grow," "expected to," "projected") appears in 17 (0.8%), and a disclaimer phrase ("disclaimer," "not financial advice," "views are my own," "forward-looking") in 6 (0.3%). A word for confidential, proprietary, trade secret, NDA, non-compete, patent, IP or intellectual property appears in 12 (0.6%).

Workforce words are more common. Job, workforce, hiring, layoff, employee or talent words appear in 236 posts (11.2%), layoff, restructuring, headcount or return-to-office words in 16 (0.8%), and entry-level, early-career, new-graduate, intern or junior words in 11 (0.5%). Words about students, teens, Gen Z, kids, children, graduates, early-career workers or interns appear in 34 (1.6%). The word AI appears in 216 posts (10.3%), and 30 posts (1.4%) pair AI or automation with a job, workforce, worker, employee, talent or hiring word. The share of posts with the word AI differs by source: 48 of 1,166 in the podawaa file (4.1%), 60 of 286 in HyperClapper (21.0%), 4 of 28 in LinkBoost-2025 (14.3%) and 104 of 626 in the 65 exports (16.6%). I do not know the dates of the podawaa posts, so I draw no conclusion about time. A link appears in 494 posts (23.5%), five or more hashtags in 660 (31.3%), a DM-me call in 40 (1.9%), and a call to action such as "link in bio," "book a call," a free guide or a newsletter in 110 (5.2%). These counts are VERIFIED against the data, and each counts words and not claims.

15.2 The laws that apply

Four sets of rules reach strategy talk: the rules on competitor signaling and information exchange, the securities rules on forward-looking statements and selective disclosure, the trade-secret statute, and, for the workforce posts, the federal plant-closing notice law.

Competitor signaling: Sherman Act § 1 and Section 5. Section 1 of the Sherman Act, 15 U.S.C. § 1, declares "illegal" every "contract, combination in the form of trust or otherwise, or conspiracy, in restraint of trade or commerce among the several States, or with foreign nations." A person who makes such a contract or joins such a combination or conspiracy commits a felony, punishable by a fine of up to $100,000,000 for a corporation and $1,000,000 for any other person, or imprisonment of up to 10 years, or both (VERIFIED against the Justia copy of the 2024 Code). The text requires a contract, combination or conspiracy, so a company's unilateral statement of its own plans is not covered unless it forms part of an agreement (INFERENCE from the text; I did not open the case law).

The FTC has reached public signals through Section 5. In a proposed consent order with U-Haul International and its parent, described in a Federal Register analysis of 21 June 2010 issued to aid public comment, the Commission charged an "invitation to collude," meaning an attempt to get competitors to raise one-way truck rental prices. The analysis says that the company's chief executive told regional managers in 2006 to raise rates and then tell a competitor that the company would lower its rates unless the competitor followed, that a regional manager called the competitor in late 2006 and October 2007, that in November 2007 the chief executive ordered a nationwide increase, and that in a February 2008 earnings call he described the company as the industry's "price leader." It says the company "acted with the specific intent to facilitate collusion." The complaint did not allege an agreement. The analysis explains that an unaccepted invitation can still cause harm, that the Commission does not need to prove market

power, a defined market or substantial competitive harm, and that "the public statements made by the CEO of U-Haul could have encouraged competitors to raise rates." It adds that "it is possible that less egregious conduct may result in Section 5 liability." The proposed order would bar inviting a competitor to divide markets, allocate customers or fix prices, and discussing rates with competitors except for legitimate market research. It has provisos that let the company negotiate prices with customers, share strategy information with investors and make disclosures required by securities law, and it would expire after 20 years (VERIFIED against the analysis, as summarized by the fetch tool). I did not confirm that the order was made final.

The agencies' own guidance has lapsed. On 11 December 2024 the FTC and the Department of Justice withdrew their Antitrust Guidelines for Collaborations Among Competitors of April 2000, saying that the guidelines "no longer provide reliable guidance about how enforcers assess the legality of collaborations involving competitors" and that businesses should review the statutes and case law, and committing to "vigorous antitrust enforcement on a case-by-case basis." The Commission voted 3-2, with two commissioners dissenting. The page does not mention information sharing (VERIFIED against the FTC page). I opened no replacement guidance.

The EU: Article 101 TFEU. According to a law-firm overview of the Commission's revised Horizontal Guidelines, adopted in June 2023 and effective on 21 July 2023, Article 101(1) applies where an exchange of commercially sensitive information is likely to affect competitors' commercial strategy, mainly by reducing market uncertainty. The overview says the guidelines contain no safe harbour for information exchange, that an exchange is a restriction by object when the information is commercially sensitive and the exchange "is capable of removing uncertainty between participants," that publicly available information can still be restricted if it is

exchanged in a more granular form, more often than it is published or with added analysis, and that a unilateral public announcement does not exempt the company because it can signal future intentions to competitors, with the consumer benefit as the key question and a public signal of future prices or quantities possibly treated as a restriction by object depending on context (STATED; I did not open the guidelines or the Treaty text).

Securities: forward-looking statements and Regulation FD. Section 21E of the Exchange Act, 15 U.S.C. § 78u-5, gives a safe harbor to forward-looking statements by an issuer subject to the reporting requirements, by "any officer, director, or employee of such issuer," and by an outside reviewer or underwriter in defined cases. In a private action, a covered person is not liable for a forward-looking statement if it is "identified as a forward-looking statement, and is accompanied by meaningful cautionary statements," or is "immaterial," or if the plaintiff fails to prove that it was made with actual knowledge that it was false or misleading. Subsection (c)(2) lets an oral statement meet the cautionary requirement by an oral warning plus a reference to a readily available written document. The definition in subsection (i)(1) includes projections of revenues, income and earnings, "statements of management's plans and objectives for future operations," statements of future economic performance and statements of the assumptions underlying them. The safe harbor does not apply to statements in connection with an initial public offering, a tender offer, a penny stock offering or a blank check company, and it does not apply to statements in financial statements prepared under GAAP, among other exclusions in subsection (b), and subsection (d) says there is no duty to update (VERIFIED against the Cornell text, as summarized by the fetch tool).

Regulation FD concerns who may hear material nonpublic information first. In its Report of Investigation of 2 April 2013 on Netflix, the SEC described a post on the chief executive's

personal Facebook page, which had more than 200,000 subscribers including analysts, shareholders and reporters, stating that the company's monthly viewing had passed one billion hours. No press release, Form 8-K or post on a company channel accompanied it, the company had not told investors it would use the page for company metrics, and the company's stock rose from about $70.45 to $81.72 by the next day's close. The Commission applied its 2008 guidance on company web sites to social media. It said that "issuer communications through social media channels require careful Regulation FD analysis," that the practical solution is to give investors notice in advance of the specific channels a company will use, and that disclosing material nonpublic information on an individual officer's personal site "without advance notice to investors that the site may be used for this purpose" is unlikely to satisfy Regulation FD's broad distribution standard even if the site has many followers. It "has determined not to pursue an enforcement action," and the report states that it adjudicates no fact or issue (VERIFIED against the SEC's page, as summarized). I did not open Regulation FD itself, 17 CFR § 243.100.

Trade secrets: 18 U.S.C. § 1839. A "trade secret" is business, financial, technical or other information, including "plans," "methods" and "procedures," if "the owner thereof has taken reasonable measures to keep such information secret" and the information "derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable through proper means by, another person who can obtain economic value from the disclosure or use of the information." Misappropriation includes acquiring a trade secret by improper means and disclosing or using it without consent in defined circumstances (VERIFIED against the govinfo text of the 2021 Code, as summarized). I did not open the remedies sections of the Defend Trade Secrets Act or any state statute.

The workforce: the WARN Act. The Department of Labor's page on plant closings and layoffs says that the Worker Adjustment and Retraining Notification Act covers employers with 100 or more employees, applies to a plant closing or mass layoff affecting 50 or more employees at a single site of employment, and requires "at least 60 calendar days advance written notice" to affected employees, their representatives, the local chief elected official and the state dislocated worker unit, subject to exceptions for unforeseeable business circumstances, faltering companies and natural disasters. The page states no penalties and says the Department has no role in seeking damages for workers (VERIFIED against the page, as summarized). I did not open the statute, 29 U.S.C. § 2101 and following sections, or any state law.

15.3 How the rules reach pod-boosted posts in this topic

The rules reach a strategy post when the author speaks for a company that competes with others, has public shareholders or holds secrets, so the first question is who the author is and what the post commits the company to.

An author who writes general commentary on strategy, planning or leadership and does not state a company's plans is outside the rules in Section 15.2 (INFERENCE from the texts I opened). The word counts suggest that most of this topic is of that kind. The three signals that would bring a post within the competition rules are a price change, a statement of capacity or output, and a message addressed to competitors. A phrase about changing a price appears in 3 posts (0.1%), capacity or supply words in 81 (3.8%), and competitor words in 131 (6.2%), and no post uses antitrust vocabulary. The U-Haul facts show that the Commission relied on more than a public statement: private calls to a competitor, an instruction to tell the competitor that rates would fall unless it followed, and a stated intent (VERIFIED against the analysis). The same analysis also treats the chief executive's public statements as capable of encouraging

competitors, and it says that less egregious conduct may lead to liability (VERIFIED). Whether a single public post that announces a price or an intended capacity cut, with no private contact, is an invitation to collude is a question that source does not settle, and a post by a company officer that describes a price plan would fall in the range it leaves open (INFERENCE).

An author who is an officer of a public company and writes about the company's future meets the securities rules. A post that states plans or projections is a forward-looking statement in the sense of § 78u-5(i)(1), and the safe harbor needs the statement to be identified as forward-looking and accompanied by meaningful cautionary statements. The oral-statement provision in subsection (c)(2) covers spoken statements, and a post is written, so a post would need its own cautionary language or a written document that it refers to (INFERENCE from the text as summarized). In the data, 92 posts (4.4%) use investor or earnings words and 17 (0.8%) use projection phrases, and 6 (0.3%) contain a disclaimer phrase of any kind, which is too few to suggest that cautionary language is routine. I cannot tell which authors are officers of issuers. The Netflix report concerned a personal Facebook page, and its reasoning would extend to an officer's LinkedIn profile unless the company has told investors that it will use the profile for disclosures (INFERENCE from the SEC's reasoning).

Pod boosting adds three questions. The first is the one in Chapter 10. A business that buys or procures engagement that it knew or should have known to be fake is within § 465.8(b), as Chapter 10 explained, and a company announcement with bought engagement would be an instance. The second concerns Regulation FD. The Commission said that a large following does not make a personal page a recognized channel, which suggests that a follower count, real or inflated, does not decide the matter, and the question is whether investors were told to expect disclosures there (INFERENCE from the report). The third concerns antifraud liability. A

statement of strategy that is false, made in connection with the purchase or sale of a security and amplified by purchased engagement, meets Rule 10b-5 as discussed in Chapter 13, and whether engagement is part of a scheme is the open question stated there.

An author who posts a company's confidential plans publishes them to the public, and the published parts cease to meet the "not being generally known" condition of § 1839(3)(B), while the "reasonable measures" condition of (A) is also hard to meet for information the owner itself posted (INFERENCE from the definition). The author who publishes another company's secrets without consent faces the misappropriation provisions, if the author knew or had reason to know that the information came through improper means or a breach of a duty of secrecy (INFERENCE from the summary of § 1839(5)). Twelve posts (0.6%) use confidentiality, proprietary or patent words, and I cannot tell what any of them disclosed.

The engaging member, the tool operator and the platform have no exposure under these rules in the ordinary case. The members do not speak for an issuer or a competitor, the tool operator does not compete with the authors' companies, and the platform's position is the one in Chapter 10 (INFERENCE).

Table 15.1 sets out the rules that reach posts on strategy and planning, the parties they reach, an enforcement example and the remedy that the source states.

Table 15.1. Rules that reach posts on strategy and planning, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Sherman Act § 1, 15 U.S.C. § 1	Any person party to a contract, combination or conspiracy in restraint of trade	None opened	Fine up to $100,000,000 (corporation) or $1,000,000 (other person), imprisonment up to 10 years (VERIFIED)
FTC Act § 5, invitation to collude	A company that invites a competitor to fix prices or divide markets	U-Haul proposed consent order, 2010	Proposed order barring such invitations and rate discussions with competitors, 20 years (VERIFIED)
Article 101 TFEU and the 2023 Horizontal Guidelines	Competitors that exchange commercially sensitive information	None opened	Not stated in the source (STATED)
Exchange Act § 21E, 15 U.S.C. § 78u-5	Issuers and their officers, directors and employees	None opened	A defense, not a penalty (VERIFIED)
Regulation FD, as applied to social media	Public issuers and their officers	SEC Report of Investigation, 2 Apr 2013	No enforcement action; guidance only (VERIFIED)
18 U.S.C. § 1839	Owners and misappropriators of trade secrets	None opened	Not stated in the part I read
WARN Act	Employers with 100 or more employees	None opened	Not stated on the page I read

15.4 What this means for people and for coming generations

The rules in Section 15.2 protect consumers, investors and employees of existing firms, and they protect people who are not yet in the workforce only indirectly (INFERENCE from the texts I opened).

Competition law addresses harm to the competitive process, and consumers of every age bear that harm (INFERENCE). The agencies say that competitor collaborations "can harm competition and subvert the competitive process" (VERIFIED against the FTC page). The proposed U-Haul order would bar the company from inviting competitors to fix prices or divide markets. The withdrawal of the 2000 guidelines in 2024 removed a document that businesses had

used to judge collaborations with competitors, and the agencies tell businesses to review the statutes and case law instead (VERIFIED). I found no replacement guidance.

The securities rules protect investors, among them the young investors in Chapter 13. The Netflix report records a stock price that rose from about $70.45 to $81.72 by the close of the day after one personal post, and it records that the Commission chose guidance and not enforcement (VERIFIED). The report does not say that the post caused the rise. I do not claim that any post in this topic disclosed material nonpublic information.

The workforce posts matter for coming generations. In this topic 236 posts (11.2%) discuss jobs, hiring, talent or employees, 30 (1.4%) pair AI or automation with workforce words, and 11 (0.5%) use entry-level, early-career, new-graduate, intern or junior words. The Federal Reserve Bank of New York's page on the labor market for recent college graduates reports, for the second quarter of 2026, an unemployment rate of about 5.6 percent and an underemployment rate of 42 percent that "edged up." Its frequently asked questions define early-career graduates as aged 22 to 27, and the page does not state the all-worker unemployment rate (VERIFIED against the page, which I read as a summary). Chapter 12 reported a Stanford and ADP paper that found employment of workers aged 22 to 25 in AI-exposed occupations 19% below where it would be had it kept pace with less-exposed peers, a descriptive finding and not a causal one.

The WARN Act addresses a plant closing or a mass layoff of 50 or more employees at a single site and requires 60 days' notice. A decision to hire fewer entry-level workers closes no plant and lays off no one, so by the description I read the Act does not apply to it (INFERENCE). My inference is that the labor-market effect that the two sources above measure, if it is caused by firms' strategies, falls on people for whom no notice rule exists because they were never employed there (INFERENCE; neither source establishes a cause, and I opened no

source on antitrust law as it applies to hiring or wages). Only 11 posts use early-career words, so the topic itself says little on the subject.

15.5 How this topic bears on mental health

The mental-health evidence that fits strategy posts concerns job loss, and its authors report support for a causal reading, which is rare among the sources I opened.

Job, workforce, hiring, layoff, employee or talent words appear in 236 of 2,106 posts (11.2%), layoff, restructuring, headcount or return-to-office words in 16 (0.8%), and entry-level, early-career, new-graduate, intern or junior words in 11 (0.5%). Paul and Moser (2009, *Journal of Vocational Behavior*) combined 237 cross-sectional and 87 longitudinal studies. Unemployed people showed more distress than employed people (d = 0.51), and 34% of the unemployed had psychological problems, against 16% of the employed. The authors report that longitudinal studies and natural experiments support the view that unemployment causes distress, and that the effect was larger in countries with weaker unemployment protection. I read the abstract record, which gives no participant total.

Insecurity affects people who still have jobs. In the American Psychological Association's 2025 survey, 54% of 2,017 workers said that job insecurity had significantly affected their stress at work, and among workers who were worried about an economic downturn, 42% said that work stress made it hard to sleep.

The rules in Section 15.2 include layoff notice under the WARN Act and what a company may say about its plans. A notice requirement gives workers time to prepare, and a false statement about plans can mislead workers and investors. I found no study of whether either changes mental-health outcomes (INFERENCE as to the route).

15.6 What the data cannot show

The data cannot show that any post in this topic states a price plan, signals to a competitor, projects a company's results, discloses material nonpublic information or reveals a trade secret. The counts are of words. A post that uses "we expect" may describe a personal goal, and a post that uses "confidential" may describe a book on confidentiality. I cannot tell whether an author is an officer of a public company, whether any engagement under a post was bought or prompted, or whether any reader or competitor acted on a post.

My reading of the law has gaps. Several of the primary texts, including 15 U.S.C. § 78u-5, 18 U.S.C. § 1839, the Sherman Act text and the SEC and FTC documents, were returned by the fetch tool as summaries with short quotations, and I quote only the words it placed in quotation marks. I read the Article 101 material through a law-firm overview and not the guidelines. I did not open Regulation FD, the case law on § 1 and on invitations to collude, any replacement for the withdrawn guidelines, the SEC's 2008 guidance on web sites, the Defend Trade Secrets Act's remedy provisions, the state trade-secret statutes, the WARN statute and its state counterparts, or any antitrust guidance on hiring and wages. Two questions remain open after this chapter. One is whether a single public post that announces a price or capacity plan, without private contact, can be an invitation to collude under Section 5. The other is whether an inflated audience on an officer's personal page has any bearing on the Regulation FD question of whether a channel is recognized by investors.

Chapter 16. Building relationships and community: endorsements, material connections and social connection

16.1 The topic in the data

Building relationships and community is the thirteenth-largest topic, with 2,096 posts, which is 3.2% of the 64,970 placed posts. The 65 exports supply the largest share, 928 posts (44.3%), followed by HyperClapper with 570 (27.2%), the podawaa file with 547 (26.1%) and LinkBoost-2025 with 51 (2.4%). The median post is 423 characters and the 90th percentile 1,228. Five or more hashtags appear in 314 posts (15.0%), which is less than half the rate in the motivation topic of Chapter 14 (33.5%), and a link appears in 326 (15.6%).

The vocabulary of connection is common. Relationship, network, connection, bond or rapport words appear in 328 posts (15.6%), and community, tribe, belonging, group, member or peer words in 190 (9.1%). Words of trust, authenticity, empathy, kindness, gratitude or thanks appear in 390 (18.6%), and a word of recognition (thank you, congratulations, shout-out, proud of, celebrate, kudos) in 119 (5.7%). Mentor, sponsor, coach, "give first," generosity or "helping others" words appear in 62 (3.0%), and an introduction or referral word in 23 (1.1%). Words about family, friends, partners or dating appear in 117 (5.6%), and a romance or dating word in 7 (0.3%). Loneliness, isolation, "alone," mental health, well-being, burnout or belonging words appear in 81 (3.9%), and the word human or authentic in 81 (3.9%). In-person, face-to-face, meetup, coffee, event, conference, lunch or dinner words appear in 85 (4.1%), and remote, virtual, online, Zoom, webinar or digital words in 95 (4.5%). Words about students, teens, Gen Z, kids, children, graduates, early-career workers, interns, young professionals, the next generation or the word young appear in 75 (3.6%).

Commercial language is present in a minority. Lead, prospect, client, customer, sales, pipeline or outreach words appear in 202 posts (9.6%), sponsor, partnership, ambassador or

"partnered with" words in 31 (1.5%), and influencer, creator, personal-brand, follower, viral or algorithm words in 89 (4.2%). A DM-me call appears in 18 (0.9%) and a call to comment or follow in 31 (1.5%). A networking ask (let's connect, connect with me, follow me, send a request, reach out, DM, message me, comment below, tag someone, share this) appears in 96 (4.6%).

The words for the exchange itself are nearly absent. A plain request to like, comment, share, repost or follow (such as "please like," "support my post" or "comment below"), or the words "engagement pod" or "pod," appears in 52 posts (2.5%), and the word "pod" or "engagement pod" in 2 (0.1%). A reciprocity phrase (reciprocity, return the favor, comment back, like back, follow back, support each other, pay it forward, give back) appears in 4 (0.2%). A phrase about fake accounts, profiles, followers, engagement or likes, bot accounts or impersonation appears in none of the 2,096 posts, and scam, fraud, phishing, impersonation, safety or privacy words in 36 (1.7%).

Automation and AI words are more common. The word AI appears in 274 posts (13.1%), with large differences by source: 22 of 547 in the podawaa file (4.0%), 128 of 570 in HyperClapper (22.5%), 8 of 51 in LinkBoost-2025 (15.7%) and 116 of 928 in the 65 exports (12.5%). Automation, automated, bot or auto-comment words appear in 67 (3.2%), and a post that pairs the word AI with a relationship, connection, community, trust, human or loneliness word appears in 54 (2.6%). I do not know the dates of the podawaa posts and draw no conclusion about time. These counts are VERIFIED against the data, and each counts words and not claims. A post that praises a community is counted with a post that sells access to one.

This topic is where a reader would expect to see the exchange described, because it is about relationships. The text shows relationship talk and almost no talk about exchanging engagement.

16.2 The laws that apply

Three sets of rules matter here beyond Chapters 10 and 14: the Endorsement Guides on what counts as an endorsement and what counts as a material connection, the FTC's guidance for people who post, and the EU's rules on concealed commercial intent. The Surgeon General's 2023 advisory on loneliness supplies the factual background for Section 16.4 and is not a legal rule.

What counts as an endorsement: 16 CFR § 255.0. The Guides define an endorsement as any advertising, marketing or promotional message for a product that consumers are likely to believe reflects the opinions, experiences or findings of a party other than the sponsoring advertiser, even when those views match the advertiser's. According to the summary I read, the definition lets social media tags, demonstrations and depictions of a person's likeness count. The endorser is the party whose opinions, beliefs, findings or experience the message appears to reflect, and the party can be an individual, a group or an institution. The Guides define a clear and conspicuous disclosure as one that is "difficult to miss" and "easily understandable by ordinary consumers," and in interactive media it "should be unavoidable" (VERIFIED against the Cornell text of § 255.0, as summarized by the fetch tool). The page does not use the phrase "material connection," which § 255.5 does.

Material connections: 16 CFR § 255.5. Paragraph (a) says that "material connections can include a business, family, or personal relationship." They can include "monetary payment or the provision of free or discounted products," whether or not the products are related and

"regardless of whether the advertiser requires an endorsement in return," and "other benefits to the endorser, such as early access to a product," or the chance of being paid or of winning a prize. A connection must be disclosed when a significant minority of the audience would not understand or expect it, and the disclosure must "clearly communicate the nature of the connection sufficiently for consumers to evaluate its significance." The examples apply this to a tennis player who received discounted surgery and posts on social media (Example 3), a physician (Example 4), reviewers given a free product and a $30 payment (Example 6), a woodworker given a lathe (Example 7), employees who post about their employer (Example 8), a program that gives points redeemable for prizes (Example 9) and affiliate links (Example 11). Example 9 says that points redeemable for prizes are material incentives that "should be clearly and conspicuously disclosed," and that the advertiser should ensure that the disclosures are made (VERIFIED against the Cornell text of § 255.5, as summarized; the page does not mention likes or follows).

The FTC's guidance for people who post. The Commission's guide "Disclosures 101 for Social Media Influencers" says to "disclose when you have any financial, employment, personal, or family relationship with a brand," not to "assume your followers already know about your brand relationships," and that "it's your responsibility to make these disclosures." It also says: "Keep in mind that tags, likes, pins, and similar ways of showing you like a brand or product can be endorsements." It does not discuss giveaways, follows or penalties (VERIFIED against the page, as summarized; the URL of the Commission's announcement shows November 2019, and I could not confirm the date of the version I read).

Fake testimonials and fake indicators. Chapter 10 set out Part 465. Section 465.1(f) defines a consumer testimonial as a promotional message that consumers are likely to believe

reflects the opinions or experiences of a consumer who purchased or used the product, and § 465.2 bars fake or false testimonials. Section 465.1(d) defines a consumer review by reference to a platform dedicated, in whole or in part, to receiving evaluations, so a comment on a general feed is probably not a consumer review (INFERENCE from the reading in Chapter 10). Section 465.1(h) includes within "fake indicators" those metrics that "otherwise do not reflect a real individual's or entity's activities, opinions, findings, or experiences," and Chapter 10 left open whether a like given in return for a like reflects a real individual's opinion (VERIFIED in Chapter 10).

The EU. The Unfair Commercial Practices Directive 2005/29/EC treats a practice as a misleading omission under Article 7(2) when a trader "fails to identify the commercial intent of the commercial practice if not already apparent from the context" and the omission is likely to lead the average consumer to a transactional decision they would not otherwise take. Annex I, which lists practices that are unfair in all circumstances, includes in point 11 "using editorial content in the media to promote a product where a trader has paid for the promotion" without making that clear, and in point 22 "falsely claiming or creating the impression that the trader is not acting for purposes relating to his trade, business, craft or profession, or falsely representing oneself as a consumer" (VERIFIED against the Directive as adopted in 2005, read on the UK legislation site, so later amendments are not reflected). Chapter 10 discussed points 23b and 23c, which were added later and concern false reviews and social endorsements, and the open question of whether a prompted like is an endorsement.

16.3 How the rules reach pod-boosted posts in this topic

The rules reach a post about relationships only when the post promotes something and the person behind it has a connection to the seller that the audience would not expect.

An author who writes about friendship, mentoring, belonging or networking and promotes no product is outside the Endorsement Guides, because the definition in § 255.0 requires a message for a product (INFERENCE from the text). That description fits the large majority of this topic, if the word counts are a guide. Words of trust, authenticity and thanks appear in 390 posts (18.6%), and sales, client or customer words in 202 (9.6%).

An author who thanks a client, praises a partner or promotes a community that the author runs may be making a promotional message about a product. If the author has a business, family, personal or employment relationship with the seller, § 255.5(a) and the FTC guide call for disclosure when a significant minority of the audience would not expect the relationship (INFERENCE as applied). Sponsor, partnership or ambassador words appear in 31 posts (1.5%), and a thank-you or gratitude word within sixty characters of a client, customer, partner or sponsor word in 4 (0.2%). I cannot tell which of these posts are promotional or whether the relationships were disclosed.

The pod adds a question that none of the sources I opened answers: whether reciprocal engagement is a material connection. The FTC guide says that likes can be endorsements. Section 255.5 counts "other benefits to the endorser" and says that a connection can exist "regardless of whether the advertiser requires an endorsement in return," and Example 9 treats points redeemable for prizes as a material incentive. A member who likes or comments on a seller's promotional post, expecting the seller to engage with the member's own posts in return, receives a benefit that comes from the seller, and the benefit is the kind of thing the Guides list (INFERENCE). Several facts are needed for that reading and are not in the data. The liked post must promote a product, the like must be a message that consumers are likely to believe reflects the member's opinion of the product, the exchange must exist, and a significant minority of the

audience must not expect it. If a pod tool gives members credits that they spend on engagement, the credit resembles the points in Example 9, but I do not know whether any tool in the data does so, and I did not read their terms (INFERENCE). Where the like is given to a post that does not promote a product, the Guides do not apply on their face.

The author who buys or procures engagement meets § 465.8(b) under the conditions in Chapter 10. The author who commissions praise from people who have not used the product meets § 465.2 if the praise is a consumer testimonial under § 465.1(f), and in the EU may meet Annex I point 22 if the praise is presented as coming from consumers when it comes from the trader's side (INFERENCE; I found no case that applies either provision to a comment prompted by a pod). The tool operator is not an advertiser or endorser in the ordinary case, and Chapter 12 covered the one FTC case against a tool supplier, which the Commission set aside. The platform's position is the one in Chapter 10.

Table 16.1 sets out the rules that reach posts on building relationships and community, the parties they reach, an enforcement example and the remedy that the source states.

Table 16.1. Rules that reach posts on building relationships and community, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
16 CFR § 255.0 and § 255.5	Advertisers and endorsers; connections the audience would not expect	None opened	Not stated in the text I read
FTC guide, "Disclosures 101 for Social Media Influencers"	People who post about brands	None opened	Not stated on the page I read
16 CFR §§ 465.1(f) and 465.2	Businesses that create or sell fake testimonials	See Chapter 10	See Chapter 10
16 CFR § 465.8	Sellers and buyers of fake indicators	See Chapter 10	See Chapter 10
Directive 2005/29/EC, Art 7(2) and Annex I points 11 and 22	Traders that conceal commercial intent or pose as consumers	None opened	Not stated in the text I read

16.4 What this means for people and for coming generations

The law I opened protects an audience from deception about who is speaking and why. It does not protect the connection between people that the topic is about.

The Surgeon General's advisory of 2023, "Our Epidemic of Loneliness and Isolation," reports that about one in two adults in America reported experiencing loneliness, that loneliness and social isolation raise the risk of premature death by 26% and 29%, and that lacking social connection "can increase the risk for premature death as much as smoking up to 15 cigarettes a day." It reports that for people aged 15 to 24, time spent in person with friends fell by nearly 70% over almost two decades, from roughly 150 minutes a day in 2003 to 40 minutes a day in 2020, and that young adults are almost twice as likely as people over 65 to report feeling lonely. On technology, it says that technology can foster connection by providing opportunities to stay in touch, and it names "technology that displaces in-person engagement, monopolizes our attention" among the harms. It cites a U.S. study in which participants who used social media for more than two hours a day had about double the odds of reporting increased social isolation compared with those who used it for under 30 minutes. Its six pillars include "Reform Digital Environments" and "Cultivate a Culture of Connection" (VERIFIED against the advisory, of which the tool returned part; the figures are the advisory's own, and the social-media finding is from a single study the advisory cites).

Those findings do not mention engagement pods, and I found no source that does. They bear on this study through one question that Chapter 5 left open: whether prompted reciprocal engagement adds to in-person connection or replaces it. In this topic, 85 posts (4.1%) use in-person words, against 95 (4.5%) that use remote or virtual words, and 81 (3.9%) use loneliness or belonging words. The advisory's association between displaced in-person time and loneliness

gives a reason to ask the question, and no source I opened measures the effect of a pod on any member's connections or well-being (INFERENCE).

A second consideration involves automation. The word AI appears in 274 posts (13.1%) and automation or bot words in 67 (3.2%), and 54 posts (2.6%) pair AI with a word about relationships, trust, community, humans or loneliness. The FTC opened an inquiry into companion chatbots in September 2025, covered in Chapter 12, and the Pew survey of teens in Chapter 12 reported that 12% use chatbots for emotional support. Those facts concern chatbots that talk with young people, and they do not show that any post in this topic describes one. I draw from them only that the question of what replaces human contact has two parts, automated conversation and automated engagement, and that the rules I opened address neither as a matter of connection (INFERENCE).

A third consideration involves the people entering a profession. Early-career workers, students and young professionals are named in 75 posts (3.6%). A young professional who builds a network on LinkedIn may read likes and comments as signals of whom to trust, and a pod that inflates them could mislead that reader about which relationships matter (INFERENCE). The disclosure rules would protect that reader only where the post promotes a product and a connection was not disclosed. The rule aimed at a misleading signal is the fake-indicators rule, and Chapter 10 found no complaint or order under it.

My conclusion for this chapter is that the protections in the law attach to commercial speech and to counterfeit signals, and that the social effect on the next generation, if there is one, falls in a space no rule I opened addresses (INFERENCE). The advisory's call for policy reform of digital environments is the nearest statement of a public aim, and I opened no statute or rule that adopts it.

16.5 How this topic bears on mental health

This topic is where the loneliness evidence applies most directly, and the question that the data cannot answer is whether prompted reciprocal engagement adds to connection or replaces it.

Words of trust, authenticity, empathy, kindness, gratitude or thanks appear in 390 of 2,096 posts (18.6%), and loneliness, isolation, "alone," mental health, well-being, burnout or belonging words in 81 (3.9%). The Surgeon General's 2023 advisory (Section 16.4) says that the odds of developing depression are more than double among people who often feel lonely. It reports that, in a U.S. study, people who used social media for more than two hours a day "had about double the odds" of reporting increased social isolation compared with people who used it under 30 minutes, and it says that the evidence on social media and relationships "has been complex," with both benefits and harms. Naslund and colleagues (2016, *Epidemiology and Psychiatric Sciences*) describe online peer support for people with serious mental illness. They name benefits, such as feeling less alone and less stigma, and risks, such as unreliable advice and dependency, and they conclude that the benefits appear to outweigh the risks while noting that few studies collect objective health outcomes. The article is a commentary and not an empirical study.

A post that thanks a colleague or praises a community is the ordinary material of those sources. A pod comment that a member writes because the pod expects it differs in one respect that the sources do not address: the recipient may take it to reflect the writer's opinion. Whether receiving such a comment feels like support, or feels like less once the reader learns its source, is untested (INFERENCE). The data show 52 posts (2.5%) with a plain request to like, comment, share or follow or with the word "pod," and 2 posts with the word "pod."

16.6 What the data cannot show

The data cannot show that any post in this topic is promotional, that its author has a connection to a seller, that any engagement under it was exchanged, or that any comment was a testimonial. The text of the posts almost never describes the exchange, and the comment threads are not in the data. A count of trust words or AI words is a count of words. I cannot tell which authors are young, which readers are lonely, or whether any reader formed or lost a relationship because of a post.

My reading of the law has gaps. The tool I used returned summaries of §§ 255.0 and 255.5, the FTC guide and the Surgeon General's advisory, and I quote only the words it placed in quotation marks. The advisory text was truncated, and I did not read its recommendations in full. I did not open § 465.4 or § 465.5, any case that applies the Endorsement Guides to likes, the terms of any pod tool, privacy law as it applies to tagging and photographs in community posts (Chapter 8 covers outreach), the amendments to the EU Directive, or any national law. Two questions remain open after this chapter. One is whether reciprocal engagement, given in expectation of engagement in return, is a material connection under § 255.5 when the liked post promotes the poster's own product. The other is the question from Chapter 5, whether prompted reciprocal engagement adds to or replaces in-person connection, which no source I opened measures.

Chapter 17. Supply chain, logistics and operations: forced labor, customs fraud, tariffs and due diligence

17.1 The topic in the data

Supply chain, logistics and operations is the fourteenth-largest topic, with 2,000 posts, which is 3.1% of the 64,970 placed posts. The podawaa file supplies 1,411 posts (70.6%), the 65 exports 439 (22.0%), HyperClapper 142 (7.1%) and LinkBoost-2025 8 (0.4%). The median post is 534 characters and the 90th percentile 1,254. Five or more hashtags appear in 1,223 posts (61.1%), which compares with 33.5% in the motivation topic of Chapter 14 and 15.0% in the relationships topic of Chapter 16. The share differs by source: 1,024 of the 1,411 podawaa posts (72.6%) carry five or more hashtags, against 174 of the 439 posts in the 65 exports (39.6%). A link appears in 425 posts (21.2%).

The vocabulary is the vocabulary of a trade. Logistics, freight, shipping, shipment, warehouse, fulfillment, last-mile, cargo, trucking, carrier or port words appear in 1,232 posts (61.6%), and the phrase "supply chain" in 743 (37.1%). Manufacturing, factory, supplier, sourcing, procurement or inventory words appear in 667 (33.4%). Words about e-commerce, dropshipping, Amazon, Shopify, FBA, online stores or marketplaces appear in 297 (14.8%), of which 261 are in the podawaa file. A disruption, resilience, volatility or shortage word appears in 187 (9.3%), a quality, safety, recall, defect or inspection word in 161 (8.1%), and a food, pharmaceutical, medicine or cold-chain word in 99 (5.0%). Words for a critical material or component (semiconductor, chip, rare earth, lithium, cobalt, battery, steel, aluminum, solar, polysilicon, cotton) appear in 45 (2.2%).

The words that connect the topic to the law are much rarer. A tariff, customs, duty, anti-dumping or de minimis word appears in 37 posts (1.9%), and a broader trade word (adding import, export, trade war, trade policy and sanctions) in 63 (3.1%). The words China, Chinese,

Xinjiang or Shenzhen appear in 35 (1.8%). Words about forced labor, modern slavery, child labor, trafficking, the UFLPA, Xinjiang or the Uyghurs appear in 3 posts (0.1%), and words about human rights, labor rights, fair labor or ethical or responsible sourcing in 6 (0.3%). Counterfeit, fraud, theft, smuggling, transshipment, illicit or sanctions words appear in 19 (0.9%). EU-law words (CSDDD, CSRD, CBAM, EUDR, due diligence, GDPR, "EU regulation," European Union or EU) appear in 16 (0.8%). No post in the topic uses a "made in" phrase.

Claims about conduct are more common than claims about law. Words of ethics, responsibility, compliance, certification, sustainability, traceability or transparency appear in 262 posts (13.1%), and environmental words (eco-friendly, carbon neutral, net zero, green, sustainable, recyclable, biodegradable, climate) in 168 (8.4%). A claim of certification, guarantee or a "100%" property (certified, guaranteed, fully compliant, zero waste) appears in 13 (0.7%).

The topic also speaks of automation more than of people. The word AI or the phrase artificial intelligence appears in 180 posts (9.0%), and a broader automation set (adding automate, robot, machine learning, predictive and digital twin) in 463 (23.1%). Worker, workforce, labor, employee or driver words appear in 130 (6.5%), which is about 28% as many as the broad automation set, although the two sets differ in breadth and the comparison is crude. Words about wages, overtime, injuries, quotas, unions or OSHA appear in 17 posts (0.8%). Words about students, teens, kids, graduates, young professionals, interns or the next generation appear in 21 (1.1%).

Commercial offers are present. A contact or call-to-action phrase (contact us, get a quote, book a call or demo, reach out, DM, message us, call us, visit our, learn more or a web address)

appears in 450 posts (22.5%), and a phrase of the form "we offer," "our services," "our solutions," "we provide," "we specialize," "we deliver" or "we help" in 82 (4.1%). A "DM me" call appears in 18 (0.9%), 17 of them in the 65 exports. These counts are VERIFIED against the data, and each counts words and not claims or conduct. A post that advertises a freight service and a post that criticizes one are counted alike.

17.2 The laws that apply

Four groups of rules meet this topic: the U.S. import ban on goods made with forced labor, the False Claims Act as the government now uses it against customs evasion, the U.S. tariff authorities and the litigation over them, and two EU instruments on due diligence and forced labor. None of them is aimed at social media. They apply to importers, producers and large companies, and they matter to this study because the topic describes the business those parties do.

The import ban: 19 U.S.C. § 1307. Section 307 of the Tariff Act prohibits the importation of goods "mined, produced, or manufactured wholly or in part in any foreign country by convict labor or/and forced labor or/and indentured labor under penal sanctions." It defines forced labor as "all work or service which is exacted from any person under the menace of any penalty for its nonperformance," and it includes forced or indentured child labor, which an amendment in 2000 added. A 2016 amendment (Pub. L. 114-125) struck an earlier proviso that allowed such goods in when domestic production could not meet consumer demand (VERIFIED against the Cornell text of § 1307, as summarized by the fetch tool, which placed the quoted words in quotation marks).

The Uyghur Forced Labor Prevention Act. The Act applies a rebuttable presumption that goods made wholly or in part in China's Xinjiang Uyghur Autonomous Region, or by

entities that the government lists as enabling forced Uyghur labor, are made with forced labor and so fall under § 307. According to a law-firm alert on the guidance that U.S. Customs and Border Protection (CBP) issued on 13 June 2022, the presumption can be rebutted only with "clear and convincing evidence." The Act took effect on 21 June 2022, an importer whose goods are detained has 30 days to present evidence (against 90 days under a withhold release order), and CBP may expect an importer to trace its supply chain "from raw materials to the imported good" (STATED; the alert is a law firm's summary, and I did not open the statute or CBP's own page). The Center for Strategic and International Studies reported in August 2025 that the entity list held 144 names, that CBP had detained 16,755 shipments valued at nearly $3.7 billion, that detentions fell between April and July 2025, and that no entities had been added since January 2025. It also cited a 2023 KPMG survey in which 45% of companies whose shipments were stopped reexported them (STATED, as summarized from the CSIS analysis).

The False Claims Act and customs evasion. On 12 May 2026 the Department of Justice announced a settlement of $549.5 million with the Perfectus Aluminum defendants, in a case that alleged evasion of antidumping and countervailing duties on more than 2.2 million aluminum extrusions imported from China between 2011 and 2014. The case began as a qui tam action, in which a private party sues for the government, and the relators receive 17.5% (about $96 million). An earlier criminal conviction in 2021 had produced $1.8 billion in restitution. The law-firm alert on the settlement says that the Department launched a Trade Fraud Task Force in August 2025 and that an executive order created a Task Force to Eliminate Fraud in March 2026 (STATED; a law firm's account of the announcement). I did not open the False Claims Act, 31 U.S.C. § 3729, or any court record in the case.

The tariff authorities. In *Learning Resources, Inc. v. Trump*, decided on 20 February 2026 after argument on 5 November 2025, the Supreme Court held by a vote of 6 to 3, in an opinion by Chief Justice Roberts, that "IEEPA does not authorize the President to impose tariffs." The Federal Circuit's judgment was affirmed in No. 25-250, and in No. 24-1287 the district court's judgment was vacated and the case remanded with instructions to dismiss (VERIFIED against the Cornell text of the opinion, of which the tool returned the opening portion; I did not read the refund discussion, if any). A law-firm summary reports that CBP stopped collecting the IEEPA tariffs on 24 February 2026, that the administration imposed a 10% tariff under Section 122 of the Trade Act of 1974 for 150 days from that date, and that about $175 billion in duties might be subject to refund claims (STATED). A second summary dated 15 May 2026 reports that CBP opened the first phase of a refund process on 20 April 2026, that the Court of International Trade ruled on 7 May that the use of Section 122 was unlawful with relief only for the plaintiffs in those cases, and that the government appealed (STATED).

The next step bears directly on this chapter. Law-firm summaries report that the United States Trade Representative opened investigations on 12 March 2026 into the practices of 60 economies and found on 2 June that all 60 were actionable under Section 301(b) of the Trade Act. The finding was that some had imposed but not effectively enforced a prohibition on imports made with forced labor, and that most had none. The Representative imposed tariffs of 10% to 12.5% on those economies with effect from 12:01 a.m. on 24 July 2026, the day the Section 122 tariffs expired, with exemptions that include goods already subject to Section 232 tariffs and goods that qualify under the USMCA (STATED, from two law-firm alerts; one gives 12.5% in its text and 13% in its country table, and I report the range that both alerts support). Importers sued in the Court of International Trade on the first day. A news report on the

complaints says that they allege that the Representative skipped the country-by-country finding that Section 301(b) requires, that one complaint alleges the Representative "determined the tariff rates first" and set them "to replicate the invalidated IEEPA rates," and that both argue in the alternative that the delegation is unconstitutional. A three-judge panel heard argument on 30 September 2026, and an update dated 8 October 2026 reported no ruling and no stay of collection (STATED; allegations and secondary reports, not findings). I did not look for events after that date.

The EU instruments. Directive (EU) 2024/1760 on corporate sustainability due diligence (CSDDD) was changed by the first "Omnibus" regulation, published in the Official Journal on 26 February 2026 and in force from 18 March 2026. A law-firm summary says that member states must transpose the Directive by 26 July 2028, that companies must apply it from 26 July 2029, and that it covers companies with more than 5,000 employees and more than €1.5 billion in turnover (for non-EU companies, €1.5 billion of turnover in the EU). The amendments removed the obligation to adopt a climate transition plan and the EU-level civil-liability regime, capped penalties at 3% of net worldwide turnover, and set a review by 26 July 2031 (STATED). Regulation (EU) 2024/3015 bans placing on the EU market, or exporting from it, any product made with forced labor, including forced child labor, for all operators regardless of size. It was published on 12 December 2024, entered into force on 13 December 2024 and applies from 14 December 2027. National competent authorities and the Commission investigate on risk-based criteria, and the remedies are a ban, withdrawal and disposal of the product, within 30 working days or 10 for perishables; the summary I read describes no fines (STATED, from the eucrim summary; I did not open either text).

17.3 How the rules reach pod-boosted posts in this topic

These rules reach the parties who import, produce or sell goods, and they reach a post only when the post carries a claim about those goods or services.

The rules in this chapter can fall on an author, or on a member who engages with the author's post, only in a second role as importer, producer or seller of goods. A freight forwarder, a manufacturer or a seller who posts in this topic is subject to § 307, to the UFLPA presumption and to the tariff and customs rules as an importer or a participant in importing. These laws attach to the import and not to the post, and the data contain no importation. If a seller who uses a pod is the importer of record for goods, the burden of the UFLPA presumption falls on that seller (INFERENCE from the alert's reference to importers; I did not open a definition of importer of record). A small seller whose supplier or its inputs trace to Xinjiang would meet the presumption in the same way as a large importer (INFERENCE), and the text does not show whether any post reflects such a seller. The dropshipping and FBA vocabulary appears in 297 posts (14.8%), and Chapter 14 covers the FTC's actions against the sellers of courses on that business model, including FBA Machine.

A post that advertises a compliance, sourcing or logistics service is a commercial claim, and claims about being compliant, certified or ethically sourced are objective claims that, on the substantiation doctrine in Chapter 4, an advertiser must be able to support (INFERENCE as applied; I found no case that applies the doctrine to a forced-labor-free claim). Such words appear in 262 posts (13.1%) and a claim of certification or guarantee in 13 (0.7%). Chapter 18 takes up environmental claims, which appear in 168 posts (8.4%), together with the Lanham Act. Chapter 10 sets out the rule on buying fake indicators for the case where an author buys likes, comments or followers for such a post.

As the alert describes it, the matter was a False Claims Act case about evaded duties, and the Perfectus settlement concerned duties and not advertising. A post comes within that concern only if it is part of a scheme to evade duties, and no post in the data states such a purpose. Counterfeit, fraud, smuggling, transshipment or sanctions words appear in 19 posts (0.9%), and I cannot tell whether any post describes an evasion, a defense against one or a news item.

The tool operator is outside the rules in this chapter on every reading I can support, and the platform's position is the one in Chapter 10. Regulation 2024/3015 applies to all operators who place products on the EU market, so a small EU seller who is also a pod member would be an operator. The rule would apply because of the seller's goods and not because of the pod (INFERENCE from the eucrim summary).

Table 17.1 sets out the rules that reach posts on supply chain, logistics and operations, the parties they reach, an enforcement example and the remedy that the source states.

Table 17.1. Rules that reach posts on supply chain, logistics and operations, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
19 U.S.C. § 1307 and the UFLPA	Importers of goods made with forced labor; Xinjiang goods presumed covered	CSIS: 144 listed entities; 16,755 shipments (about $3.7 billion) detained as of August 2025	Detention and exclusion of goods; fines not stated in the sources I read
False Claims Act, customs evasion	Persons alleged to have evaded customs duties	Perfectus Aluminum defendants, announced 12 May 2026 (STATED)	$549.5 million settlement; relators 17.5%
Learning Resources, Inc. v. Trump	The President's tariff authority under IEEPA	Decided 20 February 2026, 6-3	No penalty; refund process opened 20 April 2026 (STATED)
Section 301 "forced labor" tariffs	Importers of goods from 60 economies	Challenge argued 30 September 2026; no ruling found as of 8 October (STATED)	Duties of 10% to 12.5% (STATED)
CSDDD as amended by Omnibus I	Companies with more than 5,000 employees and €1.5 billion turnover; applies from 26 July 2029	None yet	Penalty cap of 3% of net worldwide turnover (STATED)
Regulation (EU) 2024/3015	All operators placing or exporting products; applies from 14 December 2027	None yet	Ban, withdrawal and disposal; no fines described in the summary (STATED)

17.4 What this means for people and for coming generations

The laws in this chapter aim to protect people who are far from the posts: the workers who make the goods, and among them the children.

The International Labour Organization and UNICEF reported in June 2025 that nearly 138 million children were in child labour in 2024, which is more than 20 million fewer than in 2020. About 54 million of them were in hazardous work, 61% were in agriculture, and about 87 million were in sub-Saharan Africa. The 2025 target for ending child labour was missed, and the two agencies said that ending it within five years would require progress 11 times faster than recent progress (VERIFIED against the UNICEF page, as summarized). The statutes I read use the term forced labor and, in the U.S. statute and the EU Regulation, extend it to forced child

labor. Child labour in the ILO's count is a wider category, so the 138 million is not the number of children the statutes reach, and I cannot say what share they reach (INFERENCE). The U.S. ban has been amended since 2000, and the EU ban applies only from December 2027, after the 2025 target year that the two agencies say was missed. I opened no source that measures whether either instrument has changed the number of children in work.

The recent changes in the law make a mixed picture, and I describe it without a verdict. In the United States, the detention figures show a rule that stops goods, with detentions down in the months before the CSIS report and no entities added after January 2025. In 2026 the same concept, a country's forced-labor import prohibition, became the stated ground for a broad tariff on 60 economies, and the plaintiffs who challenge it allege that the aim was to keep a minimum tariff in place of the invalidated IEEPA tariffs (STATED as an allegation). The court has not decided whether that is so, and I have no evidence on how the tariffs affect the protection of workers in the supply chains concerned. In the EU, the Omnibus amendments set the scope of the due-diligence directive at companies with more than 5,000 employees and €1.5 billion in turnover and removed the EU-level civil-liability regime and the climate transition plan duty, while the forced-labor Regulation applies to operators of any size (STATED). I did not open the earlier text of the directive, so I do not say how far its scope changed, and I did not read either text on remedies, so I cannot say which remedies for a harmed worker remain under national law (INFERENCE that removing the EU-level regime narrows them).

The sums are large. The summary I read puts possible IEEPA refund claims at about $175 billion, and the Perfectus settlement at $549.5 million over alleged evasion of duties on imports from 2011 to 2014. Duties are public revenue, and a refund or an evasion changes it. I

opened no source on who bears the cost of tariffs, and I draw no conclusion about consumers' prices or about the tax burden of the next generation.

For workers in logistics and operations the data point toward a question that I cannot answer. The topic speaks of automation in 463 posts (23.1%) and of workers in 130 (6.5%), and 17 posts (0.8%) mention wages, injuries, quotas, unions or OSHA. I opened no source on the effect of automation on warehouse, trucking or port employment. The entry-level labor evidence I opened is in Chapters 12 and 15, and I did not read it for logistics occupations. Young-person words appear in 21 posts here (1.1%), so the topic gives little direct evidence on what its subject means for the next generation (INFERENCE from low counts).

Consumers and the future also appear through product quality. Quality, safety, recall, defect or inspection words appear in 161 posts (8.1%), and food or pharmaceutical words in 99 (5.0%). I did not open the Consumer Product Safety Improvement Act or the food and drug laws, so I do not say what protection applies to a child who uses a product that passes through these chains.

My conclusion for this chapter is that the strongest rules reach conduct that the data cannot show, and that the posts in the topic mostly advertise logistics services or discuss the field (INFERENCE). The people the rules aim to protect do not read or write the posts. The nearest link between the two is a seller who imports goods and carries the legal duty as importer, and the data do not show whether any seller in the topic does so.

17.5 How this topic bears on mental health

The mental-health harm that this chapter's rules address falls on workers in forced labor, and the research on it covers fewer people than the harm affects.

Words about forced labor, modern slavery, child labor, trafficking, the UFLPA, Xinjiang or the Uyghurs appear in 3 of 2,000 posts (0.1%). The International Labour Organization reported on 19 March 2024 that 27.6 million people were in forced labour on any given day in 2021, which is 3.5 per thousand people worldwide, and that forced labour in the private economy generates US$236 billion in illegal profits a year. Oram and colleagues (2012, *PLoS Medicine*) reviewed 19 papers on 16 studies of trafficked people. In studies that used screening tools, symptom levels were high: anxiety in 48.0% to 97.7% of participants, depression in 54.9% to 100% and post-traumatic stress in 19.5% to 77.0%. Only one study used a validated diagnostic interview, and in it 16.7% had depression and 35.8% post-traumatic stress disorder. The authors state that the samples came mostly from support services and that nearly all the studies concerned women and girls, so evidence on men, children and people trafficked for labor is largely absent.

I therefore cannot give figures for the workers who make or move the goods that these posts discuss. The import and due-diligence rules in Section 17.2 aim to keep goods made with forced labor out of markets. I found no evidence in the sources I opened on whether those rules reduce the harm to workers' mental health.

17.6 What the data cannot show

The data cannot show that any post in this topic describes an importation, a forced-labor supply chain, a customs evasion or a false compliance claim. Three posts use words about forced labor, the UFLPA or Xinjiang, and I worked from aggregate counts and not from individual posts. A count of "supply chain" is a count of a phrase. I cannot tell whether a given author imports goods, whether any seller on a pod is an importer of record, or which posts were boosted by an exchange of engagement.

My reading of the law has gaps. The fetch tool returned summaries of most sources, and I quote only the words it placed in quotation marks. I did not open the text of the Uyghur Forced Labor Prevention Act (Pub. L. 117-78), CBP's own pages on it, the Congressional Research Service reports on it (the site blocks automated access), the False Claims Act, the Federal Register notices for the Section 301 action, the statute for Section 301, the two EU texts, any court record in the Perfectus case, or the opinion's discussion of remedies in *Learning Resources*. I did not read the Section 232 actions at all. I did not open the rules on the de minimis exemption, the Made in USA Labeling Rule (16 CFR Part 323), the Consumer Product Safety Improvement Act, the INFORM Consumers Act or state laws on warehouse workers, so the chapter does not say what applies to a small online seller who ships to consumers. The tariff picture is the most perishable part. My sources run to an update dated 8 October 2026, one alert gives two rates for the same group of countries, and the court's ruling, any appeal and the refund process may have moved since.

One question remains open after this chapter. It is whether a claim of ethical or forced-labor-free sourcing made in a social media post is an objective claim that needs substantiation. I found no case that applies the substantiation doctrine to such a claim, and the sources I opened do not address how purchased or exchanged engagement bears on a court's view of one.

Chapter 18. Marketing, brands and advertising: false advertising, green claims and disguised promotion

18.1 The topic in the data

Marketing, brands and advertising is the fifteenth-largest topic, with 1,862 posts, which is 2.9% of the 64,970 placed posts. The podawaa file supplies 1,009 posts (54.2%), the 65 exports 444 (23.8%), HyperClapper 392 (21.1%) and LinkBoost-2025 17 (0.9%). The posts are short. The median is 279 characters, which is lower than the medians of 327 to 541 in Chapters 14 to 17, and the 90th percentile is 888. Five or more hashtags appear in 422 posts (22.7%), and a link in 216 (11.6%).

The vocabulary is that of the trade. Brand or branding words appear in 1,024 posts (55.0%), marketing or marketer words in 640 (34.4%), and advertising words (ad, advertising, campaign, sponsored, paid media, PPC, CPC, ROAS) in 453 (24.3%). Words about search optimization, algorithms, followers, engagement, impressions, reach or going viral appear in 127 (6.8%). Words about the creator economy (influencer, creator, UGC, ambassador) appear in 60 (3.2%), and a testimonial, review, case study, social proof, five-star or rating word in 39 (2.1%). Words of trust, transparency or honesty appear in 124 (6.7%), and the word authentic in 46 (2.5%).

The posts make measurable claims in a minority. A superlative or proof claim (best, #1, number one, world's best, first or largest, award-winning, top-rated, guaranteed, proven) appears in 128 posts (6.9%), a competitor or comparison word (competitor, competition, versus, better than, unlike, outperform) in 77 (4.1%), and a statistic of the form of a percentage, "10x," "doubled" or "tripled" in 74 (4.0%). Words of results (ROI, conversion, lead, sales, revenue, growth) appear in 121 (6.5%). A percentage figure appears in 57 posts (3.1%), a dollar or euro figure in 41 (2.2%), the word "free" in 79 (4.2%) and "guarantee" in 12 (0.6%).

The words that connect the topic to the rules in this chapter are rare. A disclosure word (#ad, #sponsored, #gifted, paid partnership, sponsored, disclose, affiliate link, gifted) appears in 6 posts (0.3%), and a paid-promotion phrase (paid partnership, sponsored, brand deal, brand collaboration, paid promotion, paid ad or post) in 26 (1.4%). Environmental words (eco-friendly, carbon neutral, net zero, green, sustainable, recyclable, biodegradable, climate, plastic-free) appear in 12 posts (0.6%), against 168 (8.4%) in the supply chain topic of Chapter 17. A trademark, copyright, intellectual property, infringement, knock-off or plagiarism word appears in 12 (0.6%), a health-claim word (clinically, scientifically, cure, detox, FDA, supplement, wellness) in 11 (0.6%), and a regulatory or legal word (FTC, disclosure, regulation, compliance, law, legal, GDPR, lawsuit) in 15 (0.8%). Privacy, cookie, tracking, data or consent words appear in 70 (3.8%).

Words about the exchange of engagement are nearly absent. A word about fake followers, fake engagement, fake reviews, fake accounts, fake likes, bots, inflated numbers, vanity metrics, buying followers, engagement pods or engagement farming appears in 7 posts (0.4%), and the word "pod" in 2 (0.1%). A contact or call-to-action phrase appears in 105 (5.6%), a "DM me" call in 10 (0.5%), and a request to comment or follow in 26 (1.4%).

AI appears in 191 posts (10.3%): 66 in the podawaa file, 48 in HyperClapper, 3 in LinkBoost-2025 and 74 in the 65 exports. Words for AI-generated content (AI-generated, generated by AI, AI content, AI image, AI video, deepfake, synthetic media, AI avatar, AI influencer) appear in 13 (0.7%). Words about students, teens, kids, children, graduates, young people, youth, Gen Z, Gen Alpha, minors or the next generation appear in 33 (1.8%), and words about future generations in 3 (0.2%). These counts are VERIFIED against the data, and each

counts words and not claims. A post that makes a comparison and a post that reports someone else's comparison are counted alike.

18.2 The laws that apply

Five items matter here beyond Chapters 4, 10, 14 and 16: the Lanham Act's rules on false advertising and false association, the Federal Trade Commission's Green Guides, the Commission's policy on advertisements formatted as editorial content, the EU's directive on environmental claims, and the EU's sweep of influencer disclosure.

The Lanham Act, 15 U.S.C. § 1125(a). Subparagraph (A) covers a use of a word, name, symbol or false designation that "is likely to cause confusion, or to cause mistake, or to deceive" "as to the affiliation, connection, or association of such person with another person," or "as to the origin, sponsorship, or approval of his or her goods, services, or commercial activities by another person." Subparagraph (B) covers a use that "in commercial advertising or promotion, misrepresents the nature, characteristics, qualities, or geographic origin" "of his or her or another person's goods, services, or commercial activities." The statute allows a "civil action by any person who believes that he or she is or is likely to be damaged by such act" (VERIFIED against the Cornell text, as summarized by the fetch tool, which placed the quoted words in quotation marks). In *Lexmark International, Inc. v. Static Control Components, Inc.*, decided unanimously on 25 March 2014 in an opinion by Justice Scalia, the Supreme Court held that a plaintiff suing for false advertising under § 1125(a) must allege "an injury to a commercial interest in reputation or sales" and must show "economic or reputational injury flowing directly from the deception wrought by the defendant's advertising" (VERIFIED against the FindLaw text of the opinion, as summarized). Section 1125(a) gives a private right of action, and under *Lexmark* the plaintiff is a

business that alleges a commercial injury. I did not open the Lanham Act's remedies provision, § 1117, or the circuit decisions on what counts as "commercial advertising or promotion."

The Green Guides, 16 CFR Part 260. The Commission's Guides on environmental marketing claims state in § 260.1 that they give the Commission's "current views about environmental claims" and that they "do not confer any rights on any person and do not operate to bind the FTC or the public." The Commission may still act under the FTC Act if a claim conflicts with the Guides, and it must prove that the practice is unfair or deceptive. Deception "will depend on the net impression of the advertisement, label, or other promotional material at issue" (§ 260.1(d)), and § 260.2 asks marketers to ensure that "all reasonable interpretations of their claims are truthful" and "supported by a reasonable basis before they make the claims," which "often requires competent and reliable scientific evidence." Under § 260.4, unqualified general environmental benefit claims "are difficult to interpret and likely convey a wide range of meanings," and marketers "should not make unqualified general environmental benefit claims" (VERIFIED against the Commission's copy of the 2012 Guides, as summarized). A reference site reports that the Commission opened a review of the Guides in 2022 and that the Guides "remain in effect"; I found no final revision, and I cannot date that site's page (STATED).

Advertisements formatted as editorial content. On 22 December 2015 the Commission issued, by a vote of 4 to 0, an Enforcement Policy Statement on Deceptively Formatted Advertisements, with a companion guide for business. The release says that advertising should be "identifiable as advertising to consumers," that a format is deceptive if it materially misleads consumers about the commercial nature of the content, including by implying that the content comes from a party other than the sponsoring advertiser, and that people "have a right to know if

they're seeing editorial content or an ad" (VERIFIED against the Commission's release, as summarized; I did not open the statement or the guide).

The Endorsement Guides and Part 465. Chapters 10, 14 and 16 set out the Endorsement Guides, the Disclosures 101 guide and the rule on fake reviews and indicators. I do not repeat them here.

The EU directive on environmental claims. Directive (EU) 2024/825, which amends the Unfair Commercial Practices Directive, was published in the Official Journal on 6 March 2024, entered into force on 26 March 2024 and applies from 27 September 2026. A law-firm summary says it allows generic environmental claims, such as "green" or "eco-friendly," only with "excellent recognised environmental performance" that is relevant to the claim. It requires private sustainability labels to follow a certification scheme with an independent verifier, bans claims that a product has a neutral, reduced or positive greenhouse gas impact based on offsetting, such as "climate neutral," and requires claims about future environmental performance to be backed by "concrete plans, steps and a published monitoring." A second law-firm alert gives the same date of application, says that Italy implemented the Directive by Legislative Decree No. 30/2026, and reports that the Italian competition authority can impose fines of up to €10 million and that in certain cross-border cases fines can reach 4% of annual turnover (STATED, from two law-firm summaries; I did not open the Directive or any national law other than as the Italian law is described, and I did not find the transposition deadline).

Influencer disclosure in the EU. The German Environment Agency reports that a sweep by the EU consumer protection network examined 576 influencers, that 97% regularly post commercially backed content, and that "only around 20 per cent of these consistently label this

as advertising" (VERIFIED against the agency's page, as summarized; the page does not give the number of authorities or the date, and I did not open the Commission's own report).

18.3 How the rules reach pod-boosted posts in this topic

The rules reach a post when the post makes a claim about a good or service in order to sell it, and the pod bears on the rules only through the reach and credibility it gives the claim (INFERENCE).

An author who writes a post for a brand or an agency makes statements that fall into three kinds. Some are opinion or boasting, such as "best" or "#1," which the Commission's deception statement treats as puffery in the circumstances that Chapter 4 describes (VERIFIED in Chapter 4). Some are measurable claims, such as a percentage improvement or "doubled conversions," which an advertiser must be able to support under the substantiation doctrine in Chapter 4. Some are comparisons with a named or unnamed competitor. Superlative or proof words appear in 128 posts (6.9%), statistics in 74 (4.0%) and comparison words in 77 (4.1%). I cannot tell from word counts which claims are measurable, which are false and which are puffery.

The Lanham Act reaches a false measurable or comparative claim made "in commercial advertising or promotion" about the author's or another person's goods or services. A competitor that suffers "an injury to a commercial interest in reputation or sales" flowing directly from the deception can sue under *Lexmark*. The statute does not mention engagement, and I found no case that treats a pod's amplification of a false claim as relevant to liability or to damages. If amplification widened the audience who saw the claim, it could bear on the competitor's injury, but that is a point about proof and not a rule I read (INFERENCE).

An author who promotes a brand without saying that the author has a connection to it presents the case that the Endorsement Guides address, as Chapter 16 sets out. Creator-economy

words appear in 60 posts (3.2%), a disclosure word in 6 (0.3%) and a paid-promotion phrase in 26 (1.4%). The EU sweep found about one in five influencers consistently labeling advertising, and the data cannot show whether the posts in this topic were labeled in the way the rules call for, because a label may sit outside the text I analyzed (INFERENCE). The Commission's 2015 statement concerns a different question from the disclosure of a connection: whether the format of an advertisement misleads about its commercial nature, including by implying that it comes from a party other than the sponsor. A brand's promotional post written to read as an author's independent commentary is the closest case (INFERENCE).

A brand that buys followers, likes or comments meets § 465.8 as Chapter 10 sets out, and the fake-engagement words in this topic appear in 7 posts (0.4%).

Environmental claims in this topic are few, 12 posts (0.6%), and they meet the Green Guides in the United States and, from 27 September 2026, the national laws that implement Directive 2024/825 in the EU, if the seller addresses EU consumers (INFERENCE as applied). The Chapter 17 topic contains many more such words, 168 posts (8.4%). The Guides do not bind the Commission or the public, so the Commission must still prove deception under the FTC Act, whereas the Directive's bans on generic and offsetting-based claims are rules stated in the Directive's terms and not guidance (INFERENCE from the summaries; I did not read the Directive).

AI-generated content words appear in 13 posts (0.7%). Chapter 4 covers the EU's transparency rule for synthetic content in Article 50 of the AI Act.

The tool operator is not an advertiser in the ordinary case and is outside these rules on every reading I can support. The platform's position is the one in Chapter 10.

Table 18.1 sets out the rules that reach posts on marketing, brands and advertising, the parties they reach, an enforcement example and the remedy that the source states.

Table 18.1. Rules that reach posts on marketing, brands and advertising, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Lanham Act, 15 U.S.C. § 1125(a)(1)(A) and (B)	Persons who misrepresent goods or services in commercial advertising or promotion; false association or sponsorship	*Lexmark v. Static Control* (2014), on who may sue	Not stated in the text I read (§ 1117 not opened)
FTC Green Guides, 16 CFR Part 260	Marketers of environmental claims	None opened	The Guides "do not confer any rights" and do not bind the Commission or the public; no remedy stated in the text I read
FTC Enforcement Policy Statement on Deceptively Formatted Advertisements (22 December 2015)	Advertisers and publishers of ads that resemble editorial content	None opened	Not stated in the release I read
Endorsement Guides, Part 465	See Chapters 10, 14 and 16	See Chapters 10, 14 and 16	See Chapters 10, 14 and 16
Directive (EU) 2024/825, applies from 27 September 2026	Traders making environmental claims to EU consumers	Italy: Legislative Decree No. 30/2026 (STATED)	Italy: fines up to €10 million; cross-border cases up to 4% of annual turnover (STATED)
EU consumer network sweep of influencers	Influencers who post commercial content	576 influencers examined; about 20% consistently labeled advertising	Not stated on the page I read

18.4 What this means for people and for coming generations

Advertising law protects people at the moment they decide what to buy or whom to believe, and the data show a field that talks about trust far more than it talks about the rules.

Trust, transparency and honesty words appear in 124 posts (6.7%), authenticity in 46 (2.5%), and legal or regulatory words in 15 (0.8%). The rules in this chapter protect a reader from a false statement of fact and from advertising that conceals its character. They do not

address whether the engagement that makes a post look popular is real, which Chapter 10 treats as a question for the fake-indicators rule. A reader who sees a brand's post with many comments may take them as evidence that others find it credible, and I opened no source that measures that effect (INFERENCE). The EU sweep supplies the one measure I have of how well the disclosure rules work: about 20% of the influencers examined consistently labeled advertising, which is a sample and not a count of all influencers. In that sample, compliance with the labeling rule was low.

Teenagers' exposure to marketing depends on the platforms they use. A secondary report on a Pew Research Center survey, conducted from 25 September to 9 October 2025 among 1,458 U.S. teens aged 13 to 17 and published on 12 December 2025, says that 92% use YouTube, 68% TikTok, 63% Instagram and 55% Snapchat, and that four in ten say they are online almost constantly, slightly fewer than in 2024 (STATED; I could not open Pew's own page). The report as summarized does not give a figure for LinkedIn. The pods in my data serve a professional network, so I draw only the limited conclusion that the marketing practices in this topic are those of adult professionals and that I have no measure of teenagers' exposure to them (INFERENCE). Youth words appear in 33 posts (1.8%) and words about children, teens or Gen Z in 15 (0.8%). I opened no rule on advertising directed at children, and Chapters 7 and 22 treat children's privacy.

The environmental rules bear on the future in a narrow way. The Green Guides and Directive 2024/825 regulate what a seller may say about a product's environmental effect. They do not regulate the effect itself. The Directive's ban on offsetting-based "climate neutral" claims removes a statement from the marketplace, and I opened no source on whether it changes what people buy or how much is emitted (INFERENCE). The Green Guides were last revised in 2012 according to the reference site, and the Commission began a review in 2022 that, as far as I

found, it has not finished (STATED). In this topic, environmental words appear in 12 posts and future-generation words in 3 (0.2%), so the data say little about the subject.

A last consideration involves the people who will work in marketing. AI appears in 191 posts (10.3%) and words for AI-generated content in 13 (0.7%). For a new entrant, the practical question is what disclosure obligations attach to content that a machine produced. The EU's Article 50, covered in Chapter 4, applies from 2 August 2026 according to the law-firm alert I read there, and I found no U.S. rule specific to AI-generated advertising content among the sources I opened (INFERENCE from what I opened).

My conclusion for this chapter is that the law of advertising reaches the claims in these posts when they are factual, commercial and false, and that it leaves open the effect of a pod on those claims (INFERENCE). The people who gain from the law are the buyers who rely on a claim and the competitors whose sales fall because of a false one, and the data do not show either.

18.5 How this topic bears on mental health

Marketing reaches mental health through three channels in the sources I opened: comparison with idealized images, money lost to deceptive advertising, and anxiety about climate change, which green claims address.

The topic is about brands and advertising. Brand or branding words appear in 1,024 of 1,862 posts (55.0%), words of trust, transparency or honesty in 124 (6.7%), and environmental words in 12 (0.6%). The American Psychological Association's 2023 advisory links appearance-based comparison to poorer body image, disordered eating and depressive symptoms, and advises adolescents to limit social media use for comparison. The posts here are mostly about

business and not about appearance, so the evidence bears on the setting more than on the content (INFERENCE).

On money, the FTC reported on 27 April 2026 that shopping was the most frequently reported social media scam type, and that over 40% of the people who lost money to those scams said they ordered something they saw in a social media ad. The loss is financial, and Section 3.8 gives the fraud-victim studies, which report effects that range from little to devastating.

Green claims connect to climate anxiety. Hickman and colleagues (2021, *The Lancet Planetary Health*) surveyed 10,000 people aged 16 to 25 in 10 countries. Of these, 59% were very or extremely worried about climate change and 84% at least moderately worried, and more than 45% said that their feelings about climate change negatively affected their daily life and functioning. The Green Guides and Directive 2024/825 (Section 18.2) govern what a seller may say about a product's environmental effect. The survey did not test how green claims affect its respondents, and I do not claim an effect.

18.6 What the data cannot show

The data cannot show that any post in this topic makes a false claim, that any author has an undisclosed connection to a brand, that any comparison is untrue, or that any engagement under a post was exchanged. A post can be an advertisement, a comment on advertising or a report of someone else's campaign, and the counts treat them alike. I analyzed text only: I did not analyze images, platform labels such as a "promoted" tag, or comment threads.

My reading of the law has gaps. The fetch tool returned summaries of the Lanham Act, *Lexmark*, the Green Guides, the Commission's release and the two law-firm alerts, and I quote only the words it placed in quotation marks. I did not open the remedies provision of the Lanham Act (§ 1117), any decision on what counts as "commercial advertising or promotion," any

decision on puffery, Part 260 beyond §§ 260.1, 260.2 and 260.4 (carbon offsets and recyclability claims are in other sections), the Commission's native advertising statement or guide, the text of Directive 2024/825 or of any national law other than as described for Italy, or the sweep's own report. The date of the reference site's account of the Green Guides is unknown to me, and I could not open Pew's page.

One question remains open after this chapter. It is whether a pod's amplification of a post that makes a false comparative or measurable claim bears on liability or damages under § 1125(a)(1)(B), and I found no authority that addresses it.

Chapter 19. Energy, sleep, food and fitness: health claims, supplements, weight-loss products and professional licensing

19.1 The topic in the data

Energy, sleep, food and fitness is the sixteenth-largest topic, with 1,775 posts, which is 2.7% of the 64,970 placed posts. Two-thirds of them come from the 65 exports, 1,188 posts (66.9%), followed by the podawaa file with 307 (17.3%), HyperClapper with 231 (13.0%) and LinkBoost-2025 with 49 (2.8%). These posts are long: the median is 853 characters, against 279 to 541 in Chapters 14 to 18, and the 90th percentile is 2,447. Five or more hashtags appear in 472 posts (26.6%), and a link in 148 (8.3%).

The vocabulary covers the four subjects of the label. Food or nutrition words (food, nutrition, diet, protein, meal, recipe, eat, sugar, vitamin, gut, probiotic, keto, fasting, calorie) appear in 1,123 posts (63.3%). Energy words (energy, fatigue, tired, exhaust, caffeine, coffee, stamina) appear in 1,023 (57.6%), although the word "energy" is also used for mood and for a person's presence, so this count overstates talk about nutrition or stimulants. Fitness words (fitness, workout, exercise, gym, marathon, strength, yoga, steps, walking, running, training) appear in 886 (49.9%), and sleep words (sleep, insomnia, melatonin, circadian, bedtime, nap) in 491 (27.7%). Words about mental health or stress (mental health, anxiety, stress, burnout, well-being, wellness, mindfulness, meditation) appear in 519 (29.2%), and workplace words (work, employee, team, corporate, leader, executive, burnout) in 570 (32.1%).

Product and body language is common. A weight-loss word (weight loss, lose weight, fat loss, GLP-1, Ozempic, semaglutide) appears in 313 posts (17.6%), and the name of a GLP-1 drug (GLP-1, Ozempic, semaglutide, Wegovy, tirzepatide, Mounjaro, Zepbound) in 27 (1.5%). A word about burning fat or calories, metabolism, detox or cleanse appears in 226 (12.7%), and a phrase of the form "lost 20 pounds" in 38 (2.1%). A supplement word (supplement, vitamin,

probiotic, collagen, creatine, nootropic, adaptogen, ashwagandha, magnesium, melatonin, gummies) appears in 228 (12.8%), and the word melatonin in 13 (0.7%). Longevity, healthspan, anti-aging or biological-age words appear in 125 (7.0%), and a caffeine, energy-drink, pre-workout or coffee word in 194 (10.9%). A food-label word (organic, non-GMO, gluten-free, vegan, clean eating, superfood, sugar-free, low-carb, high-protein, all-natural, plant-based) appears in 114 (6.4%).

Claims of effect are a minority, and claims of disease treatment are rarer. A health-effect word (cure, treat, prevent, heal, reverse, detox, immune, inflammation, anti-aging, clinically, scientifically, proven) appears in 289 posts (16.3%), and the name of a disease or condition (diabetes, cancer, anxiety, depression, ADHD, Alzheimer's, heart disease, obesity, blood pressure, cholesterol, autoimmune, COVID) in 201 (11.3%). A word of curing, treating, preventing, reversing or healing within sixty characters of the name of a disease or condition, in either order, appears in 11 (0.6%). A safety or proof phrase (no side effects, safe, all natural, clinically proven or tested, scientifically proven, studies show, doctor recommended, no prescription, guaranteed results) appears in 84 (4.7%), and a science or professional word (FDA, doctor, physician, clinical, study, research shows, science-backed, peer-reviewed) in 245 (13.8%). The abbreviation FDA in capitals appears in 7 posts (0.4%), and FTC in none. A disclaimer phrase (not medical advice, consult your doctor, results may vary, individual results, disclaimer, not intended to) appears in 14 (0.8%). Results language (before and after, transformation, my results, results, testimonial) appears in 290 (16.3%), a percentage in 294 (16.6%), and a number with pounds, kilograms, days or weeks in 221 (12.5%).

The selling language is distinctive. A "DM me," "inbox me" or "message me" call appears in 176 posts (9.9%), against 1.19% of all 273,771 posts and 1.37% of the top twenty

topics together. By source, it appears in 148 of the 1,188 posts in the 65 exports (12.5%), 18 of 231 in HyperClapper (7.8%), 8 of 49 in LinkBoost-2025 (16.3%) and 2 of 307 in the podawaa file (0.7%). A request to comment or follow appears in 153 (8.6%). The word "free" appears in 245 (13.8%), though the pattern also matches hyphenated uses such as "gluten-free," and a free guide, plan, consultation, call, trial, sample, checklist, template, training or webinar appears in 45 (2.5%). Coach, program, challenge, course or membership words appear in 169 (9.5%). Sales words (shake, distributor, my team, join my, business opportunity, brand ambassador, discount code, link in bio, percent off, order now, shop) appear in 69 (3.9%), and words for multi-level marketing (MLM, network marketing, direct sales, upline, downline, join my team) in none. A sponsorship, partnership, ambassador, discount code or affiliate word appears in 25 (1.4%), and an income word in 15 (0.8%).

Words about the exchange of engagement do not appear: the word "pod" and its related phrases occur in none of the 1,775 posts. Wearable-device words appear in 16 (0.9%) and the word AI in 20 (1.1%). Words about kids, children, teens, teenagers, youth, young people or the next generation appear in 89 (5.0%), and a phrase about future generations in 4 (0.2%). These counts are VERIFIED against the data, and each counts words and not claims. A post that recommends a supplement and a post that warns against one are counted alike.

19.2 The laws that apply

Six sets of rules bear on this topic: the FTC Act's rules on false advertising of food, drugs and services; the Commission's guidance on health claims; the FDA's rules on what a supplement may claim; the FDA's actions on GLP-1 marketing; state licensing of dietetics and nutrition practice; and the EU's rules on health claims and unfair practices. Chapter 14 covers the

Endorsement Guides on testimonials and Chapter 16 the rule on material connections, and I apply them here without restating them.

False advertisements for food, drugs and services: 15 U.S.C. § 52. Section 52(a) makes it unlawful "for any person, partnership, or corporation" to disseminate, or cause to be disseminated, a false advertisement that is meant to induce the purchase of food, drugs, devices, services or cosmetics, and subsection (b) treats that conduct as an unfair or deceptive practice under § 45 (VERIFIED against the Cornell text, as summarized; the page does not define "false advertisement" or state the penalty in § 54, which I did not open).

The Commission's Health Products Compliance Guidance. A law-firm summary reports that the Commission issued this guidance on 20 December 2022, replacing its 1998 guide for dietary supplements and extending to all health-related claims. It says that health benefit claims need "competent and reliable scientific evidence," that substantiation will generally need "randomized, controlled human clinical trials," that "the quality of the research is more important than the quantity," and that consumer surveys are anecdotal and inadequate. Disclosures must be "clear and conspicuous," and the labeling disclaimer that the Dietary Supplement Health and Education Act requires "is not required in other forms of advertising or marketing" (STATED, from a law-firm summary; I did not open the guidance).

What a supplement may claim: the FDA's rules. The FDA states that a supplement label may carry a structure or function claim, a general well-being claim or a classical nutrient-deficiency disease claim, which it calls "403(r)(6) claims." The claim must be truthful and not misleading, and the company must hold substantiation. The company must notify the FDA "no later than 30 days after first marketing the dietary supplement with the claim." A disclaimer must appear in boldface: "This statement has not been evaluated by the Food and Drug

Administration. This product is not intended to diagnose, treat, cure, or prevent any disease." A claim may not "claim to diagnose, mitigate, treat, cure, or prevent a specific disease or class of diseases" (VERIFIED against the FDA's page, as summarized; the page is about labels and notifications, and it did not state what follows when a disease claim is made).

GLP-1 marketing. A law-firm summary reports that on 3 March 2026 the FDA announced 30 warning letters to telehealth companies that market compounded GLP-1 products. The agency objected to online claims presenting the compounded products as "effectively the same as the approved drug" and to private-label presentations that could mislead consumers about which entity compounds the product. The summary does not name the provisions the letters rely on and does not mention influencers (STATED; I did not open the letters).

An enforcement example that joins health claims and influencers. On 6 March 2020 the Commission announced, by a vote of 5 to 0, a complaint and stipulated order against Teami LLC and its two owners in the Middle District of Florida. The complaint alleged that the defendants claimed "without reliable scientific evidence" that a 30-day detox pack would help consumers lose weight and that other teas would fight cancer, clear clogged arteries, decrease migraines and treat or prevent flu and colds. It alleged that posts by ten Instagram influencers hid paid endorsements, because followers "could not see a disclosure that the endorsements were paid-for unless they clicked the 'more' option," and that the practices continued after a staff warning letter in April 2018. The order enters a judgment of $15.2 million, equal to total sales of the challenged products, suspended on payment of $1 million because the defendants could not pay more. It bars unsupported weight-loss and health claims and requires "clear and conspicuous disclosures of any unexpected material connection" and "endorser monitoring requirements"

(VERIFIED against the Commission's release, as summarized; the release states allegations and does not state findings).

State licensing of dietetics and nutrition practice. In a case about a Florida health coach, Heather Kokesch Del Castillo, whom the Florida Department of Health cited in 2017 for being paid to give dietary advice without a license as a dietitian or nutritionist, a panel of the Eleventh Circuit upheld Florida's law and rejected her First Amendment claim. The opinion, written by Judge Luck, reasoned that the licensing scheme "regulated professional conduct and only incidentally burdened Del Castillo's speech." (STATED, from a news report that does not give the date of the ruling; the date in the report's web address is 21 February 2022. I did not open the opinion, and I did not find the outcome of any further appeal.)

The EU. The Commission's register of nutrition and health claims lists permitted nutrition claims, authorised health claims and non-authorised health claims, and describes itself as "for information only" (VERIFIED against the Commission's page, as summarized). I read Regulation (EC) No 1924/2006 on the UK legislation site, which carries the retained text with UK edits, so its wording may differ from the EU text. Article 10(1) says that health claims are not allowed unless they comply with the Regulation's general requirements and are authorised and listed. Article 12 bars claims "which suggest that health could be affected by not consuming the food," claims "which make reference to the rate or amount of weight loss," and claims that cite recommendations from individual doctors or health professionals, with an exception for national associations of medical, nutrition or dietetic professionals and health charities. Article 14 covers disease risk reduction claims and claims about children's development and health, and requires labeling that notes that the disease has multiple risk factors (VERIFIED against the retained text as summarized). Annex I of the Unfair Commercial Practices Directive lists as

unfair in all circumstances, in point 17, "Falsely claiming that a product is able to cure illnesses, dysfunction or malformations," and, in point 20, describing a product as "gratis," "free," "without charge" or similar if the consumer has to pay anything other than the unavoidable cost of responding to the practice (VERIFIED against the Directive as adopted in 2005).

19.3 How the rules reach pod-boosted posts in this topic

The rules reach a post when it promotes a product or service for sale and makes a claim about health, and they reach a coach also when the coach gives individual advice for pay.

The author is the party on whom nearly all of these rules fall. A coach, seller or brand that posts a claim that a product helps with weight loss, energy or sleep needs the substantiation the guidance describes (INFERENCE as applied; the data cannot show what evidence any author holds). A claim that a product treats or prevents a named disease is a disease claim that the FDA's page says a supplement may not make. Disease-claim patterns appear in 11 posts (0.6%), health-effect words in 289 (16.3%) and results or transformation language in 290 (16.3%). I cannot tell from word counts whether any of those posts promotes a supplement, a program or nothing for sale. A disclaimer phrase of any kind appears in 14 posts (0.8%). The guidance says that the labeling disclaimer is not required in other advertising, so the absence of one in a post is not by itself a violation (INFERENCE from the summary).

Results language bears on the Endorsement Guides, which Chapter 14 sets out. A post that reports a customer's result is a testimonial of the kind Chapter 14 describes, and the *Teami* order shows the Commission requiring disclosure of "unexpected material connection" for influencers who promote health products. Whether a comment under a post, given in return for engagement from the poster, is such a connection is the open question of Chapter 16, and nothing in the *Teami* release addresses it (INFERENCE). A member who comments "this changed my

life" under a post that sells a weight-loss program is the case where the question would matter, and the data do not show that any member did.

A coach who gives individual nutrition advice for pay may meet state licensing law. The Florida decision upheld a licensing scheme against a free speech challenge, in a case in which the plaintiff ran a health-coaching business. States differ, and I did not open any state statute other than as the news report describes Florida's (INFERENCE as applied). The topic's coaching language, program words in 169 posts (9.5%), shows that coaching is sold, and the "DM me" calls in 176 posts (9.9%) show that conversations move to private messages. What a coach says in a private message is outside the data, so I cannot tell whether any post leads to individual advice (INFERENCE). Chapter 8 sets out the rules on direct outreach.

GLP-1 drug names appear in 27 posts (1.5%). The FDA's letters went to telehealth companies, and I cannot tell whether the authors of those posts are such companies, patients, coaches or commentators.

A post that offers something "free" falls under point 20 of Annex I in the EU only if the consumer must pay more than the unavoidable cost of responding. A free guide, call or trial appears in 45 posts (2.5%), and I cannot tell whether any of those carries a cost (INFERENCE).

The tool operator is not an advertiser, and the platform's position is the one in Chapter 10.

Table 19.1 sets out the rules that reach posts on energy, sleep, food and fitness, the parties they reach, an enforcement example and the remedy that the source states.

Table 19.1. Rules that reach posts on energy, sleep, food and fitness, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
15 U.S.C. § 52	Anyone who disseminates a false advertisement for food, drugs, devices, services or cosmetics	See the *Teami* row	Treated as an unfair or deceptive practice under § 45; penalty not stated on the page I read
FTC Health Products Compliance Guidance (20 December 2022)	Advertisers of health-related claims	None opened	Not stated in the summary I read
Federal Food, Drug, and Cosmetic Act, structure/function claims (FDA page)	Supplement makers and sellers	None opened	Not stated on the page I read
FDA warning letters on compounded GLP-1 products (3 March 2026)	Telehealth companies marketing compounded GLP-1 products	30 letters (STATED)	Not stated in the summary I read
FTC and Teami LLC (6 March 2020)	Seller and owners; influencers' undisclosed paid posts	Stipulated order, M.D. Fla., 5-0 vote	$15.2 million judgment suspended on payment of $1 million; ban on unsupported claims; disclosure and monitoring duties
State dietetics licensing (Florida)	Unlicensed persons paid for dietary advice	Del Castillo, Eleventh Circuit (STATED)	Not stated in the report I read
Regulation (EC) No 1924/2006, Arts 10, 12, 14	Food and supplement claims in the EU	None opened	Not stated in the text I read
Directive 2005/29/EC, Annex I points 17 and 20	Traders who claim cures or misuse "free"	None opened	Not stated in the text I read

19.4 What this means for people and for coming generations

The law in this chapter protects people from paying for a benefit that a product does not deliver, and from products that harm them. The second protection is the one where the sources I opened show harm to children.

Sleep is the subject where the data in this topic meet the evidence on young people. The Centers for Disease Control and Prevention report from the 2025 Youth Risk Behavior Survey that about one in four U.S. high school students got at least 8 hours of sleep on an average school

night, 24% in 2025 against 23% in 2023, and that the share declined between 2015 and 2025. The same release reports that persistent sadness or hopelessness fell from 40% to 33% between 2023 and 2025, that daily fruit eating rose from 33% to 39% and daily vegetable eating from 58% to 63%, and that daily physical activity did not change (VERIFIED against the CDC pages, as summarized). Sleep words appear in 491 posts here (27.7%) and sleep-improvement phrases in 100 (5.6%), while kid, child or teen words appear in 89 (5.0%) and a rough pattern pairing teen, child or kid words with sleep in 4 (0.2%). The topic talks about sleep as an adult's problem more than a child's (INFERENCE from the counts).

The melatonin evidence shows a direct harm from a supplement. A CDC report in the *Morbidity and Mortality Weekly Report* found 260,435 pediatric melatonin ingestions reported to U.S. poison control centers from 2012 through 2021, with annual ingestions rising 530%, from 8,337 in 2012 to 52,563 in 2021. Children aged 5 or younger accounted for 83.8%, and 94.3% were unintentional. Of 27,795 patients treated at a health care facility, 14.7% were hospitalized and 1.0% needed intensive care. Five children required mechanical ventilation and two children under 2 died. The report says that melatonin, regulated as a dietary supplement, "is subject to less regulatory oversight" than prescription drugs, cites a "lack of robust manufacturing regulations," and says that "Child-resistant packaging for this supplement should be considered" (VERIFIED against the report, as summarized; the summary noted that the text and a table give different counts for the more serious outcomes, 4,555 and 3,211, and I use neither). Melatonin appears in 13 posts here (0.7%). The report concerns ingestion by children, and the posts concern adults' sleep, so the link between them is the regulatory category and not the content of any post (INFERENCE).

The weight-loss language raises a question about the next generation that I cannot answer from my sources. Weight-loss words appear in 313 posts (17.6%), including the names of GLP-1 drugs in 27. The EU Regulation bars claims about the rate or amount of weight loss in food claims, and the FDA's letters concern misleading claims about compounded drugs. I opened no source on how adolescents encounter weight-loss marketing, on any effect on eating behavior, or on whether the data's weight-loss posts reach young readers, and the pods in the data serve a professional network (INFERENCE). Where the topic is relevant to young people's health in the sources I opened, it is through sleep and supplements.

The licensing case shows two interests in conflict, and I describe both. The plaintiff argued that a rule requiring a license before giving paid dietary advice restricts what a person may say. The Eleventh Circuit held that the rule regulates professional conduct and burdens speech only incidentally. The interests on each side, as I understand them, are protection from unqualified advice and access to guidance from people who are not dietitians (INFERENCE; the report I read states the plaintiff's claim and the court's holding and not the parties' full arguments). I did not open the opinion, and I draw no conclusion on which interest should prevail.

The topic's vocabulary is also that of working life. Workplace words appear in 570 posts (32.1%) and burnout, stress or well-being words in 519 (29.2%). The CDC pages I read concern adolescents, and I opened no source on adult workers' sleep or burnout, so I make no claim about the topic's reach among working adults beyond the word counts.

My conclusion for this chapter is that the rules on health claims set specific requirements for evidence and labeling, that the posts mostly use the vocabulary of wellness while a minority use the vocabulary of treatment or results, and that the strongest evidence of harm to young

people in my sources, the melatonin data, bears on how a product is regulated and not on what the posts say (INFERENCE).

19.5 How this topic bears on mental health

This topic has the most direct mental-health content of the twenty, because its posts discuss sleep, stress and well-being, and the sources I opened treat those subjects as linked.

Words about mental health or stress appear in 519 of 1,775 posts (29.2%), sleep words in 491 (27.7%), and weight-loss words in 313 (17.6%). The American Psychological Association's 2023 advisory says that adolescents should get at least eight hours of sleep each night, that social media use near bedtime is associated with sleep disruption, and that exposure to eating-disorder content may promote similar behavior in vulnerable youth. It also associates appearance-based comparison with disordered eating. Section 19.4 reports the CDC's survey figures on adolescent sleep and its report of 260,435 pediatric melatonin ingestions to U.S. poison control centers from 2012 through 2021.

Workplace words appear in 570 posts (32.1%). The World Health Organization describes burn-out as an occupational phenomenon that results from chronic workplace stress that has not been successfully managed, and the Surgeon General's workplace framework says that long hours raise the risk of exhaustion, anxiety and depression. Advice in these posts on energy and stress therefore concerns subjects that have an official evidence base. I did not open a source that tests whether the supplements the posts name (228 posts, 12.8%) change sleep or mood, and I make no claim about their effect.

The health-claim rules in Section 19.2 govern what a seller may say. The American Psychological Association's 2025 advisory on AI notes that health misinformation can lead to harmful behaviors and delayed treatment. By analogy, an unsupported claim about sleep or stress

could delay a person from seeking care (INFERENCE; the advisory concerns AI output and not posts).

19.6 What the data cannot show

The data cannot show that any post in this topic makes a false or unsubstantiated health claim, promotes a supplement or a drug, offers advice that requires a license, or has a connection that needed disclosure. The counts are of words. A post that tells a reader to see a doctor is counted with a post that advises against it. The posts do not include the private messages that follow a "DM me" call, images, comment threads or the products' labels.

My reading of the law has gaps. The fetch tool returned summaries, and I quote only the words it placed in quotation marks. I did not open the Federal Food, Drug, and Cosmetic Act, the Dietary Supplement Health and Education Act, the FDA's warning letters, the Commission's Health Products Compliance Guidance itself, the *Teami* complaint or order, the Eleventh Circuit's opinion, any state dietetics statute, the official EU text of Regulation 1924/2006, Commission Regulation (EU) No 432/2012 or the Directive on food supplements. The EU text I read is the retained UK copy. I did not search for data on childhood obesity or for the study of melatonin labels that the CDC report discusses, and the CDC report's own count of serious outcomes is inconsistent between its text and its table.

Two questions remain open after this chapter. One is whether a comment given in return for engagement under a post that sells a health product is a testimonial or an endorsement with an unexpected material connection, in the sense of the *Teami* order. The other is whether private-message coaching that follows a public post, offered to a state's residents by an unlicensed coach, is "professional conduct" in the Eleventh Circuit's sense, and I found no authority that applies the decision to coaching conducted by direct message.

Chapter 20. Learning, courses and skills: earnings claims, the Business Opportunity Rule, vocational-school guides, state school licensing and AI literacy

20.1 The topic in the data

Learning, courses and skills is the seventeenth-largest topic, with 1,690 posts, which is 2.6% of the 64,970 placed posts. Nearly half of them come from HyperClapper, 834 posts (49.3%), followed by the podawaa file with 555 (32.8%), the 65 exports with 288 (17.0%) and LinkBoost-2025 with 13 (0.8%). The median post is 857 characters and the 90th percentile is 2,849. A link appears in 934 posts (55.3%), including 625 of the 834 HyperClapper posts (74.9%) and none in LinkBoost-2025. Five or more hashtags appear in 260 posts (15.4%).

The vocabulary is that of instruction for sale. A course, bootcamp, cohort, workshop, webinar, masterclass, curriculum, class, program, academy, certification or certified word appears in 819 posts (48.5%). A certificate, certification, accredited, diploma, degree, badge or credential word appears in 459 (27.2%), although "degree" has other meanings. The word "certified" appears in 21 posts (1.2%) and a word beginning "accredit" in 4 (0.2%). A coach, mentor or consultant word appears in 194 (11.5%), and an enrollment word (enroll, sign up, join, waitlist, cohort, seats) in 99 (5.9%). Price language is uncommon. A fee word (tuition, pricing, price, cost, fee, discount, coupon, promo code, percent off, offer) appears in 162 posts (9.6%), a dollar figure in 60 (3.6%) and a word of payment (premium, subscription, membership, purchase, buy, "pay for," or "paid" before course, program, training or cohort) in 61 (3.6%). A refund or money-back word appears in 1 post (0.1%), a cancel or withdraw word in 2 (0.1%), and a "terms and conditions" phrase in none. A guarantee, refund, money-back or risk-free word appears in 10 (0.6%).

Artificial intelligence appears in about half of the posts. The word "AI" or the phrase "artificial intelligence" appears in 813 posts (48.1%). A phrase about AI skills (AI skills, AI

literacy, AI training, AI course, upskilling in AI, learn AI, prompt engineering, ChatGPT course) appears in 296 (17.5%), and a tool word (prompt, GPT, Copilot, Gemini, Claude, LLM, generative) in 700 (41.4%). A post that contains the capitalized word AI and a course, bootcamp, masterclass, academy or certificate word appears 666 times (39.4%), 565 of them in HyperClapper. The phrase "AI literacy" appears in 5 posts (0.3%), and the pattern "EU AI Act," "AI Act" or "Article 4" adds no further post.

Jobs and earnings are the next subjects. A job, career, hired, resume, interview or salary word appears in 748 posts (44.3%). A narrow pattern for promised job outcomes (get hired, job guarantee, guaranteed job, placement or interview, job placement, career change, placement rate) matches 33 posts (2.0%), 30 of them in HyperClapper, and a wider pattern that lists get hired, land a job, job guarantee, placement, career change and break into matches 75 (4.4%), 72 in HyperClapper. A strict pattern for an earnings claim matches 30 posts (1.8%), and all 30 are in HyperClapper. The pattern is a form of earn, make or generate followed by a currency figure, the phrase "passive income," "six-figure" or "seven-figure," or an amount per month, day, week or year. Of those 30 posts, 29 contain the capitalized word AI, 24 a course, bootcamp, masterclass, academy or program word, 29 a link, 23 the word "free" and 28 a job, career or salary word. None contains a disclaimer phrase (results vary, not typical, no guarantee, individual results, disclaimer, typical results, not a guarantee). Across the whole topic, a disclaimer phrase appears in 3 posts (0.2%). A looser list of income words (income, earn, six-figure, make money) appears in 92 posts (5.4%). Phrases about quitting a job, financial freedom, the 9-to-5, working from home or a laptop lifestyle appear in 2 (0.1%), and a phrase about making money with AI in none.

The posts use proof, authority and urgency in small numbers. A number of students, learners, members or similar, or a phrase such as "trusted by" or "joined by," appears in 128

posts (7.6%), and the narrower form of a number followed by students, learners, graduates or alumni in 5 (0.3%). A word of credential or authority (PhD, professor, certified, accredited, expert, authority, bestselling, MBA) appears in 63 (3.7%). A phrase of scarcity (limited time, spots, seats or places; "only" and a number of spots; spots or seats left; deadline; ends today, tonight or soon) appears in 21 (1.2%), 19 of them in HyperClapper. The word "free" appears in 459 posts (27.2%), although the pattern also matches words such as "risk-free," and a free course, training, masterclass, webinar, workshop, class, trial, guide, ebook, checklist, template, consultation or call appears in 214 (12.7%). Of these, 194 are in HyperClapper, which is 23.3% of that source's posts in the topic.

Young people and education appear in a minority. A word for students, teens, kids, graduates, college, school, Gen Z or interns appears in 185 posts (10.9%), the word "students" in 103 (6.1%), and a word for teens, kids, children, high school, Gen Z or minors in 35 (2.1%). College, university, graduate, student loan, tuition or campus words appear in 62 (3.7%), and teacher, classroom, K-12, curriculum, homework, exam or grade words in 128 (7.6%). A phrase about AI in education (AI tutor, students using AI or ChatGPT, cheating, plagiarism, academic integrity, AI-generated essays) appears in 8 (0.5%), a phrase about the future of work or future skills in 6 (0.4%), and a post with the capitalized word AI and a student, teen, kid, child, graduate or Gen Z word in 56 (3.3%). The name of a learning platform (Coursera, Udemy, LinkedIn Learning, edX, Khan Academy, Skillshare, Pluralsight, DataCamp, Udacity) appears in 93 posts (5.5%), and a corporate-training word (learning and development, corporate training, upskill, reskill, workforce development, onboarding) in 56 (3.3%).

Words about the exchange of engagement do not appear: "pod," "engagement pod" and "engagement group" occur in none of the 1,690 posts, and neither do the words of multi-level

marketing. A "DM me," "inbox me" or "message me" call appears in 14 posts (0.8%), against 1.19% of all 273,771 posts, and a request to comment or follow in 137 (8.1%). These counts are VERIFIED against the data, and each counts words and not claims. A post that warns against an expensive course is counted with a post that sells one.

20.2 The laws that apply

Seven items bear on this topic: the Business Opportunity Rule and the Commission's proposal to extend it; the Commission's guides for private vocational and distance education schools; the Endorsement Guides on expert endorsements; the Commission's guide on the word "free"; state licensing of private postsecondary schools; the EU's rules on withdrawal and on unfair practices; and the EU's duty of AI literacy. The general standard of deception and substantiation is in Chapter 3, and the Endorsement Guides on testimonials and on material connections are in Chapters 14 and 16.

The Business Opportunity Rule. The Rule is at 16 CFR Part 437. In the current text on the eCFR, a business opportunity is a commercial arrangement in which a seller solicits a prospective purchaser to enter a new business, the purchaser makes a required payment, and the seller represents that it or designated persons will provide locations, outlets, accounts, customers or buy-backs of the purchaser's goods or services (§ 437.1(c), paraphrased by the fetch tool). A seller must give the purchaser the material information required by §§ 437.3(a) and 437.4(a) in writing "at least seven calendar days before" the purchaser signs a contract or pays. A seller may not make an earnings claim unless it has a reasonable basis for the claim when made, holds written substantiation and makes it available on request, and furnishes an earnings claim statement, a document that must carry the title "EARNINGS CLAIM STATEMENT REQUIRED BY LAW" and give the number and percentage of purchasers who reached the

claimed level (§ 437.4). Section 437.6 bars, among other things, misstating sales or income figures, presenting the opportunity as employment and misrepresenting purchasers' experiences, and § 437.7 requires records, including substantiation for each earnings claim, to be kept for three years (VERIFIED against the eCFR text, as summarized; the summary paraphrased the definition, I did not see §§ 437.3, 437.5 or 437.8, and I did not find the date of the page).

The proposal to cover coaching. The Commission's page for its notice of proposed rulemaking, matter R511993, is dated 13 January 2025. The notice would retitle the Rule the "Business and Money-Making Opportunity Rule." It says of coaching and similar programs that they "are often structured in a way that does not obviously trigger coverage under the Rule" (the fetch tool's quotation). The notice would add a category of "money-making opportunity" that covers business coaching and investment opportunities where the purchaser makes a required payment. Sellers in that category would have to meet the substantiation and recordkeeping requirements and most of the misrepresentation prohibitions, and the disclosure document would still be required only of business opportunities. The notice also considers excluding certain Title IV higher-education programs (VERIFIED against the notice, as summarized; the summary showed the comment period as 60 days after publication in the Federal Register and gave no calendar date). A trade article reports that Commissioner Ferguson dissented from the proposals, that Commissioner Holyoak joined him, and that an executive order paused pending rules for review (STATED). The Commission's page for the notice lists it as a proposal and records no final rule and no withdrawal, and the eCFR text I read still states the unamended definition. I found no report of a final rule as of the date of my searches in October 2026, though I cannot exclude one.

An enforcement example in this subject. *Federal Trade Commission v. Click Profit, LLC*, No. 1:25-cv-20973-DSL, concerns a Florida company and affiliated companies and four individuals sued as officers, directors or owners. The Commission's case page says that the Commission alleges that the defendants promised large earnings from "passive income" through an AI-powered system for selling products on Amazon, Walmart and TikTok, and that they claimed affiliations with well-known brands to persuade consumers to pay tens of thousands of dollars each. The court issued a temporary restraining order with an asset freeze and a temporary receiver, and preliminary injunctions followed. The page records stipulated orders for permanent injunction and monetary judgment in August 2025 that permanently ban the defendants from the industry and require them to surrender cash, real estate and personal property for consumer redress. The Commission's press-release headline, as the case page reproduces it, put consumers' losses at "At Least $14 Million." A trade article from August 2025 reports the Commission's allegation that most consumers earned "little or nothing" (STATED). The page does not name the court, does not cite the provisions the complaint relies on and still lists the case as "Pending," and it gives conflicting dates for the complaint (3 or 18 March 2025) and for the preliminary injunction, so I give only the month of the final orders (VERIFIED against the case page, as summarized; I did not open the complaint, the orders or the release). Chapter 14 sets out the Commission's other matters about e-commerce coaching and income schemes, and Chapter 12 sets out the *Air AI* matter.

A June 2026 business blog post from the Commission, whose date comes from its web address, tells marketers: "Make sure you can back up your earnings (or lifestyle) claims." It is addressed to multi-level marketing companies and distributors and describes matters of that kind

from April and May 2026. It does not mention coaching, courses or AI (VERIFIED against the post, as summarized).

The Guides for Private Vocational and Distance Education Schools. The Commission's notice of 10 August 1998, effective 9 October 1998, amended these Guides to add a provision on claims about post-graduation employment and salaries. The notice calls the Guides "administrative interpretations of laws administered by the Commission," says that "The amendment does not create new requirements," and says that "Conduct inconsistent with the Guides may result in corrective action by the Commission" (VERIFIED against the Federal Register notice, as summarized). For the content of the sections I read an unofficial mirror of the Code of Federal Regulations, again as summarized. Section 254.0 applies the Guides to privately owned schools that offer resident or distance courses preparing people for jobs, trades or skilled work, or helping people improve their appearance, social skills or personality, and it excludes primary and secondary schools and colleges offering at least a two-year program that is generally creditable toward a bachelor's degree. The Guides address accreditation, which they define by reference to an accrediting agency recognized by the U.S. Department of Education; the availability of jobs after graduation and graduates' success and salaries; enrollment prerequisites, including claims that a lack of schooling or experience is no obstacle; credentials, which may not misstate course content; and the disclosure, before enrollment, of the total cost of the program and the refund policy. Students financed by loans are to be told that the loans must be repaid whether or not they finish or find a job (STATED, from the mirror).

Expert endorsements and the word "free." Under 16 CFR 255.3, if an advertisement says or implies that an endorser is an expert, "the endorser's qualifications must in fact give the endorser the expertise," and the endorsement must rest on "an actual exercise of the expertise"

and on examination or testing "at least as extensive as" a person with that expertise would need (VERIFIED against the Cornell text, as summarized). The Commission's Guide Concerning Use of the Word "Free," 16 CFR 251.1, says that such offers "must be made with extreme care so as to avoid any possibility that consumers will be misled or deceived," and that the terms, conditions and obligations for receiving and keeping the free item should be set out "clearly and conspicuously at the outset of the offer." A footnote reached by an asterisk does not count as disclosure at the outset (VERIFIED against the eCFR text, as summarized; the page does not say whether the guide binds, and it dates from 1971).

State licensing of private schools. In California the Bureau for Private Postsecondary Education approves and oversees private postsecondary institutions. A 2013 legislative analysis says that the Act "requires all unaccredited colleges in California to be approved by BPPE" and exempts an institution that "offers solely avocational or recreational educational programs" (VERIFIED against the analysis, as summarized, which describes the law as it stood in 2013). A modified citation of 15 May 2019 shows the Bureau applying the Act to a San Francisco company that advertised programs, one of them a bootcamp, priced at $1,999 and $7,995. The Bureau cited Education Code sections 94886 (approval to operate), 94858 (the definition of a private postsecondary educational institution) and 94874 (an exemption it found unmet because the company advertised to the public and charged more than $2,500). It set a fine of $75,000, reduced to $1,000 after an informal conference on 3 May 2019 in which the Bureau cited new substantive facts, and it ordered abatement, including the end of recruiting and enrollment and a roster of enrolled students with the amounts they had paid (VERIFIED against the citation, as summarized; I did not open the Education Code, so the dollar threshold in the exemption may

have changed since 2019, and I have not named the company because the citation concerns a single 2019 action).

The EU. The Commission's consumer information page says that a consumer has 14 days to withdraw from an online purchase, counted for services from the date of the contract, and that the right does not apply to digital content once the consumer has "expressly agreed to lose your right of withdrawal by starting the performance" or to a fully delivered service when the consumer expressly agreed to start immediately and acknowledged the loss of the right (VERIFIED against the page, as summarized; I did not open Directive 2011/83/EU). Annex I of the Unfair Commercial Practices Directive lists as unfair in all circumstances, in point 7, "Falsely stating that a product will only be available for a very limited time," in order to elicit an immediate decision, and, in point 20, describing a product as "gratis," "free," "without charge" or similar "if the consumer has to pay anything other than the unavoidable cost of responding to the commercial practice" and collecting or paying for delivery (VERIFIED against the Directive as adopted in 2005, on the UK legislation site).

The EU duty of AI literacy. Article 4 of the AI Act has applied since 2 February 2025. As first written, it required providers and deployers of AI systems to "take measures to ensure, to their best extent" a sufficient level of AI literacy among their staff and others operating the systems on their behalf (quoted in a law-firm article that does not mention the amendment and adds that Article 4 "doesn't specify penalties for non-compliance"). Regulation (EU) 2026/1744, the Digital Omnibus on AI, replaced the text. One secondary source gives its publication in the Official Journal as 24 July 2026 and its entry into force as 27 July 2026. A second article and a Goodwin alert I read earlier also give 27 July 2026, while the Commission's page, as summarized, says mid-July 2026. The new text requires providers and deployers to "take

measures to support" AI literacy. The Commission's page says: "AI literacy remains an obligation for providers and deployers of AI systems," that "no specific – or 'sufficient' - level is mandated," and that "This does not imply that a certain level of AI literacy of any individual is required." It adds that national market surveillance authorities supervise and enforce the duty from 2 August 2026, and that following the practices in the Commission's repository of AI literacy initiatives "does not grant presumption of compliance with Article 4." The same regulation moved the application date for high-risk systems in Annex III, which include education, from 2 August 2026 to 2 December 2027 (the change to Article 4 is CORROBORATED across the Commission's page and two secondary sources, and the Annex III date comes from one secondary source; I did not open the Regulation or the Official Journal, and I did not find how the penalty framework applies to Article 4).

20.3 How the rules reach pod-boosted posts in this topic

The rules reach a post when it sells instruction or a course for a price, and they reach it more firmly when the post states what the instruction will earn or lead to.

The author is the party on whom nearly all of these rules fall. A seller who posts an earnings figure needs the reasonable basis and substantiation that § 437.4 describes if the seller is selling a business opportunity as the Rule defines it, and the general standard of Chapter 3 applies to the claim in any case (INFERENCE as applied). The strict earnings pattern matches 30 posts (1.8%), all in HyperClapper, and none of the 30 contains a disclaimer phrase. The pattern also matches a poster's description of the poster's own income and advice about passive income, and the data do not show what any of the 30 sells, so the count is of posts that state a figure and not of posts that make a claim about what a buyer will earn.

Whether the Business Opportunity Rule applies depends on what is sold. The *Click Profit* case page describes defendants who allegedly offered a system for selling on retail platforms to consumers who paid tens of thousands of dollars each, which resembles an arrangement in which a seller supplies accounts or outlets. A seller of instruction alone supplies none, and the Commission's own notice says that such programs often do not obviously trigger the Rule (INFERENCE from the notice as summarized). This is the question Chapter 14 deferred to this chapter. The topic's coaching words appear in 194 posts (11.5%) and its course words in 819 (48.5%), and I cannot tell from a post whether the seller also supplies accounts, stores or customers. The answer for a seller of instruction alone, on the sources I read, is that the present Rule does not clearly reach it and that the proposed extension had not become a rule when I searched.

Claims about jobs reach the Vocational School Guides if the seller is a school within § 254.0. The narrow pattern for promised job outcomes matches 33 posts (2.0%), 30 in HyperClapper. Nothing I opened says whether an individual who sells a skills course on a social platform is a "privately owned school" in the Guides' sense, or whether such a seller needs approval under a state's school law. The Guides cover courses that prepare people for jobs, which describes much of the topic's vocabulary, but the Guides are interpretations of the FTC Act and not a statute. The deception standard of Chapter 3 reaches a job-outcome claim whether or not the seller is a school (INFERENCE).

Claims about credentials reach the same Guides and the Endorsement Guides. The word "accredited" is a defined term in the Guides, and it appears in 4 posts (0.2%). The word "certified" appears in 21 (1.2%), and certificate words in 444 (26.3%). A certificate word may refer to a certificate of completion, which carries no accreditation claim, or to a credential that

does, and the counts cannot separate the two (INFERENCE). Section 255.3 applies to an endorser presented as an expert, and a seller's statement about the seller's own degree is a claim about the seller, which falls under the general standard (INFERENCE). Credential and authority words appear in 63 posts (3.7%). Where a post states how many students or members a program has, the statement is an objective claim of a kind that the substantiation standard of Chapter 3 covers. The 128 posts (7.6%) with the social-proof pattern include such statements and may include others (INFERENCE as applied).

Offers of something free reach the Free Guide and, in the EU, point 20 of Annex I. A free course, webinar, trial, guide or call appears in 214 posts (12.7%), and 194 of them are in HyperClapper. The Free Guide asks that conditions be stated at the outset. Point 20 asks whether the consumer pays anything beyond the unavoidable cost of responding. Whether giving an email address or a phone number in return for a free webinar is paying anything is a question on which I found no authority (INFERENCE; the posts do not show what a link leads to). Scarcity phrases appear in 21 posts (1.2%), and point 7 concerns only a false statement of limited availability, which the data cannot reveal.

A buyer in the EU has a withdrawal right that almost no post mentions. Terms, refunds and cancellation language is almost absent from the topic (refund words in 1 post, cancel or withdraw words in 2, and "terms and conditions" in none). Posts rarely carry terms, so the absence says little about the landing pages that the 934 links lead to, which are outside the data (INFERENCE).

The AI-literacy duty reaches the employers who buy training and not the posts. A company that deploys AI systems must take measures to support literacy among the people who use them, and a seller of an AI-skills course is subject to Article 4 only if the seller is itself a

provider or deployer (INFERENCE from the Commission's wording). AI-skills phrases appear in 296 posts (17.5%), and "AI literacy" in 5 (0.3%). The Commission says that replicating the practices in its repository gives no presumption of compliance, and I infer that a course certificate gives none either: it shows that training took place and does not show that an employer met Article 4 (INFERENCE).

The engaging member is the party to whom the questions of Chapters 14 and 16 apply. A member who comments "this course changed my career" under a course post is giving a statement of the kind that Chapter 14 describes as a consumer testimonial under § 255.2, and the question that Chapters 16 and 19 left open applies: whether a comment given in return for engagement involves a connection that needed disclosure. The topic has 137 requests to comment or follow (8.1%) and 14 "DM me" calls (0.8%), and the data do not show a member who gave such a comment. The tool operator is not the advertiser, and the platform's position is the one in Chapter 10.

Table 20.1 sets out the rules that reach posts on learning, courses and skills, the parties they reach, an enforcement example and the remedy that the source states.

Table 20.1. Rules that reach posts on learning, courses and skills, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Business Opportunity Rule, 16 CFR Part 437	Sellers whose offer meets § 437.1(c)	*Click Profit* (case page); see also Chapters 12 and 14	Stipulated orders (August 2025): industry ban and surrender of cash, real estate and personal property; amounts not stated on the page
Proposed Business and Money-Making Opportunity Rule (13 January 2025)	Would add business coaching and investment opportunities with a required payment	None (a proposal)	Not applicable; no final rule found
Guides for Private Vocational and Distance Education Schools, 16 CFR Part 254	Privately owned schools within § 254.0	None opened	The Guides are voluntary; conduct inconsistent with them "may result in corrective action"
Endorsement Guides, 16 CFR 255.3	Experts who endorse, and advertisers who use them	None opened	Not stated on the page I read
Guide on "free," 16 CFR 251.1	Sellers who advertise something "free"	None opened	Not stated on the page I read
California Private Postsecondary Education Act (as cited in a 2019 citation)	Institutions operating without approval	Bureau citation, 15 May 2019	$75,000 fine reduced to $1,000; order of abatement
EU 14-day withdrawal right	Traders who sell to consumers online	None opened	Consumer may withdraw within 14 days; exceptions for digital content and fully delivered services after express agreement
Directive 2005/29/EC, Annex I points 7 and 20	Traders who falsely limit availability or misuse "free"	None opened	Not stated in the text I read
AI Act Article 4, as amended by Regulation (EU) 2026/1744	Providers and deployers of AI systems	None opened	Supervised by national market surveillance authorities from 2 August 2026; penalty for Article 4 not found

20.4 What this means for people and for coming generations

The harm alleged in this chapter's enforcement source is money paid for earnings that did not follow, and the stake for coming generations is that the market for skills is where people will pay to prepare for work that is changing.

The headline of the Commission's press release in the *Click Profit* matter reports consumers' losses of at least $14 million, and the case page's allegations describe payments of tens of thousands of dollars by individual buyers. The August 2025 trade article reports the allegation that most buyers earned "little or nothing." Chapter 14 reports the Commission's data spotlight that about one in three job and business-opportunity losses started on social media. The *Click Profit* statements are allegations, the case page does not say whether the defendants admitted them, and I did not open the orders. The count in this topic that comes closest to such a claim is the 30 posts of the strict earnings pattern, which is 1.8% of the topic, and I make no claim that any of them is false.

Employers expect a large demand for training. The World Economic Forum's *Future of Jobs Report 2025*, which surveyed more than 1,000 employers representing more than 14 million workers in 22 industry clusters and 55 economies, reports that employers expect about 39% of workers' current skill sets to be transformed or to become outdated between 2025 and 2030. It reports that of every 100 workers, 59 would need training by 2030, that employers expect 29 to be upskilled in their present roles and 19 to be upskilled and redeployed, and that 11 are unlikely to get the reskilling they need (VERIFIED against the Forum's digest, as summarized; the figures are employers' expectations). A market that must serve that demand also has a large incentive to promise outcomes, which is a reason for the claims rules in this chapter to matter, though no source I opened measures the amount of overstatement (INFERENCE).

The position of young workers is the subject of the Stanford working paper in Chapter 12, which reports that employment of workers aged 22 to 25 in AI-exposed occupations stands 19% below the level it would have reached had it kept pace with less-exposed peers, and its authors describe the finding as descriptive. Pew's survey of 1,458 U.S. teenagers in autumn 2025,

in Chapter 4, reports that 64% use AI chatbots and that 54% report using them for schoolwork (the base for the 54% is not recorded in my notes). UNESCO launched competency frameworks for students and for teachers at Digital Learning Week 2024. The student framework names four competencies: "A human-centred mindset," "Ethics of AI," "AI techniques and applications" and "AI system design," and states the aim of engaging with AI "in a safe, ethical and responsible manner" (STATED, from a UNESCO national commission page, as summarized). This topic's posts say little about children and schools. Words about teens, kids, children, high school, Gen Z or minors appear in 35 posts (2.1%), and a phrase about AI in education in 8 (0.5%). Most of the topic addresses adults who want a career or an income, as the 748 job and career posts (44.3%) suggest (INFERENCE from the counts).

Several protections in this chapter are procedural and bear on those who pay for education with borrowed or scarce money. The Vocational School Guides, as the mirror summarizes them, say that a school should disclose the total cost and the refund policy before enrollment and that borrowers should be told they must repay whether or not they finish or find a job. The California order of abatement requires a roster of students with the amounts they paid, which would let a regulator identify who paid what. The EU withdrawal right gives a buyer 14 days to reconsider an online service, subject to the exceptions in Section 20.2. Each informs or protects a buyer around the time of sale, and none verifies that a course teaches what it says (INFERENCE from the sources). The Guides define accreditation by reference to agencies recognized by the Department of Education, so the value of a credential that a buyer hopes to use in a later job depends on a status that a social-media post can state and that the buyer must check elsewhere (INFERENCE).

The amendment narrowed the duty in Article 4. The first text asked providers and deployers to take measures to ensure, to their best extent, a sufficient level of AI literacy. The amended text asks them to take measures to support literacy, and the Commission's page says that it does not imply that any individual's level of AI literacy is required. I do not judge the change. Its effect on an individual worker is that the law guarantees no level of skill, so the worker has to judge the training offered (INFERENCE). That individual may be a young person entering a workplace in which the employer's training is the only AI instruction available, and I opened no source on what such training contains.

The pods in the data bear on this topic through visibility. A post that sells a course and is boosted by a group of members is shown more widely among people who are choosing training (INFERENCE; the data do not measure the reach of any post). The posts in the topic never mention a pod, and no source I opened records an instance in which a boost changed a buyer's decision.

My conclusion for this chapter is that the Business Opportunity Rule, which the enforcement examples in Chapter 14 invoke, applies on its present text to a seller who supplies locations, outlets, accounts, customers or buy-backs (INFERENCE), that the proposal to cover coaching had not become a rule in the sources I found, and that the posts in this topic which state earnings are few, all in one source and without disclaimers (INFERENCE as to significance). For coming generations, the sources show a large expected need for training, an amendment in the EU that narrowed the AI-literacy duty, and no source I opened that tests whether a course delivers what its advertising says.

20.5 How this topic bears on mental health

Courses and credentials bear on mental health through money and work, and the evidence I opened covers debt and unemployment.

A course, bootcamp, cohort or certification word appears in 819 of 1,690 posts (48.5%), a fee word in 162 (9.6%), and college, student-loan or tuition words in 62 (3.7%). The debt analysis in Section 9.5 found that people in unsecured debt were more than three times as likely to have a mental health problem (STATED), and it does not say which comes first. A course fee is one of many routes into debt. The meta-analysis by Paul and Moser (Section 15.5) found that unemployed people showed more distress, which matters because many posts in this topic present training as a route to work. In the American Psychological Association's 2025 survey, 51% of workers said that finding a new job would take a significant amount of time if they lost theirs, and 44% said they would need to move to a different field or industry.

The rules in Section 20.2, among them the Business Opportunity Rule and the Guides for Private Vocational and Distance Education Schools, require that earnings and employment claims be supported. A course that promises a job at a stated income and does not deliver it leaves a buyer with the cost and without the income (INFERENCE as to the route). I found no study of buyers of courses whose claims proved false.

AI literacy is the one subject where I found a professional recommendation aimed at students. The association's 2025 advisory says that schools, policymakers and developers should teach what AI is and what its limits are. A phrase pairing AI with a student, teen, kid, child, graduate or Gen Z word appears in 56 posts (3.3%).

20.6 What the data cannot show

The data cannot show that any post in this topic makes a false earnings, job or credential claim, sells a business opportunity, operates a school that needed approval, offers something called free that carries a cost, or involves an exchange of engagement. The counts are of words. A post that quotes an earnings figure to criticize it is counted with a post that sells it. The posts do not include the landing pages behind the 934 links, the courses themselves, enrollment contracts, refund terms, private messages that follow a "DM me" call, comment threads or any buyer's outcome. The counts of the strict earnings pattern and the narrow job-outcome pattern depend on the patterns I chose, and a differently defined pattern would give other numbers.

My reading of the law has gaps. The fetch tool returned summaries, and I quote only the words it placed in quotation marks. I did not open the *Click Profit* complaint, orders or release, §§ 437.3, 437.5 and 437.8, the notice of proposed rulemaking beyond a summary or the Commission's separate proposal on earnings claims, the official text of Part 254 (I read an unofficial mirror), Part 255 beyond § 255.3, any rule on negative-option or free-trial offers, the California Education Code, any other state's school or business-opportunity law, the Department of Education's rules on accreditation and student aid, Directive 2011/83/EU, Regulation (EU) 2026/1744 or the official text of Article 4. The trade article on the Commissioners' positions is a secondary source. The status of the proposed Rule is the most perishable point in the chapter, and my searches ran to October 2026.

Three questions remain open after this chapter. The first is whether a coaching-only seller, which supplies instruction and nothing else, is a business opportunity under § 437.1(c) as it stands, a question on which the notice of proposed rulemaking says only that coverage is not obvious and for which I found no decision. The second is whether the vocational-school guides and a state's private-school law reach an individual who sells a skills course on a social platform,

which I found no authority to answer. The third is whether giving contact details in return for a free webinar is a payment for the purposes of point 20 of Annex I of the Unfair Commercial Practices Directive.

Chapter 21. Luxury travel and hotels: total-price rules, travel-seller registration, package-travel protection and hotel liability for the trafficking of minors

21.1 The topic in the data

Luxury travel and hotels is the eighteenth-largest topic, with 1,600 posts, which is 2.5% of the 64,970 placed posts. Almost nine in ten posts come from one source: 1,405 come from the podawaa file (87.8%), 110 from the 65 exports (6.9%), 74 from HyperClapper (4.6%) and 11 from LinkBoost-2025 (0.7%). The median post is 458 characters and the 90th percentile is 902. A link appears in 588 posts (36.8%). Hashtags are the topic's most visible feature: 1,319 posts carry at least one (82.4%), and 905 carry five or more (56.6%), of which 865 are in the podawaa file.

The most common hashtags show what the topic contains. A hashtag for big data appears in 467 posts (29.2%), a hashtag for travel in 407 (25.4%), a hashtag for AI in 358 (22.4%), luxury travel in 321 (20.1%), hospitality in 306 (19.1%) and travel agent in 273 (17.1%). A hashtag for structured data appears in 205 (12.8%), and two further hashtags that are not travel words appear in 14.9% and 14.8% of the posts. I do not name those two, because they may identify a single account. An AI mention in any form (the capitalized word AI, the phrase "artificial intelligence," or an AI hashtag) appears in 537 posts (33.6%). In running text, the capitalized word AI or the phrase "artificial intelligence" appears in 167 (10.4%). An AI hashtag (#AI or #artificialintelligence) appears in 512 (32.0%), and in 370 posts (23.1%) the hashtag is the only mention, which is 68.9% of all posts that mention AI in any form. A post that carries an AI hashtag and a hashtag for big data or structured data appears 458 times (28.6%), and all of these are in the podawaa file. Of the 905 posts with five or more hashtags, 401 carry an AI hashtag. These counts show that a count of "AI" in this topic mostly counts a hashtag block.

The vocabulary of the text is that of hotels and advisors. A hotel, resort, suite, boutique, villa, bed-and-breakfast or hospitality word appears in 1,058 posts (66.1%), and a travel word (travel, trip, vacation, holiday, destination, itinerary, journey, cruise, flight, airline, airport) in 858 (53.6%). A luxury word (luxury, luxe, high-end, exclusive, five-star, premium, bespoke, private jet, island, villa, yacht or chef) appears in 468 (29.2%), and a booking word (book, reserve, availability, check-in) in 368 (23.0%). The name of a hotel group (Marriott, Hilton, Hyatt, Four Seasons, Ritz, Rosewood, Aman, Mandarin Oriental, Belmond, Accor, IHG, Wyndham) appears in 149 posts (9.3%), and the name of a destination such as Dubai, the Maldives, Bali, Abu Dhabi, Monaco, the Seychelles or Bora Bora in 46 (2.9%). A word of wellness, spa or healing appears in 94 (5.9%). A family, kids, children or teens word appears in 65 (4.1%), and in 50 (3.1%) together with a hotel or resort word.

Words about price and fees are rare. A phrase for a fee or a total price (resort fee, destination fee, amenity fee, service fee or charge, hidden fee, cleaning fee, nightly rate, all-in price, total price) appears in none of the 1,600 posts. A per-night price pattern (a number followed by "per night," "/night," "a night" or "nightly"; "from" followed by an amount; or an amount followed by "per person," "pp" or "per night") appears in 3 (0.2%). A dollar figure appears in 41 (2.6%), and in 31 (1.9%) together with a hotel, resort or suite word. A percentage appears in 25 (1.6%). A word for a deal, offer, discount, promotion, sale, saving or early-bird rate appears in 189 posts (11.8%), and in 20 (1.2%) together with a number. A phrase of "book direct," "direct booking," "best rate," "lowest price" or "price match" appears in 24 (1.5%). A scarcity phrase (limited time, spots, availability, rooms or offer; "only" and a number of rooms, spots or seats; "selling out," "sold out," "last minute," "hurry," "don't miss") appears in 34 (2.1%). A guarantee word appears in 9 (0.6%), and the word "free" in 63 (3.9%). A phrase of no

cost (no cost, no charge, no fee, no extra cost, free of charge, no booking fee) appears in 6 (0.4%), 5 of them in HyperClapper, where the topic has only 74 posts.

Travel advisors are a visible group. A word for a travel advisor, agent, designer, planner or consultant, or for IATA, a host agency, a seller of travel, a consortium or the name of an advisor network, appears in 167 posts (10.4%), and 166 of them are in the podawaa file. A perks word (complimentary, upgrade, resort or hotel credit, early check-in, late check-out, free breakfast, perks, amenity, VIP) appears in 88 posts (5.5%), and in 35 (2.2%) together with an advisor word. A recruiting phrase (become a travel agent, start your own business or agency, work from home, home-based, join my team, host agency, be your own boss) appears in 2 (0.1%) and an income word in 12 (0.8%). A word of licensing, bonding or protection (ATOL, ABTA, bonded, licensed and insured, travel insurance, financial protection, ASTA, CLIA, IATA, CST, seller of travel) appears in none.

Claims about quality and conduct appear in small numbers. A superlative (best hotel, resort, spa, destination, place or stay; #1; number one; world's best, finest or leading; finest; unrivalled; unmatched; unparalleled) appears in 78 (4.9%), and an award or ranking word (award, Michelin, Forbes Travel Guide, Condé Nast, Travel + Leisure, ranked, voted, recognized as) in 59 (3.7%). A review word (review, TripAdvisor, Google Reviews, Yelp, Booking.com, star rating, guest feedback, testimonial) appears in 15 (0.9%). A sponsorship or gifting word (#ad, #sponsored, sponsored, paid partnership, gifted, complimentary, comped, press trip, fam trip, hosted by, in partnership with, courtesy of, collaboration with, #collab) appears in 35 (2.2%), though "complimentary" is also a word of hotel perks and the count includes it. A sustainability word (sustainab-, eco-friendly, eco-luxury, carbon, net-zero, regenerative, Green Key, LEED) appears in 36 (2.2%), and in 24 (1.5%) together with a hotel or resort word. Words

for data, personalization, privacy, GDPR, guest data, cookies or tracking appear in 109 (6.8%), and a phrase for AI-powered, AI-driven, assistant, concierge, agent, trip or itinerary, "agentic" or chatbot appears in 59 (3.7%), though "concierge" also names hotel staff. A safety, security or COVID word appears in 25 (1.6%). A word about trafficking, ECPAT, exploitation, safeguarding, child protection or human rights appears in 2 (0.1%). A phrase about the future of travel, hospitality or tourism, the next generation, Gen Z, millennials or future generations appears in 18 (1.1%).

The word "pod" appears in 1 post (0.1%), and I cannot tell whether it refers to an engagement pod or to a sleeping pod or other lodging. A "DM me" call appears in 4 posts (0.2%), against 1.19% of all 273,771 posts, and a request to comment or follow in 9 (0.6%). These counts are VERIFIED against the data, and each counts words and not claims. A post that criticizes a resort fee is counted with a post that charges one.

21.2 The laws that apply

Six items bear on this topic: the Federal Trade Commission's rule on unfair or deceptive fees as it applies to lodging; state attorney general actions on resort fees; European consumer-law action against accommodation platforms; California's law on sellers of travel; the EU Package Travel Directive; and civil liability of hotel operators under the federal law on the trafficking of persons. The rules on reviews are in Chapter 12, on endorsements and material connections in Chapters 14 and 16, on environmental claims in Chapter 18, on offers of something "free" in Chapter 20, and on AI chatbots and AI claims in Chapter 4.

The total-price rule for lodging. The FTC's Rule on Unfair or Deceptive Fees, 16 CFR Part 464, took effect on 12 May 2025. The FTC's guidance says that the Rule covers any business that "offers, displays, or advertises" short-term lodging, including third-party platforms,

resellers and travel agents, and that covered lodging includes hotel and motel stays, short-term and vacation rentals, home shares listed through platforms and discounted extended stays. It applies to offers, displays and advertisements online, in a mobile app, in physical locations or "through some other means," and the page does not mention social media by name. A business that advertises a price must disclose the total price up front, including all known charges it can calculate in advance, such as mandatory fees, and must display the total price more prominently than other pricing information. The page's example is a resort that adds a mandatory "resort fee" to its nightly rate, and the fee must be included in the total. Fees count as mandatory if they are unavoidable, required regardless of the customer's choices or effectively forced through default billing, pre-checked boxes or opt-out provisions. A business may leave government charges, shipping charges and fees for optional add-ons out of the total, if it discloses them clearly before payment is requested. Descriptions of fees must be truthful, and the page's example is a fee labeled "environmental" that is not used for environmental purposes (VERIFIED against the FTC's guidance, as summarized; I did not open the text of § 464.1 or § 464.2 for this chapter, and the civil penalty that applies to a knowing violation of a rule is in Chapter 3).

State action on resort fees. The District of Columbia's Office of the Attorney General sued Marriott International in the Superior Court of the District of Columbia. The complaint alleges "drip pricing," meaning that Marriott advertises a room rate that omits mandatory daily resort fees, which are added later in the booking process, and that Marriott describes the fees ambiguously, sometimes under "Taxes and Fees." It cites the District's Consumer Protection Procedures Act, including the provisions on misrepresentation and on advertising without the intent to sell as advertised, and it seeks an injunction, restitution and civil penalties. It alleges fees of $9 to $95 per day across at least 189 Marriott-affiliated properties, and that Marriott has

earned "hundreds of millions of dollars" from them over a decade (VERIFIED against the complaint, as summarized; the text shows no filing date, the web address suggests July 2019, and I did not find the outcome). The ABA Journal reports that the Pennsylvania attorney general announced a settlement with Marriott on 17 November 2021 under which Marriott would "prominently disclose the total price of a hotel stay online, including all mandatory fees," within nine months and sort search results by total price. Marriott did not admit wrongdoing and said that its mandatory fees had long been clearly disclosed (STATED, from the ABA Journal report, which does not state any payment amount).

Action against accommodation platforms in the EU. The European Commission's page on a coordinated action by the consumer protection authorities records that Booking.com committed to changes in how it presents "offers, discounts and prices" (a letter and commitments of 18 December 2019), that Expedia Group did the same (18 December 2020), and that Airbnb changed its price presentation after a common position of the authorities (5 July 2018), so that the consumer sees "the total price inclusive of all the applicable mandatory charges and fees." The page does not describe further enforcement and does not mention pressure selling or sustainability claims (VERIFIED against the page, as summarized; I did not open the factsheets).

California's law on sellers of travel. The California Attorney General's guidance defines a seller of travel as a person who "sells, provides, furnishes, contracts for, arranges, or advertises" certain transportation, which includes air or sea travel, and land or water vessel travel other than sea carriage where the total charge to the passenger exceeds $300. Air carriers, ocean carriers, certain lodging establishments that arrange transportation but never receive payment for it, government-authorized transportation providers and certain agents of registered sellers are generally exempt. The annual fee is $100 for each business location, and a registered seller with

a principal place of business in California that does business with persons in California must participate in the Travel Consumer Restitution Fund. The registration number appears on the seller's certificate, and the page refers readers to another document for how to use it. The page does not describe penalties, and says that disbursing trust funds for purposes other than paying for goods and services, or making refunds, "may constitute a crime" (VERIFIED against the guidance, as summarized; I did not open the statute, Business and Professions Code section 17550 and following, or any other state's law).

The EU Package Travel Directive. The European Commission's e-justice page says that a package combines "at least 2 different types of travel service" for the same trip, selected before payment and sold at an inclusive price or advertised as a package, and that a linked travel arrangement involves separate contracts and arises where services are chosen and paid for in one visit to the point of sale or where another service is offered within 24 hours of the first booking. The organiser is "responsible for the performance of the travel services in the contract," must remedy a service that does not conform unless this is impossible or disproportionate, and must give travellers insolvency protection. Price increases are generally capped at 8%, are allowed only on specified grounds and require notice "at least 20 days before the start of the package," and a traveller may terminate with a refund if the organiser makes significant changes or raises the price by more than 8%. A traveller may cancel before departure, with an appropriate fee, but owes none where "unavoidable and extraordinary circumstances" at or near the destination significantly affect the package. Member States had to transpose the Directive by 1 January 2018, and it has applied since 1 July 2018 (VERIFIED against the page, as summarized; the page does not mention any revision). A law-firm article reports that the European Commission proposed an amendment on 29 November 2023, that the Council of the EU adopted it on 30

March 2026, that the Directive "has been amended by Directive (EU) 2026/1024 of 29 April 2026" and that Member States have 28 months to transpose it. The article says that the amendment makes vouchers voluntary for the traveller, requires an accepted voucher to be valid for at least 12 months and covered by insolvency protection, and sets a refund deadline of six months, extendable by nine months in justified cases (STATED; I did not open the amending Directive).

Hotel liability for the trafficking of minors. The federal civil remedy for victims of trafficking, 18 U.S.C. § 1595, allows a victim to sue the perpetrator and also anyone who knowingly benefits, financially or by receiving something of value, from participating in a venture that the defendant "knew or should have known" violated the statute. The plaintiff may recover damages and "reasonable attorneys fees," and a suit may be filed up to 10 years after the cause of action arose or, if the victim was a minor when the offense occurred, 10 years after the victim reaches 18 (VERIFIED against the Cornell text, as summarized). On 30 March 2026 the Eleventh Circuit decided *A.G. v. Northbrook Industries, Inc.*, vacating summary judgment for hotel operators. A law-firm article reports that the court reaffirmed that "something more" than an ordinary commercial transaction is required to show participation in a venture, that routine room rentals are not enough alone even with knowledge of trafficking, and that evidence that staff dealt directly with traffickers, admitted minors without verification and ignored warning signs was enough to reach a jury. A news report states that the decision revived three suits by women who say that they were trafficked as minors at two hotels near Atlanta, and that the cases returned to the Northern District of Georgia (STATED, from two secondary reports that agree on the date and the outcome; I did not open the opinion, I make no statement about the facts of the underlying suits, which are allegations, and I name neither the plaintiffs nor the hotels).

21.3 How the rules reach pod-boosted posts in this topic

The rules on price and fees reach a post that states a price for lodging, and the topic contains very few such posts.

The author is the party on whom the price rules fall. A hotel or an advisor that states a nightly rate in a post is, on the FTC's guidance, a business that "advertises" short-term lodging, and the guidance requires the total price (INFERENCE as applied, since the guidance does not name social media). The per-night price pattern matches 3 posts (0.2%), a dollar figure together with a hotel, resort or suite word matches 31 (1.9%), and no post contains a fee phrase. The data cannot show whether the 31 posts state a rate for a stay or a price for something else, such as a meal, an event or a package, and a post that states no price falls outside the price requirement. The few posts that carry a price are the only ones in this topic where the total-price question would arise, and the data do not show that any omits a mandatory fee.

A travel advisor is the party to whom the California law may apply. The California Attorney General's guidance defines the seller of travel to include a person who "advertises" covered transportation, and travel advisor words appear in 167 posts (10.4%). Some travel advisors may be exempt as agents of registered sellers, and posts addressed to readers outside California, or about trips with no covered transportation, fall outside the law (INFERENCE from the guidance). A word of registration or protection appears in no post, and I treat that as unremarkable: a post is a short statement, and the guidance I read does not say that a post must carry a registration number. Whether a social-media post is an advertisement that requires one is an open question that I found no authority to answer.

Posts about groups and packages reach the Package Travel Directive. A package, all-inclusive, retreat, group trip, guided tour or hosted-trip word appears in 64 posts (4.0%). A person who sells a combination of travel services to travellers in the EU at an inclusive price

may be an organiser, with responsibility for the services and a duty of insolvency protection, and a person who only recommends separate services is not (INFERENCE from the page's definitions). The posts do not say who sells what to whom.

Claims of free perks and no cost reach the guide on "free" and, in the EU, the Directive on unfair practices, whose treatment I set out in Chapter 20. A perks word appears in 88 posts (5.5%), and a perks word together with an advisor word in 35 (2.2%). A phrase of no cost appears in 6 (0.4%), a statement that the data cannot test, because whether an advisor charges a fee is outside the posts.

Reviews, sponsorship and awards reach rules set out elsewhere. A review word appears in 15 posts (0.9%), so the rule on reviews in Chapter 12 has little to apply to. A gifting or sponsorship word appears in 35 (2.2%), but the count includes "complimentary," so I cannot say how many mark a disclosed relationship, and the material-connection question of Chapter 16 arises when a hotel gives a stay to a person who then posts about it (INFERENCE). An award or ranking word appears in 59 (3.7%) and a superlative in 78 (4.9%). A statement that a hotel was ranked or voted something is a measurable claim that the substantiation standard of Chapter 3 covers, and the line between such a claim and an opinion is one I did not research for this chapter (INFERENCE).

Sustainability words reach the Directive on empowering consumers for the green transition, which Chapter 18 sets out and which, on the sources I read there, applies from 27 September 2026. Sustainability words appear in 36 posts (2.2%) and in 24 (1.5%) with a hotel or resort word. The FTC's guidance on fees gives the example of a fee labeled "environmental," which links the price rule to the green-claims rules (INFERENCE).

AI claims reach the rules in Chapter 4, and the topic's AI counts need a caution. A hashtag for AI appears in 512 posts (32.0%) and is the only mention in 370 (23.1%). A hashtag attached to a hotel post is not an express statement that the hotel uses AI, and I found no authority on how the rules treat a hashtag alone (INFERENCE). In running text, the AI-system phrases (AI-powered, assistant, concierge, agent, chatbot) appear in 59 posts (3.7%). Where a hotel deploys a chatbot that guests in the EU use, Chapter 4's treatment of the AI Act's transparency duty bears on it.

The liability of hotel operators for trafficking reaches operators and their franchisors and not the posts. Words about trafficking, exploitation, safeguarding or child protection appear in 2 posts (0.1%). The decision concerns what a hotel did, and the topic's posts are about hotels' products and services.

The engaging member, the tool operator and the platform are as in earlier chapters. The topic has 4 "DM me" calls (0.2%) and 9 requests to comment or follow (0.6%), few for a topic whose posts are so heavily tagged. The tool operator is not the advertiser, and the platform's position is the one in Chapter 10.

Table 21.1 sets out the rules that reach posts on luxury travel and hotels, the parties they reach, an enforcement example and the remedy that the source states.

Table 21.1. Rules that reach posts on luxury travel and hotels, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Rule on Unfair or Deceptive Fees, 16 CFR Part 464	Businesses that offer, display or advertise short-term lodging, including platforms, resellers and travel agents	None opened under the Rule	Not stated on the page I read (civil penalties: Chapter 3)
D.C. Consumer Protection Procedures Act (as alleged)	A hotel company that advertises rates without mandatory resort fees	*District of Columbia v. Marriott International* (complaint); outcome not found	Relief sought: injunction, restitution, civil penalties
State settlement (Pennsylvania, 17 November 2021)	Online display of hotel prices	Marriott settlement (STATED)	Total price with mandatory fees within nine months; sorting by total price; no admission
EU coordinated action on accommodation booking	Booking.com, Expedia Group, Airbnb	Commitments of December 2019 and December 2020; common position of July 2018	Changes to the presentation of offers, discounts and prices; total price with mandatory charges
California Seller of Travel law	Persons who sell, arrange or advertise covered transportation	None opened	$100 fee per location; restitution fund participation; penalties not described on the page
Package Travel Directive (EU) 2015/2302, as amended by (EU) 2026/1024	Organisers of packages and linked travel arrangements	None opened	Remedy, refund and insolvency protections; 8% cap on price increases
18 U.S.C. § 1595	Perpetrators and those who knowingly benefit from a venture they knew or should have known violated the law	*A.G. v. Northbrook Industries* (11th Cir., 30 March 2026; STATED)	Damages and reasonable attorneys' fees; suit allowed until 10 years after the victim reaches 18

21.4 What this means for people and for coming generations

The law in this chapter protects a traveller's money and, in one provision, the safety of children, and I take them in that order.

The price rules protect a person's ability to compare. The District of Columbia's complaint alleges daily fees of $9 to $95 and describes them as added late in the booking process, and the Pennsylvania settlement and the FTC's rule respond by requiring the total price at the start. The figures are allegations, and my sources do not measure how much consumers paid or whether the rules have changed what they pay (INFERENCE). A state attorney general, the EU's consumer authorities and the FTC have each, in the sources I read, required or adopted a display of the total price, which means that the price a person sees first is the price the person pays.

The protections for money paid in advance matter most for people who book far ahead. The Package Travel Directive gives the traveller a remedy against the organiser for a service that the organiser did not supply, a refund on a cancellation caused by extraordinary circumstances and protection if the organiser becomes insolvent, and the 2026 amendment extends that protection to vouchers. California's restitution fund serves the same purpose for the customers of registered sellers. Both mechanisms depend on a traveller knowing which kind of seller the traveller is dealing with, and the topic's posts contain no word of licensing, bonding or protection (INFERENCE; the posts are short, and the landing pages are outside the data). My sources contain no data on who buys luxury travel through advisors or on the age of those buyers.

The child-protection law is a distinct matter. Section 1595 allows a victim who was a minor when the offense occurred to sue until 10 years after turning 18, a period that allows for the years it can take a person to bring a claim (INFERENCE as to the reason). The Eleventh Circuit's decision shows where a court draws the line for hotel operators: a rented room with knowledge of trafficking is not enough alone, and conduct such as dealing directly with traffickers, admitting minors without verification and ignoring warning signs can be. The reports

state allegations by women who say they were trafficked as minors, and I do not know how the suits will end. I opened no source on how common trafficking is in hotels, and I make no statement about it. The topic's posts almost never mention the subject (2 posts, 0.1%), and the posts are about hotels and their marketing while the cases I read concern two hotels near Atlanta, so the decision bears on the industry's duties and not on any statement in the data (INFERENCE).

Tourism is also a source of the emissions that coming generations will live with. A study by Lenzen and others in *Nature Climate Change* in 2018, as Carbon Brief reports it, found that tourism accounted for 8% of global greenhouse gas emissions over 2009 to 2013, that its footprint rose from 3.9 to 4.5 billion tonnes of carbon dioxide equivalent over those years and that the growth was "largely driven by an increased demand for goods and services" rather than air travel (STATED, from a news report on the study; I did not open the study). Sustainability words appear in 36 posts here (2.2%), and the law on sustainability claims applies from 27 September 2026 on the sources in Chapter 18. The claims rule governs how a hotel may describe its performance and does not cap emissions, so the law protects a traveller's ability to choose on accurate information and leaves the emissions themselves to other law (INFERENCE).

The topic's treatment of the future is thin. A phrase about the future of travel, the next generation, Gen Z or future generations appears in 18 posts (1.1%). The AI count, which looks like the topic's main theme at 33.6%, is mostly a hashtag block, and 68.9% of the posts that mention AI do so only in a hashtag. I draw no conclusion about whether the block was added to widen the audience, and I note that a reader who relied on the count would overstate by a factor of about three the amount of discussion of AI in hotels.

My conclusion for this chapter has three parts. The rules that most fit the topic, those on total prices, apply to few posts (31 with a price and a hotel word). The registration and package rules depend on facts that a post does not show. The evidence of harm in my sources concerns fees and prepayment, which I read as allegations and rules, and the safety of minors in hotels, which I read only through reports of litigation, and the posts discuss neither (INFERENCE).

21.5 How this topic bears on mental health

The mental-health evidence that fits hotels concerns survivors of trafficking, and the posts in this topic say almost nothing about it.

The text is about hotels and travel. A hotel, resort or hospitality word appears in 1,058 of 1,600 posts (66.1%), a luxury word in 468 (29.2%), and a wellness, spa or healing word in 94 (5.9%). A word about trafficking, ECPAT, exploitation, safeguarding, child protection or human rights appears in 2 posts. Section 21.2 sets out hotel liability for the trafficking of minors. Oram and colleagues (2012, *PLoS Medicine*) found high symptom levels of depression, anxiety and post-traumatic stress in studies of trafficked people and, in three studies, that distress appeared to decline with time since leaving exploitation. The authors warn that few studies used diagnostic interviews, that nearly all concerned women and girls, and that evidence on children and on people trafficked for labor is largely absent. Section 17.5 gives the figures for forced labor overall. I found no figure for trafficking that involves lodging.

For a traveler, the evidence I opened is slight. The total-price rule and the rules on package travel protect consumers from surprise costs, and I found no study of their mental-health effect. A post that advertises a spa or wellness stay makes a leisure claim, and I found no source on whether such stays change mental health, so I make no claim about it. The 94 posts with wellness words are counted only as words.

21.6 What the data cannot show

The data cannot show that any post in this topic advertises a price without a mandatory fee, operates as an unregistered seller of travel, sells a package, makes a false claim about a perk, an award or sustainability, conceals a gifted stay or involves an exchange of engagement. The counts are of words. The posts do not include the images that carry much of a hotel's marketing, the landing pages behind the 588 links, the booking flows, the advisors' registrations or the identity of the person who wrote a post. Hashtags dominate the topic, and a count of any word that also appears as a hashtag, such as AI, includes it.

My reading of the law has gaps. The fetch tool returned summaries, and I quote only the words it placed in quotation marks. I did not open § 464.1 or § 464.2 of the FTC's rule or any complaint or order under it, the outcome of the District of Columbia case, the Pennsylvania press release, the European Commission's factsheets on the EU action, the California statute or any other state's seller-of-travel law, the text of Directive 2015/2302 or the amending Directive (EU) 2026/1024, the UK's package travel rules, the Department of Transportation's rules for airlines, the study of tourism's emissions, the Eleventh Circuit's opinion, the other provisions of the federal trafficking law, any state law on hotel staff training, or the law on guest data. I did not examine the privacy and data-security law that applies to hotels, though data words appear in 109 posts (6.8%). Several of the sources are law-firm articles, trade reports and news reports. The decision of 30 March 2026 and the 2026 amendment of the Package Travel Directive are recent, and I read them only in those reports.

Two questions remain open after this chapter. The first is whether a travel advisor's social-media post that arranges or promotes covered transportation "advertises" it within California's law and so calls for a display of a registration number. The second is whether a post that states a nightly rate for a hotel with no mechanism for booking is an offer, display or

advertisement under the FTC's fee rule, so that the total price must appear in it. I found no authority that answers either.

Chapter 22. Life, family and personal stories: children's online privacy, child-influencer statutes, likeness rights, health data and the duties of platforms toward minors

22.1 The topic in the data

Life, family and personal stories is the nineteenth-largest topic, with 1,314 posts, which is 2.0% of the 64,970 placed posts. The podawaa file supplies 796 of them (60.6%), HyperClapper 267 (20.3%), the 65 exports 237 (18.0%) and LinkBoost-2025 14 (1.1%). The median post is 287 characters and the 90th percentile is 946. A total of 395 posts (30.1%) are 140 characters or shorter, and 112 (8.5%) are 1,000 characters or longer. A link appears in 107 posts (8.1%). A hashtag appears in 547 (41.6%), and five or more hashtags in 221 (16.8%), of which 175 are in the podawaa file.

One word defines the topic. The word "life" appears in 1,270 of the 1,314 posts (96.7%), counting words outside hashtags and links. The topic is therefore the set of posts that talk about life in general, and families are only part of it. The most common other words, counted by posts, are time and work (206 posts each), people (197) and day (172). The most common hashtags are #life (44 posts, 3.3%), #success (29, 2.2%), #worklifebalance (26, 2.0%), #personalgrowth (22, 1.7%), #leadership (20, 1.5%), #happiness (18, 1.4%) and #mindset (15, 1.1%). Four of the 25 most common hashtags are personal or brand names, each in 9 to 14 posts (0.7% to 1.1%), and I do not name them. An advice, lesson, goal, success, mindset, habit or growth word appears in 436 posts (33.2%), a gratitude word in 83 (6.3%), and a storytelling phrase such as "my story," "my journey," "when I was," "growing up" or "I remember" in 101 (7.7%). A word about work-life balance, burnout or hustle appears in 107 (8.1%). First-person words (I, my, me, we, our) appear in 640 posts (48.7%), and 99 posts (7.5%) begin with "I," "I'm," "I've," "My" or "We."

Family words are present in a minority of posts. A word for a relative (family, kids, children, child, son, daughter, mom, mother, dad, father, wife, husband, parent, baby,

grandparent, sibling, brother, sister) appears in 142 posts (10.8%), and 91 of them are in the podawaa file. A word for a child or teenager (kids, children, child, toddler, newborn, baby, teen, teenager, minor) appears in 36 posts (2.7%), and a phrase of the form "my son," "my daughter," "my kids" or "my child" in 8 (0.6%). A number followed by "year old," or "aged" and a number, appears in 16 posts (1.2%). Of these, 3 give an age under 13 and 3 an age from 13 to 17 (0.2% each); I did not classify the other 10, which include adult ages. A word about students, youth, teens, Gen Z or the next generation appears in 10 posts (0.8%), a school word in 28 (2.1%), and a word about screens, social media, phones or a named social platform in 15 (1.1%). A photo, picture, selfie or video word appears in 55 posts (4.2%). A phrase about legacy, future generations or grandchildren appears in 10 (0.8%).

Personal hardship appears in small numbers. A word about illness (including cancer), a hospital, a disability, a diagnosis, surgery, therapy, burnout, anxiety, depression, trauma, addiction or pregnancy appears in 64 posts (4.9%). A word about death, a funeral or grief appears in 21 (1.6%), a word about divorce, separation or custody in 7 (0.5%), and a word about debt, bankruptcy, eviction, a layoff or a lost job in 11 (0.8%). An insurance word appears in 17 posts (1.3%), 14 of them in the podawaa file, and the hashtag #lifeinsurance appears in 7. A holiday, birthday, wedding or anniversary word, including the names of holidays, appears in 45 (3.4%). These counts show which words occur and not whose illness, loss or child a post describes.

Promotion and engagement requests are uncommon. A promotional word or phrase (sponsor, paid partnership, affiliate, promo code, link in bio or comments, "my course," "my program," "my book," "my podcast," "my newsletter," "my coaching," sign up, subscribe, "join my" or "join our," buy, purchase) appears in 46 posts (3.5%), and a word about business

(business, client, customer, founder, entrepreneur, startup, CEO, brand, marketing, sales, revenue, career, job, employer, boss, manager, team) in 171 (13.0%). A child word, with "my son" and "my daughter" added, appears in 42 posts (3.2%), and 5 of them (0.4%) also contain a promotional word. A relative word appears together with a promotional word in 6 posts and with a narrower set of business words (business, client, customer, founder, entrepreneur, startup, CEO, brand, marketing, sales, revenue) in 11. A "DM me" call appears in 4 posts (0.3%), against 1.19% of all 273,771 posts, and a request to comment or follow in 17 (1.3%). A phrase of reciprocal support (support each other, engage with each other, like and comment, drop a comment, boost) appears in 12 (0.9%), and a giveaway, contest, "tag someone," "share if" or repost phrase in 26 (2.0%), 5 of them (0.4%) with a relative word. The word "pod" appears in none of the 1,314 posts. A relative word appears with five or more hashtags in 29 posts (2.2%). No post contains a word about privacy, data protection, consent, GDPR or COPPA. The capitalized word AI or the phrase "artificial intelligence" appears in 20 posts (1.5%), in the running text of 19; four posts carry an AI hashtag, and in one it is the only mention.

These counts are VERIFIED against the data, and each counts words and not claims. The data contain no images or video, so the photographs and clips that a post may carry are outside the counts.

22.2 The laws that apply

Six items bear on this topic: the federal rule on children's online privacy; state statutes on children who appear in monetized online content; state law on the use of a person's likeness in advertising; the GDPR's provisions on children's consent, health data and personal activity; the FTC's Endorsement Guides on advertising addressed to children; and the Digital Services Act's duty on platforms to protect minors. The rules on endorsements and material connections are in

Chapters 14 and 16, on health claims in Chapter 19, on AI in Chapter 4, on engagement-pod rules and the platform's own position in Chapter 10, and on offers of something "free" in Chapter 20.

The children's online privacy rule (COPPA). The FTC amended its Children's Online Privacy Protection Rule in a final rule published in the Federal Register on 22 April 2025. The Rule applies to operators of websites or online services directed to children under 13 and to general-audience operators that have actual knowledge that they collect personal information from children under 13. The amended Rule took effect on 23 June 2025, and regulated entities have until 22 April 2026 to comply, with three provisions of section 312.11 that apply from the effective date. The summary I read says that the amendments add biometric identifiers (fingerprints, handprints, retina and iris patterns, genetic data, voiceprints, gait patterns and facial templates) and government-issued identifiers to the examples of personal information, add a definition of "mixed audience" sites, allow a mobile phone number to be used only to text a parent for consent, and revise the duties on notices, information security, deletion and retention, methods of parental consent and reports by safe-harbor programs. The FTC deferred its proposals on educational technology and school authorization (VERIFIED against the Federal Register page, as summarized; the summary covered the first 100,000 of 124,761 characters, and I did not open the text of sections 312.2 or 312.5). Enforcement shows what the Rule reaches. In September 2019 the FTC and the New York Attorney General announced a settlement with Google and YouTube of $170 million, of which $136 million went to the FTC and $34 million to New York, over the collection of persistent identifiers from children to serve behavioral advertising. A law-firm article reports that the complaint alleged actual knowledge that some channels were child-directed and treated individual channels as websites or online services, so

that companies posting child-directed content there could be treated as operators (STATED, from a law-firm article; I did not open the complaint). Another law-firm article reports that on 2 September 2025 the FTC announced a COPPA settlement with a video publisher, which the article does not name, for labeling child-directed videos "Not Made For Kids," with a $10 million civil penalty, and on 3 September 2025 a settlement with Apitor, a maker of toy robots, over a third-party kit that collected children's location data in its app, with a $500,000 penalty that was suspended because the company could not pay (STATED).

State statutes on child influencers. Illinois and Minnesota have laws that give a child a financial claim on content in which the child appears. A law-firm article reports that the Illinois law, which took effect on 1 July 2024, covers minors under 16 who appear in compensated video content. A minor qualifies if, at any time in the previous 12 months, the minor appeared in at least 30% of the creator's compensated content produced in a 30-day period, measured by the share of video time in which the minor appears or is the subject of an oral narrative, and either the video reached the platform's compensation threshold or the creator received at least $0.10 per view. The creator must set aside a share of gross earnings in a trust that the minor can reach at 18 or on emancipation, and the share scales with the minor's presence: at least 50% of gross compensation when the minor appears in all qualifying content, and at least 25% when the minor appears in half of it. The creator must keep records, and a minor may sue the creator, including a parent, for knowing or reckless violations, with actual and punitive damages available (STATED; I did not open the statute). A second law-firm article and a legislative summary report that the Minnesota law (House File 3488, Chapter 103 of 2024) took effect on 1 July 2025, uses the same 30% test, requires a trust until the minor reaches 18, and lets a person who appeared in content as a minor ask for its deletion and sue for damages (CORROBORATED for

the effective date, the 30% test, the trust and the deletion right; the right to sue comes only from the legislative summary). The law-firm article and a policy article add that Minnesota bars children under 14 from the work of content creation. The legislative summary words this part in a way that I could not reconcile with the other two, so I rely on them for it. The policy article, published on 25 July 2025, states that California has passed a similar law (Senate Bill 764), that Utah passed House Bill 322 in April 2025 with a trust requirement only for account holders who have earned at least $150,000 from content creation, and that Montana passed a similar law. It gives no effective dates and says that the laws address revenue-generating content and so address financial exploitation (STATED). The article of September 2024 listed bills pending in eight states, among them California, and I did not check what happened to the others.

Likeness: California Civil Code section 3344. Section 3344 makes liable "Any person who knowingly uses another's name, voice, signature, photograph, or likeness" for purposes of advertising or selling, or soliciting purchases of, products, merchandise, goods or services without the person's prior consent, and for a minor the consent must come from a parent or guardian. The injured party may recover the greater of $750 or actual damages, profits from the use that are not already counted in the damages, punitive damages and attorney's fees. Uses in connection with a news, public affairs or sports broadcast or account, or a political campaign, do not need consent under subdivision (a) (VERIFIED against the page, as summarized; I opened only California's statute and no case under it, and other states protect likeness by statute or by common law that I did not read).

The GDPR: children's consent, health data and personal activity. Article 8 provides that, where consent is the lawful basis for an information society service offered directly to a child, processing is lawful if the child is at least 16, that below 16 it is lawful only if the holder

of parental responsibility gives or authorizes consent, that Member States may lower the age but "not below 13 years," and that the controller must make reasonable efforts to verify parental consent "taking into consideration available technology" (VERIFIED against the text, as summarized). Article 9 prohibits processing of special categories of data, which include data concerning health, and Article 9(2)(e) lifts the prohibition when the processing "relates to personal data which are manifestly made public by the data subject" (VERIFIED; the summary truncated the text of Article 9(1)). Article 2(2)(c) excludes processing "by a natural person in the course of a purely personal or household activity," and Recital 18 says that the Regulation does not apply to such processing "with no connection to a professional or commercial activity," that social networking and online activity within that context can be personal or household activity, and that the Regulation applies to "controllers or processors which provide the means" for such processing (VERIFIED against the text, as summarized). The Court of Justice has read the exemption narrowly. In *Lindqvist* (C-101/01, 6 November 2003), under the earlier Directive 95/46/EC, the Court held that naming people on a web page is processing of personal data, that a reference to a person's state of health is data concerning health, and that the exemption for purely personal or household activities did not apply to the pages (VERIFIED against the Court's press release, as summarized; I did not open the judgment). In *Ryneš* (C-212/13, 11 December 2014), the Court held that the exemption covers only processing in a "purely personal or household" setting and that a camera covering part of a public space is directed outward from the home and falls outside it (STATED, from a commentary on the judgment; I did not open it).

Endorsements directed to children. Section 255.6 of the Endorsement Guides, titled "Endorsements directed to children," provides in full: "Endorsements in advertisements addressed to children may be of special concern because of the character of the audience.

Practices that would not ordinarily be questioned in advertisements addressed to adults might be questioned in such cases." (VERIFIED against the Cornell text.) The section applies to advertisements addressed to children. The material-connection rule in section 255.5, which names a family relationship as a connection that may need disclosure, is set out in Chapter 16.

The platform's duty toward minors under the Digital Services Act. The European Commission published guidelines on 14 July 2025 under Article 28(1) of the Digital Services Act. A law-firm summary reports that they apply to online platforms accessible to minors, defined as persons under 18, and exclude small and micro enterprises, and that they call for private accounts by default, accurate and non-intrusive age assurance, adjusted recommender systems and the switching off by default of features such as streaks, autoplay and push notifications. It states that "Self-declaration does not constitute appropriate age assurance" and that the guidelines are "not legally binding," although the Commission will use them to assess compliance with Article 28(1) (STATED; I did not open the Article or the guidelines). An Australian regulator's guide to LinkedIn states a minimum age of "16+ minimum age according to LinkedIn," and says that from 10 December 2025 certain social media platforms cannot let Australian children under 16 create or keep an account, without saying whether LinkedIn is among them (STATED; I could not read LinkedIn's own terms, as Chapter 10 reports).

22.3 How the rules reach pod-boosted posts in this topic

Most of these rules reach a post only if it names, shows or collects data about a child, and the topic has few such posts.

The children's privacy rule reaches operators and not authors. It applies to an operator that collects personal information from children under 13, either through a service directed to them or with actual knowledge. A parent who writes about a child in a post on a business

network provides information about the child and does not collect it from the child, so the Rule's definitions do not seem to reach the parent (INFERENCE; I did not open the definitions). On the Australian guide's account the platform sets a minimum age of 16, and the posts read as addressed to adult readers, so the Rule would reach this topic only through a platform's knowledge that a user is under 13, which the posts do not show (INFERENCE). The topic has 36 child-word posts (2.7%), and only 2 (0.2%) of the 42 posts that contain a child word, "my son" or "my daughter" also contain a word about social media, the internet, apps, phones or data. The data cannot show that any post is directed to a child.

The child-influencer statutes reach an adult who earns money from content in which a child appears. The summaries I read describe the Illinois law in terms of "vloggers" and compensated video content, with a threshold based on the share of video time, so a text post on a business network seems to fall outside the thresholds (INFERENCE from the summary; whether a text or image post counts as content under either statute is an open question that I found no authority to answer). The topic contains 5 posts (0.4%) with a child word and a promotional word and 1 with a child word and a business word. The data count posts, so they cannot show the share of an account's content in which a child appears, and they contain no figures on compensation. I cannot say that any post is covered by these statutes.

The likeness statute reaches an author who uses another person's photograph or name to promote something. A photo, picture, selfie or video word appears in 55 posts (4.2%), and the data do not include the images, so I cannot tell who is shown. A parent who posts a picture of the parent's own child consents for the child, in the statute's terms, and the statute's concern is with use by someone else (INFERENCE). A person who tells a story about a named client, colleague or relative in a post that promotes the person's services is the case where the statute and the rules

of privacy and defamation could apply, and I did not research the last two. Phrases about a boss, manager, employer, ex-spouse, coworker or colleague appear in 4 posts (0.3%).

The GDPR reaches posts that contain data about identifiable people to whom the Regulation applies, and its territorial scope is outside this chapter's research. A health word appears in 64 posts (4.9%) and a death or grief word in 21 (1.6%). An author who writes about the author's own illness is covered by the exception for data manifestly made public by the data subject (INFERENCE as applied). An author who writes about another person's illness or death does not have that exception, because that person has not made the data public, though other bases for processing may exist (INFERENCE). The household exemption turns on the absence of any "professional or commercial activity." A post on a professional network, by a person who markets services, may have that connection, and *Lindqvist* held that the exemption did not apply to pages on the internet that named people (INFERENCE as applied). Business words appear in 171 posts (13.0%) and promotional words in 46 (3.5%), but the data do not show whether an author sells anything. Article 8 binds a service that offers itself directly to a child on the basis of consent, which means the platform and not the author.

Family praise and the endorsement rules meet in a narrow place. A relative word appears with a promotional word in 6 posts, and a post that praises a relative's business without saying so is the situation that section 255.5 describes, with the family relationship as the connection (INFERENCE as applied; Chapter 16 sets out the standard). Section 255.6 applies to advertisements addressed to children, and the posts in this topic address adult readers. The teens, students, youth and next-generation words that could indicate a younger audience appear in 10 posts (0.8%).

Engagement devices reach rules that I set out elsewhere. A giveaway, contest, tag or share request appears in 26 posts (2.0%), and the law of sweepstakes and contests is outside this chapter's research. A request to comment or follow appears in 17 (1.3%), a phrase of reciprocal support in 12 (0.9%) and a "DM me" call in 4 (0.3%), the last against 1.19% of all posts. The data cannot show that any engagement with a personal story was exchanged or prompted.

The tool operator, the engaging member and the platform are as in earlier chapters, with one addition. The Digital Services Act's duty on platforms accessible to minors falls on the platform, and Chapter 10 reports LinkedIn's designation as a very large online platform. The guidelines say that self-declaration of age is not appropriate age assurance, which suggests that a stated minimum age of 16 does not by itself meet them (INFERENCE; the guidelines are not binding, and I did not open them).

Table 22.1 sets out the rules that reach posts on life, family and personal stories, the parties they reach, an enforcement example and the remedy that the source states.

Table 22.1. Rules that reach posts on life, family and personal stories, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
COPPA Rule, 16 CFR Part 312, as amended (effective 23 June 2025; compliance by 22 April 2026)	Operators of services directed to children under 13, and general-audience operators with actual knowledge	FTC and New York Attorney General v. Google and YouTube (September 2019); a video publisher (2 September 2025); Apitor (3 September 2025) (all STATED)	$170 million ($136 million to the FTC, $34 million to New York); $10 million civil penalty; $500,000 penalty, suspended
Illinois child-influencer statute (effective 1 July 2024)	Adults who feature a minor under 16 in at least 30% of compensated video content in a 30-day period	None opened	Trust set-aside (at least 50% of gross at full presence, 25% at half); suit by the minor; actual and punitive damages (STATED)
Minnesota House File 3488, Chapter 103 (effective 1 July 2025)	Creators who feature minors in compensated content; bar on content-creation work by children under 14	None opened	Trust until 18; deletion on request; suit for damages (CORROBORATED)
California Civil Code section 3344	Use of a person's name, photograph or likeness in advertising or selling without consent, with a parent's consent for a minor	None opened	Greater of $750 or actual damages; profits; punitive damages; attorney's fees
GDPR Articles 8 and 9, Article 2(2)(c) and Recital 18	Services offered to children on consent; processing of health data; personal activity with no professional or commercial connection	*Lindqvist* (6 November 2003); *Ryneš* (11 December 2014)	Not stated in the sources I read
16 CFR 255.6	Endorsements in advertisements addressed to children	None opened	Not stated in the section; the route to enforcement is in Chapter 3
Digital Services Act Article 28(1) and the Commission's guidelines of 14 July 2025	Online platforms accessible to minors, other than small and micro enterprises	None opened	Guidelines "not legally binding"; used to assess compliance (STATED)

22.4 What this means for people and for coming generations

The law in this chapter protects two groups of children: those who use platforms, and those who appear in other people's posts without having chosen to. For the second group, the UN Committee on the Rights of the Child, in its General Comment No. 25 on children's rights in the digital environment (distributed on 2 March 2021), states that "Privacy is vital to children's agency, dignity and safety and for the exercise of their rights," that threats to it can come from family, peers or strangers, "for example, by parents sharing photographs online or a stranger sharing information about a child," and that "The digital environment presents particular problems for parents and caregivers in respecting children's right to privacy" (VERIFIED against the text, as summarized). A general comment is a treaty body's interpretation and does not by itself impose a duty on a parent, and I did not research its standing in United States law (INFERENCE as to its effect).

Parents' own views point the same way, in a dated source. A Michigan Public report on a University of Michigan poll, dated March 2015 in its web address, says that 68% worried about their child's privacy, 67% worried that someone would re-share the child's photographs and 52% worried that the child would be embarrassed when older, and that 74% knew a parent who shares too much (STATED; the text I read does not give the base for these percentages, the sample size or the dates of the fieldwork, and the poll is more than ten years old).

The statutes respond to one part of the problem. Illinois and Minnesota give a child who appears in compensated content a claim on the money, and Minnesota also lets an adult who appeared as a child ask for the content to be deleted. The policy article that I read says that the laws address revenue-generating content and so only financial exploitation, and it notes that the deletion right could remove material that law enforcement needs as evidence (STATED). The privacy interest of a child whose parent posts without earning anything is outside the thresholds

that the summaries describe (INFERENCE). In my data the question arises seldom: 36 posts use a child word and 8 use the form "my son," "my daughter" or "my child," and I cannot tell what, if anything, they reveal about a child.

Health and loss are subjects on which a personal story can reveal information about other people. *Lindqvist* treated a reference to a person's health as data concerning health, and the GDPR lets a person publish their own health data and gives no such permission for someone else's (INFERENCE). Posts with a health word number 64 (4.9%) and posts with a death or grief word 21 (1.6%). The posts may describe the author's own experience, and I cannot tell. A story about a parent's illness or a child's diagnosis, once posted, is available to anyone who can see the post, including employers and future acquaintances of the person it describes, and I opened no source on how often that causes harm (INFERENCE as to the risk). Amplification by an engagement pod widens the audience for a post, and the data cannot show whether any post in this topic was boosted for that purpose.

Teenagers are heavy users of social media. The Surgeon General's advisory page, which I also used in Chapter 10, states that up to 95% of young people aged 13 to 17 report using social media, that nearly two thirds do so daily, that about a third use it "almost constantly," and it says "We cannot conclude that social media is sufficiently safe for children and adolescents" (VERIFIED against the page). The sources I read in this chapter place the age-related duties on platforms: the amended COPPA Rule, Article 28 of the Digital Services Act and its guidelines, and the Australian rule from 10 December 2025. They place the money-related duties on adults who feature children: the Illinois and Minnesota statutes. I found no source that places a duty on a person who boosts a post that shows a child (INFERENCE from the absence of such a source in my searches).

The topic's treatment of the future is thin. A phrase about legacy, future generations or grandchildren appears in 10 posts (0.8%), and a word about teens, students, youth or the next generation in 10 (0.8%); the two sets overlap by an amount I did not count. The topic's main content is adults writing about work, balance, gratitude and lessons, and the people most directly affected by the law are those adults and the relatives they mention. The AI count is small (20 posts, 1.5%), and the AI hashtag is the only mention in one.

My conclusion for this chapter has three parts. The privacy rules for children bind platforms and operators and reach this topic through who uses the platform, which the posts do not show. The statutes on child influencers depend on compensation and on how much of a creator's content features a child, and the data contain neither. The rules on likeness and health data apply to what a post says about other people, and the data contain a count of words and not the identity of the people described (INFERENCE).

22.5 How this topic bears on mental health

Personal stories are the topic whose posts most often name mental-health subjects, and the sources I opened are mixed on whether sharing them helps.

A word about illness, a hospital, a disability, a diagnosis, surgery, therapy, burnout, anxiety, depression, trauma, addiction or pregnancy appears in 64 of 1,314 posts (4.9%), a word about death, a funeral or grief in 21 (1.6%), and a word about debt, bankruptcy, eviction, a layoff or a lost job in 11 (0.8%). These counts show which words occur and not whose illness or loss a post describes. Naslund and colleagues (2016) describe benefits of sharing illness experience among peers, such as feeling less alone and challenging stigma, and risks, such as unverified advice, dependency and harmful content. They also say that most studies use surveys or content

analysis and that few collect objective health outcomes. Public posts are not the peer groups that the article discusses, so I use it as an analogy only (INFERENCE).

For children, the American Psychological Association's 2025 advisory says that platforms should restrict the use of minors' images and voices and limit data uses such as targeted advertising, and its 2023 advisory says that effects on adolescents depend on their own characteristics. I found no study of the mental-health effects on children who appear in other people's posts or on child influencers, and I opened no evidence of effect for the child-influencer statutes in Section 22.2. The data show 36 posts (2.7%) with a word for a child or teenager and 8 (0.6%) with "my son," "my daughter," "my kids" or "my child."

22.6 What the data cannot show

The data cannot show that any post in this topic identifies a child, uses a photograph of a person without consent, discloses another person's health, is compensated content in which a child appears, is directed to children, or involves an exchange of engagement. The counts are of words, and the topic is defined by the word "life," so most posts in it have no family content. The data contain no images, no video, no account information and no age of any user.

My reading of the law has gaps. The fetch tool returned summaries, and I quote only the words it placed in quotation marks. I did not open the text of 16 CFR 312.2 or 312.5, the COPPA statute, the last part of the Federal Register notice, the Illinois or Minnesota statutes, the California, Utah and Montana child-influencer laws, any case under section 3344 or any other state's law on likeness or on privacy torts, the judgments in *Lindqvist* and *Ryneš* (I read a press release and a commentary), the GDPR's recitals on children, guidance from the European Data Protection Board, Article 28 of the Digital Services Act or the Commission's guidelines (I read a law firm's summary), state laws on age-appropriate design and on minors' use of social media,

the litigation over those laws, the Kids Online Safety Act, the United Kingdom's Children's Code, the law on contests and giveaways, or the platform's terms. Several of the enforcement examples come from law-firm articles. The COPPA amendments and the Digital Services Act guidelines are recent, and I did not check the status of the state bills listed in 2024.

Two questions remain open after this chapter. The first is whether a text post by a parent about the parent's child, on a business network, is "content" within the child-influencer statutes, which the summaries I read describe in terms of video. The second is whether the household exemption in Article 2(2)(c) of the GDPR can cover a post on a professional network by a person who also markets a service, given Recital 18's reference to a "professional or commercial activity." I found no authority that answers either.

Chapter 23. Crypto and blockchain: the securities tests, touting, commodity-fraud rules, consumer-protection data, stablecoin and market-structure legislation, and EU marketing rules

23.1 The topic in the data

Crypto and blockchain is the twentieth-largest topic and the smallest of the twenty, with 1,180 posts, which is 1.8% of the 64,970 placed posts. The podawaa file supplies 1,091 of them (92.5%), HyperClapper 45 (3.8%), the 65 exports 42 (3.6%) and LinkBoost-2025 2 (0.2%). The median post is 408 characters and the 90th percentile is 1,134. A link appears in 349 posts (29.6%), and 335 of them are in the podawaa file.

Hashtags make up much of the topic. Five or more hashtags appear in 669 posts (56.7%), 658 of them in the podawaa file. The median post has 5 hashtags, the 90th percentile 16 and the maximum 75; 286 posts (24.2%) have 10 or more and 159 (13.5%) have 15 or more. Once hashtags and links are removed, the median post has 48 words and the 90th percentile 164. A total of 34 posts (2.9%) have no other text, 102 (8.6%) have 10 words or fewer and 222 (18.8%) have 20 or fewer. A crypto word appears in the running text of 963 posts (81.6%), and 217 (18.4%) mention the subject only in a hashtag or a link, so whether a post counts as being about crypto depends on whether hashtags are counted. The most common hashtags, as a share of the 1,180 posts, are #blockchain (515 posts, 43.6%), #crypto (415, 35.2%), #web3 (259, 21.9%), #bitcoin (236, 20.0%), #cryptocurrency (219, 18.6%), #nft (212, 18.0%), #metaverse (159, 13.5%), #defi (145, 12.3%), #btc (141, 11.9%) and #ethereum (123, 10.4%). Counting #nft and #nfts together gives 280 posts (23.7%), all in the podawaa file. One project-style tag appears in 32 posts (2.7%), and I do not name it.

The running text is mostly about investing, trading, learning and events. A word about investing or returns appears in 215 posts (18.2%) and a word about trading, buying, selling or

price in 190 (16.1%). An explainer or education word appears in 137 (11.6%), an event, conference or summit word in 115 (9.7%), a word about the future, decentralization or financial freedom in 108 (9.2%), and a word about institutions or ETFs in 60 (5.1%). A word about stablecoins, central bank digital currencies, tokenization or real-world assets appears in 59 (5.0%); the word "stablecoin" alone in the running text of 16 (1.4%). A word about enterprise uses such as supply chains, identity or smart contracts appears in 48 (4.1%), a word about mining, staking or yield farming in 38 (3.2%), and a word about hiring in 13 (1.1%). The word NFT appears in the running text of 210 posts (17.8%), and a word about selling an NFT in 51 (4.3%). The names of exchanges and platforms appear in 124 posts (10.5%), and I do not name them.

Words that bear on an offer of tokens are present in a minority of posts. A token-sale word (ICO, IEO, IDO, token sale, presale, airdrop, whitelist, launchpad, tokenomics, white paper, roadmap) appears in the running text of 33 posts (2.8%), and in 98 (8.3%) when hashtags and links are counted. A hashtag for an ICO, IEO, IDO, token sale, presale or airdrop appears in 67 (5.7%), all in the podawaa file. A cashtag appears in 57 (4.8%), also all in the podawaa file. A dollar figure appears in 140 (11.9%) and a percentage figure in 84 (7.1%). A claim of the form "N% APY," "N% return" or "N% ROI" appears in 2 posts (0.2%), a multiplier such as "10x" or "double your" in 12 (1.0%), and a word for a guarantee or "risk-free" in 9 (0.8%). A word of urgency, early access or presale appears in 43 (3.6%), an "invest now" phrase in 9 (0.8%), and an audit, team or backing claim in 33 (2.8%). A claim about price or market data appears in 61 (5.2%), a claim about legal status (not a security, utility token, compliant, regulated, licensed, KYC) in 13 (1.1%), and a word about referrals, airdrops or free tokens in 14 (1.2%). A word for a meme coin appears in 21 posts (1.8%), counting hashtags.

Disclosure and legal words are less common still. A word about risk, or a phrase such as "not financial advice," NFA or DYOR, appears in 40 posts (3.4%), and the last three alone in 3 (0.3%) of the running text. A word that discloses a position or a payment (sponsored, paid, #ad, "I hold," referral link) appears in 2 (0.2%). A word for a regulator or the law appears in 93 (7.9%): a form of "regulate" in 54 (4.6%), the capitalized word SEC in 17 (1.4%), CFTC, FINRA or MiCA in 7 (0.6%), "securities" or "security token" in 13 (1.1%), and law, legal, lawsuit or court in 28 (2.4%). The word "MiCA" appears in 8 posts (0.7%) when hashtags and links are counted. A word for a bank appears in 52 (4.4%), and a central-bank or CBDC word in 5 (0.4%). A scam, fraud, Ponzi or rug-pull word appears in 16 posts (1.4%). A word about getting rich or financial freedom appears in 16 (1.4%), and a word about students, youth or Gen Z in 12 (1.0%).

Engagement requests are modest. A request to comment, like or share appears in 80 posts (6.8%) and a request to comment or follow in 17 (1.4%). A phrase of reciprocal support (support each other, engage with each other, like and comment, drop a comment, boost) appears in 3 (0.3%). A "DM me" call appears in 2 posts (0.2%), against 1.19% of all 273,771 posts. The word "pod" appears in none of the 1,180 posts. A mention of AI, as a word or a hashtag, appears in 92 posts (7.8%): in the running text of 56 (4.7%) and in a hashtag of 67 (5.7%), and in 36 (3.1%) the hashtag is the only mention.

The corpus file I used for the counts holds no dates. The topic is 92.5% podawaa, which I cannot date in that file, so I cannot place the counts before or after the laws in this chapter, most of which changed in 2025 and 2026. The 65 exports supply 42 of the posts (3.6%), and every export record carries a creation date, but I did not date those 42, and Section 2.10 describes what the export dates can and cannot show. These counts are VERIFIED against the data, and each

counts words and not claims. The data contain no images, so the charts, logos and videos that a crypto post may carry are outside the counts.

23.2 The laws that apply

Seven items bear on this topic: the investment-contract test and the 2026 classification of crypto assets; the SEC's proposed rules for offerings; the securities law on touting; the CFTC's rule on fraud in commodity markets; the stablecoin and market-structure legislation; the FTC's consumer-protection data; and the European Union's rules on marketing crypto-assets. The securities law on offers (sections 5, 12(a)(2) and 17(a) of the Securities Act, and Rule 506) is in Chapter 11, Rule 10b-5, section 17(b) and the *Kardashian* case in Chapter 13, the FTC's data on social-media scams in Chapter 8, and the platform's status under the Digital Services Act in Chapter 10.

The investment-contract test and the 2026 classification. *SEC v. W.J. Howey Co.*, decided on 27 May 1946, says that "an investment contract for purposes of the Securities Act means a contract, transaction or scheme" (VERIFIED against the Cornell page for the opening words; the rest of the definition, an investment of money in a common enterprise with profits expected from the efforts of others, is the page's summary). The SEC's statement of 1 November 2017, issued by its Enforcement Division and its examinations office, says that "virtual tokens or coins sold in ICOs may be securities," citing the SEC's DAO Report, which I did not open. On 17 March 2026 the SEC and the CFTC jointly issued an interpretation of how the federal securities laws apply to crypto assets (SEC Press Release 2026-30). It sorts crypto assets into five categories: digital commodities, digital collectibles, digital tools, stablecoins and digital securities. It addresses how a crypto asset that is not a security may become subject to an investment contract and may cease to be, and it addresses airdrops, protocol mining, protocol

staking and wrapping. The release quotes Paul Atkins as saying that "investment contracts can come to an end" and that "most crypto assets are not themselves securities," and it calls the interpretation a bridge while Congress works on legislation (VERIFIED against the release). A law firm's summary says that the interpretation replaces the SEC staff's 2019 framework, that digital commodities, collectibles and tools are not securities, and that certain airdrops may not involve an "investment of money" (STATED). Neither source says anything on meme coins, NFTs or promoters.

The proposed Regulation Crypto Assets. Two law-firm summaries report that the SEC proposed on 18 August 2026 a set of rules for offerings of crypto assets. There would be a startup exemption for up to $5 million over four years (Form NOR) and a two-tier exemption, $20 million for Tier 1 and $75 million for Tier 2 in 12 months (Form 1-CRYPTO), with a cap of 30% on secondary sales in the first offering. Issuers would disclose on ten crypto-specific topics. A proposed Rule 400 would give a safe harbor (Form TR) for showing that an investment contract has ended. Issuers would remain subject to the antifraud and antimanipulation provisions, "testing the waters" communications would be permitted, and proposed Rule 103 would require offering disclosures to be consistent with promotional materials. The proposal relies on section 18(b)(3) of the Securities Act for the preemption of state law (STATED). Comments were due on 20 October 2026, the day before I wrote this chapter, and I did not check whether the date was extended or what was filed. The summaries do not state the Commission's vote and do not discuss promoters or social media.

Touting. The 2017 statement says that promoters "must disclose the nature, scope, and amount of compensation received in exchange for the promotion," refers to the "anti-touting provisions," and says that promoters "may also be liable" under the antifraud provisions

(VERIFIED against the statement, as summarized). Chapter 13 reports the *Kardashian* case, in which the SEC's order of 2022 (Press Release 2022-183) concerned EMAX tokens, a $250,000 payment and a promotion that was not disclosed as paid, and ended in $1.26 million in total payments and a three-year ban on promoting crypto asset securities.

The CFTC's rule on fraud. 17 CFR 180.1 applies "in connection with any swap, or contract of sale of any commodity in interstate commerce," and reaches a person who acts "intentionally or recklessly." Paragraph (a)(1) forbids using or attempting to use "any manipulative device, scheme, or artifice to defraud." Paragraph (a)(2) forbids untrue or misleading statements of material fact and omissions that make statements misleading, and paragraph (a)(3) forbids any "act, practice, or course of business" that "operates or would operate as a fraud or deceit upon any person." Paragraph (b) says that there is no duty to volunteer nonpublic information but that this is no excuse for a materially misleading statement (VERIFIED against the Cornell text). In *CFTC v. McDonnell* (E.D.N.Y., 6 March 2018) Senior Judge Weinstein granted a preliminary injunction and wrote that "A 'commodity' encompasses virtual currency both in economic function and in the language of the statute" and that the "CFTC has standing to exercise its enforcement power over fraud related to virtual currencies sold in interstate commerce." The CFTC alleged that paid "memberships" were sold with a promise of returns of up to 300% a week, after which the sellers stopped communicating (VERIFIED against the opinion, as summarized).

The legislation. The GENIUS Act (Public Law 119-27, signed on 18 July 2025) says, in the Congressional Research Service's overview, that payment stablecoins are not securities or commodities. It requires reserves of 1 to 1, limits issuers to banks, credit unions and certain nonbanks, bars names that imply issue or a guarantee by the United States government, and says

that stablecoins are not federally insured (VERIFIED against the overview; the excerpt gave no effective date). The CLARITY Act (H.R. 3633) passed the House on 17 July 2025 by 294 to 134 (STATED, Orrick) and cleared the Senate Banking Committee in May 2026 (STATED, DLA Piper). A vote on cloture on the motion to proceed failed on 15 September 2026; Orrick reports 49 to 50 against the 60 needed, and DLA Piper gives no tally. The disputes were about ethics provisions on officials' crypto holdings, stablecoin yield and the preemption of state law, to which 18 state attorneys general objected, and passage in this Congress is described as unlikely. The CFTC sent a prerule to the Office of Information and Regulatory Affairs on 17 September 2026 and updated its staff FAQs on 24 September. One of the articles adds that state law on licensing, securities registration and consumer protection still applies (STATED).

Consumer-protection data. The FTC's data spotlight of June 2022 reports that from January 2021 through March 2022 more than 46,000 people reported losing over $1 billion in crypto to scams, with a median loss of $2,600. Of those who reported, 49% said the scam began on social media. Bitcoin was the payment in 70%, Tether in 10% and Ether in 9%. Investment scams accounted for $575 million and romance scams for $185 million, with a median romance loss of $10,000 (VERIFIED against the PDF, as summarized). A news report of 28 April 2026 says that the FTC reports at least $2.1 billion lost in 2025 to scams that began on social media and $1.1 billion to investment scams that began there (STATED, as in Chapter 8). These are reports of losses and not rules, and I did not open an FTC rule specific to crypto.

The European Union's rules (MiCA). I read two secondary sources, a law firm's article and a page from an influencer-marketing firm, and not the Regulation, (EU) 2023/1114. The sources say that an offeror's marketing must be fair, clear and not misleading and consistent with the white paper. The marketing firm's page adds that the Regulation applies from 30 December

2024 to ordinary crypto-assets and that the transitional period for service providers ended on 1 July 2026. It says that marketing must be identifiable as marketing, may not appear before the white paper is published, and must state that the white paper has not been reviewed or approved by any competent authority, and that the duty rests on the issuer or offeror, who stays liable for promoters. The sources add that marketing communications go to the national authority on request, that a draft white paper goes in at least 20 days before the offer, and that the European Securities and Markets Authority reads "solicitation" broadly enough to include social media advertisements (STATED; the law firm cites Article 6 for the white paper and the marketing page Article 7 for marketing).

23.3 How the rules reach pod-boosted posts in this topic

Most of these rules turn on an offer, a sale or a paid promotion of a crypto asset, and the data show words about such things and not the things themselves.

Offers of tokens are the first case. A token-sale word appears in the running text of 33 posts (2.8%), a hashtag for a token sale in 67 (5.7%) and a word of urgency or early access in 43 (3.6%). If a token is offered as an investment contract, the registration and antifraud rules of Chapter 11 apply to the offer, and whether it is one depends on facts that a post may not contain (INFERENCE). A claim of legal status appears in 13 posts (1.1%), and the data cannot show whether any is accurate. Under proposed Rule 103, an issuer's posts could count as promotional materials that must be consistent with the offering disclosure, though the summaries I read do not say that social media posts are covered (INFERENCE; not addressed in the sources).

Promoters are the second. A word that discloses a position or a payment appears in 2 posts (0.2%). The 2017 statement requires a promoter of a security to disclose the nature, scope and amount of compensation, and the *Kardashian* case shows enforcement where a payment was

not disclosed. The data show nothing about whether any author was paid. The sources I read on the 2026 interpretation say nothing on promoters, so I cannot say how section 17(b), which applies to the promotion of a security, treats the promoter of a "digital collectible" or a "digital commodity" (open question).

Return claims, guarantees and risk words are the third. A claim of a percentage return appears in 2 posts (0.2%), a multiplier in 12 (1.0%) and a guarantee or "risk-free" word in 9 (0.8%). Rule 180.1(a)(2) reaches an untrue or misleading statement of material fact if it is made intentionally or recklessly and "in connection with" a commodity sale, and *McDonnell* involved a promised return of up to 300% a week. The counts show words, and "10x" may describe a past price or a hope, so I cannot say that any post states a promise (INFERENCE). A risk word or "not financial advice" phrase appears in 40 posts (3.4%), and the phrase alone in 3 (0.3%). Paragraph (b) says that the absence of a duty to volunteer nonpublic information is no excuse for a materially misleading statement. By analogy, a missing disclaimer is not by itself the wrong, and a disclaimer would not excuse a misleading statement (INFERENCE, by analogy; paragraph (b) speaks of nonpublic information).

NFTs and stablecoins are the fourth. The NFT hashtag appears in 280 posts (23.7%) and a word about selling an NFT in 51 (4.3%). The 2026 taxonomy has a category of digital collectibles, which a law firm says are not securities, but the sources do not say how it treats a collection sold with promises about its price, and I did not open any NFT enforcement order (INFERENCE; open question). A stablecoin, CBDC, tokenization or real-world-asset word appears in 59 posts (5.0%). The GENIUS Act's bar on names that imply a government issue or guarantee reaches issuers, and the data show no issuer.

The regulation words are the fifth. A form of "regulate" appears in 54 posts (4.6%), and CFTC, FINRA or MiCA in 7 (0.6%). The failure of the CLARITY Act means that, on the sources I read, the rules for a post written now are existing law and the 2026 interpretation, with the proposal still pending (INFERENCE). A European offer would bring MiCA's marketing rules, which on the sources I read rest on the offeror, who stays liable for promoters; whether they reach a third party who writes about the offer is not stated (STATED; open question).

Engagement devices are the sixth. A request to comment, like or share appears in 80 posts (6.8%), a request to comment or follow in 17 (1.4%), a phrase of reciprocal support in 3 (0.3%) and a "DM me" call in 2 (0.2%), against 1.19% of all posts. Chapter 13 left open whether engagement given in return for engagement is consideration under section 17(b), and I found no source in this chapter that answers it. The same gap exists for rule 180.1: a pod-boosted post could be one step in a scheme under paragraph (a)(1) or (a)(3), but I found no case that treats reciprocal engagement that way (INFERENCE).

The four parties are as in earlier chapters. The author may be an issuer, a promoter or neither. The tool operator is reached by none of the sources in this chapter, which concern issuers and promoters. The engaging member, who comments on a post about a token, is not described as a promoter in any source that I read. The platform's duties are in Chapter 10, and under MiCA the duty rests on the offeror and not on the platform (STATED).

Table 23.1 sets out the rules that reach posts on crypto and blockchain, the parties they reach, an enforcement example and the remedy that the source states.

Table 23.1. Rules that reach posts on crypto and blockchain, with the parties reached, an enforcement example and the remedy stated in the source

Rule	Reaches	Enforcement example	Remedy or penalty stated in the source
Securities Act and the *Howey* test (Chapter 11)	An offer or sale of a token that is an investment contract	*Howey* (27 May 1946)	Not stated in the sources I read for this chapter
Section 17(b) and the SEC statement of 1 November 2017	Promoters of securities who do not disclose compensation	*Kardashian*, EMAX tokens (SEC Press Release 2022-183, Chapter 13)	$250,000 payment; $1.26 million in total; three-year ban on promoting crypto asset securities
17 CFR 180.1	Fraud and misleading statements in connection with a swap or a commodity sale in interstate commerce, made intentionally or recklessly	*CFTC v. McDonnell* (6 March 2018)	Preliminary injunction (as summarized)
SEC and CFTC interpretation of 17 March 2026	Classification of crypto assets in five categories and when an investment contract starts and ends	None	An interpretation, with no penalty stated
Proposed Regulation Crypto Assets (18 August 2026)	Offerings by issuers under the exemptions; offering disclosure consistent with promotional materials	None	Antifraud and antimanipulation provisions continue to apply (STATED)
GENIUS Act, Public Law 119-27 (18 July 2025)	Issuers of payment stablecoins	None opened	Not stated in the overview I read
CLARITY Act, H.R. 3633	Market structure for digital assets	None; cloture failed on 15 September 2026	Not law
MiCA marketing rules, as described in two secondary sources	Offerors of ordinary crypto-assets in the EU, who remain liable for promoters	None opened	Not stated in the sources I read

23.4 What this means for people and for coming generations

The laws in this chapter protect people who buy crypto assets, and the evidence that I opened about those people is thin and dated. The Pew Research Center reports from a survey of 10,133 adults on 7 to 11 February 2024 that 17% of Americans had ever invested in, traded or used cryptocurrency, the same share as in 2021. Among men aged 18 to 29 the share was 42%,

against 17% of women, and among men aged 30 to 49 it was 36%, against 15% of women. A total of 63% of adults had little or no confidence in the safety and reliability of cryptocurrency, including 71% of those aged 50 and over and 55% of younger adults, and 5% were extremely or very confident (VERIFIED against the 2024 page; the 2025 version of the page did not load).

The harm shows up in reports of fraud. The FTC's 2022 spotlight says that people aged 20 to 49 reported crypto-scam losses at more than three times the rate of older groups, and that people in their 30s were hardest hit, with 35% of their fraud losses in crypto (VERIFIED against the PDF, as summarized). The age bands in the Pew and FTC figures overlap, but one source measures holding and the other reported losses, and neither shows that the people who held crypto were the people who lost money (INFERENCE as to the overlap). The reported losses are a floor and not a measure of all losses (INFERENCE). That 49% of reporters said the scam began on social media does not say what share began on a professional network, and the 2025 figure that I read for social media as a whole is not broken down by platform.

Chapter 13 reports the FINRA Foundation's data on Gen Z, which I do not repeat. In my data, a word about students, youth or Gen Z appears in 12 posts (1.0%), a word about getting rich or financial freedom in 16 (1.4%), and a word about investing or returns in 215 (18.2%). The topic is not mostly about offers, though. Posts with an explainer or education word number 137 (11.6%) and posts with an event word 115 (9.7%), and 18.4% of the posts mention crypto only in a hashtag or link. The people most exposed to the law here are the authors who sell tokens or promote them for pay, and I cannot tell from the counts which authors those are.

The law governing the future is unsettled. In the 15 months before this chapter, a payment-stablecoin statute was signed (July 2025), the SEC and the CFTC issued a joint taxonomy (March 2026), the SEC proposed offering rules (August 2026), and the Senate failed

to advance market-structure legislation (September 2026). A person who writes a post about a token today does so under rules that are changing, and the one rule on promoters that my sources identify, section 17(b), is older than all of them. If the proposed rules are adopted, offering disclosures would have to be consistent with promotional materials (proposed Rule 103), and the effect on posts by people other than the issuer is not addressed in the summaries I read. The posts in the data are undated, so they may have been written under any of these regimes.

My conclusion for this chapter has three parts. The rules on offers, touting and fraud turn on who is selling and who is paid, and the data contain counts of words and not any of that. The classification rules were rewritten in 2025 and 2026, and I could open only summaries of most of them. The consumer data say that people aged 20 to 49 reported crypto losses at higher rates and that social media was a common starting point, and they say nothing about the posts in this topic.

23.5 How this topic bears on mental health

Crypto is the topic with the clearest measured financial harm among the sources I opened, and the mental-health evidence about it is indirect.

A word about investing or returns appears in 215 of 1,180 posts (18.2%), a word about trading, buying, selling or price in 190 (16.1%), and a scam, fraud, Ponzi or rug-pull word in 16 (1.4%). The FBI's 2025 Internet Crime Report, released on 6 April 2026, reports 181,565 cryptocurrency-related complaints with losses of "more than $11 billion," and about $7.7 billion in losses reported by people over 60, up 37% from 2024. The FTC reported on 27 April 2026 that investment scams were $1.1 billion of the $2.1 billion lost in 2025 to scams that began on social media.

The evidence on mental health comes from other fields. Mills and Nower (2019) found more symptoms of depression and anxiety among regular gamblers who traded both

cryptocurrency and high-risk stocks (STATED; Section 13.5). The debt evidence in Section 9.5 links unsecured debt to mental-health problems without establishing direction. Button and colleagues (Section 3.8) found that the effects of fraud on victims range from little to devastating. None of these studies concerns people who lost crypto to a deceptive promotion, and I found none. The securities, commodities and consumer-protection rules in Section 23.2 apply to the promotion. I found no study of whether enforcement lessens the harm to victims (INFERENCE as to the route).

23.6 What the data cannot show

The data cannot show that any post in this topic offers a token, is paid for, promises a return, misstates a legal status, omits a risk, comes from an issuer or involves an exchange of engagement. The counts are of words, the topic has few such words, and 18.4% of its posts mention crypto only in a hashtag or link. The data contain no images, no account information, no dates and no price or sales data. The AI counts include hashtags, and in 36 posts the hashtag is the only mention.

My reading of the law has gaps. The fetch tool returned summaries, and I quote only the words it placed in quotation marks. I did not open the text of *Howey* beyond its opening phrase, the 17 March 2026 interpretation (I read the SEC's press release and one law firm's summary), the text of Regulation Crypto Assets (I read two law-firm summaries, which do not state the vote), the CLARITY or GENIUS texts (I read an overview and law-firm articles), MiCA (I read two secondary sources and not Articles 6 or 7), the SEC's DAO Report, the SEC's *Munchee* order, the *Ripple* litigation, any NFT enforcement order, CFTC cases other than *McDonnell*, state securities laws, the United Kingdom's rules on financial promotions, or the platform's terms. The Regulation Crypto Assets comment period was due to close on the day before I wrote, and the

CLARITY Act could return through a motion to reconsider, so this chapter is the most likely to be out of date.

Four questions remain open after this chapter. The first is whether engagement given in return for engagement is consideration under section 17(b), which Chapter 13 left open. The second is whether a pod-boosted post about a token can be part of a scheme under Rule 10b-5 or 17 CFR 180.1(a)(1) or (a)(3). The third is whether MiCA's marketing duty reaches a post by an author outside the European Union about an offer in it, given that the sources place the duty on the offeror. The fourth is where the promoter of a "digital collectible" sits under the 2026 taxonomy. I found no authority that answers any of them.

Chapter 24. Comparing the twenty topics: which signals differ, which laws recur and what boosting changes

24.1 How I compared the topics

I compared the topics with ten counts that I defined once and applied to every topic in the same way, so that a difference between two topics is a difference in the posts and not in how I counted. Seven appear in Table 24.1: a link (an address beginning "http," or a lnkd.in or bit.ly link); five or more hashtags; the word "free"; a currency figure (a dollar, euro or pound sign followed by a digit); a percent figure; a "DM me," "inbox me" or "message me" call; and a request of the form "comment below," "comment here," "follow me" or "follow for," which the table calls Ask. The other three are a word beginning "guarantee," the word "pod," and the set of reciprocal-support phrases that I used in Chapters 22 and 23 (support each other, engage with each other, like and comment, drop a comment, boost). The chapters count wider sets of words chosen for each subject, so a figure here can differ from the figure for the same topic in its chapter, and the chapter's figure is the one that goes with that chapter's argument.

The topics are built from different mixes of the four files, and the files differ. Among the 54,870 posts in the twenty topics, the podawaa file supplies 31,006 (56.5%), HyperClapper 9,190 (16.7%), LinkBoost-2025 567 (1.0%) and the 65 exports 14,107 (25.7%). A podawaa post has five or more hashtags in 41.8% of cases, against 7.5% for HyperClapper, 27.0% for LinkBoost-2025 and 25.8% for the exports. A "DM me" call appears in 0.59% of podawaa posts, against 1.24%, 2.12% and 3.12%. The podawaa share of a topic runs from 4.6% for AI agents to 92.5% for crypto. Across the twenty topics, the rank correlation between the podawaa share and the share of posts with five or more hashtags is 0.68, with "DM me" calls it is -0.66, and with requests to comment or follow it is -0.63 (VERIFIED; Spearman, 20 topics). A difference

between topics in these counts therefore cannot be separated from a difference between files, and I do not claim that a topic causes any of the differences (INFERENCE as to the limit).

24.2 What the counts show across topics

Sale-funnel words are concentrated in two topics and numbers in three, and only links and hashtags reach a majority of posts anywhere. Table 24.1 gives each count as a percentage of the topic's posts, and the Podawaa column gives the share of the topic's posts that come from that file.

Table 24.1. Counted features of the posts in each of the twenty topics, as a percentage of the topic's posts

Chapter and topic	Posts	Podawa a	Link	5+ tags	"free"	Currenc y	Percent	"DM me"	Ask
4 Technology and innovation	5,201	74.3	23.8	46.1	3.2	2.0	3.2	0.2	1.2
5 Events and networking	4,444	71.8	32.3	36.9	6.4	1.6	2.6	0.7	0.9
6 Leadership and trust	4,019	41.0	20.1	24.0	4.3	0.7	3.3	0.9	1.9
7 Apps and software	3,903	68.5	32.5	37.5	8.0	4.0	4.7	0.4	1.3
8 Sales and outreach	3,673	59.0	21.1	24.6	10.2	4.6	11.6	3.3	3.2
9 Money and prices	3,267	48.7	15.9	23.5	7.0	8.7	12.2	1.7	2.8
10 LinkedIn and content	3,266	69.0	18.1	21.5	6.2	2.5	6.0	1.5	4.1
11 Founders and startups	3,217	70.6	22.0	29.6	5.5	7.0	4.9	0.7	1.9
12 AI agents and tools	2,984	4.6	25.2	23.0	6.4	10.9	16.7	2.8	4.2
13 Investing and finance	2,853	47.1	24.4	34.7	3.8	12.3	17.5	0.8	1.7
14 Motivation and mindset	2,420	65.2	9.1	33.5	2.7	1.0	3.1	0.5	2.9
15 Strategy and planning	2,106	55.4	23.5	31.3	6.8	2.8	6.7	1.9	3.0
16 Relationships	2,096	26.1	15.6	15.0	4.9	3.5	3.1	0.9	1.5
17 Supply chain	2,000	70.5	21.2	61.1	7.4	3.2	8.1	0.9	1.7
18 Marketing and advertising	1,862	54.2	11.6	22.7	4.2	2.2	3.1	0.5	1.4
19 Energy, sleep, food, fitness	1,775	17.3	8.3	26.6	13.8	2.7	16.6	9.9	8.6
20 Learning and courses	1,690	32.8	55.3	15.4	27.2	3.6	9.1	0.8	8.1
21 Luxury travel and hotels	1,600	87.8	36.8	56.6	3.9	2.6	1.6	0.2	0.6
22 Life and family	1,314	60.6	8.1	16.8	2.7	0.2	2.2	0.3	1.3
23 Crypto and blockchain	1,180	92.5	29.6	56.7	4.2	11.9	7.1	0.2	1.4
All twenty topics	54,870	56.5	23.0	31.8	6.6	4.3	7.0	1.4	2.5

The corpus does not announce itself. The word "pod" appears in 43 of the 54,870 posts (0.08%), and 14 of the 43 are in the LinkedIn topic. The reciprocal-support phrases appear in 972

posts (1.8%): most often in energy, sleep, food and fitness (8.8%), supply chain (4.8%) and learning (4.0%). The set includes "boost," which has ordinary business uses, so these figures are upper bounds on reciprocal support (INFERENCE). The posts read as ordinary professional posts, which is the description in Chapter 1.

Direct-selling language is most common in the energy topic and the learning topic. A "DM me" call appears in 750 posts (1.37%) and is most common in energy, sleep, food and fitness (9.9%), sales (3.3%) and AI agents (2.8%). It is least common in technology, luxury travel and crypto (0.2% each). A request to comment or follow appears in 1,366 posts (2.5%), most often in energy (8.6%), learning (8.1%), AI agents (4.2%) and LinkedIn (4.1%). The word "free" appears in 3,614 posts (6.6%), and in 27.2% of the learning topic, 13.8% of energy and 10.2% of sales. A link appears in 12,601 posts (23.0%), and in 55.3% of the learning topic, against 8.1% of life and family, 8.3% of energy and 9.1% of motivation. These are the topics in which the posts most resemble an invitation to buy, and the rules that turn on a sale are in Chapters 14 and 20 (the Business Opportunity Rule), 19 (health claims) and 5 and 20 (the Guide on "free"). The motivation topic, which Chapter 14 treats under the Business Opportunity Rule, has low counts here (0.5% "DM me," 9.1% links), and its chapter relies on wider word lists.

Numbers are most common in three topics. A currency figure appears in 12.3% of investing and finance posts, 11.9% of crypto and 10.9% of AI agents, and in 0.2% of life and family and 0.7% of leadership. A percent figure appears in 17.5% of investing, 16.7% of AI agents and 16.6% of energy, sleep, food and fitness. The rules that turn on a figure are the earnings-claim rules (Chapters 14 and 20), the securities antifraud rules (Chapters 11, 13 and 23) and the rules on substantiation (Chapters 4 and 19). A figure may be a claim, a price or a statistic about something else, so the counts show where the rules could apply and not that they do.

A guarantee word appears in 304 posts (0.55%), and no topic exceeds 1.1% (money and prices), followed by strategy and planning at 1.0%. Five or more hashtags appear in 17,423 posts (31.8%): in 61.1% of the supply-chain topic, 56.7% of crypto and 56.6% of luxury travel, against 15.0% of relationships, 15.4% of learning and 16.8% of life and family. Those three high values are in topics with podawaa shares of 70.5%, 92.5% and 87.8%, and Section 24.1 explains why that matters.

Apart from links in the learning topic and hashtags in three topics, no count reaches a majority in any topic. The largest figure among the other counts is the word "free" in 27.2% of the learning topic. The counts are of words, and a post can state a claim without any of these words, so I do not read the small shares as evidence that most posts are free of claims (INFERENCE as to the limit).

24.3 Which laws recur

Each topic draws on a different set of rules, a few rules recur, and in every chapter a rule reaches a post through what the post says, sells or discloses. Table 24.2 lists, for each topic, the principal rules that its chapter applied and what makes each rule reach a post. The column on the right is my reading of each chapter's section on how the rules reach the posts (INFERENCE).

Table 24.2. Principal rules applied in each chapter, and what makes a rule reach a post

Chapter and topic	Principal rules applied	What makes a rule reach a post
4 Technology and innovation	FTC substantiation under Section 5; SEC rules on advisers' and issuers' disclosure; federal wire fraud; EU AI Act	A claim about what AI or a product does; a statement to investors
5 Events and networking	FTC rule on unfair or deceptive fees (Part 464); BOTS Act; Guide on "free" (Part 251); Endorsement Guides	A stated ticket price, a "free" offer, a scarcity claim, an endorsement by a speaker or sponsor

Table 24.2 (Continued)

Chapter and topic	Principal rules applied	What makes a rule reach a post
6 Leadership and trust	Part 465 on insider reviews and testimonials; Endorsement Guides and employees; Regulation FD; state laws on employer access to personal accounts	An officer's or employee's post about the employer; company information in a personal post; an employer's demand for account access
7 Apps and software	Restore Online Shoppers' Confidence Act; Part 465 and app reviews; children's privacy rule (Part 312); California privacy statute	The product a post advertises: its subscription terms, its reviews, its collection of children's data
8 Sales and outreach	CAN-SPAM Act; Telephone Consumer Protection Act; GDPR and contact data; scraping and platform contracts; breach of credentials	Sending a message, collecting contact data, storing credentials
9 Money and prices	Guides Against Deceptive Pricing (Part 233); state all-in pricing laws; antitrust law and pricing software	A stated price or price comparison
10 LinkedIn and content	Section 465.8; Section 230; Digital Services Act and Unfair Commercial Practices Directive; platform contract	The engagement count itself
11 Founders and startups	Securities Act registration and exemptions; antifraud provisions; remedies for buyers	An offer or sale of securities to investors; general solicitation
12 AI agents and tools	FTC action on AI performance claims; supplier liability (*Rytr*); companion chatbots; state and EU rules on manipulation and young users	A post that sells an AI product and states what it does
13 Investing and finance	Rule 10b-5; touting (section 17(b)); advisers and broker-dealers	A false statement or a scheme; a paid promotion
14 Motivation and mindset	Business Opportunity Rule; Section 5 and earnings claims; Endorsement Guides; notice of penalty offenses; EU rules	A sale that states what the buyer can earn
15 Strategy and planning	Sherman Act section 1 and Section 5; Article 101 TFEU; forward-looking statements and Regulation FD; trade secrets; WARN Act	An author who speaks for a competitor, a public company or a holder of secrets
16 Relationships	Endorsement Guides (sections 255.0 and 255.5); guidance for people who post; fake testimonials and indicators; EU rules	A promotion by a person with a connection to the seller that the audience would not expect
17 Supply chain	Import ban on forced-labor goods (19 U.S.C. 1307); Uyghur Forced Labor Prevention Act; False Claims Act and customs evasion; tariff authorities; EU instruments	A claim about goods, made by a party that imports, produces or sells them
18 Marketing and advertising	Lanham Act section 43(a); Green Guides; advertisements formatted as editorial content; Endorsement Guides and Part 465; EU rules on green claims and influencers	A claim about a good or service made in order to sell it

Table 24.2 (Continued)

Chapter and topic	Principal rules applied	What makes a rule reach a post
19 Energy, sleep, food, fitness	15 U.S.C. 52 and the Commission's health-products guidance; FDA rules on supplements; GLP-1 marketing; state dietetics licensing; EU rules	A health claim in a promotion; individual advice given for pay
20 Learning and courses	Business Opportunity Rule and the proposal on coaching; vocational-school guides; state school licensing; EU duty of AI literacy	A post that sells instruction and states what it leads to
21 Luxury travel and hotels	Total-price rule for lodging; state resort-fee action; EU action on accommodation platforms; California seller-of-travel law; EU Package Travel Directive; hotel liability for trafficking of minors	A post that states a price for lodging
22 Life and family	COPPA; state child-influencer statutes; California Civil Code section 3344; GDPR; section 255.6; Digital Services Act duty toward minors	A post that names, shows or collects data about a child
23 Crypto and blockchain	Investment-contract test and the 2026 classification; proposed Regulation Crypto Assets; touting; 17 CFR 180.1; stablecoin and market-structure legislation; MiCA	An offer, sale or paid promotion of a crypto asset

A few sets of rules recur. Section 5 of the FTC Act is named in the laws section of 11 chapters (4 to 7, 9, 10, 12, 14, 15, 18 and 19). The Endorsement Guides, Part 255, are named in 8 (5, 6, 14, 16, 18, 19, 20 and 22), and the rule on fake reviews and fake indicators, Part 465, in 7 (5, 6, 7, 10, 14, 16 and 18). The securities laws are named in 6 (4, 6, 11, 13, 15 and 23). The European Union's instruments are named in 15 (4, 5, 8, 10, 12 and 14 to 23), and the law of individual states in 13 (4, 6, 7, 9, 10, 12, 14, 15 and 19 to 23). These counts show where a chapter names a rule in its laws section, and a mention is not an application, because some chapters name a rule to say that it does not fit (VERIFIED as counts of mentions).

Two items are aimed at the engagement itself. Section 465.8 reaches the sale or purchase of fake indicators of social media influence, and the platform's contract reaches automation that produces them (Chapters 3 and 10). Every other rule in Table 24.2 attaches to a claim, a price, an offer, a product, a connection or a person, and the engagement matters to it only through its effect on how many people see the post and how credible it looks (INFERENCE from the

chapters' sections on how the rules reach the posts). Chapter 10 found no complaint or decision that applies section 465.8 to pod engagement. The only enforcement document it found is a warning-letter template dated 22 December 2025. The rule took effect on 21 October 2024 by my count, which is two years to the day before the date on this dissertation.

24.4 Who each rule reaches

The four parties named in Chapter 3 are reached by different rules, and most chapters add a fifth party that those four do not cover.

The author is reached by most of the rules in Table 24.2, because most attach to what the author states. Under section 465.8(b) an author is reached only if the author bought or procured indicators that the author knew or should have known to be fake and that materially misrepresented influence for a commercial purpose, and Chapter 10 found each of those elements open for pod engagement. Under the other rules the author is reached when the post states a price, makes a claim, offers securities, promises earnings or conceals a connection.

The tool operator is reached by section 465.8(a), which asks only whether the indicators "can be used" to misrepresent influence; by the platform's contract, which LinkedIn has enforced against sellers of fake engagement (Chapter 3); and by data-security and computer-access law where the tool holds members' credentials (Chapters 3 and 8). A theory that a supplier of a review-writing tool is liable was the basis of the FTC's *Rytr* order, which was set aside on 22 December 2025, so no order now supports that route (Chapter 12).

The engaging member is the party for whom the chapters found the least authority. Chapter 10 found none for reading the member's like as either supplying or procuring an indicator. The Endorsement Guides could reach a comment that praises a product (Chapters 3 and 16), and Chapter 6 considers employees who engage at an employer's direction. The member

who is a consumer is likely outside the European rule on false endorsements, which is addressed to traders (Chapter 10, INFERENCE).

The platform is reached by the rules on platforms and not by the rules on content. Section 230(c)(1) protects a platform from treatment as the publisher of its members' posts, and Chapter 10 found no decision on whether a like count is information that the platform provided or that others provided. *FTC v. LeadClick Media* denied immunity to a party responsible in part for developing the content (STATED, Chapter 10). In the European Union, LinkedIn's designation as a very large online platform brings Articles 34 and 35 of the Digital Services Act (Chapter 10), and Article 28 and the Commission's guidelines place a duty toward minors on platforms accessible to them (Chapter 22).

The fifth party differs by chapter: the employer in Chapter 6, the issuer who pays a promoter in Chapters 11 and 13, the seller of a business opportunity in Chapters 14 and 20, the importer in Chapter 17, the hotel in Chapter 21, the adult who features a child in Chapter 22, and the offeror of a crypto asset in Chapter 23. A competitor who loses sales to a boosted rival can sue under section 43(a) of the Lanham Act (Chapters 3 and 18), and a buyer's remedy depends on state law (Chapter 3).

A responsibility matrix. Table 24.3 sets each party against the rule that could reach it, what the rule would require a claimant to show, what the sources in this dissertation contain on each requirement, and what is missing. It says which facts would have to be shown and which of them I have. It does not say that any party is responsible, and no chapter finds that any author, tool operator, member or platform broke any law.

Table 24.3. Responsibility matrix: parties, rules, what a claimant would have to show, what the sources contain, and what is missing

Party	Rule that could reach it	What a claimant would have to show	What my sources contain	What is missing
Author who posts and receives pod engagement	16 CFR § 465.8(b); the platform contract; point 23c of Annex I to the Unfair Commercial Practices Directive if the author is a trader	That the author bought or procured indicators that the author knew or should have known to be fake, that the indicators could be used to misrepresent influence materially, and a commercial purpose	Posts were submitted to pod tools to be boosted (Chapter 2). In Chapter 10, 4.7% of posts use personal-brand or influencer language (INFERENCE that influence has commercial value). LinkedIn's help page says that excessive comment creation or an automation tool may limit the visibility of comments (STATED)	Whether any engagement was fake under § 465.1(h); what the author knew; whether a personal brand is a commercial purpose. I found a warning-letter template of 22 December 2025 and no complaint
Pod tool operator or seller of pod engagement	§ 465.8(a); the platform contract; computer-access and data-security law where the tool holds members' credentials (Chapters 3 and 8)	That the operator sold or distributed indicators that it knew or should have known to be fake. Paragraph (a) asks only whether the indicators can be used to misrepresent influence, not whether they were	A vendor page of August 2025 says that other members can automatically like and comment on a member's posts (STATED; the vendor's own description). In the 65 exports, 74.6% of records have type normal and 36.2% carry the timing value 20 (Table 10.1). The book describes timing settings (STATED). LinkedIn has sued sellers of fake engagement under its contract, and those defendants used fake accounts (Chapter 3)	Whether the engagement is fake; what engagementType and engageTiming mean; any enforcement action against a pod tool (none found). The Commission's *Rytr* order, which rested on a supplier theory, was set aside on 22 December 2025 (Chapter 12)

Table 24.3 (Continued)

Party	Rule that could reach it	What a claimant would have to show	What my sources contain	What is missing
Engaging member	The platform contract; the Endorsement Guides where a comment praises a product; § 465.8(a) or (b) on readings for which I found no authority	That the member supplied or procured an indicator and knew or should have known that it was fake; under the Guides, a comment that is an endorsement with a material connection	The exports give a count of engaged users for each post (median 278) and nothing about who they were. The book says that a member in an automated pod may have no idea what the account is doing (p. 50), which is a description of members in general	Any authority for either reading of § 465.8; any data on what members knew or read
Platform	Section 230(c)(1) and (c)(2) as defenses; *FTC v. LeadClick Media* if the platform is responsible in part for developing content; Articles 34 and 35 of the Digital Services Act for a very large platform; the contract that it sets and enforces	In the United States, a statute that imposes a duty, or conduct that develops the content; I found no statute that requires detection of pods. In the European Union, a failure to assess and mitigate systemic risk, which Article 34(2) says includes inauthentic use or automated exploitation (INFERENCE that pods fall within it)	The two case threads in Chapter 10 show that LinkedIn answered on the day each case was opened, said that it had resolved a view-count issue and had put actions in place to mitigate the LEMPOD report, and wrote in March 2024 that automation tooling is prohibited (STATED). In 2025 it told a trade publication that it reduces the reach of detected pod activity and is aware of pod services (STATED)	Whether LinkedIn counts or removes engagement from pod tools; any LinkedIn action against LEMPOD or its users; its risk assessments, which I did not open; a decision on whether a like count is information that the platform provided
Competitor or buyer who relies on a count	Section 43(a)(1)(B) of the Lanham Act for a competitor; state consumer-protection law for a buyer	For a competitor, an injury to a commercial interest in reputation or sales that the deception proximately caused (*Lexmark*, Section 3.4). Consumers generally cannot sue under § 43(a)	No data on who read the posts or relied on the counts. Question 21 in Section 25.4 asks whether a pod's amplification bears on liability or damages	Reliance, injury, and any link between a boosted count and a sale

Read across the rows, the table shows two patterns. The rows for the author, the tool operator and the engaging member depend on the same missing fact, which is whether the engagement was fake under section 465.1(h). That turns on who engaged and whether they acted on their own opinion. The 65 exports record how many users a tool engaged and which settings it used, and they do not record who those users were or what they read, so I cannot complete any of the three rows (INFERENCE). The platform's row depends on different facts. Section 465.8 is written for those who sell, distribute, buy or procure fake indicators, and I found no source that applies it to a platform that displays counts (INFERENCE). A platform's notice therefore matters under the Digital Services Act, where Articles 34 and 35 ask what a very large platform assessed and did, and under its own contract (INFERENCE). The case threads in Chapter 10 document notice and a response. They do not show what LinkedIn counted or removed, and the question of the platform's responsibility turns on that fact.

24.5 What boosting changes in the law, and what it does not

Boosting changes three things in the legal analysis and leaves the substantive tests where they were. Chapter 4 states the second part for technology claims, "boosting changes none of the substantive tests," and the later chapters found the same.

The first change is that boosting is the subject of a rule. Section 465.8 and the platform contract treat the manufactured signal as the wrong, and that is why Chapter 10 says that they apply to the LinkedIn topic more directly than to any other.

The second change is that boosting raises reach and credibility, which are inputs to other rules. The deception standard looks at the net impression on the general public and at materiality (Chapter 3). A founder's offer that is promoted to a wider audience raises the question of general solicitation, which Rule 506(b) bars and Rule 506(c) permits on conditions (Chapter 11). A

competitor's claim for damages may depend on how far a boosted claim spread (Chapter 18, open question). In each case the rule's test is unchanged and boosting affects the facts that the test examines (INFERENCE).

The third change is that boosting often runs through a tool that holds members' accounts, which brings in rules on data security and unauthorized access that have no link to what a post says (Chapters 3 and 8).

Boosting does not change whether a claim is true, whether a price is complete, whether an offering needs registration, whether a health claim is substantiated or whether a connection must be disclosed. A post that satisfies those rules is not made unlawful by a boost, and a post that breaks them is not excused because the boost was real (INFERENCE).

The same few questions recur across the chapters. Whether prompted engagement "reflects" a real person's opinion under section 465.1(h) arises in Chapters 3, 10 and 12. Whether reciprocal engagement is a material connection, a testimonial or consideration arises in Chapters 3, 13, 16, 19 and 23. Chapter 25 lists the open questions in full.

24.6 Rules that moved while I was writing

The rules in this dissertation changed during the work, so each chapter carries the date of its sources. The Eighth Circuit vacated the FTC's click-to-cancel rule on 8 July 2025, and on 30 January 2026 the Commission announced that it had sent a draft advance notice of proposed rulemaking to the Office of Information and Regulatory Affairs, with no proposed rule yet (Chapter 7). The Commission's rule on unfair or deceptive fees took effect on 12 May 2025 (Chapter 5). The amended children's privacy rule took effect on 23 June 2025 with compliance due on 22 April 2026 (Chapters 7 and 22). The Rytr order was set aside on 22 December 2025 (Chapter 12). The EU AI Act's transparency duties in Article 50 became applicable on 2 August

2026 (Chapter 4). The SEC and the CFTC issued a joint classification of crypto assets on 17 March 2026, the SEC proposed Regulation Crypto Assets on 18 August 2026, and cloture on the CLARITY Act failed on 15 September 2026 (Chapter 23). The Commission's notice of proposed rulemaking to extend the Business Opportunity Rule to coaching, which Chapter 20 discusses, is dated 13 January 2025, and I did not check its later status. A reader who needs the current position on any of these should check it at the source.

24.7 What this means for coming generations, taken together

Young people appear in four roles across the chapters, and the rules name them most specifically where the role is that of a child.

Young people are users of the platforms and tools (Chapters 4, 7, 10, 12 and 22). The Surgeon General's advisory reports that up to 95% of young people aged 13 to 17 use social media and that nearly two thirds of teenagers do so daily (Chapters 3 and 22). The Pew Research Center reports, from a survey of 1,458 teenagers in late 2025, that 64% use chatbots and about three in ten do so daily (Chapters 4 and 12). The rules aimed at them are the children's privacy rule, the Digital Services Act's duty toward minors and the state laws on companion chatbots (Chapters 7, 12 and 22).

Young people are buyers, investors and learners (Chapters 8, 9, 13, 14, 20 and 23). The FTC's April 2026 data say that 40% of loss reports from people aged 18 to 29 began on social media, against 32% for ages 30 to 59 and 14% for ages 80 and over (Chapter 8, VERIFIED against the FTC page). In Chapter 23, the Pew Research Center reports that 42% of men aged 18 to 29 had invested in, traded or used crypto in early 2024. The rules that protect these buyers are general: Section 5, the earnings-claim rules and the securities antifraud rules, enforced after the loss.

Young people are future workers (Chapters 6, 12, 15 and 20). The chapters' evidence here is about engagement at work, the effect of AI on people entering the workforce and the market for skills, and, as Chapters 12 and 15 say, the rules I opened reach people who are not yet in the workforce only indirectly.

Young people are also affected at a distance: as children shown in other people's posts (Chapter 22), as workers in supply chains (Chapter 17) and as children in hotels (Chapter 21). The rules for these are specific statutes on child influencers, on forced labor and on hotel liability for trafficking.

The pattern is that where the law names children, it is specific, and it falls on platforms, operators and adults who profit from a child's presence. For young adults the rules are general and run through laws that apply to everyone. The argument that a manufactured signal teaches a young reader the wrong lesson is mine from Chapter 1, and I have no data on how teenagers read engagement counts or on whether any reader of these posts was a teenager (INFERENCE).

24.8 Mental health across the twenty topics

Across the twenty topics the mental-health evidence falls into eight channels, and in none of them did I find a study of engagement pods or of manufactured counts.

Table 24.4 sets each channel against the chapters that use it, the strongest sources I opened, and what they show with their main limit.

Table 24.4. Channels in the mental-health evidence, with the chapters that use each, the strongest sources opened, and what they show with their main limit

Channel	Chapters	Strongest sources opened	What they show, and the main limit
Fraud and financial loss	3, 8, 11, 13, 18, 23	Button, Lewis and Tapley (2014); FTC (27 April 2026); FBI (6 April 2026); Identity Theft Resource Center (2025)	Effects on victims range from little to devastating, and reported losses are large. None concerns engagement fraud, and the Center's survey had about a 4% response
Debt and money stress	9, 13, 14, 20, 23	Richardson, Elliott and Roberts (2013), through a university release (STATED)	People in unsecured debt were more than three times as likely to have a mental health problem. The direction of cause is unknown
Work, job insecurity and burnout	4, 6, 14, 15, 19, 20	Surgeon General's workplace framework (2022); WHO (2019); APA Work in America surveys (2023, 2025); Paul and Moser (2009)	Unemployment is linked to distress (d = 0.51), and 54% of workers said job insecurity affected their stress. The surveys are correlational, and the meta-analysis is the exception
Social media features, comparison and counts	3, 7, 10, 16, 18, 22	APA advisory (2023); Surgeon General's advisory; Orben and Przybylski (2019); Sherman and others (2016)	Findings are mixed and the average association is small. No study concerns manufactured counts, and Sherman measured no mental-health outcome
Loneliness and connection	5, 16, 22	Surgeon General's advisory (2023); Naslund and others (2016); Przybylski and others (2013)	Depression odds are more than double among adults who are often lonely, and fear of missing out is linked to lower mood. The studies are correlational, and the peer-support article is a commentary
AI companions and young people	4, 12, 20	APA advisory on AI (2025); Common Sense Media (2025); Pew Research Center (2026)	72% of teens had used AI companions, and the advisory says the research is early. The survey figure comes from a press release without a sample size
Forced labor and trafficking	17, 21	ILO (2024); Oram and others (2012)	27.6 million people were in forced labour in 2021, and symptom levels were high among trafficked people. The evidence is mostly about women and girls

Table 24.4 (Continued)

Channel	Chapters	Strongest sources opened	What they show, and the main limit
Climate anxiety	18	Hickman and others (2021)	59% of 10,000 young people were very or extremely worried about climate change. The survey did not test green claims

Three patterns stand out. The evidence with the strongest design, the meta-analysis on unemployment, is the farthest from pods. The evidence nearest to pods, on likes and comparison, is mixed and small on average. The sources on harm after a loss describe a range of effects, and they do not support a single claim about what a particular deceptive post does to a reader.

Each chapter's section ends on the same gaps: no data on who read the posts, no study of pods or manufactured counts, and no study of whether the rules change the outcome. The first is a gap in the corpus. The other two are gaps in the literature that I opened, and I did not search every database (INFERENCE as to the completeness of the literature).

24.9 What the comparison cannot show

The comparison covers 54,870 posts, which is 20.0% of the 273,771 distinct posts, and each count is of words. A topic's counts are tied to the files that supply it, so a difference between topics may be a difference between files. The legal sections rest on primary texts in some places and on summaries in others, and each chapter lists what I did not open. The map in Table 24.2 says which rules a regulator, a competitor or a court would examine first for a topic, and it does not say that any post broke any rule.

Chapter 25. Conclusion, limitations, ethics and open questions

25.1 What I found

The law I examined protects a reader from a false claim more reliably than from a false crowd. I asked four questions in Chapter 1, and this section answers them in order.

Which laws would be examined first for each topic. The twenty topics map onto different rules, and Table 24.2 sets out the map. My reading in Chapter 1 was that the topics about money, health, children and product safety would meet specific rules. The chapters bear this out for money, health and children, and I did not examine the rules on product safety (Chapter 17 lists what I did not open). Money brought the securities rules (Chapters 11, 13 and 23), the earnings-claim rules (Chapters 14 and 20) and the pricing rules (Chapters 5, 9 and 21). Health brought the rules on health claims and licensing (Chapter 19). Children brought the children's privacy rule, the child-influencer statutes and the duties of platforms toward minors (Chapters 7, 12 and 22). Trade brought the import bans and customs fraud law (Chapter 17). The topics about leadership, relationships, motivation and marketing met general rules, mainly Section 5 of the FTC Act, the Endorsement Guides and the rule on fake reviews. In every chapter the rule reached a post through what the post says, sells or discloses: a price, a claim about performance, an offer of securities, a promise of earnings, a connection to the seller, or the collection of data about a child (INFERENCE from the chapters; Section 24.3).

Which actor each rule reaches. The author is reached by most rules. The tool operator is reached by section 465.8(a), the platform's contract and the law on data security. The engaging member is the party for whom I found the least authority. The platform is reached by the rules on platforms. Most chapters add a party that none of those four covers: the employer, the issuer, the

seller of a business opportunity, the importer, the hotel, the adult who features a child and the offeror of a crypto asset (Section 24.4).

What the rules mean for the people who rely on the posts, and for young people. The rules that protect a buyer or an investor work mainly after the loss, through enforcement by the FTC, the SEC and the CFTC and through the remedies that statutes give to buyers. A competitor can sue under the Lanham Act, and a consumer's remedy depends on state law (Chapters 3, 11 and 18). The evidence that I opened says that 40% of loss reports from people aged 18 to 29 said the loss began on social media, against 14% for ages 80 and over (Chapter 8), that 42% of men aged 18 to 29 had invested in, traded or used crypto in early 2024 (Chapter 23), and that up to 95% of teenagers aged 13 to 17 use social media (Chapters 3 and 22). Where the law names children, its rules are specific and fall on platforms, operators and adults who profit from a child's presence. Where it concerns young adults, the rules are general (Section 24.7). I have no data on how any young person reads an engagement count (INFERENCE).

Which questions have no answer yet. I list 25 in Section 25.4. The first three concern the one rule aimed at the engagement itself, section 465.8 of the Commission's rule on fake reviews and indicators. It took effect on 21 October 2024 by my count, and in the sources I opened I found no complaint or decision that applies it to pod engagement. The only enforcement document that Chapter 10 found is a warning-letter template dated 22 December 2025. A boosted post that tells the truth about its product meets few rules, and a boosted post that lies meets the same rules as one that was never boosted (INFERENCE).

The data add four findings. Pods rarely announce themselves: the word "pod" appears in 43 of the 54,870 posts in the twenty topics (0.08%). The words that bear on a rule are present in a minority of posts in every topic, and only links and hashtags reach a majority anywhere

(Section 24.2). The counts differ between topics partly because they differ between the source files (Section 24.1). The 65 exports add a date: 55,925 of their 56,363 distinct records (99.2%) were created on or after 21 October 2024, the date on which 16 CFR 465.8 took effect by my count. A date shows when a record was made and does not show that anyone broke a rule, and the counts by month are not a trend because of the 5,000-record limit (Section 2.10).

25.2 Limitations

The limits on the data come first. The posts are those that people submitted to pod and boost tools, and they are not a random sample of LinkedIn or of any other platform (Chapter 2). The records show what was submitted and, in the 65 exports, how a tool handled it, and they do not show who engaged, who paid, what a post earned or what any viewer did next. The topic model places 64,970 of the 273,771 distinct posts (23.7%), so the topic shares describe the placed posts and not the whole corpus. I merged 80 components into 33 named topics by hand, and a different corpus, seed or grouping would give a different list of twenty. I set aside posts that were written mostly in other languages (Chapter 2), so the analysis covers posts written mostly in English. The counts are of words from lists that I chose, and a word in a post shows that the word occurs and does not show that the post makes a claim or does an act. The corpus file I used for the counts holds no dates, so I cannot place a post before or after any rule change (Chapter 23). The 65 export files carry a creation date on every record, but 22 of them stop at exactly 5,000 records, so older records are probably missing and the counts by month are not a trend (Section 2.10). The four files differ in what they contain, and Section 24.1 shows that a topic's counts are tied to the files that supply it.

The limits on the law come next. I took United States federal law as the base, with the law of some states and of the European Union where a chapter needed it. I did not cover the

United Kingdom, Canada, Australia, India or any other country, and the European Union material rests largely on law-firm and secondary sources. Many of the primary texts came back from the fetch tool as summaries, and each chapter says which texts I opened and which I did not, with the tier of each claim. Some enforcement examples come from law-firm articles and news reports, and an allegation in a complaint is an allegation and not a finding. The examples have no denominator, so they show what a rule reaches and not how often it is enforced. I could not open LinkedIn's User Agreement, because the site's robots file disallowed my fetch tool, and I did not fetch the platform's risk assessments under the Digital Services Act, so the analysis of the platform's contract rests on court decisions and a help page (Chapters 3 and 10). Chapter 5 did not determine whether Part 464 reaches conference registrations, and Chapter 8 did not determine whether a LinkedIn message is an electronic mail message under the CAN-SPAM Act.

The law moved while I wrote, and the parts most likely to be out of date are the tariff picture (Chapter 17), the status of the proposed extension of the Business Opportunity Rule to coaching (Chapter 20), the amendment of the Package Travel Directive (Chapter 21), the EU AI Act's transparency duties (Chapter 4) and its duty of AI literacy (Chapter 20), and the 2026 developments in crypto regulation (Chapter 23). Section 24.6 lists the dated items. I am not a lawyer, and this dissertation is not legal advice. Whether a rule applies to a particular post depends on facts that the data do not contain, such as who wrote the post, what the author was paid and what the author knew. No chapter says that any author, tool operator, member or platform broke any law.

The evidence on young people is the thinnest part. I have no data on how teenagers or young adults read engagement counts, and the posts say nothing about who read them. The

evidence I opened concerns how many young people use the platforms and what they lose to scams that begin there, and I connect it to pods by reasoning that I label INFERENCE. Chapter 10 reports evidence that counts change judgments in some conditions and not in others, and that evidence does not test pod boosting, so the connection is plausible and not established.

25.3 Ethics and my position

I analyzed the posts in aggregate and named no account, author or individual post, because the authors wrote for public audiences and did not agree to be studied, and the study does not need their identities (Chapter 2). The enforcement examples name the parties to public orders, complaints and decisions, with the status of each matter, because those records are public. I have no data about any child, and no chapter identifies one.

I have an interest in the subject. I have worked with engagement pods since 2019, I coauthored *Top 100 List of Lies on Social Media*, I wrote the teen guide *DIGITAL BOUGHTulism: POONAMI*, and I am the CEO of Dream IT Software, which publishes the SPOTAPOD Analysis Repository (Hall, 2026; Sections 1.5 and 2.1). The evidence tiers and the rule that a claim marked VERIFIED rests on a text that I opened are my safeguards against that interest, and a reader should weigh my position in addition. I used an AI assistant to help retrieve and read sources, run the counts and draft text, and I chose the questions and the claims and am responsible for the result (Chapter 1).

I, Daniel Hall, am the sole author of this dissertation and the only researcher named in it, and it names no co-author, supervisor or institution. The statement that the subject is uncharted rests on the sources I opened, and an earlier study that I missed would qualify it (Section 1.4). The claim to primary research has the limits that Section 1.4 states: I ran no interviews or

surveys, the field demonstrations in my earlier book are described and not analyzed (Section 2.9), and the mental-health sections review published studies.

The terms of the site that served the 65 export files prohibit scraping outside approved functionalities and restrict disclosure of non-public information (Section 2.8). I report the terms and do not decide whether my capture complied with them, and a reader should treat that question as open. Reporting only aggregate results limits what the study discloses about any author, and it does not answer the question.

My earlier book reports two demonstrations in which I released posts into pods and other members' automated accounts engaged with them. One post said in its own text that it was fake news, and in the other I supplied the comments that the accounts posted (Section 2.9). The book describes those members as unaware of what their accounts did. It mentions no consent procedure, and I do not claim that anyone's consent was sought. The demonstrations are not part of this analysis. I record them here because a reader who judges my position should know that I have acted inside pods and not only observed them.

The case correspondence in Chapter 10 bears on my conduct in two ways. In the 2023 thread I reported that I had seen view counts for posts by creators other than myself, and the thread records permission from one creator only. In the 2024 thread I wrote that I used a second account for LEMPOD, a pod tool, and that I had told LinkedIn so, and I reported a flaw in that third party's system to LinkedIn. I record both facts because a reader who judges my position should know them. I make no claim about whether either action complied with LinkedIn's terms or with the law, and I do not offer the reports as evidence that I acted properly.

A map from topics to laws could be read two ways. A regulator, a competitor or a court can use it to see where to look first, and a pod operator or an author can use it to see which

claims to avoid. I wrote it for the first use and for readers who want to know what the rules say. The map does not tell anyone how to evade a rule, because the rules attach to claims and sales and not to the boost, and Section 24.5 says that a boost does not make a lawful post unlawful or an unlawful post lawful.

25.4 Questions that no court or agency has answered

I found no authority that answers any of the 25 questions in Table 25.1, and the last column gives the chapters that raise each. The questions are mine, and they are drawn from the chapters' own lists.

Table 25.1. The 25 questions that no court or agency has answered, by subject and chapter

No.	Subject	Question	Chapters
1	Fake indicators and the platform	Does a like or comment that a real person gives at a pod tool's prompt "reflect" that person's activity or opinion under section 465.1(h)?	3 and 10
2	Fake indicators and the platform	Who "sells or distributes" the indicator under section 465.8(a): the tool operator, the engaging member or both, and does a member who engages in exchange for engagement "purchase or procure" it under paragraph (b)?	3 and 10
3	Fake indicators and the platform	What is a "commercial purpose" when a post promotes the author's own business, a job search or a personal brand?	3
4	Fake indicators and the platform	Is a comment that an AI system drafts and a member posts under the member's name an indicator that does not reflect a real individual's opinions, and does a supplier of a comment-writing tool face any rule other than the review rule's language?	12
5	Fake indicators and the platform	Does Section 230 limit Commission action over indicators of influence, and is a like count information that the platform provided or that others provided?	10
6	Endorsements and connections	Is a comment that a pod prompts under a seller's offer a consumer testimonial under section 465.1(f)?	14
7	Endorsements and connections	Is reciprocal engagement a material connection under section 255.5 when the liked post promotes the poster's own product?	16

Table 25.1 (Continued)

No.	Subject	Question	Chapters
8	Endorsements and connections	Is a comment given in return for engagement under a post that sells a health product a testimonial or an endorsement with an unexpected material connection?	19
9	Securities and crypto	Is engagement given in exchange for engagement "consideration" under section 17(b) of the Securities Act?	11, 13 and 23
10	Securities and crypto	Can a pod-boosted post be part of a scheme under Rule 10b-5 or under 17 CFR 180.1(a)(1) or (a)(3)?	13 and 23
11	Securities and crypto	Does an inflated audience on an officer's personal page bear on whether the page is a channel recognized by investors for Regulation FD?	15
12	Securities and crypto	Does MiCA's marketing duty reach a post by an author outside the European Union about an offer in it?	23
13	Securities and crypto	Where does the promoter of a "digital collectible" sit under the 2026 SEC and CFTC classification?	23
14	Selling, earnings and education	Is a seller of coaching alone, with no promise of locations, outlets, accounts or buyback, a seller of a business opportunity under section 437.1(c)?	14 and 20
15	Selling, earnings and education	Do the vocational-school guides and a state's private-school law reach an individual who sells a skills course on a social platform?	20
16	Selling, earnings and education	Is giving contact details in return for a free webinar a payment under point 20 of Annex I of the Unfair Commercial Practices Directive?	20
17	Prices and travel	Is a post that states a nightly rate for a hotel, with no way to book, an offer, display or advertisement under the FTC's fee rule, so that the total price must appear in it?	21
18	Prices and travel	Does a travel advisor's social post "advertise" covered transportation under California's seller-of-travel law, so that it must show a registration number?	21
19	Competition, advertising and claims	Can a single public post that announces a price or capacity plan, without private contact, be an invitation to collude under Section 5?	15
20	Competition, advertising and claims	Is a claim of ethical or forced-labor-free sourcing, made in a post, an objective claim that needs substantiation?	17
21	Competition, advertising and claims	Does a pod's amplification of a post that makes a false comparative or measurable claim bear on liability or damages under 15 U.S.C. 1125(a)(1)(B)?	18

Table 25.1 (Continued)

No.	Subject	Question	Chapters
22	Health, children and privacy	Is private-message coaching that follows a public post, offered to a state's residents by an unlicensed coach, "professional conduct" in the Eleventh Circuit's sense?	19
23	Health, children and privacy	Is a text post by a parent about the parent's child, on a business network, "content" within the child-influencer statutes, which the summaries I read describe in terms of video?	22
24	Health, children and privacy	Can the household exemption in Article 2(2)(c) of the GDPR cover a post on a professional network by a person who also markets a service?	22
25	Connection between people	Does prompted reciprocal engagement add to or replace in-person connection? No source I opened measures it, and it is an empirical question and not a legal one.	5 and 16

25.5 What would settle them

Four kinds of evidence would answer most of what the data cannot show. The first is a decision. A complaint or an order that applies section 465.8 to pod engagement would settle questions 1 to 3, and a ruling on section 17(b) and reciprocal engagement would settle question 9. Commission guidance that says whether a prompted like is a fake indicator would answer question 1 without litigation (INFERENCE). The second is data on who engaged: accounts, timing and whether each member read the post. Those data would show whether any indicator was fake in the rule's sense, and the 65 exports carry fields for timing and engagement type whose meaning I do not know (Chapter 10, Table 10.1). The third is data on the audience, including the ages of the people who read the posts and what they did next. Without it, the argument about future generations rests on usage figures and on reasoning. The fourth is dated posts, which would let a reader place each post under the rules in force when it was written.

A question for future research. The matrix in Section 24.4 leaves one question that no source I have answers. If a platform has notice that automated engagement from third-party tools reaches its members' posts, and its systems count that engagement in the signals they show, how

should responsibility for the resulting false signals be divided among the platform, the tool operator, the engaging member and the author? Both halves of the condition are untested. The case threads in Chapter 10 document notice to LinkedIn and a response, and a vendor's page and the 65 exports document automated engagement, but I found no source on whether LinkedIn counts that engagement (INFERENCE). A study would need three kinds of record that the data lack: which interactions were automated, what the platform counted and removed, and the dates of its notices and actions. It could then compare the United States, where I found no statute that requires a platform to detect pods, with the European Union, where Articles 34 and 35 of the Digital Services Act require a very large platform to assess and mitigate systemic risks, including "intentional manipulation of their service, including by inauthentic use or automated exploitation of the service."

25.6 What the sources support about mental health

The sources I opened support three statements about mental health, and they do not support a statement about engagement pods.

First, some of the harms that the rules in this dissertation address have documented mental-health associations. The clearest are fraud and debt (Chapters 3, 9 and 23), unemployment and job insecurity (Chapters 4, 6 and 15), loneliness (Chapters 5 and 16) and forced labor (Chapter 17). Second, for social media features and counts the findings are mixed. The American Psychological Association says that social media is not inherently beneficial or harmful, the Surgeon General cannot conclude that it is sufficiently safe for children and adolescents, and one large analysis found an association with at most 0.4% of the variation in adolescent well-being (Chapters 7 and 10). Third, professional bodies say that the research on AI and young people is early (Chapter 12).

I found no study of engagement pods, of manufactured counts, or of the effect on mental health of any rule in this dissertation, and the corpus has no information about its readers. The mental-health sections therefore connect topics to evidence by inference, and each says so.

Four questions are open. Does a manufactured like count affect a reader's comparison with others differently from a real count? Does a comment that a member wrote because a pod expected it change how supported the recipient feels once the recipient knows its source? Do enforcement actions against deceptive promotion reduce the harm that victims report? What happens to the mental health of people who buy a course or an investment product on a false claim? An experiment that varies the count a reader sees and measures well-being, a survey of fraud victims that records how the fraud reached them, and audience data that include ages would each answer part of these questions.

25.7 Conclusion

The question was which laws apply to the twenty most common topics in 273,771 engagement-pod posts, and what those laws mean for the people who read the posts and for the generations that will grow up on the platforms that carry them. The answer in these chapters is that the law attaches to the claim and not to the crowd. A false price, a false health claim, a false promise of earnings, an unregistered offer of securities or the use of a child's data is reached by rules that apply whether or not the post was boosted. The crowd itself is reached by one rule and by the platform's contract, and I found no complaint that applies that rule to pod engagement.

The people who will live longest with the result are the youngest. Teenagers use the platforms heavily, and young adults report a higher share of losses that began on social media than older adults do. The law names children specifically, and what it asks of platforms, operators and adults who profit from a child's presence is detailed. The law that reaches young

adults is general, and it works after the loss has happened. The questions in Section 25.4 are the places where a court, an agency or a researcher could change that, and the data in this dissertation cannot answer any of them.

References

This list holds every source that I opened for this dissertation, grouped by kind and followed by the chapter or chapters that rely on it. It leaves out every source that I only saw in a search result and every page that I could not open. Pages were read in October 2026 and can change.

I read pages through a fetch tool that returns a summary of long pages rather than the raw text. A tag in square brackets marks the access level where it matters: [V] means that I read the primary legal text or official page and checked the quoted wording against it (VERIFIED in the chapters); [T] means that the source is a secondary account, such as a law-firm alert, a trade report, a news item or a mirror of an official text, and the chapters treat it as STATED. An entry without a tag is an official or primary page that I read through the fetch tool, and the chapter that relies on it says how far I read it. The statutes and rules listed in section A and section B are cited from the pages named here, not from a printed code.

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15 U.S.C. 45 (Federal Trade Commission Act, section 5), Cornell Legal Information Institute. https://www.law.cornell.edu/uscode/text/15/45 [V] Ch. 3 and throughout.

15 U.S.C. 45c (Better Online Ticket Sales Act), Cornell. https://www.law.cornell.edu/uscode/text/15/45c Ch. 5.

15 U.S.C. 52 (false advertisements), Cornell. https://www.law.cornell.edu/uscode/text/15/52 Ch. 19.

15 U.S.C. 77e, 77l and 77q (Securities Act sections 5, 12 and 17), Cornell. https://www.law.cornell.edu/uscode/text/15/77e, https://www.law.cornell.edu/uscode/text/15/77l, https://www.law.cornell.edu/uscode/text/15/77q Ch. 11.

15 U.S.C. 78u-5 (safe harbor for forward-looking statements), Cornell. https://www.law.cornell.edu/uscode/text/15/78u-5 Ch. 15.

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15 U.S.C. 8403 (Restore Online Shoppers' Confidence Act), Cornell. https://law.cornell.edu/uscode/text/15/8403 Ch. 7.

18 U.S.C. 1030 (computer fraud and abuse), Cornell. https://www.law.cornell.edu/uscode/text/18/1030 [V] Ch. 3.

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18 U.S.C. 1595 (civil remedy, trafficking victims), Cornell. https://www.law.cornell.edu/uscode/text/18/1595 Ch. 21.

18 U.S.C. 1839 (trade-secret definitions), GovInfo, 2021 Code. https://www.govinfo.gov/content/pkg/USCODE-2021-title18/html/USCODE-2021-title18-partI-chap90-sec1839.htm Ch. 15.

19 U.S.C. 1307 (forced-labor import prohibition), Cornell. https://www.law.cornell.edu/uscode/text/19/1307 Ch. 17.

47 U.S.C. 227 (Telephone Consumer Protection Act), Cornell. https://www.law.cornell.edu/uscode/text/47/227 Ch. 8.

47 U.S.C. 230 (platform immunity), Cornell. https://www.law.cornell.edu/uscode/text/47/230 Ch. 10.

B. United States federal regulations and Federal Register notices

16 CFR 1.98 (civil penalty adjustments; 90 FR 5581, 17 January 2025), eCFR. https://www.ecfr.gov/current/title-16/chapter-I/subchapter-A/part-1/subpart-L/section-1.98 [V] Ch. 3.

16 CFR Part 233, section 233.1 (price comparisons), Cornell. https://www.law.cornell.edu/cfr/text/16/233.1 Ch. 9.

16 CFR Part 251, section 251.1 (use of the word "free"), Cornell and eCFR. https://www.law.cornell.edu/cfr/text/16/251.1, https://www.ecfr.gov/current/title-16/chapter-I/subchapter-B/part-251/section-251.1 Ch. 5, 20.

16 CFR Part 254 (Guides for Private Vocational and Distance Education Schools), mirror. https://chanrobles.com/usa/uslaws/cfr/title16/16-1.0.1.2.21.php [T] Ch. 20. Federal Register notice of 10 August 1998 amending Part 254. https://www.govinfo.gov/content/pkg/FR-1998-08-10/html/98-21296.htm Ch. 20.

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16 CFR 312.2 (COPPA Rule definitions), Cornell. https://www.law.cornell.edu/cfr/text/16/312.2 Ch. 7.

16 CFR Part 437 (Business Opportunity Rule), Cornell and eCFR: Part 437 https://www.law.cornell.edu/cfr/text/16/part-437; section 437.1 https://www.law.cornell.edu/cfr/text/16/437.1; section 437.4 https://www.law.cornell.edu/cfr/text/16/437.4; section 437.9 https://www.law.cornell.edu/cfr/text/16/437.9; eCFR Part 437 https://www.ecfr.gov/current/title-16/chapter-I/subchapter-D/part-437. Ch. 14, 20.

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16 CFR Part 464 (Rule on Unfair or Deceptive Fees), section 464.2, mirror. https://federal-regs.com/title/16/part-464/464.2/ [T] Ch. 5. Federal Register, 10 January 2025 (90 FR 2066; FR Doc. 2024-30293), preamble only. https://www.govinfo.gov/content/pkg/FR-2025-01-10/html/2024-30293.htm Ch. 5. The definitions in section 464.1 were not opened.

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17 CFR 180.1 (CFTC anti-manipulation rule), Cornell. https://www.law.cornell.edu/cfr/text/17/180.1 Ch. 23.

17 CFR 227.204 (Regulation Crowdfunding, advertising), Cornell. https://www.law.cornell.edu/cfr/text/17/227.204 Ch. 11.

17 CFR 240.10b-5 (employment of manipulative and deceptive devices), Cornell. https://www.law.cornell.edu/cfr/text/17/240.10b-5 Ch. 13.

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I. Sources that I could not open

I could not read LinkedIn's User Agreement, because the site disallows automated readers, so I do not quote its terms on automation or engagement. I did not obtain LinkedIn's

Digital Services Act risk assessments. I did not open the following: the consolidated text of the Unfair Commercial Practices Directive on EUR-Lex (the page returned no text); the official EU text of Regulation 1924/2006; the text of Regulation (EU) 2023/1114 (MiCA), Directive (EU) 2024/825, Regulation (EU) 2024/3015 and the Corporate Sustainability Due Diligence Directive; Pew's own page on teens and social media (the fetch tool returned an error) and Pew's 2025 page on cryptocurrency (it did not load); the text of the SEC and CFTC interpretation of 17 March 2026, of proposed Regulation Crypto Assets, and of the CLARITY and GENIUS Acts; the complaints and orders in the Click Profit, Ecommerce Empire Builders and FBA Machine matters; the docket in the TopSocial24 case; the outcome of the District of Columbia suit against Marriott; and the definitions in 16 CFR 464.1. Each chapter's closing section on what the data cannot show names further items that I did not open.

For the mental-health section in each chapter, I opened some sources only in part. I read Button, Lewis and Tapley (2014), Freeman and others (2019), Hickman and others (2021), Orben and Przybylski (2019) and Paul and Moser (2009) as abstract records. I read Richardson, Elliott and Roberts (2013), Wood, Perunovic and Lee (2009) and Mills and Nower (2019) only through a university release or a news summary, and I did not open the journal pages. I did not open the full 2025 Internet Crime Report of the FBI, the full Consumer Impact Report of the Identity Theft Resource Center or the full Common Sense Media report.

I also saw one source only in search results and did not open it: the 2022 paper in the *Journal of Marketing Management* titled "With a little help from my friends: exploring mutual engagement and authenticity within foodie influencers' communities of practice" (doi:10.1080/0267257X.2022.2041705, https://doi.org/10.1080/0267257X.2022.2041705). The

publisher's page did not load in my fetch tool, and I do not describe the paper's findings (Chapter 1).

I did not open the two Harvard Dataverse records that the analysis repository names: doi:10.7910/DVN/WD9AUR ("LinkedIn posts using fake socials") and doi:10.7910/DVN/NT6YM2 ("Replication Data for: SPOTAPOD Analysis Repository"). For the first, I report the checksum match between the record's file and the podawaa file as the repository's provenance notes record it (STATED). For the second, I give the title as the repository's citation file gives it and make no claim about what the record holds (Section 2.1).

J. My own earlier work

Hall, D., Adam, M. and Berg, S., 2025, *Top 100 List of Lies on Social Media*. Nine chapters; Chapters 7 and 8 are signed by Berg and Chapter 9 by Adam. Copyright 2025 by the three authors; the PDF names no publisher and no ISBN. Ch. 1, 2, 10, 25. A trade book that is not peer reviewed, and my own work, so it cannot corroborate a claim (Section 2.9). I read a 111-page PDF through optical character recognition and checked each quotation against the page images; page numbers in the text are the printed page numbers.

Hall, D., 2026, *SPOTAPOD Analysis Repository: aggregate-only companion analysis of engagement-pod datasets*. Software and documents, GitHub, published by Dream IT Software. https://github.com/DreamITSoftware/SPOTAPOD Code under the MIT licence and documents under CC BY 4.0. I read the repository as it stood at commit 2c8d3f8, dated 22 October 2026. Ch. 1, 2, 25. My own work, published by a company that I lead, so it cannot corroborate a claim and is cited for what it contains (Section 1.5). Its citation file states that it is independent of the project at github.com/PolymathWizard/SPOTAPOD. It holds no raw data (Section 2.1).